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Top 100 Toppers

GS-2 Toppers Handbook

Answer Writing Style in GS 2

3 Years of MGP Questions

Themes 4+

50+ Topics

OF THE TOPPERS

BY THE TOPPERS

FOR THE **UPCOMING** TOPPERS..

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Please note: The following answers don't reflect the ***'ideal types'*** rather the ***'actual types'.*** They have been written in an exam like milieu, thus provides a comparative standard for the other students to gauge their level of preparation and answer writing skills.

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ADITYA SRIVASTAVA
(AIR 1, 2023)

Q.4) The changed nature of civil society due to its professionalization has helped in deepening of democracy but at the cost of participation and accountability. Discuss.

(10 marks, 150 words)

अपने व्यावसायीकरण के कारण नागरिक समाज की परिवर्तित प्रकृति ने लोकतंत्र को गहरा करने में मदद की है लेकिन भागीदारी और जवाबदेही की कीमत पर। चर्चा करें।

(10 अंक, 150 शब्द)

Amartya Sen has called the relation between State and civil society to be that of "cooperative conflict"

Civil society promoting democracy in State via professionalism

1) Organised civil society ⇒ better mobilization of people on issues.
(Eg) Narmada Bachao Andolan.

2) Professionalism promoting data driven policy support. (Eg) ASER 2018 report leading to NIPUN Bharat Mission

3) Protecting rights against discrimination by multinations as seen in Vedanta vs Posco case.

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4) Better implementation of schemes using modern technology: as seen with MNREGA social audit in Rajasthan.

5) Eradication of social crimes (Eg) Bachpan Bachao Andolan by Kailash Satyarthi

Professionalism hampering participation and accountability

1) ~~Volunteerism~~ Volunteerism reducing among youth ⇒ professionalism hampering participation

2) Subservience to foreign policy interests as shown by IB Report of 2015 ⇒ no accountability.

3) Lack of transparency - CBI told only 10% file annual returns.

4) Difficulty in bringing down administrative expenditure to 20% due to professionalism ⇒ impinges on participation of experts- Need of the hour is to work with Madhyam marg for Samodaya.

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Q.12) Judicial accountability and independence are mutually reinforcing. Do you agree? In what ways can judicial accountability be enhanced without impinging on its independence?
(15 marks, 250 words)

न्यायिक जवाबदेही और स्वतंत्रता पारस्परिक रूप से एक दूसरे को प्रबलता प्रदान करते हैं। क्या आप सहमत हैं? किस प्रकार न्यायिक जवाबदेही को उसकी स्वतंत्रता को प्रभावित किए बिना बढ़ाया जा सकता है?
(15 अंक, 250 शब्द)

Judicial accountability is a sine qua non of democratic polity and independence of judiciary is a Basic feature of Constitution.

Mutually reinforcing

1) Accountability to public reinforces public trust ⇒ paves way for independence & support.
2) Prevents nepotism (Uncle Judge syndrome) ⇒ allows independent & impartial appointments.
3) Binds the powers of Collegium in transfer and postings ⇒ ensure independence internally.

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4) Allows judges to function independently without any fear/pressure of internal enquiry/punishment ⇒ pointed out by Justice Tahilramani.

Diverging accountability & independence

1) Can reduce faith in judiciary if reasons like ~~the~~ inefficiency are given in public domain for transfers.
2) Impinges on independent power to allocate cases (Master of Roster) ⇒ think about irrelevant matters during allocation
3) Executive accountability impinging on independence (Eg) striking down of 99th Constitutional Amendment (NJAC).
4) Internal accountability creating delays and hampering independent completion of cases logically.

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This calls for enhancing judicial accountability without compromising on independence :—

1) Creation of a public domain portal about the speed of cases and reasons for delay.
2) Public domain placement of database with data of potential appointment or transfer candidates.
3) Objective criteria in public domain about roster — performance & suitability
4) Materialising All India Judicial Services for transparency in merit based recruitment.
5) Synergy between human & artificial intelligence for data driven decisions.
↳ Supace initiative in right direction.

This will uphold spirit of democracy in judiciary and ensure "justice" in real sense.

Feedback (For OFFICE use)
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Question Interpretation
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Q.13) Ordinances deny legislative legitimacy to executive actions and weakens democratic accountability of elected government. Discuss the rationale behind inclusion of ordinance making power in the constitution and various safeguards against its misuse. Has the ordinance making power outlived its utility in present times? Justify. (15 marks, 250 words)

अध्यादेश कार्यकारी कार्यों को विधायी वैधता से वंचित करते हैं और निर्वाचित सरकार की लोकतांत्रिक जवाबदेही को कमजोर करते हैं। अध्यादेश बनाने की शक्ति को संविधान में शामिल करने के पीछे के तर्क और इसके दुरुपयोग के खिलाफ विभिन्न सुरक्षा उपायों पर चर्चा करें। क्या अध्यादेश बनाने की शक्ति वर्तमान समय में अपनी उपयोगिता को समाप्त कर चुकी है? औचित्य सिद्ध कीजिए। (15 अंक, 250 शब्द)

Articles 123 and 213 of Constitution give ordinance making power to President and Governor respectively.

Issues with Ordinances

1) Impinge on doctrine of separation of powers ⇒ executive encroaches on legislature domain.

2) Impinges on deliberative law making ⇒ problematic laws. (Eg) farm bills ultimately repealed.

3) Weakens accountability since no comprehensive scrutiny by Parliamentary Committee

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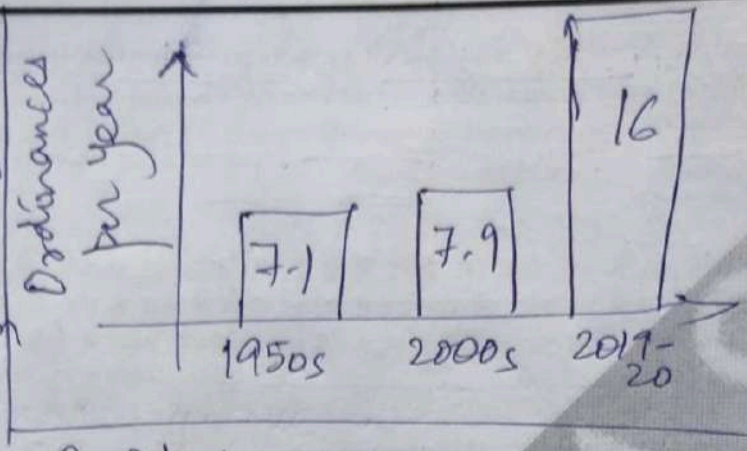
4) Increasing no. of ordinances violating the spirit of constitution and reducing public trust in legislature.



Yet, ordinance power is still needed –

1) To meet the needs of unprecedented times and urgent scenarios (as in Article 123)
2) Circumstances warranting immediate action. (Eg.) as during COVID.
3) When parliament is not in session and urgent matter props up.

Safeguards against misuse

1) Constitution says ordinance will cease to exist if not passed by both

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Houses in 6 weeks of reassembly.

2) Rules of Lok Sabha ⇒ memorandum explaining circumstances which warrant immediate action.

3) Successive repromulgation ⇒ violation of Constitution (DC Wadhwa case)

4) Satisfaction of executive can be questioned on ground of malafide (RC Looper case)

Despite the misuse and rising usage for non essential and emergency cases, ordinance making power still has its utility. It should be used with restraint (as said by Law Commission) to uphold the spirit of Constitutionalism in meeting emergency scenarios as with spirit of Article 123 & 213.

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Q.15) The achievement of Sustainable Development Goals by 2030 can happen only if we consider local context and situations. In light of this statement, examine the critical role as well as capabilities of PRIs in meeting the SDGs. (15 marks, 250 words)

2030 तक सतत विकास लक्ष्यों की प्राप्ति तभी हो सकती है जब हम स्थानीय संदर्भ और स्थितियों पर विचार करें। इस कथन के आलोक में, एसडीजी को पूरा करने में पीआरआई अर्थात पंचायत प्रणाली की महत्वपूर्ण भूमिका के साथ-साथ उसकी क्षमताओं का परीक्षण करें। (15 अंक, 250 शब्द)

Localization of SDGs carried out in 2021 as a proposal threw light on importance of grassroot implementation for achieving SDGs by 2030.

Critical role of PRIs

Positives →
- Important to spread awareness among people for adherence.
- Participatory governance to increase effectiveness.
- Promoting access to clean water & sanitation (SDG 6) as role of PRIs under Schedule 11.
- Promoting access to clean energy (SDG 7) via better implementation of

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schemes like Ujjwala Yojana
↳ Promoting gender equality (SGD-5) via political empowerment and supporting SHGs.

Negatives → Overlordship of DM → undermines functionality
↳ Lack of uniqueness due to Parastatals like SPV for Smart City project.

Capabilities of PRI

Positives → Powers by Constitution for Gram Sabha and planning
↳ Funds from 15th Finance Commission = increase of 52% in 2022-23

Negatives → Lack of adequate functional devolution — only 50% of functions devolved on average.

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→ Lack of funds – property tax contributes only 0.68% of GDP in India (2% in USA)

→ Tied nature of funds – scheme specific.

→ Functionaries ⇒ lack of separate dedicated cadre except in few States like Karnataka.

Way ahead

1) Cooperative federalism at all levels with adequate devolution of funds & functions.
   (eg: Kerala devolved all 29 functions)
2) Innovative financing for SDGs –
   (a) Bonds can be issued.
   (b) Sell local resources like wind energy – as in Odunthurai (₹19 Lpa)
3) Capacity building of functionaries.

This will help to promote Gandhian Swaraj & achieve SDGs with participation

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Q.5) Instead of performing a transformative role, traditional bureaucracy has contributed to perpetuation of old order. Comment. (10 marks, 150 words)

एक परिवर्तनकारी भूमिका निभाने के बजाय, पारंपरिक नौकरशाही ने पुरानी व्यवस्था को कायम रखने में योगदान दिया है। टिप्पणी करें। (10 अंक, 150 शब्द)

A-5 In the book "Why nations fail" author stresses on importance of institutional quality to ensure development & transformation in society

However Bureaucracy in India has largely had challenges in ensuring transformative role as —

1) Politicization of bureaucracy as seen from 15 month tenure (average) by SUPREMO database
   ↳ just like in Old English times.
2) Red tapism due to Weberian nature
   ↳ hampers ease of doing business and employment.
3) Bureaucratic attitude and strict

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rule following ⇒ substantive role undermined.

4) Generalist nature and lack of professionalism ⇒ facilitative role undermined.

5) Nexus as pointed by NN Vohra Committee ⇒ corruption.

6) Reluctance to change as pointed by II ARC ⇒ perpetuation of old order.

This has undermined role of Bureaucracy to uphold Article 38 of welfare State.

Recommendation

1) Civil Services Board to reduce political alignment — TSR Subramaniam case

2) Training and values inculcation via LBSNAA — overhauling Karmayogi

These will help to ensure the bureaucracy works as an agent of development and uphold Constitutionalism.

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Q.7) Subsidies have morphed into a populist tool to achieve electoral objectives rather than developmental goals. Examine. (10 marks, 150 words)

विकास के लक्ष्यों के बजाय चुनावी उद्देश्यों को प्राप्त करने के लिए सब्सिडी एक लोकलुभावन उपकरण में बदल गई है। परीक्षण करें। (10 अंक, 150 शब्द)

A-7 The case study of Punjab shows how electricity when given free can threaten environment via reducing groundwater levels and push the State into unsustainable debt — currently 53% (of GSDP) vs 60% of GDP leading to Sri Lankan crisis.

Subsidies for mere populism

1) Continuous elections lead to continuous promises of farm loan waiver → sets bad precedent with no development.

2) Voters getting enticed due to lack of political maturity as seen in Lokniti, CSDS survey → Delhi free rides case.

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3) Subsidy bills are becoming unmanageable as pointed by Economic Survey 2020-21
↳ lack of capital expenditure due to diversion for revenue expenditure

All this hampers development as limited nature of government finances

However subsidies are also important for development as —

1) Food subsidy via PDS and Mid Day Meal scheme → Saved lives during COVID

2) Removal of poverty and hunger via subsidized POSHAN Abhiyaan
↳ SDG - 1, 2 achievement

3) Inclusivity to break the cycle of deprivation → MNREGA scheme

Thus subsidies need to be well directed via proper propriety audit to assess outcomes to ensure Sabka saath, Sabka vikaas

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RUHANI
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Q.3) Human dignity, stemming from right to life, does not end with death penalty. In this context, throw light on various controversies surrounding capital punishment in the country.
(10 marks, 150 words)

जीवन के अधिकार से उपजी मानवीय गरिमा, मृत्युदंड से समाप्त नहीं होती है। इस संदर्भ में, देश में मृत्युदंड से जुड़े विभिन्न विवादों पर प्रकाश डालिए।
(10 अंक, 150 शब्द)

Human dignity stems from right to life (Article 21). Thus, death penalty may not be an appropriate way to end it.

PROS OF DEATH PENALTY

- Acts as a deterrent in society
- Prevents future such crimes
- Provides closure to the family of victim.

CONS OF DEATH PENALTY

- Difficulties in extradition of criminal from abroad to India
- It is irreversible.
- Does not lead to reformative justice: Law is meant to reform, not to take revenge.

Various law Commissions have stated that death penalty should not be given except to terrorists

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CONTROVERSIES :

- Bachchan Singh Case, 1950 :- Death penalty should be given only in 'rarest of rare' cases.
- Machchi Singh Case :- Death penalty should be given only if the act of crime shakes or horrifies the conscience of society.
- Mitigating factors (situation of criminal) should be weighed against aggravating factors (circumstances of crime) to announce death penalty. (Balance Sheet Theory)
- Shatrugan Sinha Case (2014) :- President should timely dispose off clemency pleas. At present, there is no deadline. Clemency pleas of Rajiv Gandhi's murderers remained pending with President for 7 years.

Thus, the capital punishment procedure needs to be clearly defined for effective justice.

Feedback
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AWIS			
CD & VA			
S & F			
P & R			

Please put tick marks in the above table.
Here G is Good, A is Average and P is Poor.

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RUHANI
(AIR 5, 2023)

Q.17) Safely managed drinking water services, as desired by Jal Jeevan Mission, are designated to give multifarious benefits cutting across generations. Discuss. Also, elaborate upon the challenges in ensuring the mission's success. (15 marks, 250 words)

जल जीवन मिशन की इच्छानुसार सुरक्षित रूप से प्रबंधित पेयजल सेवाएं, पीढ़ियों तक विविध लाभ देने के लिए नामित की गई हैं। चर्चा कीजिए। साथ ही, मिशन की सफलता सुनिश्चित करने में आने वाली चुनौतियों के बारे में भी विस्तार से बताएं। (15 अंक, 250 शब्द)

Jal Jeevan Mission is a flagship scheme of the government which aims to provide safe drinking water to 19 crore rural households in the country through installation of tap connections.

BENEFITS OF SAFELY MANAGED WATER SERVICES :-

- **Health Benefits** :- Safe water prevents diseases like diarrhoea, typhoid.
- **Better nutrition absorption** :- If water is safe and worm-free, food and nutrition are better absorbed by a pregnant mother. This benefit accrues to her baby too.

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- Reduces drudgery of water collection over long distances :- Taps within home save women's time.
- Women can now spend more time on themselves and on their children's education..
- Water-safety kits are being used by SHGs to check quality of water → ensures water is chlorinated on time.
- Water user costs ensures O&M of taps, thus ensuring that successive generations can benefit from tapwater.

People still rely on tubewells

CHALLENGES OF MISSION

- Lack of smart water meters
- Irregular supply of water in taps
- O&M cost of taps is high
- People are unwilling to pay water tariffs

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REFORMS NEEDED :-

- People need to be made aware of benefits of using taps (chlorinated, safe water)
- People to be encouraged to pay water tariffs which will finance the O&M of taps.
- Smart water meters to detect non-revenue water (leakages and losses)

The above steps will ensure that JJM continues to be a sustainable and efficient scheme that aligns with SDGs.

Feedback
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#	G	A	P
AWIS			
CD & VA			
S & F			
P & R			

Please put tick marks in the above table.
Here G is Good, A is Average and P is Poor.

TOTAL MARKS	

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RUHANI
(AIR 5, 2023)

Q.2) To what extent, in your opinion, Self-Help Groups (SHGs) in India have enabled women led development at the grassroot level? (10 marks, 150 words)

आपकी राय में, भारत में स्वयं सहायता समूहों (SHGs) ने जमीनी स्तर पर महिलाओं के नेतृत्व वाले विकास को किस हद तक सक्षम बनाया है? (10 अंक, 150 शब्द)

SHGs are informal associations of people (especially women) who come together to improve their standard of living. Eg:- Kudumbashree SHG in Kerala.

ROLE OF SHGs IN ENABLING WOMEN-LED DEVELOPMENT AT GRASSROOT LEVEL :-

- **SOCIAL ROLE** :- Women come together in SHGs to discuss social problems.
  → SHGs build social capital i.e. a level of trust and mutual understanding, which helps to solve social problems.

- **POLITICAL ROLE** :- Women hold the Gram Panchayat accountable for implementation of government schemes.

- **PSYCHOLOGIAL ROLE** :- Women gain confidence in discussing their problems in SHGs.

- **ECONOMIC ROLE** :- SHGs promote the habit of saving among women so that they

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Can get credit from banks (without collateral) to start their own businesses.

- **DEVELOPMENTAL ROLE**: ~~SHGs~~ Higher savings ensure that women have more money for their own nutrition, health and children's education.

Thus, SHGs have played a crucial role in promoting women entrepreneurship through DAY-NRLM scheme. However, much more needs to be done to make them more effective at grassroot level.

Feedback
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AWIS			
CD & VA			
S & F			
P & R			

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SRISHTI DABAS
AIR 6, 2023

(2) Narrow understanding of disability has marginalised people suffering from mental disorders. Elucidate. (10m)

There are around 2.24% people with disability (PWD) in India. Recently, the renowned dancer Sudha Chandran had to remove her prosthetic leg at airport, while a little boy was denied entry by Indigo flight - showing insensitivity towards disabled.

Narrow understanding of disability

(1) people with 'physical' and 'visible' disabilities are considered PWD. eg those without arm/leg.

(2) Mental disability is seen as a 'construct' of mind and not a disability.

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(3) Parents usually 'hush' (silent) their children when they mention about mental health issues.

(4) People fail to accept anxiety and depression as serious concerns

(5) Immense mental health disorder leads to suicides

∴ 18% rise in student students as per NCRB.

Hence, what we need is ⟶

(1) understanding that Disease means 'Dis-ease' which can be psychchological as well.

(2) psychologist / psychiatric support to be normalised.

(3) more communication and empathy towards the disturbed.

This will truely ensure SDG-3 → Health & well being.

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कृपया इस स्थान में प्रश्न संख्या के अतिरिक्त कुछ न लिखें।

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उम्मीदवारों को इस हाशिए में नहीं लिखना चाहिए
Candidates must not write on this margin

(13) Reforming the education infrastructure through digital interventions is a progressive step, but it has its limitations too. Comment. (15 m)

There is no Indian university in top 50 of QS world Rankings — highlighting the dire need to adopt digital interventions to revolutionize & metamorphise educational arena.

The significance of digital interventions will be —

(1) to enable availability, accessibility & affordability of education for all; through e-DIKSHA

(2) to reach to the marginalized
- Tribals who lack access to quality education.
- SC, ST, OBC
- LGBTQIA who face discrimination in schools
- women who are denied education :of patriarchy

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(3) to keep a check on Teachers –
- attendance monitoring through biometric.
- Teacher training through NISHTHA scheme.

(4) boost Massive Open Online Courses (MOOCS) through Swayam Initiative

(5) to boost R&D in Emerging areas } climate change, cyber security, etc.
↳ through access to online journals.

(6) enable Industry - Academia linkages : utilizing technology for integrating supply - demand of employment needs to education.

Hence, this will be progressive step towards ensuring SIKSHIT BHARAT, VIKSHIT BHARAT — ie educated India, developed India.

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But, it has [limitations] like -

(1) focus on rote learning over practical knowledge.

(2) lack of emphasis on vocational training & skill development

(3) the digital divide in India, preventing the poor, tribals from affording smartphones & internet

(4) lack of disable friendly digital Rfrastructure - leading to exclusion

(5) use of digital technology causing harm to students
   - eg Boys locker room on Instagram
   - getting radicalised misled, misinformed.

Hence, we need to ensure:
- parental scrutiny
- teachers' accountability
- reach to hinterlands.
- dynamic & practical education

to achieve [SDG 4] - Education for All.

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(Please do not write the question number in this space) कृपया इस स्थान में प्रश्न संख्या को अंकित कुछ न लिखें।

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उम्मीदवारों को इस हाशिए में नहीं लिखना चाहिए Candidates must not write on this margin

(14) The unique attributes & strengths of NGOs & government make them complimentary to one another in governance & developmental process. Comment. Evaluate the need for effective & progressive regulation of NGOs. (15 m)

NGOs are the voluntary organizations which work for social welfare, without being a part of government. India has over 3.4 million NGOs.

eg. Goonj, HelpAge India.

Complementarity of NGOs & Government

(1) NGOs provide inputs to policy making by government.

eg PRATHAM's ASER report, Oxfam's Time to Care report

↳ enabling government to make policies & schemes

(2) NGOs further provide feedback on government programs.

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eg NA2 foundation — to improve governance for LGBTQIA.

(3) NGOs reach where the government cannot.

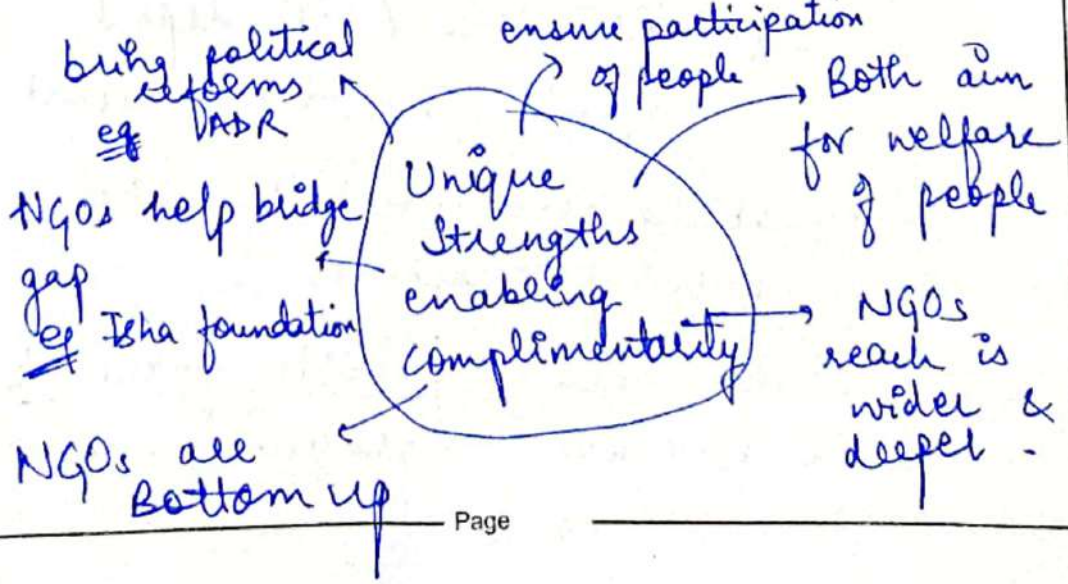
eg . in Gadchiroli affected by Naxals.

(4) NGOs assist government to together bring social change

eg Chaanv — for acid victims

(5) Both NGOs & government work during crisis & disasters

eg 'Doctors for You' during covid
Goonj helps in rehabilitation



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उम्मीदवारों को इस लाइन में नहीं लिखना चाहिए
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Need for effective regulation of NGOs

① foreign influence on NGOs, putting question mark on their funding
eg influence of khalistanis

② diversion of funds — towards organized crime need to be regulated.

③ NGOs disrupt development sometimes
eg protests against Vizhingam port

④ fake & bogus NGOs — just to get grants in aid from GoI
eg Old Age homes

Hence, Vijay Kumar committee recommended balancing regulation & autonomy of NGOs.
FCRA regulates the foreign contributions, keeps a check on administrative expenses (maximum 20%), yet also eases registration & functioning.

NGOs are the guiding light towards social change, hence we need Ease of Service for them.

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उम्मीदवारों को इस हाशिए में नहीं लिखना चाहिए Candidates must not write on this margin

16 Enduring efforts of Covid 19 pandemic have exacerbated existing issues of poverty and hunger. Explain. (15m)

Covid 19 pandemic has been an unprecedented medical crisis which soon snowballed into economic, social & political crisis.

Covid exacerbated poverty as —

(1) people suffered from job losses due to lay offs by companies & shutdown of contact-industries of construction labour.

(2) migrants faced the brunt of covid as lockdown was imposed — making them suffer for basic needs of Roti, Kapda & Makaan.

(3) Inability of government to

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provide social welfare measures to all - given the intensity of disease spread. eg Delay in food rations by PDS

④ eg Rise in expenditure on health-care by poor & low capacity of hospitals.

Covid exacerbated **hunger** as →

① people lost jobs, could not earn livelihood, hence could not even afford three times meal.

② the most vulnerable sections like → women, children, tribals are disproportionately impacted.
eg Anaemia

③ The triple burden of stunting (35%), underweight (32%) & wasting (21%) further increased

④ insensitivity of people to help the needy in such crisis.

⑤ hoarding of food by well off sections.

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उम्मीदवारों को इस हाशिए में नहीं लिखना चाहिए Candidates must not write on this margin

Yet, despite the grave crisis we say various steps taken -

(1) Common man helped the needy
- eg Sonu Sood

(2) Corporates contributed towards philanthropic donations.
- eg Tatas

(3) Government came up with "Aatmanirbhar Bharat-" to improve employment, production & resilience of economy.
- free food given
  - eg Pradhan Mantri Anna Yojna
- labour intensive sectors opened gradually
  - eg textile
- schemes for street vendors
- expanding medical infrastructure & vaccine supplies

(4) RBI also came up with moratoriums, relaxed repayments, repo operations to ease burden of borrowers.

Hence, concerted effort of all fought the crisis, showing strength of solidarity

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KUSH MOTWANI
(AIR 11, 2023)

Q.11) Electoral reform is a continuous effort to make election funding transparent, election process inclusive, and political parties accountable. Discuss issues related to election funding, proposal for remote voting and regulation of Registered Unrecognized Political Parties (RUPPs).

(15 marks, 250 words)

चुनावी फंडिंग को पारदर्शी, चुनाव प्रक्रिया को समावेशी और राजनीतिक दलों को जवाबदेह बनाने के लिए चुनावी सुधार एक सतत प्रयास है। चुनावी फंडिंग, दूरस्थ वोटिंग के प्रस्ताव और पंजीकृत गैर-मान्यता प्राप्त राजनीतिक दलों (आरयूपीपी) के विनियमन से संबंधित मुद्दों पर चर्चा करें।

(15 अंक, 250 शब्द)

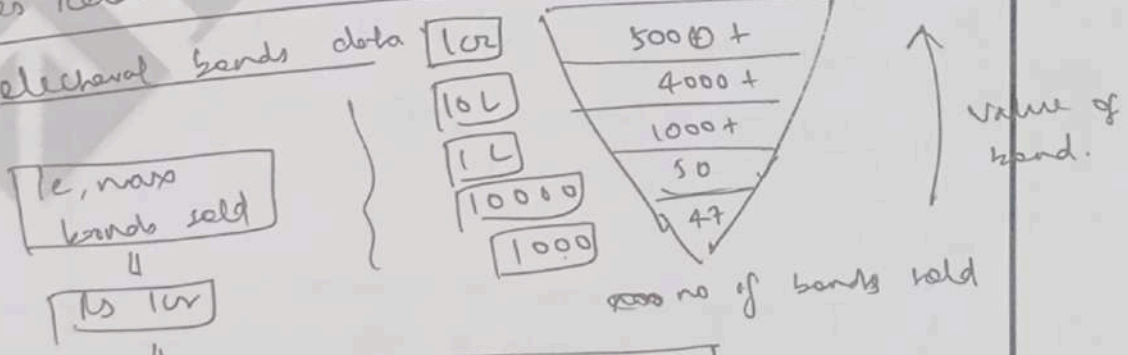
Election Commission of India has played a significant role in [Superintendence], [Direction] and [Control] of elections [Article 324].

Yet, several reforms need to be taken:

- Awareness about [manifesto]
- Increase adherence to [Model code of conduct]
- [City Moosa case guideline]
- Implementation of section 123 of RPA in letter and spirit.
- Implementation of section 8 of RPA in letter and spirit etc.

Issues related to election funding

1. electoral bonds data



- [1e, most bonds sold]
- [1s 1cr]
- [1e, process captured by elites.]

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KUSH MOTWANI
(AIR 11, 2023)

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2. Lack of transparency.
3. ECI – ~~foreigntigers~~ foreigners can buy electoral bonds via companies registered in India
   ⇓
   threat to electoral process
4. before electoral bonds : → criminal money
   → black money
5. crony capitalism
6. expenditure limit | In RPA 1951 – not followed
7. ₹ proxy expenditures untracked by ECI

Solutions:

1. Encourage voluntary disclosure of source of electoral funding.
2. Take steps against foreign interference.
3. Track proxy expenditure.
4. Enforce expenditure limit → for level playing field
5. Explore possibility of ~~regulated~~ state funding of elections (Indrajit Gupta committee)

REMOTE VOTING

Issues : 1. Privacy – how to ensure sanctity of vote?
2. Possible foreign interference – in

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KUSH MOTWANI
(AIR 11, 2023)

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case of NRIs voting:

3. cyber security
4. logistical challenges → hiring, transport, etc
5. who all should be allowed to vote via remote voting?

Solutions:

1. via EVMs – set up EVMs outside state.
2. Eg: during Bihar elections –
   → set up EVMs in Mumbai, Delhi, etc
   → so that migrants can vote.

Regulation of Unregistered Parties:

ISSUES:

1. money laundering
2. foreign interference
3. proxy candidates to eat into vote share
4. Bribery, corruption
5. tax evasion

SOLUTION: 1. offer same unregulated party persons contest elections from different places

↓

ONE NATION ONE ELECTION.

Open-ended steps will deepen democracy, and strengthen institutions (UPSC #162)

Feedback
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Structure/ Presentation
Question Interpretation
Content
Value Addition
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MEDHA ANAND
(AIR 13, 2023)

Q.3) Governor of a state enjoys more discretionary power than the president of India. Elaborate and explain the rationale behind this constitutional arrangement. (10 marks, 150 words)

किसी राज्य के राज्यपाल को भारत के राष्ट्रपति की तुलना में अधिक विवेकाधीन शक्ति प्राप्त है। इस संवैधानिक व्यवस्था के पीछे के तर्क की विस्तृत विवेचना एवं व्याख्या करें। (10 अंक, 150 शब्द)

Ar 163 talks about the discretionary power of governor and leaves an open ended statement implying a wider ambit than the discretionary power of President.

Discretionary Power of President

- choose PM in case of hung assembly
- Take steps when elected govt has lost confidence.
- Resend the advice tendered by Council of Ministers for reconsideration

Discretionary Power of governor

- above powers at state level
- reserve a bill for President
- other cases which may arise

Rationale behind this Constitutional Arrangement

(1) Ar 74 makes President bound by the aid and advise of Council of Ministers ⇒ has less discretionary power.

(2) Governor acts as a continuum to get Centre and state policy ⇒ has been given more discretion.

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(3) Federal Polity of India is such - "an indestructible union of destructible States" - that more power to governor become necessary.
(4) Adequate checks and balances are available as governor has many officials above him/her
(5) Cooperative Federalism will require that states have their descent share of power.
(6) Governor also controls certain tribal areas and hence more discretion is allowed.

Thus, keeping in view the type of Indian polity and to ensure unity and integrity of the Indian state, more discretionary power to the governor was an obvious choice.

Feedback
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Q.5) Why does constitution provide for a weaker second chamber at state level when compared with that at union level? Analyse the significance of Legislative Council in states.

(10 marks, 150 words)

संघ स्तर की तुलना में संविधान राज्य स्तर पर कमजोर द्वितीय सदन का प्रावधान क्यों करता है? राज्यों में विधान परिषद के महत्व का विश्लेषण कीजिए।

(10 अंक, 150 शब्द)

Legislative Councils at State (Ar 169) enjoy very less powers when compared to the Rajya Sabha (Ar 80) at the Union

Weaker LC vis-a-vis RS
- can delay ordinary bill by at max 4 months (no more say)
- can delay money bill by 14 days
- no provision of Joint sitting in case of disagreement
- their existence is based on whims of legislative assembly.
- can be easily bypassed.

Constitution provides for a weaker 2nd chamber at states than union because

1) To reduce delays in passing of bills at state level.
2) Rajya Sabha represents the states at the Union level ⇒ no such work for legislative Councils.
3) To reduce compliance burden on states by channelizing their resources.
4) legislative assembly represent popular mandate and thus must be given due respect.

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Significance of legislative Councils in states -:

(1) Prevents rash decisions
(2) Acts as a revisionary body.
(3) The knowledgeable people who couldn't get elected to assembly can contribute here.
(4) Gives another tier ⇒ adds dimension to public policy formulation and implementation.
(5) Represents the will of the people more vividly in an electoral democracy.

Although, Councils have less powers than the Rajya Sabha, their importance can be undermined as they represent the mandate of the people and ensures that rational decisions are made in public policy formulation.

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MEDHA ANAND
(AIR 13, 2023)

Q.6) What do you understand by the First Past the Post System (FPPS)? Why was FPPS preferred over the Proportional Representation (PR) system for elections to the Lok Sabha/Vidhan Sabha? Also, critically examine the consequences of this preference. (15 marks, 250 words)

फर्स्ट पास्ट द पोस्ट सिस्टम (FPPS) से आप क्या समझते हैं? लोकसभा/विधानसभा के चुनावों के लिए आनुपातिक प्रति. निधित्व (पीआर) प्रणाली पर फर्स्ट पास्ट द पोस्ट सिस्टम को प्राथमिकता क्यों दी गई? साथ ही, इस वरीयता के परिणामों का समालोचनात्मक परीक्षण करें। (15 अंक, 250 शब्द)

First Past the Post System (FPPS) was adopted at the time of independence to declare winners at election and ensure the constitutional mandate of enforcing the will of the People.

First Past The Post System - Whichever party gains highest vote percentage will be declared winner. Lately, parties getting around 30% of vote share are commanding majority. There have been instances of parties getting even less % of vote share and still commanding majority.

FPPS was preferred over Proportional Representation (PR) system for election -

1. Historical Reason - familiarity with the system and various Govt of India Acts led to Indians getting accustomed to it.

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② To prevent tyranny of minority - Since parties are given seats based on the vote share they get. it often is touted to promote tyranny of minority.

③ Understanding the system - FPPS is relatively easy to understand than the PR system and considering the literacy levels of the populace FPPS was a better choice.

④ Difficulty in execution of PR system on pan India level - To put sequencing on candidates over India would be difficult

Consequence of this preference -:

Ⓐ Positive - (1.) Easy to comprehend
(2.) Clear majority govts
(3.) Will of the electorate is upheld
(4.) Constitutional Morality is given utmost importance.

Ⓑ Negative - (1.) Minority decisions aren't given due respect
(2.) All choices of candidates can't be well used by voters.

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Thus, instead of deliberating on a shift from FPTS to PR system, other reforms can be undertaken to make electoral democracy more accountable -

1. State Funding of Elections (Indrajit Gupta Committee)
2. Reduce criminalization of Politics (Dinesh Goswami Committee and Vohra Committee)
3. Simultaneous Elections can be conducted (Law Commission of India report).
4. Independence of Election Commission can be further enhanced.

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MEDHA ANAND
(AIR 13, 2023)

Q.1) What are civil society organizations (CSOs)? Discuss their role as developmental partners of the government and highlight the concerns associated with their functioning. (10 marks, 150 words)

नागरिक समाज संगठन (सीएसओ) क्या हैं? सरकार के विकासात्मक भागीदारों के रूप में उनकी भूमिका पर चर्चा करें और उनके कामकाज से जुड़ी चिंताओं को उजागर करें। (10 अंक, 150 शब्द)

World Bank defines civil society organisations as groups, forums, associations which act as key development partners in a nation's growth story.

Role as Development Partners of Govt -

1. Highlight governance deficit - Ex- Environment organisations like Centre for Science and Environment work for Right to Environment.
2. Help in Policy Formulation - by collection of adequate data. Ex. PRATHAM works to ensure quality education.
3. Works for the upliftment of Vulnerable sections - Ex- NGO's like Bachpan Bachao Andolan work for child welfare, HelpAge work for senior citizens.
4. Ensure Quality of life and dignity of work Ex- Sulabh International working for sanitation rights.
5. Work as third sector in governance after govt and market to ensure good governance

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Ex- RTI was brought by BKMS.

Concerns associated with the working of Civil Society Orgainisations -

(1) Role of foreign players - Amnesty International was charged with conspiracy to affect developmental process.

(2) Lack of transparency - Inadequate audit mechanisms and non-accountability in filing of returns (Around 70% of NGO's don't file annual IT returns), raise doubts on their credibility.

(3) Lack of a unified regulator

(4) Lack of expertise among CSO's to manage crucial matters.

(5) Lack of awareness among citizens to effectively exhibit their right.

Strict enforcement of National Policy on Voluntary Sector 2007 would ensure that CSO's are able to bridge the governance deficit better.

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Q.7) Compromised health infrastructure has led to a situation where the marginalised are "one illness away" from falling into poverty. Highlight the issues with country's health infrastructure giving a suitable framework for reforms. (15 marks, 250 words)

समझौता किए गए स्वास्थ्यगत बुनियादी ढांचे ने ऐसी स्थिति पैदा कर दी है जहां हाशिए पर रहने वाले लोग गरीबी में धिरने से 'एक बीमारी की दूरी पर' खड़े हैं। सुधारों के लिए एक उपयुक्त ढांचा प्रदान करने वाले देश के स्वास्थ्यगत बुनियादी ढांचे के मुद्दों पर प्रकाश डालें। (15 अंक, 250 शब्द)

Economic Survey 2021 highlights how Out of Pocket Expenditure accounts for 80% of healthcare costs, making one averse to falling into poverty.

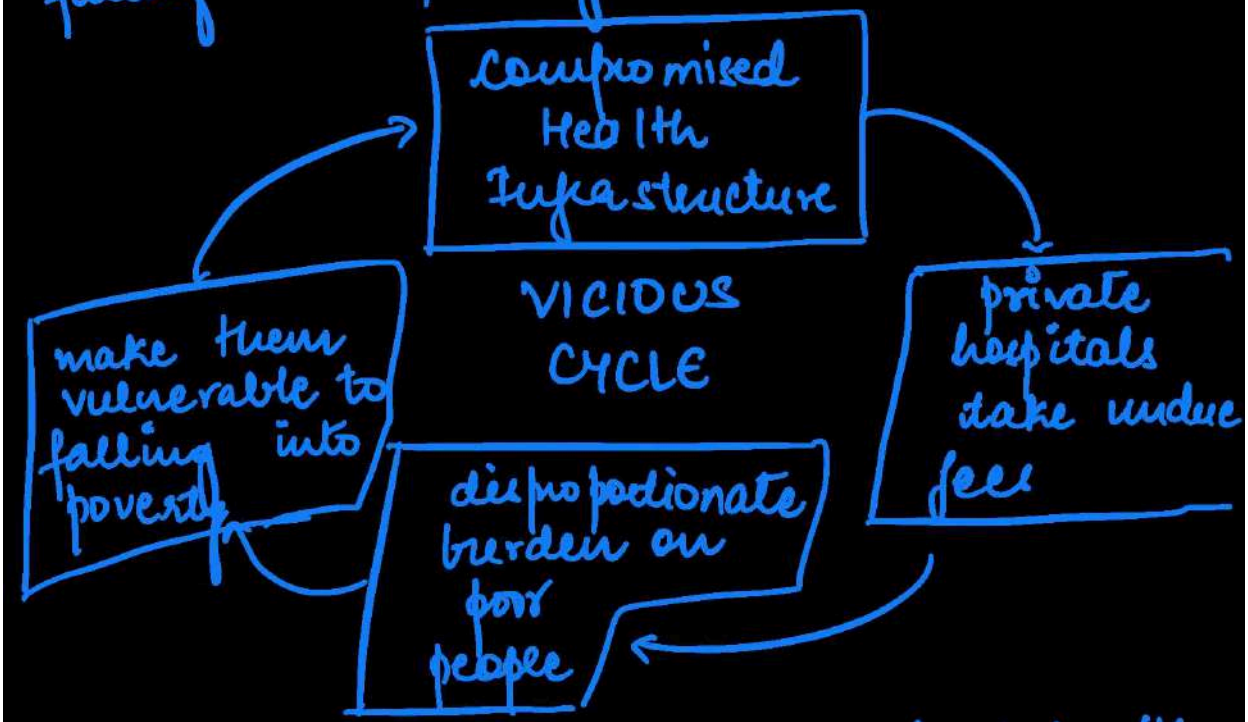

Fig - explaining how a compromised health infra can push people into poverty

Issues with country's health infrastructure

(1) No. of Doctors (1|1200 population) and Nurse (1|500 population) can cater to health load of our country.

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(2) Insufficient focus on psychiatric health only 2% doctors are psychologists.

(3) Dominance of quacks. Ex- cases of AIDS due to frequent use of same needle by a quack in Bihar.

(4) Lack of instruments at PHC's and CHC's.

(5) Overburned govt hospitals. Ex - AIIMS delhi has wait list of over 5 months for severe medical procedures.

(6) Inadequate funding on research (around 0.2% of funding).

(7) Lack of Ethics among Medical Practitioners Ex- unnecessary stent operations by private players.

(8) Lack of awareness among the citizen about their nutritional status.

Framework for Reform -

(1) Work on unique health ID under Ayushman Bharat should be expedited.

(2) Generic medicines should take

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precedence over expensive drugs.

(3) No. of health professionals should be enlarged.

(4) Basic instruments like BP machine etc should be present at PHC's.

(5) Social audit of govt programs on health.

(6) Role of Media to ensure that govt doctors perform their duties well.

An increase in health budget from 1.5% to 2.5% can be an effective way to ensure that no one falls into poverty trap owing to ill health.

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SHAURYA ARORA
(AIR 14, 2023)

Q.11) Basic structure doctrine, although extra-constitutional, has been instrumental in protecting the fundamental construct of the constitution. Highlighting the circumstance which led to development of basic structure doctrine, discuss the significance of basic structure doctrine.

(15 marks, 250 words)

आधारभूत संरचना सिद्धांत, हालांकि अतिरिक्त–संवैधानिक है, संविधान के मौलिक निर्माण की रक्षा करने में सहायक रहा है। उन परिस्थितियों पर प्रकाश डालते हुए, जिनके कारण आधारभूत संरचना सिद्धांत का विकास हुआ, आधारभूत संरचना सिद्धांत के महत्व पर चर्चा करें।

(15 अंक, 250 शब्द)

Basic Structure Doctrine is a unique Judicial Innovation in India as a result of Judicial Interventionism to mantain a balance in Separation of powers.

Basic Structure Doctrine →
- Extra-constitutional → No mention in constitution or statutory law
- protects fundamental construct → SC is Ultimate guardian of constitution and Fundamental rights

Circumstances for Development

(1) Shankari Prasad, 1950 case → over-riding powers to Parliament.

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(2) Golaknath case 1967 → SC takes very rigid approach ~ Immutability of FR's
→ constitutional rigidity
→ Least scope for constitutional Amendment

(3) Debate over Extent of separation of powers.
↳ interpretation of welfare-state ideology

(4) Kesavananda Bharti case, 1973
4.1 Constitutional Amendment Act not a law under Article 13
4.2 Judicial Review enlivened under Article 13 ~ void law if contravention to Basic structure

(5) Reaffirmed in Raj Narain case and Minerva Mills 1980

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SHAURYA ARORA
(AIR 14, 2023)

Significance of Doctrine

1. Protects rights of citizens over state anarchy
2. Maintains balance in separation of powers between organs
3. Offers light into vision and spirit of constitution to resolve a dispute or constitutional deadlock / dilemma
4. Protect structure and framework of constitution from political mis-use / legislative over-reach
5. Upholds principle of Justice, liberty in Preamble
6. Role of SC as supreme guardian of constitution and final interpreter

Basic Structure is an evolving concept and balance between codification and relativism is key to success

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KUNAL RASTOGI
(AIR 15, 2023)

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Q.6) Discuss the role of parliamentary financial committees in ensuring executive accountability to the parliament. (15 marks, 250 words)

संसद के प्रति कार्यपालिका की जवाबदेही सुनिश्चित करने में संसदीय वित्तीय समितियों की भूमिका की विवेचना कीजिए। (15 अंक, 250 शब्द)

The parliamentary financial committee are formed under Art 105 & Art 118 to act as institutions of integrity (2nd ARC) and aid parliament in keeping check on the financial propriety of executive.

Financial Committee

Public Account Committee
① 22 members (15 LS + 7 RS)
② constituted every year through proportional representation.
③ Examines 3 Reports of CAG.

Committee on Public undertaking
② 22 members from LS + RS
② help in ensuring accountability of CPSE.

Estimates Committee
① 30 members, all from LS, selected every year.
② Continuous economic committee
③ Help in examining expenditure of executive.

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Ensuring Executive Accountability

① The PAC, with CAG acting as its guide & philosopher ensure that
<a> Revenues are raised in accordance of Finance Act.
<b> Expenditure of Executive is in line with the appropriation Act

② The Estimates Committee delves into the continuous expenditure of executive and looks into the wisdom of such.

③ The financial Committee generate data and Reports which act as facts for deliberation in parliament.

④ The financial Committee also look into the functions of CPSE and ways in which efficiency & effectiveness can be enhanced.

⑤ Discuss with stakeholders from Civil Society to give hollistic analysis of the financial decisions of executive.

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Shortfalls in maintaing accountability

① Reports are non-binding & are of post-mortem in nature

② They lack technical & sectorial support for high level analysis

③ only 2 or 3 dept of govt are analysed each year due to dearth of resources

④ Politicisation & close door nature of meetings. Acc. to PRS, only 65% of members regulary attend.

Way forward

- increasing the tenure of committee (Venkatchalliah)
- making discussion of Reports necessary (2nd ARC)
- Giving them powers of Civil Court like Finance Commission
- following UK model of independent administrative staff to committee

"Parliament at work, is parliament at committee". Hence above should be strengthened to ensure constitutionalism.

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KUNAL RASTOGI
(AIR 15, 2023)

Q.9) Compare the position of the Speaker in Indian and British parliamentary system? Also, discuss various controversies related to functioning of Office of Speaker in Indian context and suggest corresponding reforms. (15 marks, 250 words)

भारतीय और ब्रिटिश संसदीय प्रणाली में अध्यक्ष की स्थिति की तुलना करें? इसके अलावा, भारतीय संदर्भ में अध्यक्ष के कार्यालय के कामकाज से संबंधित विभिन्न विवादों पर चर्चा करें और संबंधित सुधारों का सुझाव दें। (15 अंक, 250 शब्द)

The office of speaker in a parliamentary democracy is the symbol of honour and guardian of power and privellege of the house representing the functional viability of a robust democracy

Indian Speaker	British Speaker
① Member of the Political party and does not resign from it. Moreover Speaker has to again content competetive elections hence the post affected by partisan politics.	① Resigns from the political party and follows convention of once a speaker always a speaker an opposition do not field candidate against him

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② Powers of the Speaker are restricted by judicial review and constitution as Indian parliament is not sovereign.	Powers of speaker not restricted by judiciary or the constitution but only by convention.
③ Can appoint Committee, but it can not look into the affairs of executive administrative powers.	③ Can appoint investigative Committee to look after public policy as well administrative affair of executive.
④ Power to disqualify member on grand of defection	No provision for suspension under defection.

Controversy Related to Speaker

① Passage of bills under money bill (109) to avoid judicial scruting eg Aadhar Act

② Not reccomending laws for evaluation by Committee thereby reducing the

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parliamentary oversight - eg farm laws,

③ Not acting as institutions of accountability by avoid dsiussion in Question or zero hour regarding excess of executive. eg Pegasus issue not given time by speaker.

④ The post of Deputy speaker to be filled by opposition lies vacant as date not notified by speaker.

⑤ Expunging words like corruption, dictatorship by speaker stifling democratic accountability.

Way forward

- Following British model of mandatory resignation by speaker.
- Defection proceeding to be tranfered to President (Dinesh Goswami Commite)
- Institutionalising collegiality of deasion of speaker (2nd ARC)

Speaker should be given adequate autonomy in order to safeguard the parliamentary principles of vibrant democracy

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KUNAL RASTOGI
(AIR 15, 2023)

Q.4) Fair competition is the cardinal principle of free market economy. In this context, Discuss the role of Competition Commission of India and compare its position with anti-trust institutions of other countries. (10 marks, 150 words)

निष्पक्ष प्रतिस्पर्धा मुक्त बाजार अर्थव्यवस्था का मुख्य सिद्धांत है। इस संदर्भ में भारत के प्रतिस्पर्धा आयोग की भूमिका की विवेचना कीजिए तथा अन्य देशों की विश्वास–विरोधी संस्थाओं से इसकी स्थिति की तुलना कीजिए। (10 अंक, 150 शब्द)

Competition Commission of India is a statutory body formed in 2003 to make sure that invisible hand of free market economy allocates the resources. It is watchdog of fair competition.

Role of CCI

① Ensures that monopolisation of a particular sector by few company does not take place by appropiate fines and legal proceeding. eg Google was fined for making compulsory google play services on Android

② Regulates the market in a way that no player abuses its dominant market position. eg Amazon in e-commerce

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③ Ensures healthy competition in a sector so that price discovery is accurate free from predatory pricing. eg Indigo was fined

④ No cartelisation is taking place and opportunities are given to new entrants

Comparison with other Anti-trust Institution

USA
- Unlike CCI, in USA civil society also participates in working of regulator
- Directly funded by House of Congress rather than by govt.
- Very large workforce.

UK
- officials are not career public servants.
- responsible to parliament
- Longer tenure of officials.

In order to reach 5 trillion $ economy, efficient, effective allocation of resources must be done which is ensured by a robust, independent CCI

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KUNAL RASTOGI
(AIR 15, 2023)

Q.13) What are the salient features of 69th constitutional amendment act, 1991? How do the reported conflicts between the elected representatives and the institution of the Lieutenant Governor impact the governance process in the Union Territory of Delhi? (15 marks, 250 words)

69वें संविधान संशोधन अधिनियम, 1991 की मुख्य विशेषताएं क्या हैं? निर्वाचित प्रतिनिधियों और उपराज्यपाल की संस्था के बीच कथित संघर्ष केंद्र शासित प्रदेश दिल्ली में शासन प्रक्रिया को कैसे प्रभावित करते हैं? (15 अंक, 250 शब्द)

69th Constitutional amendment act added Art 239AA, 239AB to constitution to setup GNCTD govt on line of Pondicherry thus providing democratically elected constitutional govt to Delhi.

Salient features of 69th CAA, 1991

① Elected govt with legislative Competence on all matters of state list apart from Police, Public Order and land

② President appoints CM & COM who aid and advise Lt Governor in executive matters of Delhi govt.

③ Similar Parliamentary set up and

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procedures as Lok Sabha as well as privelleges.

Conflict between Elected Repr. & Lt Governor

① LG bypassing CoM in executive matters
- ↳ appointment of fenctionaries.
- ↳ delaying approval for budgets
- ↳ not abiding to Summoning & Proroguing legislative assembly
- ↳ dismissing parliamentary secretary

② Lt bypass the COM in appointment of Civil Servants

③ GNCTD Ordinance 2023 further exacerbate the conflict → NCSSA → by pass CM in civil servant transfers and disciplinary matters

Negatively impact Governance

① overlapping jurisdiction creates confusion
eg> Delhi floods → blame game between

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CM and COM.

② delay in project approvals → Higher Cost → lesser Efficiency → public trust breach.
eg> Delhi School → admission battle.

③ Violate Parliamentary govt and Supreme Court GNCTD 2018 ruling → LGr to act in aid and advise.

④ Micromanagement by LGr on CMO causes policy paralysis. eg> storm drain cleaning not done → floods.

Positive impact

- fast-tracks pending projects. eg> Yamuna cleaning
- increases accountability and exposes corruption eg> liquor policy case.
- greater efficient resource utilisation. eg> Okhla land fill renovation

Such conflicts however should be avoided as parliamentary form of govt prescribes rule of Council of Ministers who ultimately represent "General Will"

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KUNAL RASTOGI
(AIR 15, 2023)

Q.8) Asses the relevance of lateral entry in civil services in making the governance structure more effective, efficient, and people oriented. (10 marks, 150 words)

शासन संरचना को अधिक प्रभावी, कुशल और जनोन्मुख बनाने में सिविल सेवाओं में लेटरल एंट्री की प्रासंगिकता का आकलन कीजिए। (10 अंक, 150 शब्द)

NITI@75 Report highlight the need for lateral entry of professional executive from private Sector to update and reform Bureaucracy into 21st Century.

Problem of Bureaucratic governance
- Silomentality and bureau pathology
- Excenive focus to rules not roles.
- Generalist in nature
- lack of fosincn procen digitisation

Lateral Entry making Governance

effective : Busines Process re-engineering making effective Service delivery using new tools like → ServQual Model → Six Sigma

Efficient - leverage data procening

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for
↳ optimum allocation of resources. eg> Manufacturing industry [least Cost Method] [Criticalpath]

[People oriented] - Using Customer Centric busines approach, instead of Colonial Mindset [Alagh Committee] → good governance

[Limitation]
↳ lateral entries may be short-sighted, profit minded
↳ cannot work under bureaucratic paperwork, norms, rules. eg> [6/12] lateral entry resigned
↳ may not develop necessary [Nolan Principle] for utilising wisdom

wayforward
→ Improve present work culture
→ Sevottam model
→ Mission Karmyogi

if effectively implemented can remove rust from steel frame and propel India for tryst with destiny

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#	G	A	P
AWIS			
CD & VA			
S & F			
P & R			

Please put tick marks in the above table.
Here G is Good, A is Average and P is Poor.

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Q.3) Analyse the reasons for degeneration of parliamentary functioning in recent time. Also, suggest measure to make the parliament more productive. (10 marks, 150 words)

हाल के समय में संसदीय कामकाज में आई गिरावट के कारणों का विश्लेषण कीजिए। साथ ही, संसद को अधिक उत्पादक बनाने के उपाय सुझाए। (10 अंक, 150 शब्द)

Parliament is the lighthouse of representative democracy in India. It acts as a house that provides power to voice of people.

REASONS FOR DEGENERATION OF PARLIAMENTARY FUNCTIONING -

i) Less number of debates and deliberations held due to decreased sittings of house.

eg - ADR showed the number of sittings has decreased in 17 LS.

- sessions are dismissed.

ii) Low attendance of Member of Parliament
- lack of quorum (1/10th of strength)

iii) Frequent disruptions during sessions due to coalition politics.

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iv) Lack of effective and constructive opposition to demand accountability

v) Increased criminalization of politics - around 19 % MPs have accepted that they committed heinous crimes.

However,

There are MEASURES TO ENSURE PRODUCTIVE FUNCTIONING -

a) Fixing the number of sittings per session

b) Prior and detailed plans to carry out debates

c) Speaker to use constitutional powers to ensure quorum

d) Opposition to exercise parliamentary privileges (Article 105) to ensure effective criticism.

Parliament is a ~~body~~ organ of government that helps maintain democracy in shape.

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Q.5) The Election Commission of India has a vital role in building a robust framework of electoral democracy. Highlighting challenges associated with the functioning of ECI, suggest measures to reform the body. (10 marks, 150 words)

चुनावी लोकतंत्र के एक मजबूत ढांचे के निर्माण में भारत के चुनाव आयोग की महत्वपूर्ण भूमिका है। भारत के चुनाव आयोग के कामकाज से जुड़ी चुनौतियों पर प्रकाश डालते हुए इस निकाय में सुधार के उपाय सुझाए। (10 अंक, 150 शब्द)

Article 324 of Indian Constitution states there shall be an Election Commission of India for conduct of free and fair elections in India. (electoral democracy)

There are certain CHALLENGES WITH FUNCTIONING OF ELECTION COMMISSION -

1) Appointment of Election Commissioners is not defined properly in Constitution

11) the term of members is also subject to politicization and pleasure of President.

111) ECI is often criticised in failure to ensure Model Code of Conduct followed in spirit

1v) Universal Adult suffrage (UAF) is not yet exercised ~~more~~ fully in

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India.

(q) – around 30 crore voters were left out to vote in 17 Lok Sabha elections

v) Criminalization of (politics) elections is still prevalent – booth capturing, etc.

MEASURES

Taken by ECI

- ✓ Recommended to make Model Code statutory
- ✓ Electronic Voting Machines
- ✓ Voter awareness
- ✓ Ensuring Supreme Court Directives in disclosing candidate's information

Further ECI can be REFORMED –

i) Making appointments transparent using a collegium – (Law commission)

ii) Equal powers to Election Commissioners and Chief Election Commissioner

iii) Giving power to enforce Model Code and deregister political parties.

Election Commission of India is the bulwark of constitution that makes electoral democracy a success.

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Q.20) The Representation of People's Act, the bedrock of free and fair elections in the country, has failed to keep pace with the contemporary challenges. Highlighting the shortcomings in the legislation, suggest reforms to make it more effective. (15 marks, 250 words)

लोक प्रतिनिधित्व अधिनियम, देश में स्वतंत्र और निष्पक्ष चुनाव का आधार, समकालीन चुनौतियों के साथ तालमेल बनाए रखने में विफल रहा है। कानून में कमियों को उजागर करते हुए, इसे और अधिक प्रभावी बनाने के लिए सुधारों का सुझाव दीजिए। (15 अंक, 250 शब्द)

Representation of People Act is the landmark legislation to aid the electoral process of free and fair elections.

FAILURE OF KEEP PACE WITH INCREASING CONTEMPORARY CHALLENGES -

I) The voter list is still not complete. The ambiguity in list leads to low voter turnout

II) Criminalisation of politics - There has been around cases of MP members with criminal profile

III) Breach of election expenses as laid in the act

IV) Disqualification of members on grounds such as office of profit, etc are not

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The SHORTCOMINGS OF RP ACT -

i) While it gives references to registration of political parties under Section 29A of RP Act 1951, de-register of parties is not given vividly

ii) RP Act 1950 provides that those in prisons shall not have right to vote. This contradicts Article 14, 21.

iii) RP Act fails to include the Model Code of Conduct to be followed by political parties

iv) The disqualifications from membership under RP Act provides certain conflicted exceptions.

(eg) - false disclosure of assets is still prevalent

v) Exercise of votes is challenged by criminalisation, money and muscle, low use of NOTA.

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REFORMS required in RP Act -

i) Amendment should be made for act to follow Supreme court guidelines in Association for Democratic Reforms case. -

- reasons for candidate selection
- proper disclosure of assets

ii) Amendment can be made on release of opinion polls like once made to prohibit exit polls

iii) Model Code of Conduct should be given a statutory status

iv) Election commission should be given powers to deregister parties, take actions on candidates for maintaining free and fair elections.

RP Act is the sole legislation that can provide solutions to the growing challenges of electoral democracy.

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Q.7) Decriminalization of homosexuality by the SC in Navtej Singh Jauhar case remains a task half done, specially without the socio-political sensitisation about the issues faced by LGBTQIA+ community. Elaborate in light of ongoing debates on same sex marriage. (10 marks, 150 words)

नवतेज सिंह जौहर मामले में सुप्रीम कोर्ट द्वारा समलैंगिकता को अपराध की श्रेणी से बाहर करना अभी भी आधा अधूरा काम है, खासकर LGBTQIA+ समुदाय के सामने आने वाले मुद्दों के बारे में सामाजिक–राजनीतिक संवेदनशीलता के बिना। समलैंगिक विवाह पर चल रही बहस के आलोक में सविस्तार पूर्वक वर्णन कीजिए। (10 अंक, 150 शब्द)

Annulment of Article 377 has been regarded as positive step for establishing a just fair society. However, it needs to be built upon by promoting attitudinal change and sensitization.

Issues of LGBTQIA+ remain as follows:

1. Self Determination right not available (as per Transgender Protection Act 2019 it placed with District Magistrate)
2. Lack of representation in public sphere leading to streotyping
3. Marginalisation from larger society due to denial of education and employment opportunities.

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Debate regarding Same-Sex Marriage

Arguments in Favour

- Inspirit of Article 14 (right to equality)
- LGBTQIA+ community has right to live dignified life which includes right to establish a family

Arguments Against

- May hurt the sentiments of traditional section who see it against culture & deem it as unnatural
- Impact on socialisation of child in homosexual family

Sensitization of the issue regarding third gender and bringing a societal consensus regarding same sex marriage is the way forward to achieve SDG 9 (Reduced inequalities)

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Q.8) Asses the relevance of lateral entry in civil services in making the governance structure more effective, efficient, and people oriented. (10 marks, 150 words)

शासन संरचना को अधिक प्रभावी, कुशल और जनोन्मुख बनाने में सिविल सेवाओं में लेटरल एंट्री की प्रासंगिकता का आकलन कीजिए। (10 अंक, 150 शब्द)

Lateral entry in civil services has been idea supported by "Strategy for New India@75".

It involves ouping in expertise form private sector at the level of Director, Joint Secratary etc.

Benefits (Potential)

(1) Increasing specialisation of bureaucracy which faces 21st century world of AI, IoT

(2) Promoting spirit of competition among career bureaucrats (⇒ Performance Oriented)

(3) Exchange of best practices and greater involvement of private sector in nation's growth)

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Challenges

(1) Lack of service motive among lateral hired laterals who may see it as a short term stint.

(2) Absence of on ground experience of lateral hires unlike career bureaucrats may lead to Unpragmatic policies.

(3) Conflict of interest: maintaining secrecy and national (security) interest, preventing leaking of information remains a challenge

(4) Private sector professionals may see it as a means to enhance their resume

Way Forward

- Domain specialisation after 3 years as suggested by Yeotta committee and ARC
- Phased and calibrated entry of lateral hires through robust entry test

Civil services which is steel frame must adapt to changing needs.

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Q.2) The electoral process, though inclusionary in theory, has been pointed out for exclusionary tendencies in practice. Analyse, with special emphasis on role of women in India's representative electoral system. (10 marks, 150 words)

चुनावी प्रक्रिया यद्यपि सिद्धांत रूप में समावेशी है, व्यवहार में बहिष्करणीय प्रवृत्तियों की ओर इंगित किया गया है। भारत की प्रतिनिधिक चुनावी प्रणाली में महिलाओं की भूमिका पर विशेष जोर देते हुए विश्लेषण कीजिए। (10 अंक, 150 शब्द)

Article 325 guarentees Universal Adult Franchise i.e. voting rights to every citizen above age of 18 irrespective of sex, caste, religion, language, race etc.

Inclusionary in theory BUT **Exclusionary in practice**

- Right to contest available to all those who satisfy criterion
- Women have equal say/vote (political right
- Minority section like LGBTQ+, tribes have equal stakes in developmental decision.

⇒

- Money, muscle power, defacto leading to a small minority dominating
- Voting according to dictats of patriarch of family.
- Game of numbers, First past the post system leaving them vulnerable.

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Role of women in Indian representative electoral system

Challenges

- Women MP compose merely 14% (that too is at time high)
- Absence of women in party decision making committe, cabinet ministerial decision.
- Absence of democratisation within ~~#~~ family

Some positive trends

- Reservation enacted in PRI, ULB
- Some parties voluntarily giving women ~~more~~ 50% of ticket
- Changing nature of public and private patriarchy

Equal participation of women v/s the ~~first~~ first step in (in politics) achieving SDG 5 (Gender Equality).

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3. Human dignity, stemming from right to life, does not end with death penalty. In this context, throw light on various controversies surrounding capital punishment in the country.

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Article 21 provides for Right to Life and Dignity, which can not be taken away even during Emergency.

However, Capital Punishment is legal and constitutional in India, which takes away that ~~very~~ right to life.

Various controversies surrounding Capital punishment

Debates supporting death penalty :—

1. To create deterrance against heinous crime eg POCSO Act — for aggravated sexual offence on child.
2. To uphold justice for serious crime
3. To prevent crime against humanity.

Debates against death penalty :—

1. Right to life is absolute and human life is sacrosanct.
2. Justice system is based on

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reformative justice and not retributive justice.

3. Capital punishment could not create deterrance against heinous crime.

eg Rise in rapes, gangrapes (NCRB data)

4. Against human rights - so abolished in many developed world

↳ Maximum Life imprisonment.

Way forward -

- Bachhan Singh Judgement - SC observed that capital punishment should be used in rarest of rare case.
- Proper protection against such penalties provided → Review petition, President's power of Pardoning such offence
- Guidelines for implementing a capital punishment → with dignity to the accused.

Overall, Capital Punishment is required for extreme crimes like Terrorist Attacks, Delhi gang rape case etc.

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Q. Though the changing paradigm towards dialogue and diplomacy in West Asia augurs well for India's interests in this otherwise restive region, presence of inimical actors may reverse the gains. Explain.

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West Asia and India relations were out of a roller coster journey with hyphenation – dehyphenation policy with respect to Pakistan.

Changing paradigm in West Asia :-

1. Focus on dialogue & diplomacy
   - e.g. Abraham Accords → UAE – Saudi Arab – Israel
2. New groupings formation
   - Eg. I2U2
3. Reduction in enemity between Arab & Israel as well as between Shia – Sunni
   - eg. BRICS + Mclude both Iran and Saudi Arab

Augurs well for India's Interest

1. Economic Interest – Chabahar port, INSTC, trade relations, energy security (70% of import) etc.

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2. Strategic interest → Promote relations with Israel as well as Arab
→ Tackle Chinese dominance

3. People-to-people ties → More than 90 lakh diaspora in West Asia → source of remmittances

Challenges by Mimical actors :

1. Houthi rebels of Yemen
2. Israel-Iran war threats
3. ISIS presence over Iraq-Syria
4. Role of Pakistan — raises issue of Kashmir in OIC meetings

However, India's extended neighbourhood policy with rising economic ties with Arab world will further strengthen India's interest over the region.

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प्रश्न संख्या नहीं लिखना चाहिए
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2. Narrow understanding of disability has marginalised people suffering from mental disorders. Elucidate.

Disability is a broader term refers to lack of ability of a person ~~is to~~ to take part in mainstream socio-economic processes with respect to their physical, emotional, mental, social limitations.

Narrow understanding has marginalised people suffering from mental disorders →

1. Under Persons with Disability Act, only physical disability has been included with few mental aspects in it.
   - e.g. Deaf, Blind, orthopedic as well as people with down syndrome, autism etc

2. However, people with mental disorders have been neglected to a great extent.
   - e.g. Extreme depression, anxiety etc.

3. This has prevented them from participation in employment, education, etc.

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4. Healthcare : Abrence of psychiatrey facilities - only 3000 doctores in India, lack of psycho-social support.

5. Awareness : Lack of awareness among people & civil societies regarding solution / support to mentally ill patients.

Way forward

1. Better implementation of Mental Healthcare Act 2017
2. Awareness about KIRAN helpline
3. Creation of psychiatry OPDs across hospitals.
4. Include institutional support for mentally-ill patients & their treatment under Ayushman Bharat Mitiative.

State should take extra-efforts to ensure every maginalised person a decent standard of living to uphold the idea of Welfare State under Article 39. So mentally disordered persons must be Govt's priority.

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15. How far have Forest Rights Act. 2006 and PESA Act. 1996 been successful in attaining their disired objectives? What needs to be done to improve their implementation on ground?

Forest Rights Act 2006 and PESA Act 1996 are two most important legislations to achieve the objective of empowerment of Scheduled Tribes in India.

How far they been successful in desired objective —

Desired Objectives

FRA 2006	PESA 1996
- To provide individual and community rights to tribals living in forest areas	- To provide autonomy in decision making over the use of resources of tribal area

Success of FRA 2006 —

1. Many states like Odisha have successfully implemented FRA 2006 and it has a target to cover all claimants by 2024 under FRA.

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2. Those provided with Record of Rights over forest land → have seen ~~dooo~~ improvement in their socio-economic conditions. [eg] ~~Gotta~~ Access to credit

3. Community rights over traditional forest – provided rights over minor forest produce
↳ Livelihood generation

Success of PESA 1996 –

1. Political empowerment of tribals
2. Better access to water and natural resources
3. Prevented encroachment and exploitation on mineral resources

Limitation of FRA 2006 & PESA 1996 –

1. Lack of political will had led to diluted implementation in many states.
2. Lack of literacy & awareness over their rights remains.
3. Dominance of few powerful individual diverted the objectives of PESA.

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4. Appointment of vested interest people to DLC and SDLC under FRA Act → Exclusion of deserved beneficiaries.

What needs to be done —

1. Timeline to complete the FRA process across states
2. Effective monitoring of functioning of Gram Sabha under PESA.
3. More power & resources to NCST (under Art 338A) for implementation
4. Sensitisation and training to forest bureaucracy.
5. Coordinated and integrated approach between Revenue, Forest and Police departments.
6. Increase economic status through other schemes like Vandhan Yojana

Strengthening FRA & PESA Act is necessary to achieve social justice and inclusive development. Therefore, above steps as well as implementation of XAXA committee report is need of hour.

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Q.1) Basic structure doctrine has prevented the Parliament, a creature of the constitution, from becoming the master of the constitution. Discuss this statement with the help of relevant case laws. (10 marks, 150 words)

बुनियादी संरचना सिद्धांत, संविधान का सृजन, ने संसद को संविधान का स्वामी बनने से रोक दिया है। प्रासंगिक केस कानूनों की मदद से इस कथन पर चर्चा कीजिए। (10 अंक, 150 शब्द)

Basic structure doctrine is a judicial innovation propounded by Judiciary in Kesavanand Bharti case, 1973.

Acc to this Doctrine, Parliament can amend any part of constitution without altering its Basic structure for ex — secularism, separation of power, Rule of Law etc.

Prevented the Parliament from becoming the master of constitution in following ways

(1) Primacy & Adherence to constitutional supremacy —

Eg SC struck down 39th Amendment Act → violation of Judicial Review (part of Basic structure)

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(2) S.R. Bommai case, 1994 → Federalism as part of Basic structure.

Eg SC struck down part of 97th Amendment Act → Cooperative part of state list

(3) Certain clauses of 42nd Amendment Act were declared Null & Void for restricting the Judicial review power of SC.

(4) Waman Rao Judgement → Rule of Law as Basic structure

(5) I.R. Coelho case — speaker decision brought under Judicial Review.

However, in certain cases, Judiciary is criticised as

→ performing the role of "super Legislature"

→ "Tyranny of unelected" & interference in parliamentary Domain.

Thus, as B.R. Ambedkar said, Need to follow "constitutional morality" & Judicial Restraint.

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(AIR 26, 2023)

Q.2) To what extent, in your opinion, Self-Help Groups (SHGs) in India have enabled women led development at the grassroot level? (10 marks, 150 words)

आपकी राय में, भारत में स्वयं सहायता समूहों (SHGs) ने जमीनी स्तर पर महिलाओं के नेतृत्व वाले विकास को किस हद तक सक्षम बनाया है? (10 अंक, 150 शब्द)

Recent Budget 2023 highlighted the Role of SHGs in inclusive development [one of the saptarishi's in Budget]

Role of SHG in women led Development

(1) Easy availability of credit → without any requirement of collateral & complex procedure
eg success story of Lijjat papad SHG.

(2) employment opportunities → making women self-reliant
eg Kudumbashree → taxi service, Hotels etc

(3) women as Entrepreneurs —
eg Leaf plate cooperative → supplying plates to Tirupati

(4) Autonomy in Decision making → improvement in social indicators
eg Health, education

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RUPAL RANA
(AIR 26, 2023)

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However, certain challenges still persists for truely women – led development

(1) Rise in NPAs of SHGs → difficulty in future credit availability

(2) patriarchal structure → hindering women-led initiatives

(3) Lack of awareness & illitracy among women

(4) Financial irregularities → in account keeping, accessing financial services

(5) Digital Divide — Acc to Internet for Freedom Report, hardly 22% women use digital devices

→ Lack of accessing technology

Thus, Above challenges need to be addressed to change the paradigm from Development for women to WOMEN LED DEVELOPMENT → as highlighted by PM in Independence Day Speech.

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TOTAL MARKS

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NANDALA SAIKIRAN
(AIR 27, 2023)
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(Don't Write in this Area / इस क्षेत्र पर कुछ न लिखें)

Q.16) Though lifeblood of a representative democracy, political parties are beset with challenges of their own, limiting their larger role in democratization of the society. (15 marks, 250 words)

हालांकि एक प्रतिनिधिक लोकतंत्र की जीवनरेखा, राजनीतिक दल अपनी स्वयं की चुनौतियों से घिरे हुए हैं, जिससे समाज के लोकतंत्रीकरण में उनकी बड़ी भूमिका सीमित हो गई है। (15 अंक, 250 शब्द)

In a representative democracy, people elect the decision makers through the political parties, who is crucial for upholding Social Contract.

Lifeblood of Representative democracy →
- Voices the Concerns of the people.
- formulation of the policies to attain objective of Social Justice
- opposition parties uphold accountability. Eg Zero Hour in Lok Sabha
- political socialization of the mass, reduces the gap between people and Govt.

Upholds principle of democracy.

However, many challenges.

① Shell political parties :-

~98% political parties are unrecognised registered,

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does not report funding.

② funding of the political parties not completely disclosed
* no limitation on total expenditure for party.

③ lack of Internal party democracy, and despotic, nepotism exits.
eg NCP

④ Caste based and religion based political parties
eg SP, BSP, AIMM, Akali Dal.

⑤ Recruiting criminal background candidates.
eg 43% legislature has criminal record.

⑥ lack of diversity in representation
↳ women are underrepresented.

⑦ Gaining political power becoming an end in itself
↳ resorting to identity politics
eg Mandir-Masjid politics.

⑧ lack of / to Laws of defections :- still rampant allowed
eg defection in Maharashtra of Shiv Sena.

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NANDALA SAIKIRAN
(AIR 27, 2023)

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Way Forward.

① Constitutionalization of the political parties
↳ Germany model, Such that rule of law followed.

② Political parties need to have formal charter, standard operating procedure.

③ Power to ECI:
to deregister malicious political parties.

④ Restrictions on expenditure by political parties just like Candidates.

⑤ Internal reservations to the women and separate Quota for Tickets.

"Elections and democracy have Congential relationship" - SY Quraishi. Thus, political parties which Connect both should be reformed as they are lifeblood of democracy.

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NANDALA SAIKIRAN
(AIR 27, 2023)

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Q.17) Safely managed drinking water services, as desired by Jal Jeevan Mission, are designated to give multifarious benefits cutting across generations. Discuss. Also, elaborate upon the challenges in ensuring the mission's success. (15 marks, 250 words)

जल जीवन मिशन की इच्छानुसार सुरक्षित रूप से प्रबंधित पेयजल सेवाएं, पीढ़ियों तक विविध लाभ देने के लिए नामित की गई हैं। चर्चा कीजिए। साथ ही, मिशन की सफलता सुनिश्चित करने में आने वाली चुनौतियों के बारे में भी विस्तार से बताएं। (15 अंक, 250 शब्द)

Jal Jeevan Mission (Urban and Rural) was formulated to bring "Har Ghar ko Jhal", to achieve 100% pipe water connection with drinking water capability

Safely managed drinking water service
- piped connection to all households.
- purified water reducing heavy metals
- functional taps.

Multifarious benefits Cutting across Generations

① WASH :- water, sanitation and Hygiene such that safe drinking water provided.

② Women empowerment :- reducing the burden of role of 'water wives' - (spent time in bringing water)

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(3) Reduces disease burden :-
Eg Fluorosis is decreased in Telangana

(4) Positive Health outcomes like water Contaminated diseases decreased (Eg: Diarrohea)

(5) Prevents stunting, wasting in children.

(6) water resource Conservation :- by effectively utilizing water. (reduces water stress)

(7) Intergenerational equity :- by focusing on Ground water recharge, water harvesting and watershed management practices.

(8) Reduction in poverty (factor in multi-dimensional pov)
↓
SDG-1,5 (clean water & Sanitation)

Many problems :-

(1) dysfunctional water-taps in many households.

(2) lack of purified water.

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③ delay in implementation - (100% still distant target)

④ Resource crunch in the implementation of the policies.

⑤ poor water harvesting methods employed.

way forward.

① Implementation efforts to reach 100% Target

② Separate funding for repair and maintenance works to be provided.

③ Involvement of local Governments in the implentats.

Clean water and sanitation (SDG-6) is crucial for eradicating poverty, to have dignified life (Article 21), to promote overall development.

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VISHNU SASIKUMAR
(AIR 31, 2023)

Q.8) Absence of a robust social infrastructure in the country may become one of the most significant challenges in achieving a developed status by 2047. Discuss. (10 marks, 150 words)

देश में एक मजबूत सामाजिक बुनियादी ढांचे की अनुपस्थिति 2047 तक विकसित स्थिति प्राप्त करने में सबसे महत्वपूर्ण चुनौतियों में से एक बन सकती है। चर्चा कीजिए। (10 अंक, 150 शब्द)

Social infrastructure refers to those infrastructure like health care, school infrastructure etc which improve socio-economic well being of people.

Absence of robust social infrastructure

- Poor conditions of Govt primary schools and colleges leading to incapacity
- Poor technological penetration in social infrastructure
- Hesitances from Pvt sector due to low profit
- Govt PHCs, doctors on a low number (0.9/1000) compared to 2.4/1000 of China

Challenge to achieve developed status

Poor social infra is a challenge to developed status by 2047 as

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- reduces human development and capital leading to poor labour force.
- reduces investment from foreign entities affecting economic growth
- exclusion of large number of people, marginalising them and increasing poverty level.
- development deficit leading to internal security issues like caste insurgency (JK)
- Increase in economic inequalities blw haves and have nots.

Way Ahead

- Increase Govt spending on edu to 6% - TSR. Subramanyam Committee
- PPP model on social infra
- Social Security Exchange (UK model) for funds.

Sufficient social infrastructure would help in Sashakt Bharat, progressing during Amrut Kaal.

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VISHNU SASIKUMAR
(AIR 31, 2023)

Q.11) Despite constitutional backing to the institutions of local governance, the idea of decentralisation has remained hostage to several structural bottlenecks. Elucidate.

(15 marks, 250 words)

स्थानीय शासन संस्थानों को संवैधानिक समर्थन के बावजूद, विकेंद्रीकरण का विचार कई संरचनात्मक बाधाओं का बंधक बना हुआ है। स्पष्ट कीजिए।

(15 अंक, 250 शब्द)

The 73rd and 74th CAA despite giving constitutional backing to local self Governments they have remained hostage to structural bottlenecks due to funds, functionaries & function issues.

Constitutional backing

- Gram Sabha for participatory democracy.
- grass roots development through peoples participation in regular elections
- 1/3rd reservation for women.

Structural bottlenecks for LSG

- Lack of sufficient funds as per Article 243Z for implementation of subjects under 12th & 11th schedule
- Incapacity among LSG leaders & officers

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leading to barriers for development.

- Bureaucratisation of LSG, as bureaucrats are hesitant to devolve power.
  Eg - MoPR study found the cabinet secretariat unhelpful for guiding LSGs

- Hesitancy to tax the subjects under Schedule XI & XII reducing resource base for LSG

- Women development agenda affected as the phenomena of proxies - male proxies of female Panchayat head on rise.

- Lack of participation & regular meetings of Gramsabhas making people's democracy redundant

- Caste based discrimination affecting equality & welfare of the residents - DR. Ambedkar called villages as 'Dens of ignorance', thus against panchayat raj.

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Why structural bottlenecks

- Legacy of partition & fear of balkanisation led to centralisation of power at top, devolution of power was feared.
- Hesitancy from State Govt to devolve resources as they are seen as glorified Municipalities
- Lack of personnel to carry out the reforms

How to solve this

- Manishankar Aiyyar Committee – Panchayat Ombudsman as per Kerala Model.
- Activity mapping of Panchayats & LSG for better functioning
- Capacity building through KILA or Kutch Navnirmaan model
- State Finance Commission to be constituted regularly
- Municipal bonds & Panchayat bonds (Indore Model) for resource generation

Empowering the LSGs would ensure that we achieve the ideal of Gandhian Ramrajya – where no one is left behind.

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VISHNU SASIKUMAR
(AIR 31, 2023)

Q.17) Electoral bond was brought in as a reform that was high on intent but has proved to be low on substance. Do you agree? Justify. (15 marks, 250 words)

चुनावी बॉन्ड को एक ऐसे सुधार के रूप में लाया गया था, जिसका इरादा उच्च था, लेकिन यह कमतर साबित हुआ है। क्या आप सहमत हैं? औचित्य सिद्ध कीजिए। (15 अंक, 250 शब्द)

Electoral bonds are an instrument of funding for political parties. Though it was brought as a reform, many challenges prove its limitations.

Electoral bonds

WHAT
- → Issued by SBI
- → people purchase bonds - denomination of ₹ 1000, 10000, 100000, 1000000 & 1 crore.
- → bonds given to political parties
- → parties to redeem within 15 days of issue at SBI branches

Electoral bond - reform

- Ensured formal channels of funding the political parties; reducing black money

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- Anonymous nature of bond prevents undue influence of corporates on political parties.

- Reduces criminalisation as parties don't need to look out money power of candidates due to funding from bond.

Though these were the intent, the challenges reduced the substance

Challenges

- Govt can know the identity of donor thus a scope for vendetta politics.
- Can be used for money laundering due to anonymous nature.
- Reduces transparency in electoral funding.
- No cap on the amount of donation that a party can receive.

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The rising criminalisation of politics (ADR report - 43% MPs have criminal charges) and rising flow of money in elections shows electoral bond has not yet achieved its objective.

Way ahead

- Partial state funding of election as per Indrajit Gupta committee.
- Bringing Political Parties under RTI Act.
- Voluntary disclosure of donations received by political parties.

A free and fair election requires free & fair electoral funding which can enhance the quality of our legislature.

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VISHNU SASIKUMAR
(AIR 31, 2023)

Q.18) The profound impact of the data revolution and widespread smartphone usage has necessitated the use of digital tools in welfare programmes. Discuss. (15 marks, 250 words)

डेटा क्रांति और व्यापक स्मार्टफोन उपयोग के गहरे प्रभाव ने कल्याण कार्यक्रमों में डिजिटल उपकरणों के उपयोग को आवश्यक बना दिया है। चर्चा कीजिए। (15 अंक, 250 शब्द)

The DPSPs prescribe India to be a welfare state. The rising penetration of internet and smartphones has transformed the ways our welfare programmes work.

Data revolution & smartphone usage-

→ Data is cheap in India (2nd cheapest in world) increasing accessibility

→ 900 million smartphone users due to low end smartphones in India

→ Govt progs like Bharat Net increased data penetration.

Need for Digital tools in welfare programme.

a) To reduce leakages and role of

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middlemen - Eg Direct Benefit Transfer to Jan Dhan account.

- To ensure service reaches last mile / last mile delivery of service.
- Prevent corruption & misappropriation of funds - Eg - Bhuvan app to verify MGNREGA work.
- Doorstep delivery of service - e-Sanjeevani free OPD consultation through phone.
- Better utilisation of scarce Govt resources.

Thus through the India Digital Stack ie UPI, Aadhar, Jan Dhan account, Aarogya Setu, Digital interventions became possible Eg

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a necessity.

Issues with digital tools

- Lower section of society lack access to good internet affecting welfare programme
- Digital illiteracy - Eg. workers don't know MIS system for MGNREGA payment.
- Digital divide leads to unequal access to welfare programmes.
- Breach of data due to lack of data protection laws - Eg CoWIN data leak.

Data privacy laws along with cyber cadre of volunteers to increase digital awareness can help increase the role of digital intervention in improving our welfare policies.

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ARJUN GUPTA (AIR 32, 2023)

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Q.7) Unless the factors that prevent effective and full participation of persons with disability in political and public life are addressed, the goal of inclusiveness and empowerment will remain elusive. Analyze. (10 marks, 150 words)

जब तक राजनीतिक और सार्वजनिक जीवन में दिव्यांग व्यक्तियों की प्रभावी और पूर्ण भागीदारी को रोकने वाले कारकों को संबोधित नहीं किया जाता है, तब तक समावेशिता और सशक्तिकरण का लक्ष्य मायावी बना रहेगा। विश्लेषण करें। (10 अंक, 150 शब्द)

According to Census 2011, around 2.2% of people in India are differently abled. According to UNESCO report, more than 90% of PwD children are out of school.

* Issues relating to PwD Political Participation

① Social issues → ① Taboo among society with respect to disability esp. mental.
② Perception - Karma of the past and thus, leading to exclusion
③ Insensitive social constructs → Apathy of school teachers
→ Uninclusive classroom infrastructure.

② Political issues → no representation in political class
→ poor identification of beneficiaries
→ lack of political will → due to vote bank politics.
→ lack of focus on skill development.

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ARJUN GUPTA
(AIR 32, 2023)

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Q8)

(5) Economic issues → facing poverty due to limited education opportunities
→ accessibility of mobility is almost absent eg no wheel chair friendly houses.

* Making Differently Abled Empowered

(1) Identification of beneficiaries through door-to-door campaign & self declaration.

(2) Implementation of ADIP scheme & Sugamya Bharat on mission mode to ensure access to required devices

(3) Sports as tool to empower eg Paralympics winners

(4) Inclusive infrastructure → ramps
→ public transport
→ digital books
eg Barkhaa initiative by NCERT.

Disability is not a physical but a social problems reflecting failure of society to be inclusive

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Structure/ Presentation
Question Interpretation
Content
Value Addition
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ARJUN GUPTA
(AIR 32, 2023)

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Q.16) Ayushman Bharat is a revolutionary intervention but falls short of recognizing the right to health as a universal basic right. In this perspective, discuss the need for and impediments in ensuring the right to health for all in the country. (15 marks, 250 words)

आयुष्मान भारत एक क्रांतिकारी हस्तक्षेप है, लेकिन स्वास्थ्य के अधिकार को एक सार्वभौमिक बुनियादी अधिकार के रूप में मान्यता देने में विफल है। इस परिप्रेक्ष्य में, देश में सभी के लिए स्वास्थ्य का अधिकार सुनिश्चित करने की आवश्यकता और उसमें निहित बाधाओं पर चर्चा करें। (15 अंक, 250 शब्द)

According to WHO, the Right to health is natural human right which allows the person to enjoy physical, social and mental well being at all times in his life. Ayushman Bharat is an attempt to secure Right to Health for Indian citizens.

* Role of Ayushman Bharat

① Provides cover of Rs 5 lakh per person per year in low income bracket for access to secondary or tertiary treatment.

② Reduce OOPE on health - as evident in National Health Estimates - decline from 64% → 48% (2014) (2021)

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* Need for Right to Health

1. High OOPE on health due to privatization of healthcare => resulting in poverty
2. low insurance coverage → 17% (urban areas) → 14% (Rural areas).
3. Addressing issue of changing epidemiological Shift => Non-communicable disease to lead to loss of 2% of GDP per year.
4. Impact of Covid-19 => distressed households & emphasised the need for Right to Health
5. Constitutional obligation → Art 21
6. Economic Multiplier due to better productive force

* Impediments

1. low govt spending (a) 1.67% of GDP (v/s 3.8% Brazil)
2. Lack of human resources → Doctor-Patient ratio at 1:1500 [v/s 1:1000 - WHO Reco].

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(3) 60% In-patient + 70% OPD services provided by Private sector.

(4) Regional bias → 1 doctor for 30000 patients in Bihar v/s 2200 in Delhi
→ 1/5 of doctors cater to 70% of urban population

(5) 80% of funds used in curative care

Way Forward →
(1) Universal Health Coverage through PPP Mode
(2) Best practices → Delhi Mohalla Clinics
→ Brazil Model – Family clinics
(3) Focus on Health & Wellness Centre
(4) Behavioural Change through Fit India Movement.

The right to health requires the ~~end~~ collaboration of people, Private, public sector through Jan Andolan

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ARJUN GUPTA
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Q.16) Concerns regarding Parliamentary performance most often relate to the drastic reduction in the level and extent of deliberation, representation and scrutiny. In this context, highlight the recent instances which have led decline in effective functioning of the parliament.

(15 marks, 250 words)

संसदीय कार्य–निष्पादन के संबंध में चिंताएं प्रायः विचार–विमर्श, प्रतिनिधित्व और संवीक्षा के स्तर और सीमा में भारी कमी से संबंधित होती हैं। इस संदर्भ में, हाल के उदाहरणों पर प्रकाश डालिए जिनके कारण संसद के प्रभावी कामकाज में गिरावट आई है।

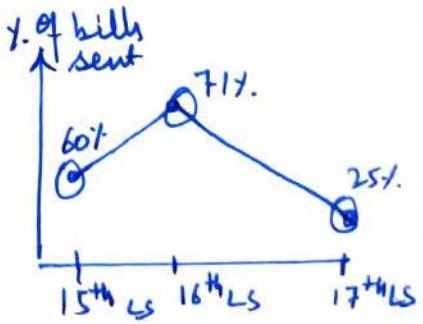
(15 अंक, 250 शब्द)

The functioning of democracy is enriched by the quality of debates, dissent and scrutiny of the legislative actions. The recent incidences highlights towards declining role of debates which has resulted in hasty legislations.

* Reasons & Instances of Effective Functioning:

(1) Increased disruption
- Current LS has seen 25% of time wasted due to disruption while RS has seen 35% of such time ⇒ reduced the working of Parliament.

(2) Bills sent to parliamentary committees have declined



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(3) Increased use of ordinance powers
Eg recent ordinances on extending tenures of CBI and ED, Farm laws.

(4) Impact of Anti Defection law
↳ reduced incentives among MPs to hold deliberative discussions as they need to toe to party whip.

(5) Disruption of Question Hour
↳ almost 60% of time lost ⇒ poor accountability of govt.

(6) Biasedness of speaker
① Misuse of Money Bill provision eg: Aadhar Case
② Time allocation to opposition
③ Admitting questions for Question Hour.

* Impact of this Trend

(1) Ceding of legislative power to judiciary
Eg Farm Bills, Art 370 are in courts.

(2) Legal loopholes due to lack of effective scrutiny Eg Surrogacy Act not including

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transgender provisions.

③ Public protests by vested stakeholders resulting in disruption.

Way Forward

① Providing research staff to MPs to ensure qualitative feedback.

② Eliminate use of voice vote in important bills.

③ Increasing number of days of functioning [NCRWC].
- 100 (RS)
- 120 (LS)

④ Letting opposition set agenda on 1/5 days [UK Model]

Hence, functioning of Parliament must be restored to effective levels so that people's trust is not undermined.

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Q.18) The profound impact of the data revolution and widespread smartphone usage has necessitated the use of digital tools in welfare programmes. Discuss. (15 marks, 250 words)

डेटा क्रांति और व्यापक स्मार्टफोन उपयोग के गहरे प्रभाव ने कल्याण कार्यक्रमों में डिजिटल उपकरणों के उपयोग को आवश्यक बना दिया है। चर्चा कीजिए। (15 अंक, 250 शब्द)

India will become a 1 trillion digital economy by 2025. A major reason behind this is data revolution and smartphone usage.

Impact of data revolution and widespread smartphone usage -

1. India has second largest Internet user base in world.
2. India has one of the highest number digital transactions – UPI user base.
3. More than 85% have Jan Dhan Accounts
4. Data usage charge rates one of the lowest in the world.
5. Smartphone usage during Covid-19 pandemic for education – lessned impact of lockdown, ~~of~~ school closure.
6. Rise in e-commerce, gig economy.

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Use of digital tools in welfare programmes.

1. Direct Benefit Transfer – Under PM Kisan, Lpg subsidy amount directly in bank accounts is given
2. E-NAM – to link agricultural markets – helps in better price discovery for farmers
3. To make policies based on evidence – National Data Analytics Platform by NITI Aayog collects data for better welfare programmes formulation
4. MyGov Citizen portal – direct citizen participation in govt scheme such as Clean Ganga -
5. Poshan Tracker – maintains surveillance of nutritional requirement- ↳ improves the inclusion of diverse people.

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(6) Digital tools in regional languages — link to a larger population.

(7) Thus, use of digital tools like mobile apps, computer based services has improved accessibility, affordability. It has also reduced corruption. Eg. PDS leakage has reduced due to online monitoring.

However, concerns like :-

(1) Privacy issue - leakage of Covin data on Telegram.

(2) Gender and digital divide - Observed especially in rural areas, digital illiteracy

(3) Cyber crime

Hence, with passage of Data Privacy Bill and Digital Act, digital tools can further be leveraged.

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Q13) Considering the non-enforceable nature of fundamental duties and directive principles of state policy, critically examine their impact in socio-political norms. (15 marks, 250 words)

मौलिक कर्तव्यों और राज्य के नीति निदेशक सिद्धांतों की गैर-प्रवर्तनीय प्रकृति को ध्यान में रखते हुए, सामाजिक-राजनीतिक मानदंडों में उनके प्रभाव की आलोचनात्मक परीक्षण कीजिए। (15 अंक, 250 शब्द)

Directive Principle of state policy under Article 38 is considered as the bedrock of a welfare state for socio economic empowerment. Fundamental duties under Article 51A provides certain duties to citizen to ensure overall harmony and social cohesion.

Reason for Non enforceable nature

- country did not have socio economic resource to guarantee DPSP
- enforceability would reduce state independence and diversity of decision
- India is a welfare state where citizens cannot be coerced to do duty

Impact of DPSP on sociopolitical norms

1) **Ensured social Justice** : under Article 39 equal pay for equal work, Minimum wage act was constituted.

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2) **Ensured Socialistic principle**

Article 46 – look after vulnerable section

eg schemes like PVTG development mission ensures this

3) **Uphold public health**

Article 47 → state to be responsible for public health

eg AYUSHMAN BHARAT SCHEME.

4) **International peace**

Article 51A (~~International~~ peace

eg Gujral doctrine, "Vaccine Maitri"

5) **Separation of power**

Art 50 – separation of executive from Judiciary

eg striking down of NJAC.

Impact of Fundamental duties on Sociopolitical norm

1) Ensures Social harmony

eg promotes brotherhood

2) Respects Constitutional ideals

eg promotes respect for national

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flag and national anthem.

3) Promotes gender equality - by respecting dignity of woman

4) Promotes environmental stewardship
(eg) Recent LIFE Movement

Limitations

1) Fundamental right over DPSP : In Minerva mills case, barring 31(C) over for implementation of 39(b), 39(c) rights violates 14, 19, fundamental rights take precedence.

2) No mechanism to evaluate : whether DPSP implemented in true letter and spirit

3) Fundamental duties violation : due to lack of citizen awareness

3) Many important duties missing
(eg) Right to pay tax
(eg) Right to take part in election.

Despite the limitations, centre DPSP and fundamental duties helped in transforming the hierarchical Indian society into modern Democratic one.

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Q.16) Concerns regarding Parliamentary performance most often relate to the drastic reduction in the level and extent of deliberation, representation and scrutiny. In this context, highlight the recent instances which have led decline in effective functioning of the parliament.
(15 marks, 250 words)

संसदीय कार्य–निष्पादन के संबंध में चिंताएं प्राय: विचार–विमर्श, प्रतिनिधित्व और संवीक्षा के स्तर और सीमा में भारी कमी से संबंधित होती हैं। इस संदर्भ में, हाल के उदाहरणों पर प्रकाश डालिए जिनके कारण संसद के प्रभावी कामकाज में गिरावट आई है।
(15 अंक, 250 शब्द)

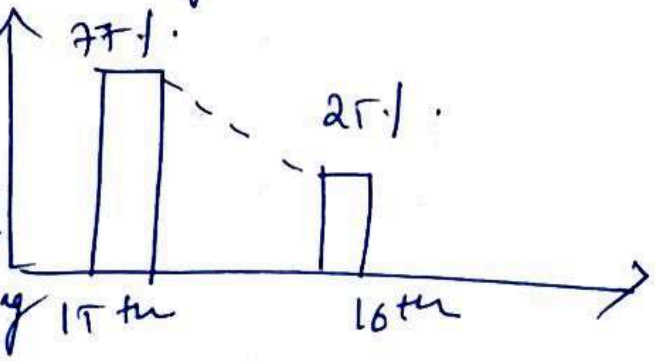
The 16th Loksabha saw frequent disruption, suspension of question hours and frequent resort to the use of ordinances.

Decline in effective functioning

1) Number of fixed days of working declined from 120 days (1980) to average of 60–70.

2) 34% of bill passed on single day of introduction – lack of scrutiny (ADR)

3) Bill referred to Parliament any standing committee



4) Frequent resort to ordinances.

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5) Lack of neutrality in role of constitutional position like speaker

~~Eg~~ Passage of Aadhar Bill as Money Bill

6) Anti-defection law misuse - Biasedness of speaker, ineffective to prevent party switching

7) Very few Private members Bills passed till now (only 14 since 1950)

8) Low quality of debates marked by personal criticism.

9) Ineffective use of options like "Half an hour discussion"

10) Frequent disruptions in the Parliament - In 16th Lokasbha, lower house lost 1/6th of its time whereas Rajyasabha lost 1/3rd of its time (PRS)

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11) Anti defection prevents the freedom of ~~one~~ speech of members.

12) Lack of presence of strong opposition to keep strong check and Balance

Way forward

1) Minimum working days of 120 (NRCWC)
2) Anti defection law to be used only in matter crucial to formation of Government - No Confidence motion, Budget (Law Commission)
3) Parliamentary legislative Impact Assesment.
4) Provision of mandatory passage of bill to ~~Departmental~~ Parliamentary Standing Committee
5) One Specific day devoted to question of opposition (UK)
6) Speaker to be neutral (UK)

The effective functioning of Parliament is essential to ensure that supreme will of the people prevails over the will of executives.

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Q.15) Understanding the extent, source, and complexity of deprivations among the multidimensionally poor contributes to more informed policymaking. In this context, analyze the latest National Multidimensional Poverty Index Report by NITI Aayog. (15 marks, 250 words)

बहुआयामी गरीबों के बीच वंचितों की सीमा, स्रोत और जटिलता को समझना अधिक सूचित नीति निर्माण में योगदान देता है। इस संदर्भ में, नीति आयोग द्वारा नवीनतम राष्ट्रीय बहुआयामी गरीबी सूचकांक रिपोर्ट का विश्लेषण कीजिए। (15 अंक, 250 शब्द)

The National Multi-dimensional Poverty Index (MPI) Report by NITI Ayog placed India at ranking based on provision like health, education, living standards etc. It revealed that in last 15 years, India has lifted 415 million people out of multidimensional poverty.

Gandhi - "Poverty is the worst form of violence"

Extent, source and depriviations complexity faced by multidimensional poor as highlighted by NITI Ayog :-

1) Intersection of vulnerabilities - based on caste, gender, religion regional divides

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2) The 'inequality' dilemma highlighted based on social identities

3) Basic needs approach (charity based) → Capability Approach (Rights based) Dr Amartya Sen

4) Digital empowerment is ineffective
(eg) only 30% women are digitally literate.

5) Slumification (urban poverty) and mental health crisis.

6) Inter-generational inequities affects human development index of India (HDI)

It is crucial for informed policymaking :-

i) Multi-dimensional, multi-factor analysis of deprivation

ii) Objective criteria of assessment

iii) It helps in gauging the effectiveness of policies and impact assessment.

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ii) The complex issues to be solved by system analysis approach in poverty alleviation.

v) In line with global best practices for sustainable development goals (SDGs)

Challenges that prevail
- 1) Regional disparities
  - Rural: agrarian distress
  - Urban: poverty
  - Tribal: health
- 2) Social injustice and digital divides
- 3) local governance corruption to be addressed
- 4) Gender disaggregated data to be analysed

Steps like universal Basic Income (economic survey), MGNREGA, Swachh Bharat Mission, PDS system etc. are right steps for curbing poverty & achieve Sabka saath, Sabka Vikas, Sabka Vishwas Gin for $5 trillion economy

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Q.9) Instead of performing a transformative role, traditional bureaucracy has contributed to perpetuation of old order. Comment. (10 marks, 15 words)

एक परिवर्तनकारी भूमिका निभाने के बजाय, पारंपरिक नौकरशाही ने पुरानी व्यवस्था को कायम रखने में योगदान दिया है। टिप्पणी करें। (10 अंक, 150 शब्द)

Bureaucracy is the implementing wing of government. As per Sardar Patel, it is the "steel frame" of India.

Perpetuation of old order

1) The LCI Report (Law Commission) highlighted the continuing nexus between politicians–bureaucrats and criminals.

2) Generalist v/s specialist debate

3) Frequent transfers (eg Ashok Khemka) curb effective governance

4) low teeth to tail ratio: (only 5000 approx IAS officers for a country of 130 crore population)

5) Domination of elite services (IAS, IPS) and stagnation of other services

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(6) Elitism

(eg) Sanjeev Khirwar and wife, IAS Delhi case for vacating stadium for athletes instead, dog walk was allowed.

Transformative role

→ The DARPG, Good Governance Index initiative acknowledged the efforts of officers. (Incentivising good effort)

→ Inclusive growth and participatory governance.

→ Disaster management — Rehabilitation

(eg) Keerthi Jalli, Assam flood 2021 relief operations

Steps such as Mission Karmyogi and iGOT platform are right steps. Innovation and pro people approach should be taken to avoid "rusting" of steel frame.

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Q.15) Against the intentions of the constitution makers, the use of discretionary powers by governors has become a major source of tension in Centre-state relations. What are the discretionary powers of the Governor? Also, discuss the issues associated with them. (15 marks, 250 words)

संविधान निर्माताओं की मंशा के विपरीत राज्यपालों द्वारा विवेकाधीन शक्तियों का प्रयोग केंद्र–राज्य संबंधों में तनाव का एक प्रमुख स्रोत बन गया है। राज्यपाल की विवेकाधीन शक्तियाँ क्या हैं? साथ ही उनसे जुड़े मुद्दों पर चर्चा करें।
(15 अंक, 250 शब्द)

The office of governor is mentioned in Article 153 of the constitution. He/She is the agent of central government as well as head of states. Hence, executive plays dual role which has bearing on Centre – state relations.

Discretionary powers of Governor

1) Constitutional discretion
   - Reservation of bill for President's assent.
   - Administration of adjoining Union territory
   - Recommend President's rule in state (A356)
   - Amount payable to tribal

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autonomous council (eg- Assam) for mining lease etc.

2) Situational discretion

- Appointment of chief minister when no party secures majority
- Dissolution of state legislative assembly

Issues

1) GNCTD Act, 2021 highlighted the concern with centralisation of power in Lt-Governor in Delhi. It goes against voter's mandate. (elected representative)

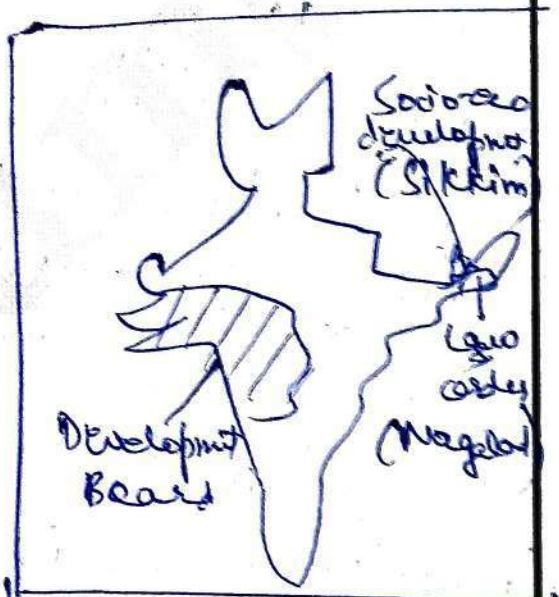

Fig- Special responsibility of Governor

2) Sarkaria Commission highlighted that governor should be an antidote to prevent partypolitics. However, it is

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breached. Governor acts on central will, without consulting council of ministers. It was envisaged in Nabam Rabia judgement.

3.) Appointment of vice chancellors by state university shows politicisation. (eg) Tamil Nadu Case.

4.) Delay in giving assent to bill, veto power is misused.

way forward

- Sarkaria Commission — CM Consultation is required.
- Punchhi Commission — Fixed tenure of governor.

Thus, Governor's role should aim for maintaining federal equilibrium as Overcentralisation leads to blood pressure at centre and anemia at periphery.

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Q.19) For creation of a stable, peaceful and prosperous multipolar order, UN Security Council (UNSC) reforms are an urgent imperative. Examine the statement and present a case for India's permanent membership in UNSC. (15 marks, 250 words)

एक स्थिर, शांतिपूर्ण और समृद्ध बहुध्रुवीय व्यवस्था के निर्माण के लिए, संयुक्त राष्ट्र सुरक्षा परिषद (यूएनएससी) के सुधार तत्काल अनिवार्य हैं। बयान की जांच करें और यूएनएससी में भारत की स्थायी सदस्यता के लिए एक मामला प्रस्तुत कीजिए। (15 अंक, 250 शब्द)

United Nations Security Council (UNSC) is a body with 5 permanent & 10-non permanent members, which is the highest decision making body in the international security order.

Given that UNSC reflects the balance of power at the end of World War II & the change since then, there is an urgent case for reforms in UNSC.

Necessity of UNSC reforms:

Stability: (1) Multiple civil wars in Myanmar, Afghanistan, Ukraine, Yemen & coups in Sudan, Mali, Chad have not been prevented by current UNSC.

(2) Deployment of UN Peacekeeping forces depends on the political will of UNSC

(3) Sanctioning power of UNSC can act as a

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detement to terrorists, seperatists etc who cause instability.

Peace:

(1) The raison detre of UNSC's existence is prevention of war, as laid down in UN charter.

(2) However, failure of UNSC to intervene in cases like recent Ukraine crisis ~~has~~ shows the ineffectivity of UNSC

Prosperity: (1) UNSC resolutions are driven by the interest of members. Therefore inclusive prosperity can only result from inclusive membership of UNSC.

Ex: No African representation in UNSC permanent members.

India's claim to UNSC permanent membership is demonstrated by,

(1) Population: As the most populous nation & largest democracy, India's affairs are that of ~~the~~ one-sixth of the world.

(2) Responsibility: Right from intervening during

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the Korean War of 1950, to non-alignment movement India has shown global leadership

(3) Balance of interests: By involving in multilaterals with US, China & Russia, India has become indispensable. Ex: Request from Lithuanian minister to India to use her 'special status' with Russia to stop war

(4) Principled stance: India perceives War vs peace instead of country A vs B in any war & always support peace

(5) Non-proliferation: India is a member of MTCR, Australia group & enjoys a NSG waiver, showing its responsible nuclear status.

(6) Economy: As the fifth largest economy, it is inconceivable that it's not among the existing P-5.

By using IGN (Inter governmental negotiations) & winning support from other countries, India can secure a UNSC permanent membership in future.

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Q.20) The Representation of People's Act, the bedrock of free and fair elections in the country, has failed to keep pace with the contemporary challenges. Highlighting the shortcomings in the legislation, suggest reforms to make it more effective. (15 marks, 250 words)

लोक प्रतिनिधित्व अधिनियम, देश में स्वतंत्र और निष्पक्ष चुनाव का आधार, समकालीन चुनौतियों के साथ तालमेल बनाए रखने में विफल रहा है। कानून में कमियों को उजागर करते हुए, इसे और अधिक प्रभावी बनाने के लिए सुधारों का सुझाव दीजिए। (15 अंक, 250 शब्द)

Representation of People's Acts 1950 & 1951 form the basis by which the entire election machinery in India functions, apart from Art. 324 of Indian constitution.

- RPA 1950
  - delimitation of seats
  - preparation of electoral rolls
  - division between LS & RS.
- RPA 1951
  - disqualification of voters & candidates
  - corrupt practices
  - registration of parties
  - returning officers to monitor.

Despite the comprehensiveness of the laws, various legal loopholes have been observed:

(1) The law allows registration of parties but prevents

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EC from deregistration of parties which are defunct or have violated various laws.

(2) The law doesn't give EC ~~prohibitory~~ power to penalise paid news, as it's not covered under ~~A~~ section 123 of the act.

(3) There is no provision to ~~dis~~ disallow opinion polls by media houses even 48 hours before the election date, which vitiate the atmosphere.

(4) It does not legalise model code of conduct, which remains a non-enforceable.

(5) Despite the long list of corrupt practices, it is unable to prevent political leaders using xenophobic language to divide on basis of language, caste etc.

Reforms in RPA:

(1) The law must be amended to authorise EC to deregister parties that are not in conformance

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with law.

(2) Paid news & online opinion polls must be covered as these have become new challenges in the digital era during elections.

(3) Proposed amendments to enable NRIs & migrants to vote from home using multi-member EVMs can be explored to reduce cost of election.

(4) Sec 33(7) could be amended to mandate candidates contesting from 2 seats to deposit a security amount, which can be used to conduct bye-election if need be.

(5) Amendments suggested by Indrajit Gupta committee to promote state funding of elections can also be considered.

An up-to-date RPA in line with demands of digital era can go a long way in assuring the fairness of election.

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Q.2) Sedition law, in any form, is a threat to civil liberties and presents an opportunity for its weaponization against dissenters and detractors. Should India do away with the sedition law? Justify your opinion. (10 marks, 150 words)

राजद्रोह कानून, किसी भी रूप में, नागरिक स्वतंत्रता के लिए खतरा है और असंतुष्टों और विरोधियों के खिलाफ अपने हथियार बनाने का अवसर प्रस्तुत करता है। क्या भारत को राजद्रोह कानून को खत्म कर देना चाहिए? अपने मत का औचित्य सिद्ध कीजिए। (10 अंक, 150 शब्द)

Section 124A of the IPC deals with the sedition law. It has been a colonial legacy and several nationalist leaders like Balgangadhar Tilak have been tried in it.

Threat to civil liberties
- Against Right to freedom of speech
- Against the vision in preamble
- constitution makers thought that it would be a dead letter

opportunity of weaponization
- may be used to curb criticism against the government
- suppression of political dissent

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India should do away with sedition law → Most of the countries including Britain have removed it

- Against the fundamental Rights
- SC in Kedarnath singh case - must not be used to curb dissent
- It would promote inclusive democracy

Reason for not curbing sedition law → to be used against anti national and anti social elements

- threats from terrorist and Naxalites
- lack of difference between free speech and hate speech

Thus a deliberate debate is required for finding out the validity of sedition law in India

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Q.3)

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Q.19) USA-led Indo-Pacific Economic Framework for prosperity (IPEF) is an economic initiative to complement its existing security partnerships in the Indo-Pacific region. Analyze the significance of and challenges to IPEF in the present scenario. (15 marks, 250 words)

समृद्धि के लिए संयुक्त राज्य अमेरिका के नेतृत्व वाला इंडो–पैसिफिक इकोनॉमिक फ्रेमवर्क (IPEF) इंडो–पैसिफिक क्षेत्र में अपनी मौजूदा सुरक्षा साझेदारी को पूरा करने के लिए एक आर्थिक पहल है। वर्तमान परिदृश्य में IPEF के महत्व और चुनौतियों का विश्लेषण करें। (15 अंक, 250 शब्द)

USA launched IPEP recently which compuses of 14 countries including Neiozealand, Australia, Brunei, Indonesia, south Korea, Japan etc.

IPEF
- supply chain resilience
- tacking climate change
- free and fair trade
- indo pacific as a open and free waters
- economic integration among the nation

other initiatives in the Indo Pacific Region
- QUAD
- AUKUS
- ASEAN
- PGII

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- promoting security in the region
- countering china's growing influence in the region
- economic integration of the countries

Significance of IPEF

- Indo pacific represents 65% of the global GDP
- Achieving the climate related commitments – COP26, Net zero
- supply chain resilience – Reducing dependence on china
- promotion of democratic values
- diversifying the supply chain – After Ukraine-Russian War

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challenges →

- Multiple initiatives with the different countries
  - —AUKUS
- lack of commitment to any concrete goals
  - Blue Dot Network, Build Back better (B3W) have not taken off
- china increasing assertiveness.
- Multiple axis growing
  - Ex: China - Russia - Pakistan
- IPEF does not provide for any trade improving measures among countries
  - ex: Removal of trade barriers.

Indo pacific is emerging as the most important region. south east Asia is the center of Indo pacific
- India at Shangri'la dialogue

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Q.1) Discuss the role of the 'Fourth Estate' in upholding democratic values and analyse the issues affecting press freedom in India. (10 marks, 150 words)

लोकतांत्रिक मूल्यों को बनाए रखने में 'चौथे स्तंभ' की भूमिका पर चर्चा कीजिए और भारत में प्रेस की स्वतंत्रता को प्रभावित करने वाले मुद्दों का विश्लेषण कीजिए। (10 अंक, 150 शब्द)

Media has been often regarded as 4th pillar of democracy. India has the largest number of channels and Newspaper published daily.

Role of 4th Estate

Political

① They act as a tool for accountability to the government [Pressure group].
Ex: reporting during Nirbhaya Rape

② They bring issues of people to the notice of political parties

③ They are used as flat form for political campaign : discussing manifesto about growth, development

Mobilization

④ They shape the public opinon regarding policies, action of government
Ex: farm laws

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⑤ They bring front the interest of the marginalized section of the society Eg: Women, SC/ST

⑥ They reach to remote areas which are not assessable to state

Eg: Naxal affected areas

Challenges →
- Media freedom Index: 160 rank India
- Media trials [SC has warned about this]
- Use of Hate speech by anchors [Amish Devgan case]
- Lack of accountability, grievance redressal. [News Broadcasting Association a defunct body]
- populism, TRP rating influencing News, corporate backing.

Thus Media should follow supreme court guidelines in having restraints to hate speech & media trials.

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Q.12) Considering the non-enforceable nature of fundamental duties and directive principles of state policy, critically examine their impact in socio-political norms. (15 marks; 250 words)

मौलिक कर्तव्यों और राज्य के नीति निदेशक सिद्धांतों की गैर-प्रवर्तनीय प्रकृति को ध्यान में रखते हुए, सामाजिक-राजनीतिक मानदंडों में उनके प्रभाव की आलोचनात्मक परीक्षण कीजिए। (15 अंक, 250 शब्द)

Directive Principles of State policy (DPSP) were borrowed as idea from IRISH constitution to provide VISION for Robust socio-economic democracy.

fundamental duty as part of IV-A were introduced by 42nd Amendment to outline duty of citizen as consequence for rights guaranteed in PART III

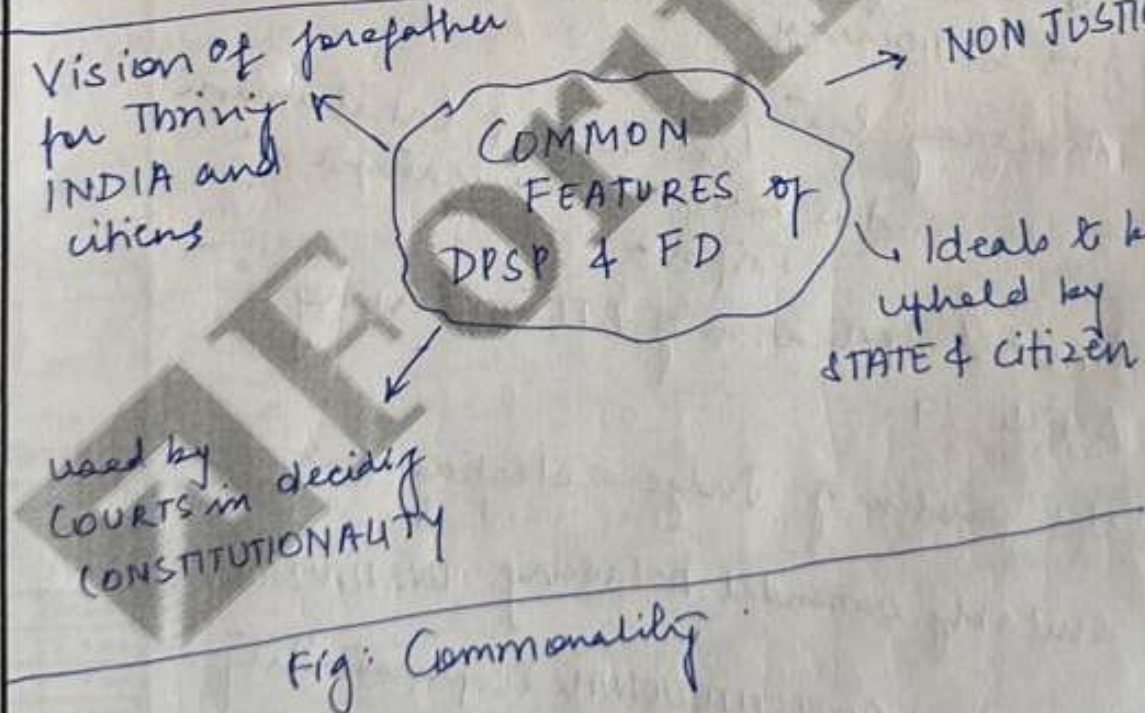

Fig: Commonality

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Despite Non-Enforceability, Impact of DPSP and FD

1. JUSTICE Verma Committee highlighted legal implementation of DPSPs and FDs
   ex: Article 48A and Fundamental duty on protecting Environment is legally upheld in "Environment Protection Act, 1986"

2. Judiciary pronouncements have upheld.
   ex: Bihar LIQUOR ban used DPSP 40 & 45 into account.

3. "WELFARE STATE" as Basic structure has led to AFFIRMATIVE actions (Art 38)
   ex: Garib Kalyan Anna Yojna in COVID lockdown.

created strong DEMOCRATIC SOCIALISM principles
ex: Article 40 of Panchayati

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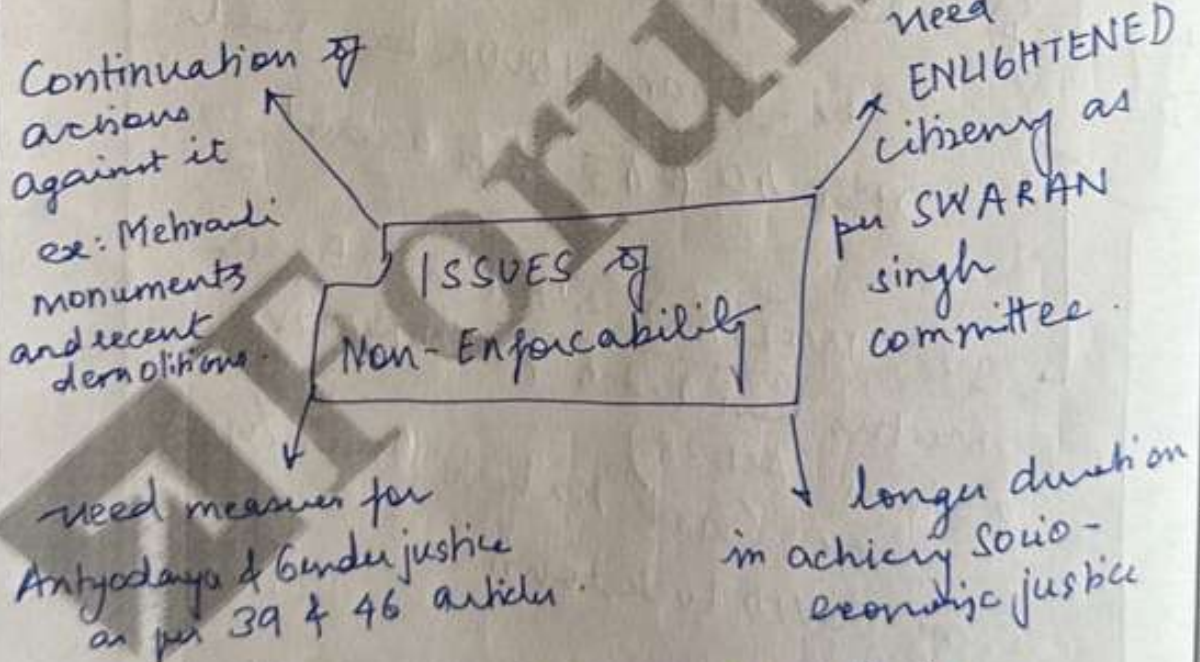
has been implemented through 73rd Amendment, in line with GANDHIAN Policy.

5. They have been Amended keeping trend of development.
89th Amendment where Fundamental duty of parents to send children of 5 years to 14 years to school.

6. Some outline future scope.
Ex: Article 44 of Uniform Civil Code.



Thus, they must move from being yardsticks to Measurable outcomes for SARV Siddh Bharat.

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Q.14) Frequent reliance on the ordinance making power by the government, not only dilutes the basic tenets of executive accountability in a parliamentary democracy, but also overlooks the democratic traditions of building consensus. Discuss with relevant examples.

(15 marks, 250 words)

सरकार द्वारा अध्यादेश बनाने की शक्ति पर बार-बार निर्भरता न केवल संसदीय लोकतंत्र में कार्यकारी जवाबदेही के बुनियादी सिद्धांतों को कमजोर करती है, बल्कि आम सहमति बनाने की लोकतांत्रिक परंपराओं को भी नजरअंदाज करती है। प्रासंगिक उदाहरणों के साथ चर्चा कीजिए।

(15 अंक, 250 शब्द)

Ordinance Making power is an exceptional Power to Executive granted in interests of EXECUTIVE legislating when one or both houses of legislature are not in SESSION under Article 123

Example : COVID-19 ordinance.

FREQUENT ordinances - FEATURE

- ordinance as Exceptional & "RAREST of rare" use.
- Life of ordinance upto 6 weeks of House convened.
- it is only to deal with EXIGENCY by EXECUTIVE
- ordinance needs LEGISLATURE approval for CONTINUATION or it lapses post 6 week interval

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However, it has been seen that misuses of ordinance powers

→ India's PARLIAMENTARY system prioritizes "EXECUTIVE's collective responsibility to Legislature, particularly Lok Sabha as per Article 78

ISSUES of ordinances on EXECUTIVE Accountability

→ ordinance route is used as a way to bring UNILATERAL changes

ex: FARM LAW ordinances

→ it counters federalism principles

ex: recent ordinance on Greater New Delhi [GNCDT ordinance] post Supreme Court direction

→ goes beyond COURT directions and DOCTRINE of SEPARATION of Powers

ex: TRIBUNAL reforms ordinance.

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A Seociation of democratic reforms has highlighted. 40% laws taking ordinance route.

IMPACT on Building CONSENSUS

→ instead of tabling BILLS and 3 stage of Reading proces.

↳ it bypasses discussion, debate, dialogue with opposition

ex: VOICE VOTE in farm laws introduced as ordinance.

↳ ordinances also weaken PARLIAMENTARY Committees.

↳ they negatively impact PARLIAMENTARY Productivity

ex: 17th LS productivity as 68% (PRS legislative research)

Thus DC Wadhwa case highlighted need & Prevent ordinance MAINSTREAMING via test of REASONABILITY on Colorable legislation and judiciary use in PUBLIC interest.

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Q.9) China's interest in Russia is not only that of a strategic partner, but also for it being a strategic diversion for the west. Analyze. (10 marks, 150 words)

रूस में चीन की दिलचस्पी न केवल एक रणनीतिक साझेदार की है, बल्कि इसके लिए भी है कि यह पश्चिम के लिए रणनीतिक रूप से विचलनकारी हो। विश्लेषण करें। (10 अंक, 150 शब्द)

Strong China-Russia partnership can be corroborated based on CHINA's Partisan stance in UNSC over UKRAINE-RUSSIA war

CHINA's intent as STRATEGIC PARTNER

1. CHINA-RUSSIA axis as part of BRICS, SCO cooperation and VOTE BLOC in UNSC (VETO Blocking)
2. ECONOMIC → Power of SIBERIA pipeline for energy security
3. China's vision of ARCTIC region via RUSSIAN territory
4. NEIGHBOURHOOD prioritization as RUSSIA is major boundary country
5. can be important DEFENCE supplier of S-400, THAAD like systems

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CHINA's view RUSSIA as DIVERSION

1. RUSSIA–UKRAINE war as diversion from INDO-PACIFIC
2. reduction in US's trade war with CHINA as sanctions on RUSSIA.
3. help in continuing BRI and debt trap diplomacy
   Ex: MONTENEGRO on similar state as SRI LANKA.
4. Prioritizing china's strategy on TAIWAN.
   ex: USA's Legislative head VISITING TAIWAN

Thus china–RUSSIA axis presents a strategic challenge for INDIA's ties with RUSSIA and WEST which must be balanced in intents of STRATEGIC AUTONOMY.

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Q.15) The achievement of Sustainable Development Goals by 2030 can happen only if we consider local context and situations. In light of this statement, examine the critical role as well as capabilities of PRIs in meeting the SDGs. (15 marks, 250 words)

2030 तक सतत विकास लक्ष्यों की प्राप्ति तभी हो सकती है जब हम स्थानीय संदर्भ और स्थितियों पर विचार करें। इस कथन के आलोक में, एसडीजी को पूरा करने में पीआरआई अर्थात पंचायत प्रणाली की महत्वपूर्ण भूमिका के साथ-साथ उसकी क्षमताओं का परीक्षण करें। (15 अंक, 250 शब्द)

LOCALISING SDG project of NITI Aayog highlighted that Panchayati Raj Institutions established under 73rd Constitutional Amendment are crucial for INCLUSIVE & SUSTAINABLE grassroot development.

Role of PRI in meeting SDGs

1. PRI as democratic decentralization agents can help in planning at grassroot

2. Public mobilization for ATTITUDINAL change
Ex: Gram Swaraj Abhiyan.

3. enhance women inclusion due to 1/3rd reservation for women members in PRI

4. SOCIAL inclusion of SCs/STs/OBCs in line with PRINCIPLE of EQUALITY.

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CRITICAL capability of PRI

1) SDG 1 of ZERO Poverty → PRI in identify & SDG 2 of ZERO HUNGER beneficiary under NFSA, 2013.

2) SDG 5 of women empowerment of priority LEADERSHIP, authority and decision making
Ex: DAY- NATIONAL rural livelihood mission with PRI's help for women self help groups.

3) SDG 6 of water and sanitation with PRI's monitoring of ODF status under Swacch Bharat Mission and tap setup under JAL JEEVAN mission

4) PRI in clean energy via UJWALA beneficiary identification (SDG 7)

5) similarly NUDGING towards environmentally friendly practices by PRI & Sarpanch
Ex: SUKHET model

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1. Lack FRAMEWORK for SDG prioritization
   ex: Need STATE-PRI Coordination

2. FUNCTIONAL devolution limited by STATE Law
   ARC II HIGHLIGHTED schedul XI mapping

However PRI

3. Functionary shortages as PRI Lacks authority to hire.

4. Fund dependency on centre and state
   . ARC II highlighted PRI must use own resources and tax base (Ex: Taxing agricultural land)

Thus PRI must be strengthened for enhancing role as enablers in achieving SDGs.

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Q.6) Anti-defection law has failed to address and resolve the evil of political defection satisfactorily. Discuss various issues surrounding the Anti-defection law and recommend some corrective measures. (10 marks, 150 words)

दल–बदल विरोधी कानून राजनीतिक दल–बदल की बुराई को संतोषजनक ढग से संबोधित करने और हल करने में विफल रहा है। दल–बदल विरोधी कानून से जुड़े विभिन्न मुद्दों पर चर्चा कीजिए और कुछ सुधारात्मक उपायों की सिफारिश कीजिए। (10 अंक, 150 शब्द)

Anti Defection provisions are found in 10th schedule of the Indian Constitution added by the 52nd constitutional Amendment Act

Context for the Law
- Frequent political defections and e Aaya Ram, Gaya Ram' syndrome
- Horse trading and buying of MPs in the 1960's, 70s.

Failure of the Law
- evidenced by toppling of governments including recently Maharashtra due to mass defection.

Issues surrounding
1. Decision of speaker for disqualifi... to alleged 'not impartial' & favors party in ~~centre~~ power
2. Independence of MPs / MLAs curtailed by chief whip; If they go beyond party lines defection is charged

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(3) No time frame to decide on issues of disqualifications due to defection.

(4) 'provision of merger' ~~due to~~ is misused and 'splits' masqueraded as 'mergers'
(eg) Goan Congress party

(5) large problems of Governor - Speaker's offices misused for installing favored governments.

Corrective Measures

1) Dinesh Goswami comitte → stratee implementation of law
2) Address lacuna of merger - split
3) Kihoto Hollan case observations to be followed to ensure autonomy of speaker
4) principles of 'once Speaker Always Speaker' pratice of British Parliament can be followed.

Parliamentarians & lawmakers must be free to uphold public interest and act in reason, and thus be allowed to change parties, however it must not be for self aggrandisement of power or in expectance of fear or favor.

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9) "Bail not Jail" is the cardinal principle that upholds the sacrosanct ideas of individual's liberty d dignity. Explain the statement, citing various case laws. (10 marks, 150 words)

ल नहीं जमानत" वह प्रमुख सिद्धांत है जो व्यक्ति की स्वतंत्रता और गरिमा के पवित्र विचारों का कायम रखता है। विभिन्न ा कानूनों का हवाला देते हुए कथन को स्पष्ट कीजिए। (10 अंक, 150 शब्द)

A rising number of undertrial prisoners (70% of the prisoners) shows that 'Bail not Jail" is not followed in India, resulting in detriment of individual liberty and dignity.

"Bail NOT Jail"

→ Jail is the exception, and Bail is the norm

→ a principle in commonlaw countries to grant bail, without lodging into jails if offence is minor or bailable.

upholding liberty and dignity

→ Immanuel Kant idea of 'dignity' (Bail) can act as solution in cases where prima facie no evidence is collected

→ D K Basu judgement highlighted that arrest and detention must be minimal

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→ Chief Justice of India, recently called for a "Bail law" to further ease process of giving bail.

Why a culture of Jail?
- → colonial hangover in police system
- → 'arrest and jail' as 'easy way out'
- → no judicial oversight before arrest.

How to bring in Bail culture
1. sensitising police about nature of crimes
2. dedicated Bail law
3. Following 'French system' of appointing judicial officer during investigations
4. seperating law and order & investigation to minimize load on officials.

Individual liberty is underlying principle in Preamble, Article-20 and DPSP. A culture of incarceration denies citizens of these rights. At this juncture, a behavioural and structural change of criminal justice system towards Bail culture is required.

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Q.16) Why is it important to ensure separation of powers between various organs of the State? Also, explain Indian model of separation of power with relevant provisions in the constitution. (15 marks, 250 words)

राज्य के विभिन्न अंगों के बीच शक्तियों का पृथक्करण सुनिश्चित करना क्यों महत्वपूर्ण है? साथ ही, संविधान में प्रासंगिक प्रावधानों के साथ सत्ता के पृथक्करण के भारतीय मॉडल की व्याख्या कीजिए। (15 अंक, 250 शब्द)

Doctrine of seperation of powers was delineated by Montesquieu in 'Les Spirit des Laws' as an arrangement for power sharing among three organs of the government - viz Legislature, executive and judiciary.

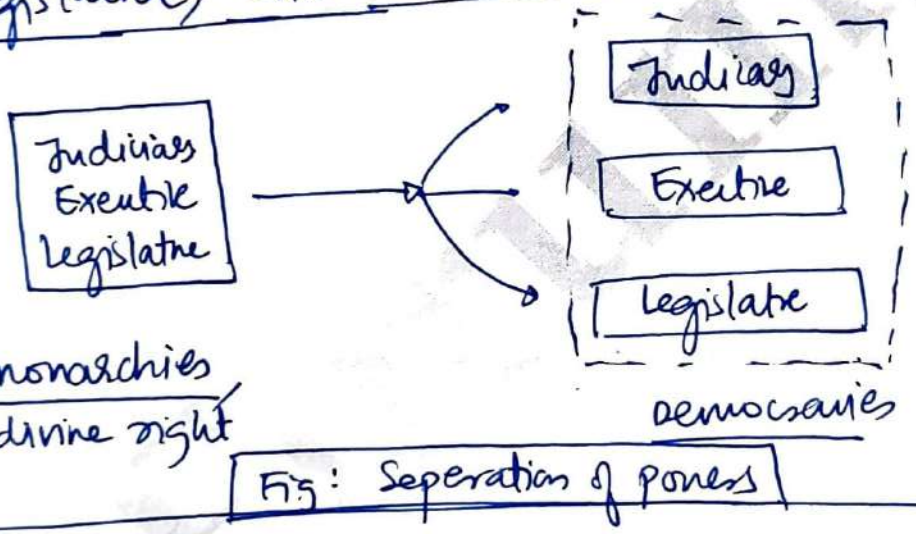

Fig: Seperation of powers

Importance to ensure seperation of powers

1. prevent usurpation of all powers by one organ (eg) monarchies
2. delineate proper functions of each body of government → reduces duplication

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- ③ minimise conflicts among organs
- ④ ensure 'checks and balances' of each other
- ⑤ Act as mediator, when other two organs are in dispute
- ⑥ prevent complete relegation to anarchy but regaining power at atleast one organ even in case of compromise of other two.
  - eg: Judiciary during Emergency period

Indian Model of Separation of Power

- ① Not a strict seperation of power as seen in USA
- ② Executive is 'responsible' to the Lokshabha (A. 75)
- ③ Doctrine of Judicial Review
  - I.R Coelho case ensure judiciary's involvement into activities of other organs.
- ④ legislatures judicial powers
  - eg: A-105, A-193 → acts as a quasi judicial body in violation of its privileges.

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(5) Judiciaries legislative power

(eg). Visakha Judgement guidelines as a law, even before the POSH Act

(6) legislatures executive power

(eg) A·123 → ~~ordinance making power~~
Appointing secretaries of Lokсabha, Rajya sabha

(7) executive legislative power

→ subordinate legislation
→ A·123 → ordinance making power

(8)

judiciary's executive power	executive's judicial power
→ Chief justice to appoint officers	→ subjudicial, executive magistrates

In recent times judicial adventurism, repeated promulgation of ordinance has resulted in erosion of seperation of power further, hence a necessary 'realignment' to constitution's ideals are required.

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Q.1) Discuss the role of the 'Fourth Estate' in upholding democratic values and analyse the issues affecting press freedom in India. (10 marks, 150 words)

लोकतांत्रिक मूल्यों को बनाए रखने में 'चौथे स्तंभ' की भूमिका पर चर्चा कीजिए और भारत में प्रेस की स्वतंत्रता को प्रभावित करने वाले मुद्दों का विश्लेषण कीजिए। (10 अंक, 150 शब्द)

Media is known as the 4th Estate of democracy. As Thomas Jefferson said: "Information is the currency of democracy" – and this is the contribution of media.

Role of fourth estate

1. Information and awareness generation: for the citizens.
2. Participative democracy: such as public debates, opinion polls etc.
3. Evaluation of government policies
   ☞ Vantage with Palki Sharma.
4. Accountability of the officials
   ☞ USA presidential debates.
5. Voice of the marginalised
   ☞ Coverage of COVID migrant exodus.

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(6) National narrative in the international platform (eg) WION news.

Issues to press freedom

(1) Corporatisation of news houses: paid news issue.

(2) Political affiliations: ideologically motivated news coverage.

(3) Legislative restrictions (eg) Sedition laws (section 124A) and UAPA.

(4) Echo-chambers / fake news in social media.

(5) Crackdown on NGOs and their ideologically motivated publications (eg) Amnesty International

Way Ahead

- Bill on media standards and accountability
- Media ethics charter
- Rationalise sedition laws
- Strengthen RTI, whistleblowers Act

"An informed citizenry is the best safeguard of democracy." The same is ensured through media freedom under Article 19.

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Q.19) Harbinger of global rebalancing, India-Africa ties are a beacon of inclusive, sustainable, and equitable world. Explain. (15 marks, 250 words)

वैश्विक पुनर्संतुलन के अग्रदूत, भारत–अफ्रीका संबंध समावेशी, टिकाऊ और न्यायसंगत दुनिया का एक प्रतीक हैं। व्याख्या कीजिए। (15 अंक, 250 शब्द)

In India-Africa defence dialogue, India voiced its approach to the continent as:
"Africa's best resources live on the African soil. Not under it."
This means India-Africa ties prioritise human development, on which an inclusive, sustainable and equitable world order can be formed.

Global rebalancing : India-Africa ties

1. Push for south-south cooperation.
2. Voice for representation of the south: African seat in expanded UNSC.
3. Against arm-twisting and exploitative imperialism of the north.

These principles drive our ties towards a world that is:

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Inclusive

(1) Democratic voices at the international arena
⇒ India's stance for African union seat in G20.

(2) Prioritisation of the south's concern
⇒ Food, fuel, fertiliser crisis during COVID crisis.

(3) Humanitarian and developmental diplomacy
⇒ Capacity building through student exchange, diplomat training etc.

(4) Economic dispersal of growth: India's push for IT parks development in ~~India~~ Nigeria.

Equitable

(1) Self-sufficiency of human capital through investment in grassroot healthcare ⇒ India's generic medicine help to African nations.

(2) Equitability in Emergency concept

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adopted such as Vaccine Maitri drive.

(3) Importance to African agenda at par with global north in G-20, as against veto of UNSC.

(4) Sustainability of benefit-sharing from India's projects like Asia-Africa development corridor.

Sustainability

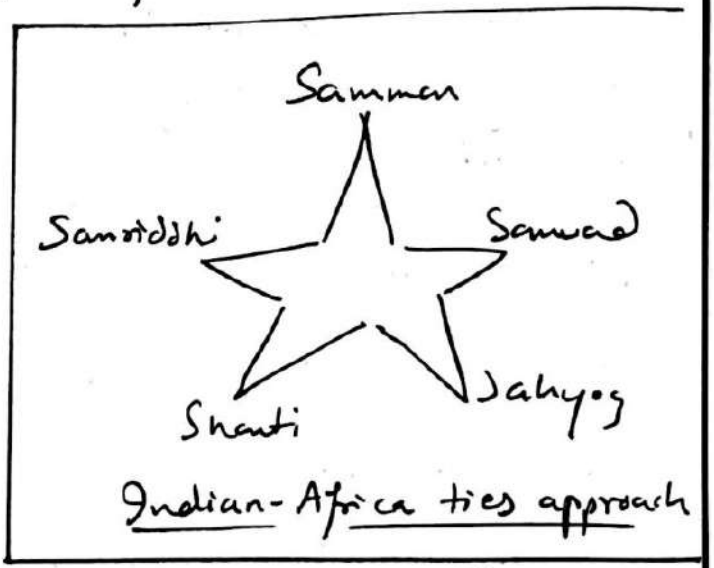
(1) Combined voice for "common but differentiated responsibilities"

(2) Collective efforts for climate change mitigation

(e.g.) CDRI and International Solar Alliance.

(3) Traditional best practices like India's LIFE and Africa's pro-planet lifestyle.

(4) Alternate development model of circular economy — India-Africa as solution providers.



Indian-Africa ties approach

21st century is of Asia, the time of Africa is also ripe. By extending our diplomatic, economic and developmental presence in Africa, India can aim for its position as a global leader for equitable world.

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Q.5) Dispute redressal is the most important component of cooperative federalism. How does the Interstate Council facilitate the resolution of disputes related to states in India, and what are the challenges associated with this process? (10 marks, 150 words)

विवाद समाधान सहकारी संघवाद का सबसे महत्वपूर्ण घटक है। अंतरराज्यीय परिषद भारत में राज्यों से संबंधित विवादों के समाधान को कैसे सुविधाजनक बनाती है और इस प्रक्रिया से जुड़ी चुनौतियाँ क्या हैं? (10 अंक, 150 शब्द)

Art 245-263 in Part II of the constitution focus on centre-state relations. Cooperative federalism is an exercise of sharing powers and responsibilities in a just & equitable manner b/w centre and the states.

Inter state council facilitates dispute resolution as:-

→ framework provided and platform allowed to states & centre to sit together & discuss issues.

→ democratic principle where voice of all states & their concerns are heard. Eg Odisha ST concern.

→ mutual solution finding in a win-win approach for all parties.
Eg River water tribunals.

→ dispute settlement mechanism by

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the arbitration of centre.

Challenges associated

- irregular meetings as all the States do not regularly participate
- lack of teeth as the council can not enforce the arbitral award.
- lack of consensus on key issues of territory, water sharing etc.
- Centre-State relations impacted as centre perceived with more powers.
- Political differences b/w various states hamper collaboration.

Way Ahead

- Sarkaria commission recommended powers of a civil court to council.
- regular timetable.

In Amit Koal, cooperative federalism can help ensure that India becomes developed ~~20~~ by 2047.

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Q.4) Assess the effectiveness of Inter-State River Water Disputes Act, 1956 in resolution of river-water disputes. Also describe the potential impact of delays in resolution of water disputes.
(10 marks, 150 words)

नदी–जल विवादों के समाधान में अंतर–राज्यीय नदी जल विवाद अधिनियम, 1956 की प्रभावशीलता का आकलन कीजिए। जल विवादों के समाधान में विलम्ब के संभावित प्रभाव का भी वर्णन कीजिए।
(10 अंक, 150 शब्द)

The Inter-State River Water Disputes Act, 1956 provides for formation of water tribunals (Part 14A, Art. 323B) for resolution of water disputes b/w 2 states.

Effectiveness

- Tribunals provide for a speedy mechanism. Eg Ken-Betwa tribunal.
- Stakeholder interests of all parties are considered & addressed. Eg Cauvery water dispute.
- Dispute resolution mechanism is also provided. Eg Yamuna tribunal.

Shortcomings

- Prolonged disputes with no resolution b/w parties. Eg Cauvery dispute.

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→ Appeals to tribunal decision don't lie in appliate jurisdiction of SC.
→ Competetive federalism allows inter-state rivalries Eg Haryana Punjab SYL issue.

Impact of delays

→ Wastage of river water due to non-utilisation effectively.
→ Justice delayed is justice denied.
→ Agricultural crops are sensitive & irrigation specific (37% in India).
→ Droughts & drinking water shortages. Eg Central Indian highland.

Way Ahead

→ Multistakeholder approach, including local people.
→ River linking programmes. Eg Ken-Betwa

This will help in ensuring SDG 6 (clean water & sanitation) & SDG 16 (peace, justice & strong institutions).

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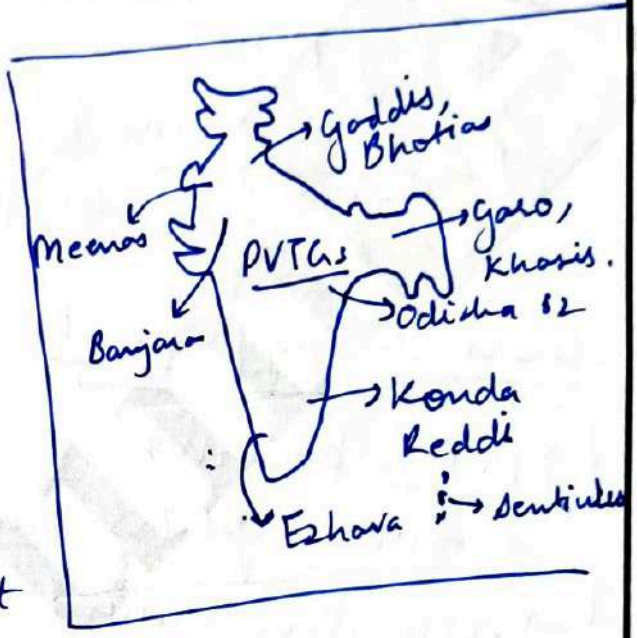
Q.6) In order to pass the ultimate test of good governance, welfare state should be close to the people, responsive to their aspirations, and inclusive in its approach. Discuss with special reference to PM PVTG Development Mission. (10 marks, 150 words)

सुशासन मौलिक परीक्षा पास करने के लिए, कल्याणकारी राज्य को लोगों के करीब होना चाहिए, उनकी आकांक्षाओं के प्रति उत्तरदायी होना चाहिए और अपने दृष्टिकोण में समावेशी होना चाहिए। PM PVTG विकास मिशन के विशेष संदर्भ में चर्चा कीजिए। (10 अंक, 150 शब्द)

India is a home to 700 SC communities, out of which 75 are PVTGs.

PM PVTG development mission in Budget 2023 aims to focus on holistic — social, economic, political, cultural development of India's PVTGs.



Welfare State

1) Close to the people

- PM PVTG mission aims to understand problems of PVTGs,
- PVTG helpline to listen to concerns.
- decentralisation & grassroot work by bureaucrats.

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2) Responsive to aspirations
- Eklavya model schools for education of PVTG children
- Healthcare by special focus on Sickle Cell Anemia (eliminate by 2030) affecting PVTGs
- Economic focus by branding of tribal products under TRIFED.

3) Inclusive in Approach
- PVTGs are most socially backward & have depleting numbers.
- PVTG development living in remote areas & low numbers. Eg Konda Reddis.

Way Ahead
- Special ministry for PVTGs.
- Xaxa committee recommendations on autonomy.

India's "Vasudhaiva Kutumbakam" value shall be reflected in its upliftment of its PVTGs.

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Q.10) Water diplomacy can redefine the contours of regional cooperation in South Asia. Discuss with special reference to Indus water treaty 1960. (10 marks, 150 words)

जल कूटनीति दक्षिण एशिया में क्षेत्रीय सहयोग की रूपरेखा को फिर से परिभाषित कर सकती है। सिंधु जल संधि 1960 के विशेष संदर्भ में चर्चा कीजिए। (10 अंक, 150 शब्द)

water diplomacy refers to the use of shared water resources eg rivers to improve ties between nations

eg IWT between India - Pak.

How can it redefine contours ?

(I) Promote collaboration and trust between upper and lower riparian state.

(II) Mutual sharing of data and dependency can prevent full scale conflict.

(III) Can be used as a pressure point to safeguard national interest.

eg "blood and water cannot flow together" is used to tackle Pakistan

(IV) Can lead to economic and energy security

eg Hydro-electric projects between Nepal India.

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(v) Demonstrates peaceful resolution of conflicts
(eg) arbitration under IWT.

Challenges of water diplomacy

(i) IWT failed to prevent full scale conflicts
(eg) Indo Pak - Kargil war 1999.

(ii) Adversary nations such as China doesn't share data:
+ making dams → water diversion, causing pollution (eg) Medong dam.

(iii) Difficulty to ~~reach~~ ~~also~~ consensus
(eg) Teesta water sharing with Bangladesh

Way forward

Though challenges, IWT serves as a flagpost. Such approach to resolve Teesta, Balak conflict. Talks with China for Brahmaputra and Satluj data sharing.

This along with expanding own capacities via building dams for "Doctrine of Prior appropriation" can give India a upper hand.

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Q.17) Safely managed drinking water services, as desired by Jal Jeevan Mission, are designated to give multifarious benefits cutting across generations. Discuss. Also, elaborate upon the challenges in ensuring the mission's success. (15 marks, 250 words)

जल जीवन मिशन की इच्छानुसार सुरक्षित रूप से प्रबंधित पेयजल सेवाएं, पीढ़ियों तक विविध लाभ देने के लिए नामित की गई हैं। चर्चा कीजिए। साथ ही, मिशन की सफलता सुनिश्चित करने में आने वाली चुनौतियों के बारे में भी विस्तार से बताएं। (15 अंक, 250 शब्द)

Jal Jeevan Mission aims to ensure safe drinking and piped water supply to every household by making this as a people's movement.

Benefits of mission

(I) Address health issues:-

- communicable diseases such as cholera, diarrhea can be prevented.
- These are leading causes of death of u/5 children.

(II) Addon to the nutritional outcome :- which is ensured by ICDS or MDM.

(III) Benefit to women:-

- Improve women's health → child health in future.

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• prevent additional burden of fetching water from faraway sources.

(iii) Ensures SDG 6 → (WASH) → improving overall hygiene and sanitation.

Challenges in Mission

(i) Quality of water → according to surveys even Delhi donot have drinking quality piped water.
• prevalance of contaminants (eg) flouride, arsenic.

(ii) Increased dependancy (eg) on ROs.
→ which are not affordable by everyone.

(iii) Piped water supply require massive funding.

(iv) Linear approach (eg) proper wastewater management etc. is required to fulfill potential.

(v) Capacity of local bodies limited (eg) quality check, pipe cleaning, water disinfecting proces etc.

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Way forward |

(v) Involvement of local women (eg Pani Panchayat) is required.

(vi) Increasing awareness (eg done during SBM) required.

(iii) Enhancing capacity of water departments to provide safe water.

(iv) Learning from international best practices (eg Norway to provide tap water good enough for drinking.

(i) Proper cleaning / follow up of pipes to keep good quality.

(ii) Requirement of quality checks and trained workforce.

Such steps can help in providing "water to all" and reduce health issues in long run. Water can then be available as a public good under Art. 21.

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Q.18) Legislation like Scheduled Caste and Scheduled Tribe (Prevention of Atrocities) Act 1989 remains mere legal documents without intense sensitization of public functionaries and the civil society. Discuss. (15 marks, 250 words)

अनुसूचित जाति और अनुसूचित जनजाति (अत्याचार निवारण) अधिनियम, 1989 जैसे कानून सार्वजनिक पदाधिकारियों और नागरिक समाज की गहन संवेदनशीलता के बिना केवल कानूनी दस्तावेज बनकर रह गए हैं। चर्चा कीजिए। (15 अंक, 250 शब्द)

SC/ST (Prevention of Atrocities) Act, 1989 was implemented with the objective of fulfilling constitutional promise of right to equality (A. 14, 15, 17) and right to life (Art. 21).

Provisions of the Act :-

(I) Offences under S. 3 :- such as :
- garlanding with footwear
- parading in a demeaning manner
- throwing waste to degrade area
- or economic exploitation
- or imposing social disabilities (eg) enter-ing a place prohibited.

(II) Provision for Special Public prosecutor

(III) Designated courts and timely completion within 2 years.

(IV) Offences are made non-compoundable and

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non-bailable.

(2) Punishment to officers for dereliction of duty.

In this manner, stringent provisions are provided. Despite this instances take place.

Reasons for non-following:-

(1) Lack of sensitization:- * Public functionaries:-

- apathy in filing cases.
- huge pendency of cases; conviction rate is lower than 15%.
- perception of false cases.
- (eg) Recently, prior investigation was made compulsory before arrest → which defeats the purpose (Kashinath Mahajan case)

* Civil society:-

- Dominated by upper caste people.
- ~~provides~~ lack of support (eg) legal or financial.

~~- Issues~~

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(II) Other reasons :-

- Inherent biases in society
- Lack of capacity (eg) NLSA / DLSA lack of funds and functionaries

What should be done?

(I) Training and sensitization of officers of criminal justice system.

(II) Strict action against offenders to create deterrent effect.

(III) Awareness in general public regarding provisions of act.

(IV) Augmenting capacity of DLSA / civil society to help in ~~e~~forcement.

(V) District level nodal officer to take proper account of cases.

(VI) Fast track courts with limited adjournments to provide speedy justice.

These steps can lead to effective implementation of the act and providing substantive equality under A-14.

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Q.1) Basic structure doctrine has prevented the Parliament, a creature of the constitution, from becoming the master of the constitution. Discuss this statement with the help of relevant case laws. (10 marks, 150 words)

बुनियादी संरचना सिद्धांत, संविधान का सृजन, ने संसद को संविधान का स्वामी बनने से रोक दिया है। प्रासंगिक केस कानूनों की मदद से इस कथन पर चर्चा कीजिए। (10 अंक, 150 शब्द)

Basic structure doctrine as propounded in the Kesavananda Bharti case (1973) holds that the parliament can amend any part of the constitution without altering the basic features.

Restraining Parliament

1. Prevented parliamentary misadventure
   - eg: Indira Gandhi vs Raj Narain case, Judicial review is basic feature
2. Upheld rule of law over rule by law
   - eg: SR Chaudhari case, mere presence of constitution does not mean constitutionalism
3. Maintained Judicial independence
   - eg: Striking down 99th constitutional amendment (NJAC)
4. Preserved the federal nature of constitution
   - eg: SR Bommai case

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5. Maintained democratic values over tyranny of majority

eg Shreya Singhal case : IT act 66A

However, the doctrine has invited fair share of criticism

Criticism

1. Unprecented power to the unelected
2. Judicial invention : nowhere envisioned by the founding fathers
3. Has led to policy paralysis

   eg Judicial reforms have taken a back seat
4. Undefined basic structure (2nd ARC suggests to list out all features)

Through the basic structure doctrine, judiciary has differentiated the amendment power from constituent power.

As Zia Mody highlights in book '10 judgements that changed India', the doctrine has given a uncertain democracy but prevented a certain tyranny

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Q.16) Reforming the education infrastructure through digital interventions is a progressive step, but it has its limitations too. Comment. (15 marks, 250 words)

डिजिटल हस्तक्षेप के माध्यम से शिक्षा के बुनियादी ढांचे में सुधार एक प्रगतिशील कदम है, लेकिन इसकी अपनी सीमाएँ भी हैं। टिप्पणी कीजिए। (15 अंक, 250 शब्द)

National education policy 2020 lays extra emphasis on digitalising education.

Advantages

1. Improved accessibility
   - eg North east region, Ladakh
2. Quality education for everyone
   - eg Good professors can teach a large audience
3. Reduced cost of education
4. Improved acces to the vulnerable
   a) women
   b) disabled
   c) SC/ST
5. Reducing the need for education based migration
6. Enhanced the breadth of available courses
   - eg Language based, music, etc

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Limitations

1. Impersonal: removal of human touch reduces the sacrosanct relation btw teacher & student
2. Easy to get distracted over the internet
3. Increased plagiarism in tests and assignments
   eg use of ChatGPT
4. Problem of triple divide
   a) Gender divide
   b) Digital divide
   c) Rural divide
5. Poor social capital
   eg Friendships, discussions, etc
6. Lack of peer to peer competition
7. Hard to inculcate value education
   eg tolerance, discipline, trust

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Way forward :

1. Hybrid approach
   eg combining the best of both worlds
2. Increase internet penetration
   eg ~52 % of population connected to internet - Access Now report
3. Increase public private partnerships
4. International collaboration
   eg with Finland

Education is the cornerstone of modern economy. The policy makers must remember 'Padhega India toh badhega India'

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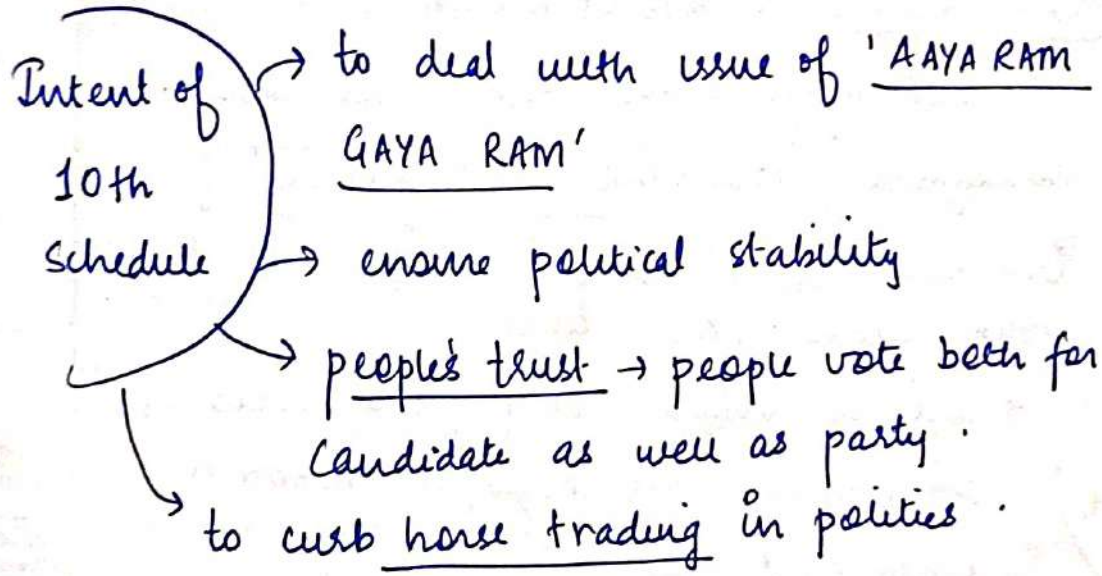
Q.4) The divergence between intent and impact of the tenth schedule necessitates calling into question its relevance in the present times. Analyze. (10 marks, 150 words)

दसवीं अनुसूची के आशय और प्रभाव के बीच का अंतर वर्तमान समय में इसकी प्रासंगिकता पर सवाल खड़ा करता है। विश्लेषण करें। (10 अंक, 150 शब्द)

10th schedule was introduced through 52nd constitutional amendment act to deal with political instability



Impact of 10th schedule:

positive

↳ curbing political instability.

↳ role of whip in maintaining members discipline in house

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↳ ensured transparency in government.

Negative impacts

↳ Role of speaker under question → it's impartiality
∴ KIHOTO HOLOHAN → speaker decision under judicial review.

↳ curbing freedom of conscience and innovation of individual members.

↳ mass defects ⇒ 2/3rd members
recent Maharashtra Shiv Sena case.

↳ undefined 'VOLUNTARY RESIGNATION'

↳ Excessive use of whip.

↳ voting along party lines

way forward
- → use of voting along party lines only when no confidence motion or important bills
- → establish tribunal to decide defection case – Supreme court
- → LCI ⇒ president and Governor must together decide defection cases.

In present context it is important to balance the intent of dealing with 'political defection' along with 'freedom of conscience' of members to improve quality of debate and law.

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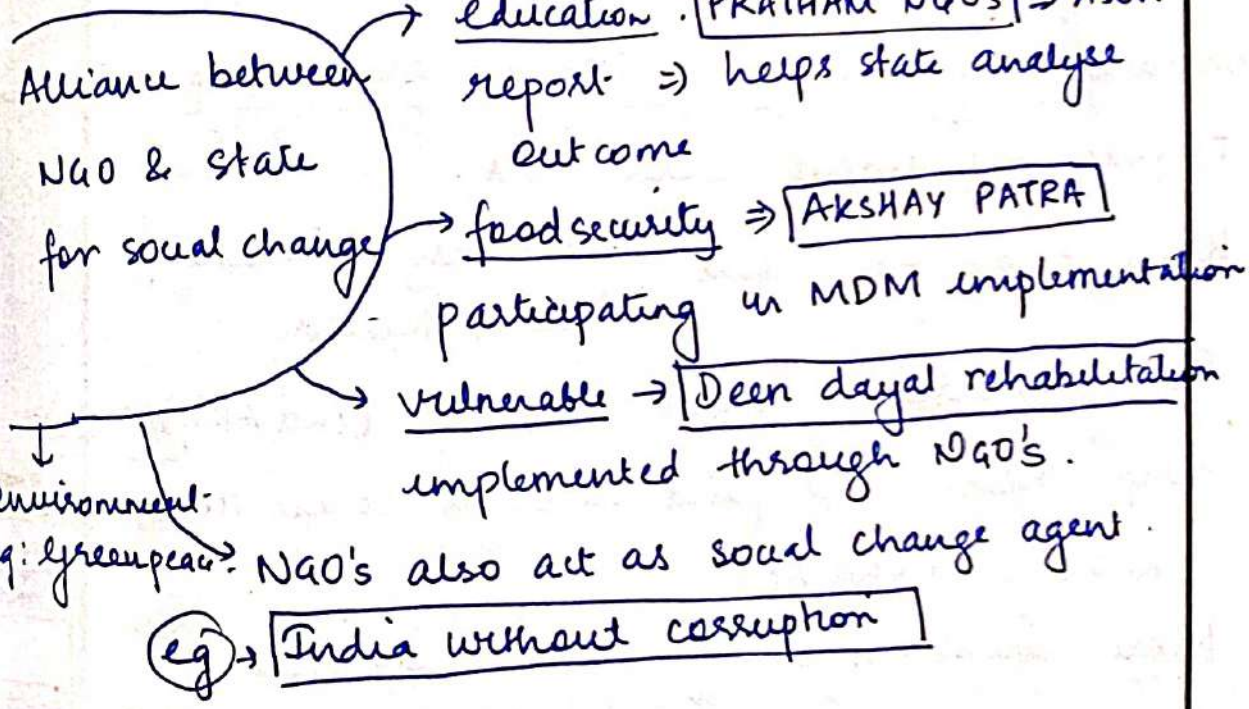
Q.6) Sustainable alliance between Non-Governmental Organizations (NGOs) and the State is critical for social change and development. Highlighting hurdles in this developmental alliance, suggest remedial measures for a more productive partnership. (10 marks, 150 words)

गैर-सरकारी संगठनों (NGOs) और राज्य के बीच टिकाऊ गठबंधन सामाजिक परिवर्तन और विकास के लिए महत्वपूर्ण है। इस विकासात्मक गठबंधन में बाधाओं को उजागर करते हुए, अधिक उत्पादक साझेदारी के लिए उपचारात्मक उपायों का सुझाव दें। (10 अंक, 150 शब्द)

NGO's are organisation that are not funded by government. Currently there are 30 lakh NGOs in India



Hurdles in development alliance:

1. Restrictive FCRA rules, 2021
   - ↳ account only in SBI Delhi branch
   - ↳ reduction in administrative alliance.
   - ↳ also harassment based on "political nature" work clause.

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2. NGO's engaged in terrorism
   eg: Islamic research foundation
3. Money laundering ⇒ only 10% file income tax returns
4. participating in foreign motivated protest
   eg ⇒ Kundakulam ⇒ loss of 2-3% of GDP.
5. Allegations of sexual harassment
   eg ⇒ Muzzafarpur Shelter home case.

Remedial measure for productive partnership:

1. Reduce harassment under FCRA.
2. Remove double contact → Ministry of Finance
   → Home Ministry.
3. Social Audit of NGO's account (2nd ARC)
4. help them raise fund through social stock exchange (2nd ARC)
5. More involvement of NGO in schemes.

COVID-pandemic has showed that NGO's play a great role in time of crisis. Thus it is important to improve their partnership with government - like empowered group of NGOs formed by NITI Aayog.

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Q.15) Harnessing public sector data is vital for informed decision making, accelerating socio-economic transformation and democratizing innovation in the country. In this context, highlight the various bottlenecks in public data sharing and suggest strategies for unlocking true value of data. (15 marks, 250 words)

सार्वजनिक क्षेत्र के डेटा का उपयोग सूचित निर्णय लेने, सामाजिक–आर्थिक परिवर्तन में तेजी लाने और देश में नवाचार को लोकतांत्रिक बनाने के लिए महत्वपूर्ण है। इस संदर्भ में, सार्वजनिक डेटा साझाकरण में विभिन्न बाधाओं को उजागर करें और डेटा के वास्तविक मूल्य को अनलॉक करने के लिए रणनीति सुझाएं। (15 अंक, 250 शब्द)

"DATA IS THE NEW OIL" ie data has the potential to revolutionise governance, technology and other things around us.

public sector data

- sensitive personal data
- community data
- public common data (non personal)

help in informed decision making
- evidence based decision making
  eg: Need for data on migrants
- effective decision making
- acts as a feedback to decision.

help in socio economic transformation
- targeted schemes for vulnerable
- better targeted health care.
  eg: Digital health stack
- reduce leakages and corruption.

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Democratizing innovation
- → to use data for health innovation
  - eg → COWIN, aarogyasetu ⇒ open platforms
- → Hackathons eg Atal Tinkering labs.
- → use of data for public welfare.

Bottlenecks

1. Data storage → huge infra required.
2. Data privacy → Privacy Bill shelved.
3. Indexing data to convert in usable form.
4. CAPITALIST data SURVILLENCE – ie using data to show similar results and advertisement everywhere
5. can be used to manipulate democratic process ⇒ eg: Cambridge analytica.
6. Cybersecurity threats.
   - eg ⇒ ISRO related info leak or attack on COVID-vaccine manufacture company.

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PRIYA RANI
(AIR 69, 2023)

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Strategies to unlock true value of data:

1. cryptography : to store data.
2. Enact strong data protection bill.
   (eg): EU's GDPR.
3. Encourage private sector to invest in data storage.
   (eg) ⇒ Data localisation will help domestic entrepreneurs.
4. Data on public platform for scientist to use
   (eg) ⇒ RAISE scheme.
5. WTO : India pushing to remove moratorium on e-transmission.
6. Developing local institute and capability.
   (eg): National AI mission, Quantum mission.

A country as huge as India has lots of data. It's time we respect this data availability and use it to fuel our 4th industrial revolution

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Question Interpretation
Content
Value Addition
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(13) Despite its vital role for the smooth functioning of the body politic, constitutional punctuality remains conspicuous by its absence. Discuss. (15 marks, 250 words)

राजनीतिक निकाय के सुचारु कामकाज में इसकी महत्वपूर्ण भूमिका के बावजूद, संवैधानिक समय की पाबंदी इसकी अनुपस्थिति के कारण स्पष्ट बनी हुई है। चर्चा कीजिए। (15 अंक, 250 शब्द)

Constitutional punctuality doctrine involves sticking to timelines and upholding the provisions of constitution in their spirit.

Vital role of constitutional punctuality

1. Resolving dispute between Centre & States in timely manner (Article 131)
2. Timely clearances for ease of doing business.
3. Faster adjudication leading to protection of rights of vulnerable e.g. Prolonged denial of bail to Umar Khalid

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Conspicuous absence of constitutional panctuality –

(1) Delays in taking action on recommendations of collegium by executive ⇒ leads to dead locks.

(2) Delay in passing of bills by govt creating development deficit eg. Governor of Telangana, NEET Bill in Tamil Nadu.

(3) Important federal cases not being heard on priority eg. J&K reorganisation case ⇒ erodes federal spirit.

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(4) Politicization of constitutional office

eg. No time limit for deciding defection cases by speaker ⇒ delay.

(5) Red tapism in bureaucracy leading to cost & time overruns.

(6) Judicial pendency ⇒ denial of justice - 4.5 crore pending cases.

Way forward -

(1) Principle of positive silence must be followed - deemed assent after deadline (2nd ARC).

(2) Increase in number of judges, reduce vacations - Malimath Committee.

(3) Reform laws & constitutional provisions to provide strict timelines eg for speaker in 10th schedule.

Proper & smooth functionality of polity requires strict adherence to timelines.

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17) Electoral bond was brought in as a reform that was high on intent but has proved to be low on substance. Do you agree? Justify. (15 marks, 250 words)

चुनावी बॉन्ड को एक ऐसे सुधार के रूप में लाया गया था, जिसका इरादा उच्च था, लेकिन यह कमतर साबित हुआ है। क्या आप सहमत हैं? औचित्य सिद्ध कीजिए। (15 अंक, 250 शब्द)

Electoral bond scheme was introduced in Finance Act, 2017 to clean up electoral funding.

Reform was high in intent →

(1) Curb use of money power & black money → purchase only through SBI → formalization of funding

(2) Protecting anonymity of donors → to prevent harassment & electoral profiling.

(3) KYC norms needed before purchasing ⇒ curbs illegal activities like money

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laundering.

(4) Requirement to file returns with ECI - how much money received by bonds ⇒ promote transparency.

(5) Timeline of 15 days to deposit ⇒ stop misuse from becoming parallel currency.

(6) Safeguard against fraudulent narrow outlook based parties eg. 1% vote requirement in last elections to become eligible.

Reform proved bcs on substance

(1) Eliminated ~~to~~ cap of 7.5% on corporate profit to be donated ⇒ leads to shell companies, crony capitalism.

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(2) Exemption under FCRA ⇒ foreign interference in elections possible.

(3) Favours the ruling party eg. 95% funds by electoral bonds to ruling BJP - ADR report.

(4) Further reduces transparency - ~~not~~ due to anonymity eg. 91% money in large denomination ⇒ corporate influence.

(5) Harassment of donor possible - details available with SBI - public sector bank.

(6) Hurts level playing field for parties.

Way forward
- National Electoral Fund to make donations
- State funding of elections - Indrajit Gupta committee
- Bring political parties under RTI
- Electoral bonds scheme needs reforms to keep election process free for

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TANUJ PATHAK
(AIR 72, 2023)

Q.5) While National Green Tribunal (NGT) has made immense contribution to protection of environment, various structural and functional issues have limited its effectiveness. Comment.

(10 marks, 150 words)

जबकि राष्ट्रीय हरित अधिकरण (एनजीटी) ने पर्यावरण की सुरक्षा में बहुत योगदान दिया है, फिर भी इसके विभिन्न संरचनात्मक और कार्यात्मक मुद्दों ने इसकी प्रभावशीलता को सीमित कर दिया है। टिप्पणी करें।

(10 अंक, 150 शब्द)

NGT was established by NGT act 2010 under article 323 (B) {formation of tribunals}.

Contribution of NGT in protection of Environment

(i) Increased environmental awareness in citizen.

(ii) about Articles 21 (R.T. Safe Environment), Art 48-A, Art 51 (A)(g) → duty to protect environment.

(iii) It has induced behavioral changes in society. (Eg) Recently NGT placed a hefty penalty of ₹ 40 crore over illegal construction.

(iii) **Polluter Pays principle** → (Eg) Extended producer liability for plastic as well as e-waste

(iv) **No fault liability** → even if the offender is slightly responsible for pollution,

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he has to pay for it.

Various issues in NGT →

(i) Structural Issues → Pendency (around 2300 pending cases)

→ NGT members are mostly selected from Indian Forest services. (lack of diversified jury)

(ii) Functional Issues → SC has recently criticised NGT for its mechanical approach in awarding of judgement.

↳ Dismissal – NGT straightaway dismissing cases.

↳ Disposal – Only saying that it will inform the relevant authorities

↳ Deregister the case and hearing it again

↳ Delegate to committees (wastage of taxpayers money) as excess committees are formed.

WAY forward →

* Need to diversify the members of NGT from multiple domains.
* Bringing Wildlife Protection Act under NGT due to adherence to ONE HEALTH APPROACH

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Q.15) The achievement of Sustainable Development Goals by 2030 can happen only if we consider local context and situations. In light of this statement, examine the critical role as well as capabilities of PRIs in meeting the SDGs. (15 marks, 250 words)

2030 तक सतत विकास लक्ष्यों की प्राप्ति तभी हो सकती है जब हम स्थानीय संदर्भ और स्थितियों पर विचार करें। इस कथन के आलोक में, एसडीजी को पूरा करने में पीआरआई अर्थात पंचायत प्रणाली की महत्वपूर्ण भूमिका के साथ-साथ उसकी क्षमताओं का परीक्षण करें। (15 अंक, 250 शब्द)

PRIs were established by 73rd Constitutional amendment 1992 as the third tier of Government.

PRI, function at ground level and uplift the doctrine of participatory democracy.

SDG goals are established by UNGA to achieve economic growth, environment sustainability and social justice.

They can only be achieved through localising SDGs :-

(i) Need to remove poverty at the ground level (More poverty in rural areas)

(ii) High prevalence of Hunger in Tribal areas which are rural areas.

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(iii) ~~Accordit~~ Lack of tertiary and secondary care in rural areas. Primary health care centres are also in poor conditions.

(iv) Around 30% illiteracy prevalent in rural areas of India.

Hence we need to resolve the issues related to Sustainable goals from the ground level itself.

ROLE AND Capabilities of PRIs in meeting SDGs

(i) Provide employment via MGNREGA, NRLM (SHGs) etc. This will increase income of households as well as reduce malnutrition. (SDG 1, 2)

(ii) Role of ASHA workers can be streamlined via PRIs to provide primary health care. (SDG 3)

(iii) PRIs can establish primary schools to provide good education. (SDG 4)

(iv) They can undertake outreach activities, eg to promote awareness about Gender equality

Kudumbashree is driven by PRIs, (SDG 5)
(Make women SHGs)

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(v) various missions like Jal jeevan mission, SBM, Atal Bhujal Mission ~~provide~~ utilises PRIs to provide clean water & sanitation at rural areas (SDG 6)

(vi) Under PESA 1992, FRA 2006, Gram Sabhas are given powers to conserve forest. They can play a big role in reducing deforestation.

(vii) By giving women, SC/ST reservation PRI tries to remove the prevalent inequalities (SDG 10).

Concerns →
- funds (lack of funds, grants-in-aid)
- functions of Parastatal bodies (bureaucracy dominance over PRI)
- functionaries (corruption, Proxy representation)

Manishankar Aiyangar committee has recommended to provide adequate devolution of power to PRIs under Art 40 and schedule 11.

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Q.19) Rather than seeing it as a replacement for SAARC, BIMSTEC must be appreciated for its critical role as a bridge between South Asia and ASEAN. Analyze. (15 marks, 250 words)

सार्क के प्रतिस्थापन के रूप में देखने के बजाय, बिम्सटेक को दक्षिण एशिया और आसियान के बीच एक सेतु के रूप में महत्वपूर्ण भूमिका के लिए सराहा जाना चाहिए। विश्लेषण करें। (15 अंक, 250 शब्द)

~~Recently, BIMSTEC finalised its charter.~~

BIMSTEC is a grouping of countries in the Bay of Bengal region.

It was established in 1997 as BIST and after coming of Myanmar, Nepal and Bhutan was renamed as BIMSTEC.

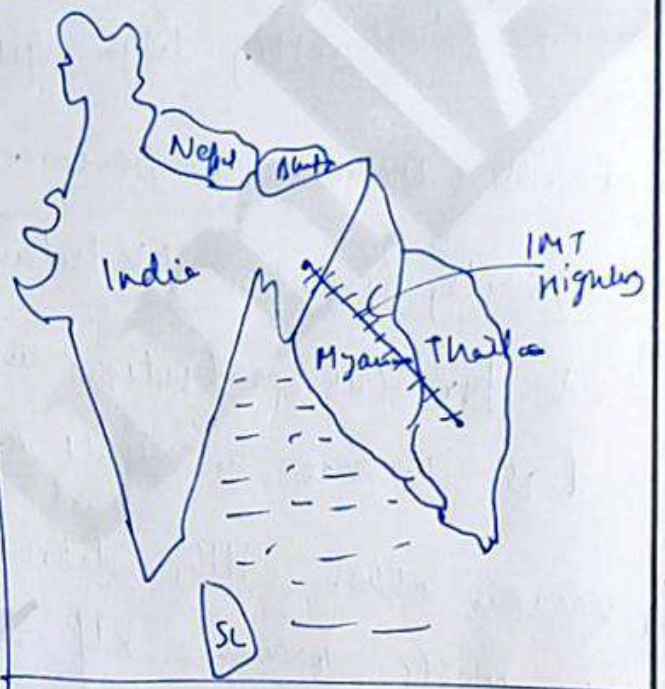

Fig → BIMSTEC countries

BIMSTEC is seen as a replacement of SAARC because

(i) SAARC has been dis functional due to bilateral issues between India – Pak

(ii) It contains all South asian countries except Maldives and Pakistan.

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(iii) can Provide alternate FTA between South Asian countries.

(iv) Can replace SAARC in achieving South Asian energy security.

due to all these reasons it is seen as replacement of SAARC.

BIMSTEC as a bridge between South Asia and ASEAN

(i) It is gateway to ASEAN countries for India (as presence of Myanmar & Thailand)

(ii) Boost connectivity for India ((Eg) IMT trilateral highway, Kaladan Multimodal project)

(iii) Will result in development of North east India (due to development in Infrastructure)

(iv) Provide energy security to India (as presence of oil & Gas at Rakhine Coast of Myanmar)

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(v) Help in securing Maritime security for India in IOR region.
with ASEAN and BIMSTEC India can focus on Maritime security of Indo-Pacific.

(vi) Better defence relationship with ASEAN due to push by Thailand.

(vii) foster better People-2-people relation between South India and ASEAN countries.
(Eg) Two Indian origin PM in Singapore
(Eg) SR Nathan.

Challenges
- Role of China (BRI accepted by all except Bhutan)
- Unsolved issues between Bangladesh and Myanmar (Rohingya crises.
- India seen as a ~~the~~ local Hegemon

Way forward
- Need to sign an FTA between BIMSTEC countries.
- Need to foster ~~between~~ better people-2-people connect.

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ROHIT TYAGI (AIR 74, 2023)

Q.8) Absence of a robust social infrastructure in the country may become one of the most significant challenges in achieving a developed status by 2047. Discuss. (10 marks, 150 words)

देश में एक मजबूत सामाजिक बुनियादी ढांचे की अनुपस्थिति 2047 तक विकसित स्थिति प्राप्त करने में सबसे महत्वपूर्ण चुनौतियों में से एक बन सकती है। चर्चा कीजिए। (10 अंक, 150 शब्द)

Social infrastructure refers to the inter-community connections and the institutions which help the empowerment of the human resource.

Reasons for absence of social infrastructure

1. Poor human resource skilling.
2. Poor expenditure on education and research
   - Eg only 2% on education.
3. Poor conditions of community hospitals are a threat to human capital. ⇒ Increase in disease prevalence.
4. Low economic growth → Low employment
   - Eg 22% unemployment.

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ROHIT TYAGI
(AIR 74, 2023)

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Challenges due to poor social infra

1. Unable to perform and utilize the high demographic dividend.
2. Low human development leading high social distress and unemployment.
3. Resource utilization can be poor due low skilled persons available
4. Poor economy and poor institutional development

Way Ahead:

1. Investing on human resource development.
   - Eg MSME training, PMSVANidhi, PM KISAN, Eklavya schools etc
2. Increasing Research and Development.
   - Eg National Research Framework (₹6000 crore)
3. Fulfilling the digitilization Eg Digital India, BharatNet, Make in India, AtmaNirbhar Bharat.

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ROHIT TYAGI
(AIR 74, 2023)

Q.14) Critically analyse the role of National Commission for Women (NCW) in wake of its mandate to safeguard women's rights and uphold their socio-economic wellbeing.
(15 marks, 250 words)

महिलाओं के अधिकारों की रक्षा और उनकी सामाजिक–आर्थिक भलाई को बनाए रखने के लिए राष्ट्रीय महिला आयोग (एनसीडब्ल्यू) की भूमिका का आलोचनात्मक विश्लेषण कीजिए। (15 अंक, 250 शब्द)

National Commission for Women (NCW) is a statutory body which ensures the rights of women are safeguarded and their socio-economic wellbeing is ensured.

Role of NCW in safeguarding women's rights and upholding their socio-economic wellbeing

1. Keeping a check on instances of women's rights being taken away.
2. Ensuring that every women of the country gets equitable & access to the government services and public areas.
3. Strengthening of women led development at the local levels to provide for opportunities to the unprivileged women.

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ROHIT TYAGI
(AIR 74, 2023)

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(4) Providing for several initiatives to promote inclusive development and distribution of o resources.

(5) Suo-moto registering cases of women rights being abridged.

Issues with NCW and its working

(1) Instances like Manipur where two women were paraded naked proves the NCW's working to be ineffective.

(2) The commission is non-constitutional body, hence, the execution of its functions are inefficient.

(3) Decentralisation is too lacking the fulfillment of women right. Eg Delhi – a senior women commission officer is booked for raping a minor

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(4) Minimal instances of suo-moto registering of cases are seen. Often, the judiciary has to push the commission to intervene.

(5) Low funds are also one of the reasons for inefficient working.

Way Ahead

(1) Making NCW a constitutional body on the lines of NCSC, NCST & NCBC.

(2) Funding to NCW should be increased so that manpower at grassroot level can be increased and made effective.

(3) Digital tracking and monitoring of public safety of women must be brought in.

(4) ~~Jud~~. Judicial members can be increased in the commission along with social workers.

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ROHIT TYAGI
(AIR 74, 2023)

Q.20) How do ASEAN centrality, rules-based order, and development partnership with Pacific Island states make Indo-Pacific a theatre of opportunity for India? What are the hurdles in realisation of an inclusive Indo-Pacific construct? (15 marks, 250 words)

प्रशांत द्वीप देशों के साथ आसियान केंद्रीयता, नियम-आधारित व्यवस्था और विकास साझेदारी हिंद-प्रशांत को भारत के लिए अवसर का मंच कैसे बनाती है? एक समावेशी हिंद-प्रशांत निर्माण की प्राप्ति में क्या बाधाएं हैं? (15 अंक, 250 शब्द)

Indo-Pacific, in the recent times, has been in the geopolitical scenario mainly for two reasons- one, Chinese hegemony of territorial expansion and second, USA's counter to curb the Chinese doings.

India's approach:

① ASEAN centrality: Engaging with ASEAN will ensure an inclusive and diplomatic multi-dimensional handling of the situation.

② Rules-based order: Reiterating the clauses of UN like UNCLOS, High Sea treaty

③ Pacific islands: Pacific islands are crucial as they provide geopolitical strategic

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locations in the region along with the ages old cultural connect of indegenious cultures and economy.

(4) Supporting the initiatives of regional powers: India's assistance to Vietnam and Philippines keeps a check on the balance of power in the region.

(5) Respect for territorial integrity: India follows the international conventions and follows the process of Rules Based Order.

(6) Economic ~~ties~~ ties with Taiwan: Foxcon investments for India Semiconductor Mission.

Challenges / Hurdles in Inclusive Indo-Pacific construct:

(1) Presence of ~~the~~ global superpowers makes it a hotbed for conflicts.

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② Issues of conflicts around the Taiwan prove to be destructive for the global supply chains and semiconductor industry.

③ Militarisation & initiatives like AUKUS nuclear submarine deals trigger further conflicts.

④ China's territorial expansion still persists and Rules-based order is not followed.

⑤ Sea lines of communications are present in the crucial waters of Indo-Pacific.

Way Ahead

- Inclusive Development of Supply Chains
- Rules Based Order
- Diplomacy with ASEAN
- Pacific Island engagement
- Upgrading naval strength.

Indo-Pacific is crucial for India w.r.t. economic, maritime security, climate resilience, geopolitical, etc. Hence its stability is the priority for India.

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Q.11) Referring to the case laws through which the collegium system in India evolved, critically assess its functioning. (15 marks, 250 words)

उन केस कानूनों का उल्लेख करते हुए जिनके माध्यम से भारत में कॉलेजियम प्रणाली विकसित हुई, इसकी कार्यप्रणाली का आलोचनात्मक मूल्यांकन कीजिए। (15 अंक, 250 शब्द)

Collegium system is a system formed to streamline appointment process of judges of higher judiciary.

Original constitution mechanism in constitution

→ President to appoint Chief Justice of India and other judges in consultation with the judges of SC and HC as prescribed.

→ Similar process for HC judges.

Evolution of collegium system

(1) First judge case - [1982]
- consultation does not mean concurrence.
- SC judges can only give advise
- ultimate power of appointment lies with President

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② Second judge cases-
- consultation = concurrence
- establish collegium system- consist of CJI + 2 senior most judges.

③ Third judge case - [1993]
- expand collegium system -
CJI + 4 senior most judges

④ NJAC verdict [2016]
- Judicial independence basic feature
- uphold validity of collegium system.

Assessment of collegium system

Issues

① Virtual rewriting of constitution-
- constitution envisioned primacy of CJI view but not concurrence.

② Lack time and resource-
- delay in appointment

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③ several appointment turned out to be erroneous.

④ Justice Verma - principle writer of verdict
→ collegium system has been a failure.

⑤ No where in the world judiciary has such monopoly over appointment process

⑥ Violate federalism -
- no role for HC judges in appointment

⑦ Opaqueness - no criteria prescribed for appointment

Positives
→ Ensure judicial independence
→ Prevent political appointment
→ decision making by majority
→ good appointment through process

Way forward

① Recording of minutes of collegium proceeding
② Transparency in criteria, standard.
③ separate department to review application

Government and Judiciary need to sign MOU on appointment process to balance both judicial independence and constitutional supremacy.

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Q17) Electoral bond was brought in as a reform that was high on intent but has proved to be low on substance. Do you agree? Justify.
(15 marks, 250 words)

चुनावी बॉन्ड को एक ऐसे सुधार के रूप में लाया गया था, जिसका इरादा उच्च था, लेकिन यह कमतर साबित हुआ है। क्या आप सहमत हैं? औचित्य सिद्ध कीजिए।
(15 अंक, 250 शब्द)

To address the growing menace of use of black money in elections, electoral bonds were brought in.

Electoral bond
- → bearer bond issued to political parties
- → eligibility → 1% vote in last LS or state election
- → denomination 1 lakh, 1 crore

Intent
- → curb use of black money
  - ↓
  - ensure free & fair election
- → also reduce dependence on criminal politicians.
- → promote transparency in political funding
- → address problem of register recognised parties set-up only for tax-evasion purpose.

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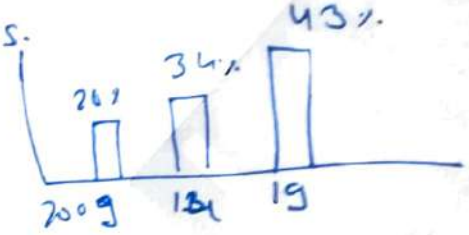
Poor effectiveness

① 2019 general election -

ADR : 55000 crore spent.

② Criminalisation of politics.
→ not reduced.



③ electoral bond - exempted from disclosure to Election Commission.

④ Dominance of big donors.

a) bond of denomination of 1 crore a/c for 99% of funding

i) > 80% come from metro cities.

⑤ 2019 > 93% bond issued to ruling party

⑥ Foreign funding → to influencing political parties

⑦ 7.5% cap removed on corporates -

↳ fly by night shell companies to donate money

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(8) does not address quid-pro-quo funding.

(9) Anonymity of donors-

- violate citizen right to information [Article 19]

~~OR~~ Success

(1) move towards cashless funding.

(2) non-serious political parties - funding declined.

(3) Improved inner-party democracy.

(4) Anonymity- protect donors from harassment

(5) Suo-moto disclosure by parties.

To further improve its effectiveness some changes needed to be made like cap on corporate donation, information on donors as suggested by ECI.

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AKSHAY DOSHI
(AIR 75, 2023)

Q.8) The criminal justice system has made the process itself a punishment leading to the prolonged incarceration of undertrials. Highlighting the reasons for the large number of undertrial prisoners, examine the desirability of a dedicated bail law.

(10 marks, 150 words)

आपराधिक न्याय प्रणाली ने प्रक्रिया को ही अपने आप में एक सजा बना दिया है जिसके कारण विचाराधीन कैदियों को लंबे समय तक जेल में रहना पड़ता है। विचाराधीन कैदियों की बड़ी संख्या के कारणों पर प्रकाश डालते हुए एक समर्पित जमानत कानून की वांछनीयता का परीक्षण करें।

(10 अंक, 150 शब्द)

As per the 'State of Prison' Report 2019, 68% of inmates are Undertrials. many of them served more than half of imprisonment, if convicted.

Criminal justicesystem itself as punishment

① Huge pendency of cases

② Large number vacancy
- eg India only has 137 police personnel per lakh population (UN - 222/Lakh)

② Long vacation in the courts
- eg 4 crore cases are pending
- eg many cases take more than years

④ Lack of digitisation in criminal justice syst

⑤ Complex laws → overlapping punishment

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Reason for large number of Undertrials

- Lethargic attitude by the prison personnel
- Long hearing in the cases
- Appeal system

Disirability of a dedicated bail law

YES

1. Jail is exception, bail is the norm. — Supreme court
2. should be granted in the non cognizable, civil cases
3. comprehensive law will cater the gravity of offence
4. Uniformity and accountability in the criminal justice system

NO

1. Already present anticipatory bail norm provision
2. Bails are granted by the courts
3. Complexity of the crimes

A comprehensive, humanistic bail law can de-burden the prison and Undertrials

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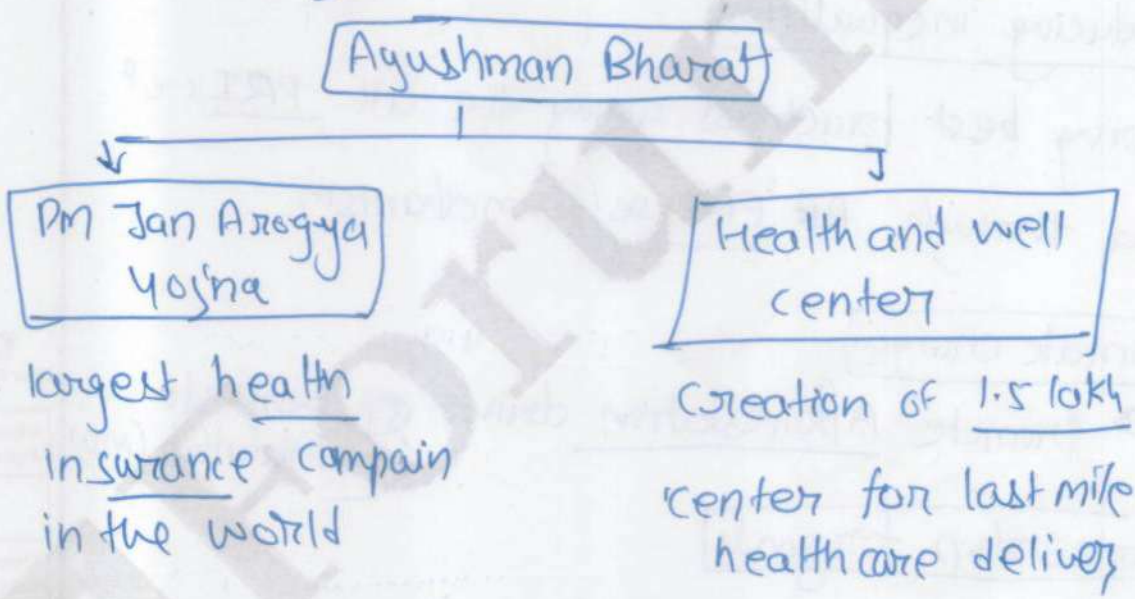
Q.16) Ayushman Bharat is a revolutionary intervention but falls short of recognizing the right to health as a universal basic right. In this perspective, discuss the need for and impediments in ensuring the right to health for all in the country. (15 marks, 250 words)

आयुष्मान भारत एक क्रांतिकारी हस्तक्षेप है, लेकिन स्वास्थ्य के अधिकार को एक सार्वभौमिक बुनियादी अधिकार के रूप में मान्यता देने में विफल है। इस परिप्रेक्ष्य में, देश में सभी के लिए स्वास्थ्य का अधिकार सुनिश्चित करने की आवश्यकता और उसमें निहित बाधाओं पर चर्चा करें। (15 अंक, 250 शब्द)

Ayushman Bharat is the revolutionary intervention started in 2018 to achieve the Health for all under SDG-3 (Good Health and well being).



Fall short in recognizing the Right to health as basic Universal right

① Primary health care is not insured

② only family under SECC-2011 was included

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③ It is targeted not universal
↳ benefit to 50 crore person in India

④ lack of funding mechanism
↳ implementation issue

⑤ Inclusion-exclusion challenges

Need for right to health for all in the country

① High disease burden - country is facing
Syndemic ← malnutrition
obesity
poverty

② High out of pocket expenditure – 62%.

③ Regional disparity in availability
(q) 2/3 doctors are in urban area catering to 1/3 population only

④ Affordability: out of reach from many poor people. Need public expenditure

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(5) Availability of doctors and Nurses in rural areas

(6) Health is pregrequisite for productiv and happy life

(7) India is signatory of ottawa declarahon for "Health for all"

(8) Under fundamental Right 21

Steps needed

(1) Reforms in National Health policy 2017

(2) Enhancement the cadre of ASHA

(3) Improve and wide the reach of telemedicine

(eg) e-sanjeevani may became boon

(4) Concept of Decentralised health

(5) "One Health" can achieve the target of Universal healty for all

(6) Awarness abaut the good healty practices

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Q.6) Anti-defection law has failed to address and resolve the evil of political defection satisfactorily. Discuss various issues surrounding the Anti-defection law and recommend some corrective measures.
(10 marks, 150 words)

दल–बदल विरोधी कानून राजनीतिक दल–बदल की बुराई को संतोषजनक ढंग से संबोधित करने और हल करने में विफल रहा है। दल–बदल विरोधी कानून से जुड़े विभिन्न मुद्दों पर चर्चा कीजिए और कुछ सुधारात्मक उपायों की सिफारिश कीजिए।
(10 अंक, 150 शब्द)

Anti-Defection Law arose from the 52nd Constitutional Amendment & the 86th CAA in the Tenth Schedule of the Constitution

Issues surrounding Anti-Defection Law:

1) Partisan role of speaker in deciding Anti-Defection cases Eg: Manipur speaker.

2) Inability of Speaker to act as a Tribunal Eg: Nabam Rebia

3) No time limit proposed to decide on Disqualifications Eg: TN speaker kept in abeyance for 3 year

4) Anti-Defection law applies to independents joining a political party but does not apply to nominated members within 6 months

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5) Inability to recognize original political party
Eg: Shiv Sena split

6) Not Applicable in elections to Rajya Sabha.

7) Anti-Defection law not applicable if candidate is removed by political party
Eg: ADMK MP Sasikala Pushpa.

Corrective Measures:

1) Strengthening of Anti-Defection Law by stricter legislations

2) Removal of bias between nominated & independents

3) Constitution of tribunal instead of Speaker.

4) Referral of cases to President or Vice-President instead of Speaker

5) Constitution of a time frame of 6 months to decide cases (Manipur Speaker case - Hon'ble SC)

Thus based on the Venkatachaliah Cmtee recommendations, Anti-Defection law must be amended to ensure its purpose. (NCRWC)

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Q.13) Despite its vital role for the smooth functioning of the body politic, constitutional punctuality remains conspicuous by its absence. Discuss. (15 marks, 250 words)

राजनीतिक निकाय के सुचारु कामकाज में इसकी महत्वपूर्ण भूमिका के बावजूद, संवैधानिक समय की पाबंदी इसकी अनुपस्थिति के कारण स्पष्ट बनी हुई है। चर्चा कीजिए। (15 अंक, 250 शब्द)

Constitutional Punctuality refers to the time-bound execution & legislation of laws by constitutional authorities.

Vital role for smooth functioning:

1) President needs to accord sanction & approval to bills passed by the Parliament

2) Bills passed by one house need to be passed by the other house within 6 months

3) Prevents lackadaisical approach of Constitutional authorities

4) Timely resolution of complaints & disputes by the Chair of the Houses - Speaker & Vice-President

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5) Timely resolution & deliberation on laws by Parliamentary Committees.

Remains Conspicuous by Absence:

1) Speakers do not have time limit to decide on Anti-Defection cases

Eg: Manipur case by Speaker

2) President taking unlimited time on deciding mercy petition of death row convicts

Eg: Perarivalan Case in Rajiv Gandhi murder

3) Resorting to Ordinance Route

Eg: Kerala Govt. resorted to 141 Ordinances

4) Fast passing of bills without appropriate deliberation

Eg: Farm Bills

5) Wrong passing of bills Eg: Aadhar Act as money bill

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b) Pendency of cases in Constitutional courts

Eg: 4.4 crore cases pending as per Nat. Judicial Data Grid

7) Lack of timely addressal of complaints by tribunals under Art 323A, B

8) Time limit of 1 year on complaints to National Human Rights Commission (Ahmadi Cmtee) & 7 years on Lokpal

Thus, Constitutional Policy making should ensure punctuality for effective law making & speedy disposal of justice under Art 21 of Constitution.

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Q.7) Decriminalization of homosexuality by the SC in Navtej Singh Jauhar case remains a task half done, specially without the socio-political sensitisation about the issues faced by LGBTQIA+ community. Elaborate in light of ongoing debates on same sex marriage. (10 marks, 150 words)

नवतेज सिंह जौहर मामले में सुप्रीम कोर्ट द्वारा समलैंगिकता को अपराध की श्रेणी से बाहर करना अभी भी आधा अधूरा काम है, खासकर LGBTQIA+ समुदाय के सामने आने वाले मुद्दों के बारे में सामाजिक–राजनीतिक संवेदनशीलता के बिना। समलैंगिक विवाह पर चल रही बहस के आलोक में सविस्तार पूर्वक वर्णन कीजिए। (10 अंक, 150 शब्द)

In the Navtej Johar case, the SC decriminalized homosexuality. However there is lack of sensitisation in LGBTIQIA + community.

LACK OF SOCIO-POLITICO SENSITISATION

(1) IHDS survey showed 40% of Indians unaware of difference → Intersex, Transgender

(2) various rights are not actualized → Right to Movement, Right to Reside in any part, Right to Employment

(3) with lack of sensitisation they remain underrepresented in workplaces and shunned by landlords.

CONTEXT ON DEBATE OF SAME SEX MARRIAGE :-

(*) Issues faced by same sex couples → Political, Social, Legal, Economic

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(1) Legal Debate of same sex Marriage:-

Pro Same Sex Marriage

- no legal recognition in Special Marriage Act
- cannot legally be called Spouse for benefits

Those Against same sex marriage say:-

- no culturally sanctioned
- will destabilise marriage

(2) Social Debates of same sex marriage:-

PRO

- cannot sign forms in hospitals as "SPOUSE"; are called "FRIENDS"
- no legal recognition of adopted children.

Against

Due to Lack of sensitisation

"same sex families" are not accepted

(3) Economic debates → PRO: cannot make joint funds

→ Against:- rights accrue to man & women

Currently, the case is in court, however as per Shafin Jahan case - Right to choose partner is fundamental Right and sensitisation is needed

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Q.11) Referring to the case laws through which the collegium system in India evolved, critically assess its functioning.
(15 marks, 250 words)

उन केस कानूनों का उल्लेख करते हुए जिनके माध्यम से भारत में कॉलेजियम प्रणाली विकसित हुई, इसकी कार्यप्रणाली का आलोचनात्मक मूल्यांकन कीजिए।
(15 अंक, 250 शब्द)

Collegium System is a Judicial Interpret-ation of [Articles 124, 217] of the Indian Constitution. There is CONSTITUT-IONAL SILENCE on exact appointment method.

Case Laws :-

- 1st Judges Case
  - concurrence ≠ (is NOT) consultation
- 2nd Judges Case
  - concurrence is consultation & collegium comes
- 3rd Judges Case
  - Expansion of collegium
- NJAC 2015
  - struck down

Functioning of collegium :-

CONCERNS IN FUNCTIONING :-

(1) Allegations of favoritism and nepotism
↳ ONLY IN INDIA = "JUDGES APPOINT JUDGES"

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(2) Popularly called "Uncle Judge Syndrome".

(3) No clear criteria for selection.

(4) Opaque process with no accountability from public.

(5) Lack of representation of minorities

[Eg] 5.1) Only (12%) women in SCourt

5.2) Only (3) times have all-women benches been formed

5.3) only in (2027) will we get female CJI

(6) Strikes at root of meritocracy.

However there is an argument for it to be necessary:-

(1) In Past (from 1960s-1980s)
Executive ~~USSR~~ USURPED
- Judicial appointments
- led to court packing
- committed Judiciary.

(2) Judicial independence is the bedrock

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of our constitution. (said in NJAC case)

(3) (46%) of cases, government is the litigant ⇒ so CONFLICT OF INTEREST

(4) separation of Power and Constitutionalism is needed.

5) In 2023 the CJI released new guidelines publically:-

5.1) Meritocracy and past judgements will be key factor

5.2) Quality of judgements will be adjudged by all

5.3) attention to representation of minorities

[Way forward] while collegium is a necessity - it has to become

transparent ↓ accountable ↘ responsible public

Meetings and Notes can be made public. The members can be brought under RTI to reduce undue influence.

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Q.18) The profound impact of the data revolution and widespread smartphone usage has necessitated the use of digital tools in welfare programmes. Discuss. (15 marks, 250 words)

डेटा क्रांति और व्यापक स्मार्टफोन उपयोग के गहरे प्रभाव ने कल्याण कार्यक्रमों में डिजिटल उपकरणों के उपयोग को आवश्यक बना दिया है। चर्चा कीजिए। (15 अंक, 250 शब्द)

India's digital and data economy grew 2.4 times, India economy [Economic Survey]. This was driven by Data revolution and smartphone usage.

Rising Smartphone usage :-

(1) Mckinsey Report said
- India has one of largest smart phone users.
- It will reach 700 million in 2026
- Driven by rural growth

(2) Consumption and manufacturing hub for smartphones.

Data Revolution :-

(1) India has one of cheapest data rates

(2) 760 million internet users in ~~2036~~ 2026.

(3) Economic Survey said :-

In 2010 only (37%) of population had online banking

NOW

23000 transactions/second on UPI

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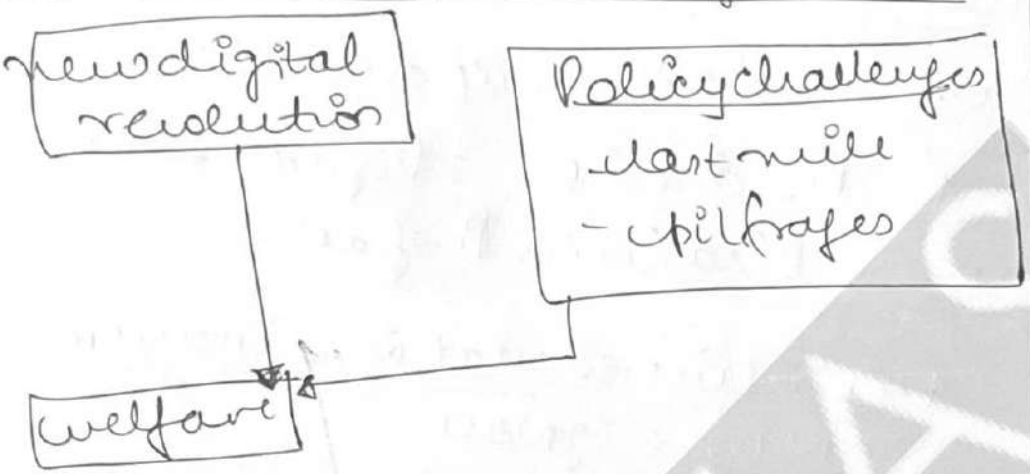
This has necessitated new digital tools.



This can be seen in :-

(1) DBT, Aadhar, JAM Trinity [has ensured TARGETED WELFARE]

(2) e-Rupi / voucher based intervention in areas with not internet

(3) Health interventions :-

3.1) diagnosis : Ayushman Bharat Digital Health Mission,

3.2) checkup : telemanas, e-Sanjeevani, telemedicine.

3.3) insurance : Ayushman Bharat PM-Jan Aarogya Yojana.

3.4) Mental health : Manodarpan

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④ **Education** :- New Education Policy also talks of using digital tools :-

4.1) AI driven : Digital India Bhashini Program

4.2) Online education : Swayam, NDOCS, ignou

4.3) teacher training : DIKSHA platform

⑤ **Agricultural** :- e-technical aid of farmers : CHAMAN, PASAL, eNAM

⑥ **Manufacturing and skilling**

6.1) One stop centre : UDYOG Portal

6.2) skilling tool : Aseem

Yet, some issue remain :- Digital divide, infrastructure deficit, knowledge gap.

On present neoliberal paradigm, technology has become indispensible. Thus it should be value based and then seemlessly integrated into welfare programmes. "The mark of innovative governance is how the vulnerable are taken into its fold."

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Q.2) The electoral process, though inclusionary in theory, has been pointed out for exclusionary tendencies in practice. Analyse, with special emphasis on role of women in India's representative electoral system. (10 marks, 150 words)

चुनावी प्रक्रिया, यद्यपि सिद्धांत रूप में समावेशी है, व्यवहार में बहिष्करणीय प्रवृत्तियों की ओर इंगित किया गया है। भारत की प्रतिनिधिक चुनावी प्रणाली में महिलाओं की भूमिका पर विशेष जोर देते हुए विश्लेषण कीजिए। (10 अंक, 150 शब्द)

India was one of the first nations to allow for Universal Adult franchise under Article 324 making it all-inclusive.

Exclusionary tendencies

① Under-representation of marginalized committees
For eg - No transgender representation in Parliament

② caste based divisiveness - vote bank politics
For eg - Parties like Bahujan samaj party

③ Money and muscle power - favours better off (Poor Indians, rich parliamentarians)
For eg - Approx 80% MPs are crorepatis.

④ Lack of proxy voting for migrants and non-resident indians.
(excludes ~~fund~~ constitutional right to vote)

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(5) Role of women

In theory

- Universal voting rights above 18 years (61st CAA)
- 1/3 reservation in panchayat and municipalities (73rd & 74th CAA)

In practice

- Lower voter turnout amongst women
- problem of sarpanch-pati and pradhan-pati
- under-representation in Parliament (14% in LS and 11% in Rajya Sabha)
- inability to pass Women Reservation Bill

Way Forward

- Ban on practice of sarpanch pati (Eg. in Punjab)
- Intra-party democracy
- Passage of women reservation bill
- Reservation in political parties
- Dual member constituency – man + female

For India to usher in the Amrit Kaal, an inclusive democracy is Key.

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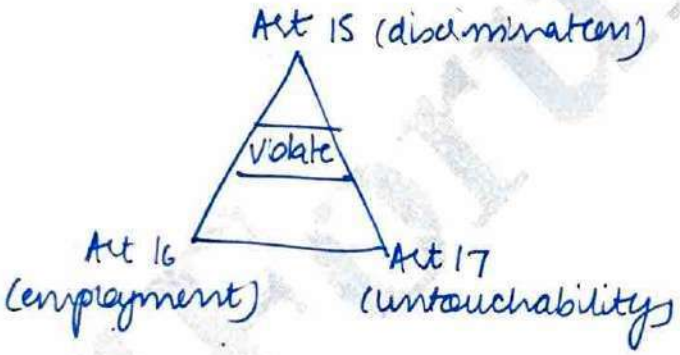
Q.18) Legislation like Scheduled Caste and Scheduled Tribe (Prevention of Atrocities) Act 1989 remains mere legal documents without intense sensitization of public functionaries and the civil society. Discuss. (15 marks, 250 words)

अनुसूचित जाति और अनुसूचित जनजाति (अत्याचार निवारण) अधिनियम, 1989 जैसे कानून सार्वजनिक पदाधिकारियों और नागरिक समाज की गहन संवेदनशीलता के बिना केवल कानूनी दस्तावेज बनकर रह गए हैं। चर्चा कीजिए। (15 अंक, 250 शब्द)

Article 42 of DPSP enables the government to work towards upliftment of SC and ST, and in this light, Prevention of Atrocities Act (POAA) was passed.

Remains mere legal document

① Violation of Fundamental Rights



② Increasing crime rate against SC/ST
(NCRB - crime against dalit committed every 20 minutes)

③ SC in Subhash Mahajan case. highlighted that act is used to perpetuate crime rather than curb.

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-frivolous complaints

(4) Low conviction rate - approximately 25%. (NCRB)

(5) Ineffective functioning of NCSC and NCST (Art 338 and Art 338A)

Eg - no role in dalit boy suicide in IIT-B

- NCST meeting not convened once between 2016-2020.

(6) Under-representation in mainstream (literacy among tribals only ~40%) — unable to raise voice

Way forward

Sensitization of public functionaries

- effective functioning of NCSC and NCST - fulfill role as constitutional bodies
- bureaucratic approach reengineering - autocratic to approachable
- sensitivity of police to tackle crime - prevent mob lynchings (Eg - palghar)

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↳ suo moto working of functionaries
(eg - NCST took appraisal of burning of tribal woman in Gurugram)

civil society

- ↳ spread awareness amongst community for their rights
- ↳ influence policy making – implementation of FRA in letter & spirit
- ↳ involvement of active citizenry to work for their cause
- ↳ behavioral change through nukkad naatak, mainstreaming

Government schemes of reservation in PRIs, VC funding, Standup India. needs to be implemented in letter and spirit.

SDG16 of peace & social justice needs to be the guiding light

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Q.1) Basic structure doctrine has prevented the Parliament, a creature of the constitution, from becoming the master of the constitution. Discuss this statement with the help of relevant case laws.
(10 marks, 150 words)

बुनियादी संरचना सिद्धांत, संविधान का सृजन, ने संसद को संविधान का स्वामी बनने से रोक दिया है। प्रासंगिक केस कानूनों की मदद से इस कथन पर चर्चा कीजिए।
(10 अंक, 150 शब्द)

The year 2023 marks 50 years from the landmark Kesavnanda Bharti judgement, which gave birth to the Basic Structure Doctrine.

Role of Basic Structure doctrine

(1) Acts as checks and balances on legislative and executive action.

For eg - In Indira Gandhi case, SC held the 39th CAA (prime minister election out of judicial review) invalid.

(2) Establishes concept of Judicial Review
It helps SC fulfill role of protection of citizen rights.

For eg - SC struck down NJAC Bill for interference with judicial independence.

(3) Protection from totalitarian tendencies of Parliament.

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For eg - Minerva Mills case enabled judicial review of passage of National emergency.

④ It upholds constitutional values of secularism, federalism (Bommai case)

⑤ Balance between individual and collective rights (Eg - Indira Sawhney judgement)

⑥ Established constitutional supremacy over parliamentary supremacy.
(For eg - IR Coelho case paves for judicial review of IX schedule)

Challenges

- vague doctrine
- leads to judicial tyranny
- Not recognized in constitution
- Breaks separation of powers

Nevertheless, the foundation of constitutionalism is a constitution limited by law. Absolute power corrupts absolutely.

But SC should use its powers in recognition of people's mandates.

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Q.16) Reforming the education infrastructure through digital interventions is a progressive step, but it has its limitations too. Comment. (15 marks, 250 words)

डिजिटल हस्तक्षेप के माध्यम से शिक्षा के बुनियादी ढांचे में सुधार एक प्रगतिशील कदम है, लेकिन इसकी अपनी सीमाएं भी हैं। टिप्पणी कीजिए। (15 अंक, 250 शब्द)

The covid pandemic has brought in the use of digital interventions in educational infrastructure, and it is here to stay.

Benefits of Digital interventions

1. Access to quality education in every nook and corner
   for eg - MOOCS can be accessed everywhere.

2. enables inclusion of marginalized groups - women, tribals, transgenders : don't access physical classrooms

3. enables adult learning through flexibility as per choice

4. Leads to internationalisation of education - No boundaries between countries in digital space.
   Eg - courses by stanford and Harvard

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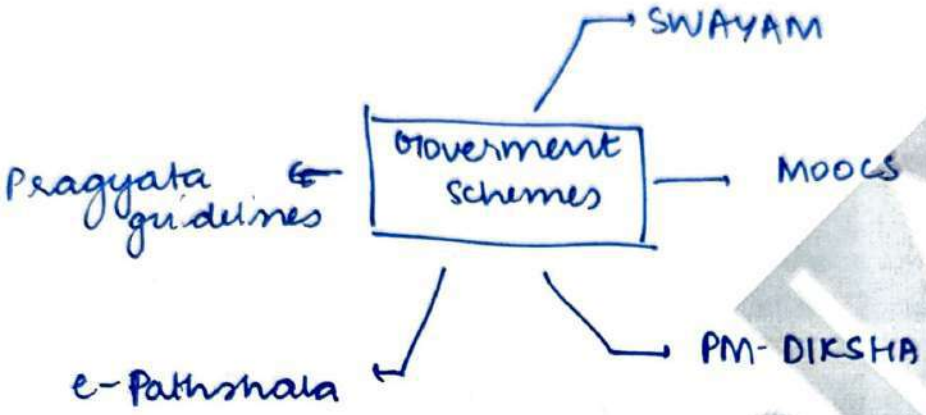
(3) Ensures innovative and personalized learning
Eg - use of AI in education can give better evaluation of performance



Limitations of digital interventions

(1) exacerbates inequalities
- By gender - only 40% females have mobile phone access
- By urban-rural divide - Internet penetration in rural areas < 40%.

(2) Increased screen time for children
Brings associated problems of digital addiction

(3) Loss of social development due to lack of personal interactions

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④ limited check on quality of such education
Eg - Low enrolment in MOOCs, fake online courses

⑤ monopolised by private players for profit motive.
Eg - Byjus, Unacademy

Way Forward

① Need to focus on hybrid model to take advantage of both

② Ensure internet penetration in rural areas (Bharat Net)

③ Form a regulatory body for ~~big~~ digital education to keep check on quality.

④ sensitisation of parents to keep a check on child's online activities

For India@75 to become a Vishwa Guru, the future of classrooms need to be secure.

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Q.20) India–US relationship is a strategic partnership based on convergence of interests and shared value; a partnership, mature enough to accommodate divergence in worldview of both the countries. Discuss. (15 marks, 250 words)

भारत–अमेरिका संबंध हितों और साझा मूल्य के अभिसरण पर आधारित एक रणनीतिक साझेदारी है; एक साझेदारी, जो दोनों देशों के विश्वदृष्टि में विचलन को समायोजित करने के लिए पर्याप्त परिपक्व है। चर्चा करें। (15 अंक, 250 शब्द)

India - US ties are built on a strong foundation of political, economic and strategic relation.

Strategic Partnership

① Economically -
- India : US is the largest trading partner for India after china
- 2nd largest export market for India - follows a trade surplus.

② Politically,
- Indian diaspora holding key positions
  Eg - Kamala Harris : Vice President
- US support for permanent membership of India at UNSC

③ Culturally,
- Howdy Modi event and Namaste Trump event
- Largest community of ISKON outside India

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④ Strategically,

- India part of US-initiated IPEF, Quad grouping, G20, ASEAN+6.
- USA supportive of India's dehyphenised policy in Russia-Ukraine war

⑤ Military,

- signing of four foundation agreements on military-logistics, resources, GPS
- combined exercises - QUAD,

⑥ Other,

- space agencies - NASA + ISRO - NISAR mission
- Largest Indian diaspora in USA - 2nd largest flow of remittance after UAE
-

Nevertheless, challenges emerge

① India not part of 11-nation US led mineral Alliance formed recently

② AUKUS in clash with Quad - US' intentions not clear.

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GARIMA MUNDRA
(AIR 80, 2023)

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(3) Fiasco on HIB Visas and deportation of Indian nationals

(4) Quick withdrawal from Afghanistan - might create security issues for India

(5) US trade war with China - America First policy - an inward looking strategy.

(6) India's non-aligned views in conflict with USA at times.

Way forward

→ Build on common agendas - anti-terrorism, climate, security

→ Utilize 2+2 talks to sort out differences

→ Respect each other's strategic autonomy.

For a global rules based order, the largest and the 4th largest economy need to collaborate - for a resilient world.

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Q.11) Despite constitutional backing to the institutions of local governance, the idea of decentralisation has remained hostage to several structural bottlenecks. Elucidate.
(15 marks, 250 words)

स्थानीय शासन संस्थानों को संवैधानिक समर्थन के बावजूद, विकेंद्रीकरण का विचार कई संरचनात्मक बाधाओं का बंधक बना हुआ है। स्पष्ट कीजिए।
(15 अंक, 250 शब्द)

The 73rd & 74th CAA, 1992 provided for establishment of local governance at grass root level and ensured their constitutional role is safeguarded.

Main provisions of 73rd, 74th CAA to idea of decentralisation

1. Constitution of Gram Sabha A243A
   ↳ Direct Democracy
2. Voice & power to marginalised A243D
   at both levels → women → 1/3rd seats
   → SC & ST also reserved seats
3. Functions devolution by State government - Social & economic A243G
4. Financial Power → A243H → State finance commission
   A243I → State to transfer taxation powers
   A243J → Social Audit powers

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5 State election commission for regular elections.

But Several Structural Bottlenecks

1) Mani Shankar Aiyar Committee — As you Noted → corruption, decentralisation
   ↳ Statutory helplessness
   ↳ Left them to whims & fancies of State government
   ↳ Facing crisis of Legitimacy.
   ↳ Gram Sabhas not constituted

2. Ministry of Panchayati Raj noted
   ↳ Funds Shortage, Poor tax revenues
   ↳ Tied Nature of funds → limited scope

3. Functionaries + Many States do not have dedicated cadre. Eg) only 10% States PRI's have it

4. Functions → States have not devolved functions

5. Issues wrt Reservation → Implemented but
   Women → Pati Sarpanch Syndrome
   SC & ST → Discriminated in PRI's.

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6 Urban Local Bodies while they face above issues

↳ Further rise of Parastatals (SPV's) reduce their legitimacy

↳ Shortage of revenue post GST

Way forward

2nd ARC 6th Report → give more financial autonomy and accountability

↳ follow principle of Subsidiarity

Mohalla Sabha (ULB)

Nani Shankar Ayyar Committee → mandatory Gramsabha

↳ Activity mapping of all levels

NITI Aayog → Dedicated Urban municipal cadre

Funding issue → By motivating LSG to municipal generate own revenue. Eg) Bonds

To address the fiscal challenges it is important the State government fill the Constitutionally commitment of devolving funds and functionaries

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MERUGU KAUSHIK
(AIR 82, 2023)

Q.17) Instability in its neighbourhood combined with displacement and humanitarian crisis don't augur well for India's interest in the region. Elucidate. (15 marks, 250 words)

विस्थापन और मानवीय संकट के साथ इसके पड़ोस में अस्थिरता इस क्षेत्र में भारत के हित के लिए शुभ संकेत नहीं है। स्पष्ट कीजिए। (15 अंक, 250 शब्द)

India is an Island of Democracy and Stability surrounded by ocean of instability and issues that burdens us.

→ Instability in Neighbourhood.

1. Crisis in Srilanka.
   - ↳ economic crisis might trigger Humanitarian crisis
2. Crisis in Pakistan
   - ↳ low economic growth
   - ↳ High Debt and Inflation
   - ↳ Combined by Military Spending
3. Pakistan's aggression over borders
4. China's border actions creating tensions.

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Displacement and Humanitarian issues

1. Long pending issue of Migrants from Bangladesh
2. Rohingyan crisis → Myanmars reluctance to solve the issue
   ↳ failure of UNHRC to intervene

→ Impact → It Doesn't Augur Well for India

1. Srilanka's crisis
   ↳ Might lead to inflow of Migrants
   ↳ Might trigger a civil war in the country
   ↳ opportunity for China to exploit
   ↳ Might further damage peace & Security in Indian ocean region
   ↳ Importance of Colombo Port
      ↳ Important transhipment Port ← Any Disturbance/ head to ↑ costs ↓ Inflations in India

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2. Pakistan's action
   - ↳ Will further provoke Terrorists
   - ↳ Disturbance on border areas
   - ↳ Invoke fundamentalism.

3. China → constant border skirmishes
   - ↳ Disturb peace on borders

4. Humanitarian crisis
   - ↳ Disturbance in North East region
   - ↳ Acts of violence b/w migrants & locals
   - ↳ Terror & insurgency breeds
   - ↳ Bilateral Tensions → Bangladesh + Myanmar

→ **Way forward**

1. India needs to secure its strategic interests in such a situation
2. Bilaterally engage with all stakeholders
3. Leverage BIMSTEC to solve the issues

→ Peace and stability in the region is very important for India's growth & security

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SUBHADHARSHINI M.
(AIR 83, 2023)

Q.4) What are the parliamentary privileges enshrined in the constitution for protecting the authority and dignity of the house and its members? (10 Marks, 150 Words)

The parliamentary privileges are the collective powers, available to the parliamentarians as well as to attorney general of India under Art-105 of the Constitution. They are not applicable to the President who already enjoys other privileges.

Significance

→ enable the members of the parliament to carry out their responsibility without fear and effectively
→ prevents any obstruction of their work
→ to protect the dignity and honour
→ to instill a sense of responsibility.

Privileges available

Collective privileges

→ Right to publish any report/proceedings of the house as well as to prevent others from publishing the same.

Individual privileges

→ freedom to speech & expression
→ Not liable for anything said in the parliament

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SUBHADHARSHINI M.
(AIR 83, 2023)

→ Speaker can permit for holding joint sitting and exclude any strangers within the precints of the house

→ Nobody can be arrested within the House except on the recommendation of Speaker / Chairman

→ Can punish for contempt of the House immediate

→ Right to information about Arrest, release, detention of its members

or any vote given.

→ freedom from arrest 40 days before & after the session in civil cases.

→ exempted from jury service and need not provide evidence during session.

The same privileges are applicable to the members of state legislatures and advocate general also & not to governor.

Codification of the privileges and punishment for the breach of it needs to be done for better functioning.

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SUBHADHARSHINI M.
(AIR 83, 2023)

Q.9) Discuss the issue of tribunalisation of justice? What can be done to strengthen the tribunal framework in India. (15 Marks, 250 Words)

Owing to various challenges in the existing judicial system like delays, pendancy of cases, vacany etc.., tribunals are formed for speedier justice.

The Constitution by the 42nd constitutional amendment act, 1976. provides 323-A & 323-B for formation of Tribunals.

Issues of tribunalisation

⇒ political-will for creation of such tribunals.

(eg.) Though under 323-B, tribunals can be formed for settling of disputes in Elections to members of parliament and state legislatures, no such tribunals has been formed yet.

⇒ appointment of Judges of tribunals by Parliament & State legislatures causes politization, based on political gains.

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⇒ the orders of the tribunals can be appealed in High courts & Supreme court [L. Chandra kumar case] thereby prolonging the delays

⇒ Vacancies are also present in tribunals (around 15%)

⇒ Errors in interpretation of laws, owing to inadequate knowledge & lesser experiences like inclusion of expert members

⇒ tribunals function on "principle of natural justice" rather than any codified civil laws / criminal laws thereby providing huge scope of discrepancy & discretion.

Methods to strengthen the tribunals

⇒ setting up of tribunals as provided in the constitution.

⇒ Various benches of High courts can directly supervise the functioning thereby preventing delays or error of law.

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(AIR 83, 2023)

⇒ provide minimum qualification criteria of judges [or] fill the vacancies based on merit system

⇒ Specification of functioning and allowing to act as civil courts will reduce delays.

⇒ Appeals against orders of tribunals must be based on certain caiterias like specification of amount [or] laws to prevent duplication of works.

⇒ Inclusion of expert members also must be based on certain citerias.

According to India Justice Report, there is nearly 40% pendancy cases. In such situation, strengthening of existing tribunals & creating special tribunals are the way forward.

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SUBHADHARSHINI M.
(AIR 83, 2023)

Q.10) Judicial activism requires a reconsideration, as it entails not only unpredictability in the law but also violates the principle of separation of powers. Analyse.

(15 Marks, 250 Words)

Judiciary, one of the organs of the government performs the function of interpretation of the constitution. Since the adaptation of due process of law in the Menaka Gandhi case, the judiciary performs interpretation not only on the procedure but also substantive aspect of the laws, and also performs some legislative function thus entering into legislative domain. This is called judicial activism.

Advantages of judicial activism :—

⇒ helps to make legislative aware of their weaknesses and to prevent them by framing laws themselves.

⇒ Remands executive of their ignorance & measures to correct them

⇒ instills trust on citizens

⇒ for good governances.

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Recent examples of judicial activism includes ban of crackers in Delhi, Graded Response Action Plan etc...

Disadvantages :-

⇒ violation of seperation of power

⇒ creation of confusion among citizens about validity of the laws.

Articles 50, 121, 122, 212, 222 etc... provides for seperation of powers. Though there is no water-tight seperation & some functional overlaps, the core mandate must not be violated.

Judicial activism which intended to supplement legislature of its functions, turned out into Judicial overreach, thereby creating friction between the two organs, hampering the functions.

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SUBHADHARSHINI M.
(AIR 83, 2023)

Judiciary making laws & rules on its own also creates confusion (eg) ordering of closure of Bawanpur power plants owing to air pollution has created economic losses.

Thus there needs to be clear-cut distinction between their functions and prevention of crossing domains of various organs in order to provide smooth functioning.

Like codification of Criminal procedure code which seperated judicial functioning of executive, codification of laws / domain needs to be done.

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MANAN BHAT
(AIR 88, 2023)

Q.9) Though the changing paradigm towards dialogue and diplomacy in West Asia augurs well for India's interests in this otherwise restive region, presence of inimical actors may reverse the gains. Explain. (10 marks, 150 words)

हालांकि पश्चिम एशिया में संवाद एवं कूटनीति के प्रति बदलते प्रतिमान इस अशांत क्षेत्र में भारत के हितों के लिए अच्छा संकेत है, लेकिन प्रतिकूल तत्वों की उपस्थिति लाभ को उलट सकती है। व्याख्या कीजिए। (10 अंक, 150 शब्द)

India - West Asia relationship has moved from "Trade/Oil Based" towards "Strategic Partnership" Based reflecting changing nature of relationship

Changing Paradigm

① Strategic Partnership Agreements in Defence e.g Saudi - India Agreement.

② Diversification of collaborations e.g Agriculture, Disaster, Economy
- Agriculture → Israel
- Disaster → SAGAR Initiative
- Economy → UAE Investment in J&K

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MANAN BHAT
(AIR 88, 2023)

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(3) New Multi Laterals for converging interests e.g. I2U2 → Israel → India → UAE → US

(1) Greater diaspora connect
⇒ Prasar Bharati Diwas
⇒ Rupee – Dirham trade; UPI in UAE

Threats from Inimical Actors:-

(1) Pakistan's presence in West Asia; affecting relations
(2) Threat to diaspora from civil war in Syria, Lebanon
(3) Israel – Iran Rivalry → Difficult Balancing
(4) Presence of ISIS; Al Qaeda & covert support.

"West Asia – India" relations are set for a new quest of partnership; reflecting growing interest in global security order.

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MANAN BHAT
(AIR 88, 2023)

Q.17) Safely managed drinking water services, as desired by Jal Jeevan Mission, are designated to give multifarious benefits cutting across generations. Discuss. Also, elaborate upon the challenges in ensuring the mission's success. (15 marks, 250 words)

जल जीवन मिशन की इच्छानुसार सुरक्षित रूप से प्रबंधित पेयजल सेवाएं, पीढ़ियों तक विविध लाभ देने के लिए नामित की गई हैं। चर्चा कीजिए। साथ ही, मिशन की सफलता सुनिश्चित करने में आने वाली चुनौतियों के बारे में भी विस्तार से बताएं। (15 अंक, 250 शब्द)

"Jal Jeevan Mission" is a Central Sector Scheme for providing 55 litres of water daily under "Functional Tap Connection" to every "Rural Household".

Mission Targets:-

① 55 litres of daily water.

② Ensure proper management of "Source".

③ Laying down of "piped connections" till the last mile

④ Ensure rejuvenation of Source via Harvesting, Water shed Management.

⑤ Participatory approach via Water Management Committees at local level.

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(AIR 88, 2023)

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Multifarious benefits of the Mission:-

(1) Proper Sanitation & Hygiene standards in rural & urban areas — WASH Strategy

(2) Proper removal of septic waste from sewage → Reduced Manual Scavenging Activities

(3) Reduced physical movement of women for water collection ⇒ Reduced care work

(4) Ensure disease free children via proper Sanitation & Hygiene ⇒ Clean water under SDG.

(5) Ensure Watershed management along with proper care of local groundwater extraction of water ⇒ via Water Management Committees

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Shortcomings:

(1) Water still consider as a "free Public resource" leading to its Wastage → No user charge.

(2) Inefficient & ineffective Pace of Piped infrastructure Completion ⇒ Only 60% completed till June 2023

(3) Non-Segregation of Piped water at Source leading to its contamination.

(4) Drying up of water source in face of climate change ⇒ Reduced ecological flow of Rivers.

(5) Diversion of "water" via Jal Jeevan Mission to Agriculture → water Wastage

Certain changes in "Participative" approach along with timely completion of Project deadlines need to be ensured for success of this Project.

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MANAN BHAT
(AIR 88, 2023)

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Q.18) The profound impact of the data revolution and widespread smartphone usage has necessitated the use of digital tools in welfare programmes. Discuss. (15 marks, 250 words)

डेटा क्रांति और व्यापक स्मार्टफोन उपयोग के गहरे प्रभाव ने कल्याण कार्यक्रमों में डिजिटल उपकरणों के उपयोग को आवश्यक बना दिया है। चर्चा कीजिए। (15 अंक, 250 शब्द)

According to Indian Telecom Association, "mobile subscription rate" in urban areas is 130% & in rural areas is 74%; reflecting the profound role of smartphones in daily lives.

Why digitization of welfare programmes is necessitated:-

① Greater & extended availability of benefits to even remote areas → welfare state
e.g DBT in Vijayada scheme (LPG), Ayushman Bharat Digital Mission

② Better grievance redressal mechanism for customers.
e.g "Pragati Platform" for feedback & suggestion
↳ greater community participation in framing policies

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(3) Improved efficiency and effectiveness of welfare measure.
e.g MGNREGA mobile Attendance to reduced corruption in man-day's.

(4) Ensure availability of data from field; to government → data-driven policy reforms.

(5) Along with usage of technologies like AI, Blockchain, Big data → Improve livelyhood opportunities for rural society
e.g Agriculture Digital Mission, Agristack

Shortcomings of digital tools in welfare Programmes :-

(1) Inclusion & exclusion errors → Denial of Benefits
e.g Aadhar failure linkage in PDS
↳ Deadth of Pushpa Devi due to non-availibility of food.

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② Digital divide can lead to exclusion of beneficiars along with poor digital literacy.
e.g MNREGA wages not credited by 3 months' salary in Andhra-Pradesh.
↳ Application glitch

③ Threats of Privacy & "cyber-surveillance" can lead to social profiling of benificiaries

④ Lack of Digital Infrastructure in rural areas can lead to denial of benefits ⇒ e.g non-applicability of "one-nation one Ration" card at national level due to internet fluctuation.

Although digitization of welfare policies is a welcome step, but ~~the~~ bureaucracy needs to ensure "human-touch" is available on ground so that vision of a welfare State is Inclusive in nature.

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SAKSHI JAMUAR
(AIR 89, 2023)
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Q.10) Water diplomacy can redefine the contours of regional cooperation in South Asia. Discuss with special reference to Indus water treaty 1960. (10 marks, 150 words)

जल कूटनीति दक्षिण एशिया में क्षेत्रीय सहयोग की रूपरेखा को फिर से परिभाषित कर सकती है। सिंधु जल संधि 1960 के विशेष संदर्भ में चर्चा कीजिए। (10 अंक, 150 शब्द)

Indus Waters treaty is the rare example of cooperation between India & Pakistan.

Treaty provides

1. Western rivers Jhelum, Chenab, Ravi to Pakistan
2. Eastern rivers to India
3. Permanent Indus Commission for mediation.

Water diplomacy can redefine regional cooperation

1. Promote data sharing of rivers
2. building consensus through bilateral talks
3. Resolving disputes through International Mediation, brokered by World bank.
4. Promote damming & power generation in both countries -
   - curbing conflict & unrest

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Hurdles in IWT

(i) Non data sharing by Pakistan

(ii) Pakistan repeatedly takes recourse to third party intervention.

(iii) Pakistan creating hurdles in India damming its rivers - on which it has complete rights.
eg Ratle, Kishanganga dam.

Way forward
- move to amend the treaty
- promote bilateral talks for dispute redressal
- promote data sharing on rivers.

6 Cooperation with Pakistan is not an option but a necessity
— Hon'ble Ex PM Vajpayee.

Q.11) Despite co
tralisation has

स्थानीय शा
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Q.13) Executive agencies, working as the watchdog against impropriety, are vital to act against the corrupt; however, pandering to vested interests may have the effect of turning the idea of rule of law on its head. Comment, with special reference to controversies associated with the Enforcement Directorate (ED). (15 marks, 250 words)

अनौचित्य के विरुद्ध प्रहरी के रूप में कार्य करने वाली कार्यकारी एजेंसियाँ, भ्रष्टों के खिलाफ कार्रवाई करने के लिए महत्वपूर्ण हैं; हालाँकि, निहित स्वार्थों को बढ़ावा देने से कानून के शासन के विचार को उल्टा करने जैसा असर हो सकता है। प्रवर्तन निदेशालय (ईडी) से जुड़े विवादों के विशेष संदर्भ में टिप्पणी कीजिए। (15 अंक, 250 शब्द)

Executive agencies like the ED, CBI, NIA, SEBI etc. have been formed in order to ensure & and maintain vigilance over administrative processes

ED - acting as watchdog ~~to~~

(1) Prevents incidents of money laundering under PMLA, 2002. ~~and~~

(2) Checks corruption & criminal misappropriation by govt. servants.

(3) Ensures fairness in administration

(4) curbs black money (~~does so by~~

(5) Preventing inter-country offences eg Hawala, blackmarketing.

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ED pandering to vested Interests
↳ Impact

(1) ED often used to target opposition ruled states
↳ eg Jharkhand, Tamil Nadu.

(2) Disturbs cooperative federalism

(3) Propagates alienation on part of targeted state

(4) fosters regionalism and hatred against Centre.

(5) Undermines Rule of law and

(6) Ideals of presumption of innocence for the Accused
↳ PMLA Act gives ED wide powers and has provisions like reverse burden of proof.

Way forward

(1) Independent method of appointment

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of ED director, free from total executive control.

(2) Amending PMLA to give security of tenure to its members for a free conduct.

(3) Building Code of Ethics & Code of Conduct to maintain propriety in conduct.

(4) Emphasis must be on promoting cooperative federalism & intervention must be only when ~~situa~~ necessary.

(5) Judiciary must check heightened instances of misuse.

While ED is a strong agency of govt., it's its caged parrot. Need of reform in interests of constitutionalism.

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Q.6) In order to pass the ultimate test of good governance, welfare state should be close to the people, responsive to their aspirations, and inclusive in its approach. Discuss with special reference to PM PVTG Development Mission. (10 marks, 150 words)

सुशासन मौलिक परीक्षा पास करने के लिए, कल्याणकारी राज्य को लोगों के करीब होना चाहिए, उनकी आकांक्षाओं के प्रति उत्तरदायी होना चाहिए और अपने दृष्टिकोण में समावेशी होना चाहिए। PM PVTG विकास मिशन के विशेष संदर्भ में चर्चा कीजिए। (10 अंक, 150 शब्द)

As said by kautilya, the aim of the State should be 'Yogakshema' i.e. the welfare must be inclusive & ensure public interests are fulfilled. PVTGs are recognised as part of scheduled tribe, as recommended by Debbar Commission.

PVTGs: Issues faced

Issues faced by PVTGs.

- Declining population (Ex. Onge - Andaman & Nicobar Island)
- Dependence on livelihoods - forest based / Agriculture
- Technology - pass
- Lack of participation - political Activities.
- Vulnerable to environmental degradation & climate change.
- Health issues (Ex. High out of pocket expense, Triple burden - malnutrition, hidden hunger & non-communicable diseases)
- Poor socio-economic indicators (Ex. Literacy - 10% to 44%)

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In light of this, the Government launched the PM PVTG Development Mission.

PM PVTG Development Mission - Union Budget 2022-23:-

(1) Aims to provide necessities - water, health services, safe drinking water & safe housing, livelihood.

(2) Launched as part of 'Reaching the Last mile', one of Saptarishi priorities.

(3) The Mission will ensure that -
- → Access to basic amenities.
- → Not marginalised & lead to mainstream
- → Upholding of their rights.

The mission should be implemented in letter & spirit. PVTGs must be consulted before the implementation of the mission. Nehru's Tribal Panchsheel policy can provide help in this regard.

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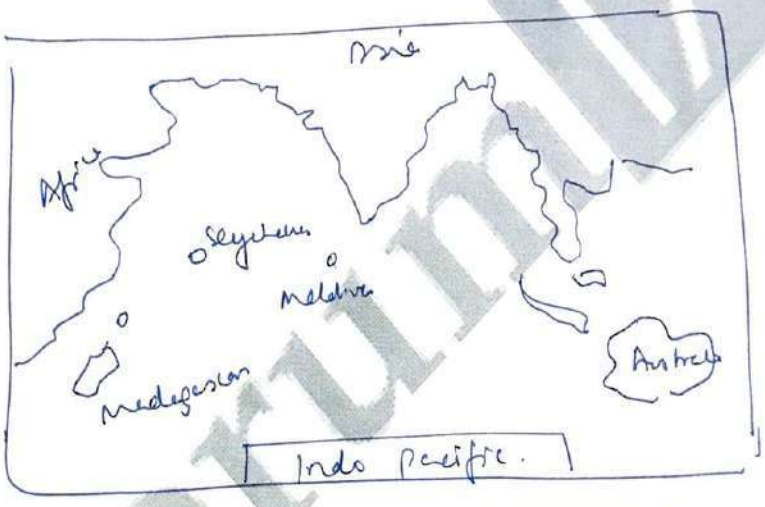
Q.20) How do ASEAN centrality, rules-based order, and development partnership with Pacific Island states make Indo-Pacific a theatre of opportunity for India? What are the hurdles in realisation of an inclusive Indo-Pacific construct?
(15 marks, 250 words)

प्रशांत द्वीप देशों के साथ आसियान केंद्रीयता, नियम–आधारित व्यवस्था और विकास साझेदारी हिंद–प्रशांत को भारत के लिए अवसर का मंच कैसे बनाती है? एक समावेशी हिंद–प्रशांत निर्माण की प्राप्ति में क्या बाधाएं हैं?
(15 अंक, 250 शब्द)

Indo-Pacific is a geographical construct comprising Indian Ocean & Pacific Ocean, appearing as a new theatre in geopolitics.



Indo-Pacific as a theatre of opportunity in-

(1) ASEAN Centrality -

→ Ensure India's fulfilment of Act East Policy, by keeping ASEAN as a centre of Indo Pacific.

→ Development of North Eastern states as it is a gateway to ASEAN.

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→ Promote economic opportunities with the ASEAN countries - integration of global supply chains & resilience.

(2) Rule based order - India's Vision of Indo Pacific is based on free & open Indo-Pacific, with a rule based order.

It will ensure -

→ India's role as a net security provider & realise its vision of SAGAR

→ Maritime security - important sea lanes of communication.

→ more than 80% of trade of India by value & 90% by volume passes through the oceans.

→ Prevent expansionist tactics of countries like China - the South China Sea dispute.

(3) Development partnership with Island states

→ Recent visit of Prime Minister - launch of 12 point Action Plan - to enhance

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SME engagement, prevent climate change, etc.

→ Islands with large EEZs, resource potential

→ Blue economy

Challenges to realise opportunities :-

(1) Lack of resources - like navy capabilities to divert - India's own security needs dilemma.

(2) China dilemma - 2 countries dealing in pairs - ASEAN - $600 billion trade - high dependence.

(3) Lack of proper strategy & policy to deal - more adhoc & siloed approach.

Indo-Pacific is an emerging area to lead India in leading a partner for ensuring Asian century. It must actively collaborate & promote a peaceful & free Indo Pacific.

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Q.13) Reforming the education infrastructure through digital interventions is a progressive step, but it has its limitations too. Comment. (15 marks, 250 words)

डिजिटल हस्तक्षेप के माध्यम से शिक्षा के बुनियादी ढांचे में सुधार एक प्रगतिशील कदम है, लेकिन इसकी अपनी सीमाएँ भी हैं। टिप्पणी कीजिए। (15 अंक, 250 शब्द)

"Education is the passport to the future for tomorrow belongs to those who prepare for it today." The current challenges paved way for transforming educational infrastructure in the circumstances faced.

Reforming infrastructure: progressive step:-

Digital interventions can revolutionise the education of country due to -

(1) Increased access - improved accessibility due to its cost effective nature. one can avail benefit anytime, anywhere

(2) Build skill capital - Improved opportunities help develop skills that are required by industry.

(3) Reach the last mile - digital initiatives can reach the downtrodden, vulnerable sections. Initiatives like e-pathshala - bashe.

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(4) Bridge gender divide - improved access to the girls who want to study → lead to better opportunities → empowerment.

(5) Use of AI - can provide customised solutions & better learning interface.

(6) Promote vernacular language education - prevent the ones who are educated in vernacular from dropping out in higher education.

Limitations of the intervention :-

(1) Digital illiteracy - barrier that hinders the progressive step

(2) Internet connectivity issues - especially in remote areas.

(3) Issues with language - content mostly in Hindi & English.

(4) Lack of digital infrastructure in the public

(5) Issues with the technology :-
→ children prone to get addicted to mobile phones, technology
→ cyber security issues - data theft

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(6) Reduces - co-learning, teacher intervention - para social interface → lack of communication skills, team building.

(7) Digital divide - for instance, as per India Inequality Report 2022 - Oxfam - only 31% women owned smartphones.

(8) Impact child's mental health & physical health - stress in eyes, backpain, impair cognitive development.

Measures that can be taken:-

(1) Supplement elearning with traditional methods.

(2) Value education & quality education

(3) Process reengineering - before introducing interventions

(4) Promote digital literacy - eg - educational curriculum.

Thus, in order to promote the Government's vision of 'Sabka Shiksha Achi Shiksha', digital initiatives can be one of the tools.

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Q.5 Discuss the significance of the cooperative model of development in addressing the issues of rural growth. (10 marks, 150 words)

ग्रामीण विकास के मुद्दों के समाधान में विकास के सहकारी मॉडल के महत्व पर चर्चा कीजिए। (10 अंक, 150 शब्द)

Cooperative model of development implies creation of cooperatives → voluntary organisations, pooling resources of members for achieving benefits to all.

Significance of cooperative model of development → rural growth

(1) Enhanced bargaining power for marginalised (eg Amul model in Anand, Gujarat)

(2) Quality inputs at low cost (eg IFFCO for fertilisers)

(3) Social capital; democratic rights to all members — voice to vulnerable

(4) Higher returns, market access, economies of scale ⇒ higher profit

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(5) Rural industrialisation due to ancillary industries (eg Cold chain, food processing etc)

Challenges of cooperative model

(1) Autonomy (lack) → Operational → appointment, removal etc of Board.
→ financial → lack access to capital markets

(2) Disparity → Maharashtra, Gujarat successful over Eastern & North East.

(3) Competition from companies.

(4) Political interference, indebted, lack professionalism (irregular elections)

Govt has created new Ministry of Cooperation, 97th Constitutional Amendment Act, Election Authority for multi state cooperative societies.

Further, autonomy, access to secondary capital markets, expansion in North East is required for 'Sahkar se Samriddhi'

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Q.12) Independent judiciary, as envisaged by the constitution, provides the bedrock for a thriving polity; however, executive encroachment may erode its credibility and affect its efficacy. Evaluate. (15 marks, 250 words)

स्वतंत्र न्यायपालिका, जैसा कि संविधान द्वारा परिकल्पित है, एक समृद्ध राजनीति के लिए आधार प्रदान करती है, हालाँकि, कार्यकारी अतिक्रमण इसकी विश्वसनीयता को कम कर सकता है और इसकी प्रभावकारिता को प्रभावित कर सकता है। मूल्यांकन कीजिए। (15 अंक, 250 शब्द)

Principle of checks & balances, impartial dispute resolution requires independent judiciary.

Constitution provisions

- Appointment by collegium (Art 124)
- Security of tenure
- Can't change service conditions to disadvantage
- Contempt of Court power (Art 129, 215)

Bedrock for thriving polity

1. Upholder of fundamental rights, when encroached by state → Article 32, 226
2. Original jurisdiction of supreme Court on federal disputes (Art 131)

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(3) Highest court of appeal (SC).
by Special Leave Petition (Art 136)

(4) Interpreter of Constitution (basic structure - Keshvananda Bharati case)

Executive encroachment → erodes credibility & efficacy

(1) Appointment → Possibility of opportunistic appointments (against credibility)

(2) Dissuades judiciary from giving judgements without fear & favour

(3) Justice must also be seen to be done → need independence.

(4) SC in Fourth Judges Case, 2015 held NJAC (judicial appointments) affects independence → basic structure.

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However, limited executive role is required :-

1. Principle of checks & balances for all organs.
2. Allegations of opacity, lack of diversity in collegium appointments
3. To check high pendency of cases (~5 Crore) & fill timely, vacancies.
4. To ensure judicial activism doesn't turn to judicial overreach (eg Subhash Kashinath Mahajan case)

Way forward

- Collegium :- panel of judges from executive's side for collegium
- US model → approved by senate of appointment

Independence of judiciary must be upheld in letter & spirit, sine qua non for constitutional supremacy.

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Q.14) Critically analyse the role of National Commission for Women (NCW) in wake of its mandate to safeguard women's rights and uphold their socio-economic wellbeing.
(15 marks, 250 words)

महिलाओं के अधिकारों की रक्षा और उनकी सामाजिक–आर्थिक भलाई को बनाए रखने के लिए राष्ट्रीय महिला आयोग (एनसीडब्ल्यू) की भूमिका का आलोचनात्मक विश्लेषण कीजिए।
(15 अंक, 250 शब्द)

National Commission for Women is a statutory body for under NCW Act

Role of NCW → upheld

(1) Monitors that safeguards for women, laws, schemes are upheld & implemented effectively. (eg Mission Shakti)

(2) Investigates cases of violation of women's rights (eg → Manipur: violence against women cases)

(3) Maintains accountability of public officials in upholding women's rights. (eg → response from police officials sought in delaying FIRs)

(4) Suggests policy initiatives & changes to Centre & State Govts.

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(5) Initiates campaigns for women empowerment (eg 'She is a Changemaker' for women leadership)

(6) Assists in rehabilitation & reintegration in society of victims. (eg sex workers)

Role of NCW → challenges

(1) Lack of constitutional standing, dilutes its role (NCSC, NCST, NCBC - constitutional bodies)

(2) It's directions are not binding.

(3) Post facto & investigation in most cases instead of active prevention

(4) Lacks power to punish or award relief to victims.

(5) Delayed intervention → challenges its efficacy.

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Way forward

1. Constitutionalization of the Commission
   - fixed term & appointment of members
   - powers of civil court
   - broader mandate on lines of NCBC
2. Compulsory presentation of action taken report on NCW recommendations with reasons for non-acceptance, in Parliament.
3. Mandatory recommendation of NCW in women related policy matters.

NCW can become an effective tool for prevention, prohibition & redressal of crimes against women along with women led development, if provided adequate powers to discharge its role.

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ISHITA KISHORE
(AIR 1, 2022)

Q.8) The criminal justice system has made the process itself a punishment leading to the prolonged incarceration of undertrials. Highlighting the reasons for the large number of undertrial prisoners, examine the desirability of a dedicated bail law.

(10 marks, 150 words)

आपराधिक न्याय प्रणाली ने प्रक्रिया को ही अपने आप में एक सजा बना दिया है जिसके कारण विचाराधीन कैदियों को लंबे समय तक जेल में रहना पड़ता है। विचाराधीन कैदियों की बड़ी संख्या के कारणों पर प्रकाश डालते हुए एक समर्पित जमानत कानून की वांछनीयता का परीक्षण करें।

(10 अंक, 150 शब्द)

As per NHRC, over 50% of of prison occupants are undertrials. Over 20% of them have completed over half the term of conviction.

The above shows how the process for justice has become a punishment

Other examples include → Two finger test for rape victims

↓ Victim shaming eg: Mathura Rape case

↓ Presence of children in POCSO trials

Reasons for large no. of undertrials:

-i- Heavily burdened judiciary at lower level w/ a huge backlog of cases (over 4 crore cases pending)

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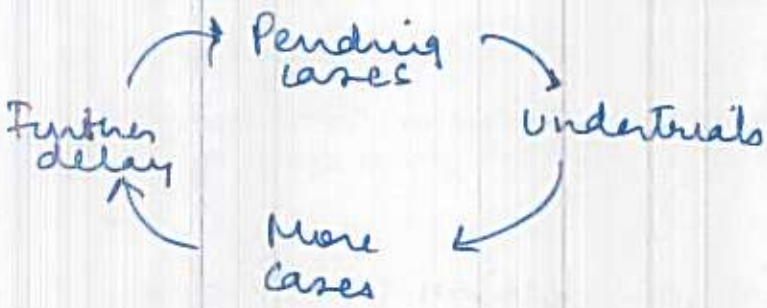
-ii- Creation of a vicious cycle



-iii- Lack of effective investigation

↳ Both administrative & law & order work managed by police
(Prakash Singh recommends separation)

↳ Jurisdictional overlap of agencies
Eg NIA, CBI, CVC State Police

Need for a dedicated bail law

-i- Can institutionalize the process of of managing undertrials

-ii- Systematic parole can be explored

-iii- Time frame (Max.) can be defined for undertrials based on nature of crime.
However this must be supplemented with wholesale Prison Reforms

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Structure/ Presentation
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Q.11) Electoral reform is a continuous effort to make election funding transparent, election process inclusive, and political parties accountable. Discuss issues related to election funding, proposal for remote voting and regulation of Registered Unrecognized Political Parties (RUPPs).

(15 marks, 250 words)

चुनावी फंडिंग को पारदर्शी, चुनाव प्रक्रिया को समावेशी और राजनीतिक दलों को जवाबदेह बनाने के लिए चुनावी सुधार एक सतत प्रयास है। चुनावी फंडिंग, दूरस्थ वोटिंग के प्रस्ताव और पंजीकृत गैर-मान्यता प्राप्त राजनीतिक दलों (आरयूपीपी) के विनियमन से संबंधित मुद्दों पर चर्चा करें। (15 अंक, 250 शब्द)

Free and fair Elections are a sine qua non for a true and sustantive democracy. To prevent it from being a mere head counting principle, there is a need for continuous reform.

This can improve concerns around

I Election funding

-i- Fatal nexus b/w business, politics and criminals (NK Singh Report)

-ii- Corporatisation of Indian Elections

Eg ₹ 60,000 cr spent in 2019 Lok Sabha elections (impact of electoral bonds)

-iii- Lack of due representation of all sections

Eg Avg assets of MPs is ₹ 21 crore (PRS)

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-iv- Criminalisation of Politics

Money and Muscle Power combine

Eg Over 27% MPs have serious heinous crime charges (PRS)

II Remote Voting

-i- Postal Voting key solution in COVID crisis

-ii- Enables participation of

↳ senior citizens

↳ PWD

-iii- Issues: → Threat of manipulation

→ Bogus voting

→ discourage enthusiastic participation

→ Accountability & Transparency is difficult

III Registered Unrecognised Political Parties

Require regulation as

-i- Promote polarisation and factional interests.

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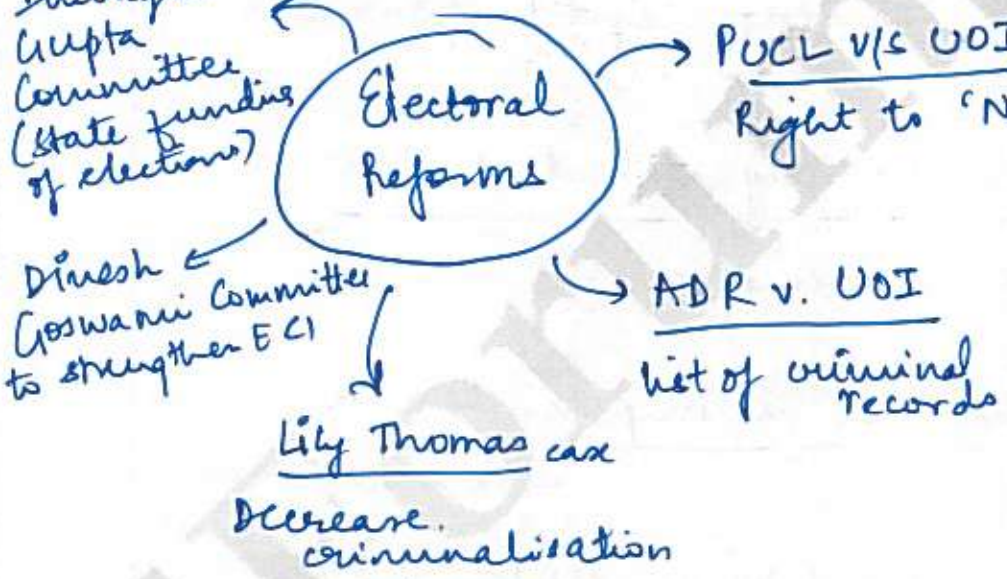
-ii- Need support to emerge in national discourse
Eg Parties from North East

-iii- Size of party should not prevent them from equal benefits
Eg Star campaigners under RPA 1951 more for registered recognised parties



Election Commission of India must be given a dedicated secretarial staff & funds for independent functioning to ensure ideal of 'Ek Bharat Shreshth Bharat'.

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Q.12) Judicial accountability and independence are mutually reinforcing. Do you agree? In what ways can judicial accountability be enhanced without impinging on its independence?
(15 marks, 250 words)

न्यायिक जवाबदेही और स्वतंत्रता पारस्परिक रूप से एक दूसरे को प्रबलता प्रदान करते हैं। क्या आप सहमत हैं? किस प्रकार न्यायिक जवाबदेही को उसकी स्वतंत्रता को प्रभावित किए बिना बढ़ाया जा सकता है?
(15 अंक, 250 शब्द)

Judiciary is ~~the~~ one of the three pillars of India's democratic system. Its accountability and independence are the basis for our developmental progress.

Accountability & independence are mutually reinforcing as :-

-i- 'No impersim in imperio'
- BR Ambedkar

can be ensured by a proper system of appointments (3rd Judges Case)

-ii- Judicial Activism reflects its independence in
→ filling legislative vacuum
Eg Vishakha Guidelines

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→ Refining laws as per constitution
Eg 99th Constitutional Amendment for NJAC violated basic structure so was struck down

Accountability ensures it does not turn into 'overreach' or 'judicial adventurism'
Eg Bans on alcohol or highway, banning crackers etc.

iii – Pendency of judicial cases (over 1 crore cumulatively) require independence to resolve & equip itself & accountability to fast track as 'Justice delayed is justice denied'
Eg Fast track courts for POCSO cases

iv- Conduct of judges cannot be discussed in Parliament gives independence but accountability requires optimal use of Contempt of Court Act.

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Enhancing judicial accountability

-i- Judicial infrastructure must be upgraded for faster resolution of cases
Eg e-Nyay portal,

-ii- Gender Parity in appointments
(held by ex CJI NV Ramana)

-iii- Clearing of recommendation for appointment by Cabinet
Eg 2022 has lowest high court vacancy since 2016

-iv- Ushering in digital reforms in judiciary
Eg ✱ life cycle of case must be tracked
(petition → hearing → trial)

Judicial reforms can ensure that our constitution (an alive & organic document) fulfils the aspirations of a billion plus people in a 'New India @75'

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Q.16) Ayushman Bharat is a revolutionary intervention but falls short of recognizing the right to health as a universal basic right. In this perspective, discuss the need for and impediments in ensuring the right to health for all in the country. (15 marks, 250 words)

आयुष्मान भारत एक क्रांतिकारी हस्तक्षेप है, लेकिन स्वास्थ्य के अधिकार को एक सार्वभौमिक बुनियादी अधिकार के रूप में मान्यता देने में विफल है। इस परिप्रेक्ष्य में, देश में सभी के लिए स्वास्थ्य का अधिकार सुनिश्चित करने की आवश्यकता एवं उसमें निहित बाधाओं पर चर्चा करें। (15 अंक, 250 शब्द)

Ayushman Bharat has revolutionized India's health sector with collaborations from private sector in delivery of secondary and tertiary health services

Falls short of health as universal basic right as :-

-i- Exclusion of Primary healthcare from its fold which is accounts for over 50% of out of pocket expenditure
↳ Fails to fulfil ideals of the Alma Ata Declaration

ii- Insurance based model is subject to bureaucratic red tape

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iii- Need for government infrastructure & investment in health to increase from 1.5% of GDP to 3%.

Need for Right to Health

-i- Tropical and subtropical geographic location creates scope for diseases like Malaria
70% cases in ST

-ii- Shift from a charity / welfare based approach to Rights based approach
Eg Same was done for food security and education, Right to work

-iii- Capability Development approach of Amartya Sen highlights how basic health services can enhance national productivity

iv- Orphan diseases like Thalassemia require State support

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-v- In an era of COVID 19 and Zoonotic diseases, health security is now a national security issue

Impediments

-i- Lack of digital infrastructure
Eg Promote telemedicine, AWaRE app of WHO for TB

-ii- Working in silos
Eg Need for 'One Health' approach

-iii- Need for increased financial support

-iv- Human Resource requirement
Eg Doctor patient ratio 1:1100 as vis a vis WHO's 1:1000 requirement

Solutions

-i- Ladakh Model: compulsory service in State by doctors who take Ladakh reservation

-ii- Delhi Model: Mohalla clinics

-iii- Kerala Model: decentralised governance

This can foster the NITI Aayog goal of 'Healthy States, Progressive India' & individual dignity

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Q.4) The divergence between intent and impact of the tenth schedule necessitates calling into question its relevance in the present times. Analyze. (10 marks, 150 words)

दसवीं अनुसूची के आशय और प्रभाव के बीच का अंतर वर्तमान समय में इसकी प्रासंगिकता पर सवाल खड़ा करता है। विश्लेषण करें। (10 अंक, 150 शब्द)

X^th Schedule was added to the constitution in the wake of growing defections & a culture of 'Aaya Ram. Gaya Ram'

Intent of the law

-i- Era of coalition politics made it easier to topple governments by shifting parties of MPs

Eg MVA govt toppled in Maharashtra recently

-ii- Counter money-power in politics as MPs can be paid huge sums for shifting stance

-iii- Counter horse trading of MPs which ruins the democratic ethos

-iv- Allows mergers of 2/3rd but not split (1/3)

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Impact of the law

-i- Politicisation of Speaker as s/he is the decision making authority split b/w party politics & democracy

-ii- Rendered useless in multiple scenarios recently

Eg Maharashtra, Madhya Pradesh

-iii- Muscle-Money Power : Hiding of MPs in lavish hotel rooms

-iv- Efficiency of bill passing, discussion reduces

Eg PRS shows decrease in time spent on Bills

Thus in order to hold 'Kihoto Hollohan' judgement in letter and spirit, the law needs to be revisited w/ stringent protocol to tackle defections. Can limit whip to only most important decision

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Q.5) Instead of performing a transformative role, traditional bureaucracy has contributed to perpetuation of old order. Comment. (10 marks, 150 words)

एक परिवर्तनकारी भूमिका निभाने के बजाय, पारंपरिक नौकरशाही ने पुरानी व्यवस्था को कायम रखने में योगदान दिया है। टिप्पणी करें। (10 अंक, 150 शब्द)

Sardar Patel called the Indian bureaucracy as the 'Steel Frame' of our country. However after 70 years, there are debates whether this steel frame has rusted

Perpetuation of old order

i- Corruption is a colonial legacy that has made public office a source for private gains

eg> IAS Sanjay Popli, IAS Pooja (Jharkhand)

ii- Lack of enthusiasm & 'by the books' approach due to time based promotions

⇒ Deters incentive based motivation

iii- 21st century brings challenges that require specialized skills

eg- Crypto, climate change

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iv- Hota Committee recommendation of cooling period after retirement can break political nexus

However, a Transformative role is also visible as islands of progress in a sea of traditional order

- i- Armstrong Pame : Miracle Man of Manipur built 100 km road
- ii- P. Parahari : work in PWD friendly buildings

Yet, there is a need to streamline various initiatives like

→ Mission Karmayogi
→ iGOT portal
→ Rule based to Role based training

to make the bureaucracy as efficient as countries like Singapore.

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Q.6) Sustainable alliance between Non-Governmental Organizations (NGOs) and the State is critical for social change and development. Highlighting hurdles in this developmental alliance, suggest remedial measures for a more productive partnership. (10 marks, 150 words)

गैर-सरकारी संगठनों (NGOs) और राज्य के बीच टिकाऊ गठबंधन सामाजिक परिवर्तन और विकास के लिए महत्वपूर्ण है। इस विकासात्मक गठबंधन में बाधाओं को उजागर करते हुए, अधिक उत्पादक साझेदारी के लिए उपचारात्मक उपायों का सुझाव दें। (10 अंक, 150 शब्द)

NGOs are now known as 'invisible empires' who support the state by bridging the gap in delivery of basic services.

Criticality of alliance

(1) Fill vacuum in govt services
Eg> Teach For India supplements the teachers vacancies

(2) Public trust in NGOs
Eg> RTI filed by India Against Corruption

(3) Timely services as against bureaucratic delay
Eg> Food Helpage India v/s Ration Card

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Hurdles

1. Recent legislations like FCRA cripple the NGOs
   - Eg Only 20% can be spent on administrative costs
2. Rivalry of politicians with NGOs
   - Eg India against corruption coerced by political parties
3. Lack of economic funding due to an already pressurised govt
   - Eg Poor infra of Goonj
4. International ill intentions
   - Eg Closure of Amnesty

Remedial Measures

1. Collaboration for service delivery
   - Eg U/ COVID-19 by NGOs
2. Collaboration w/ religious institutes for funds
3. Diversification of spending under CSR
4. Reduce ~~red tape~~ in FCRA

This can foster development alliance & help India prosper

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Q.17) Self-Help Groups (SHGs) are an effective model of social entrepreneurship for women empowerment and have multiplier effects on developmental processes in rural areas. Elaborate with suitable examples. (15 marks, 250 words)

स्वयं सहायता समूह (SHGs) महिला सशक्तिकरण के लिए सामाजिक उद्यमिता का एक प्रभावी मॉडल हैं और ग्रामीण क्षेत्रों में विकास प्रक्रियाओं पर कई गुना प्रभाव डालते हैं। उपयुक्त उदाहरणों के साथ विस्तृत व्याख्या करें। (15 अंक, 250 शब्द)

With nearly 70 lakh Self Help Groups in India, social entrepreneurship among rural women has taken off since 1970s, when SEWA emerged

Women Empowerment

i- Business models have emerged from homes
Eg Lijjat Papad, Kudumbashree

ii- Collective Guarantee System for loans
Eg 1 mudra loan per SHG ensures financial freedom

iii- Social status of women transforms as they no longer dependent for their livelihood

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-iv- Respect from government

Eg Atmanirbhar Nanishakti PM interaction with SHGs

-v- Pivotal role in social welfare gives them pride

Eg Manufacturing masks

-vi- Political empowerment as they even contest elections in PRIs.

Eg Kerala

Effects of on **developmental process**

-i- Financial security and well being of villages with avenues for earnings

Eg 60,000 cr turnover of Lijjat papad

-ii- Employment and rise in Labour Force Participation Rate of women which is a dismal 22%. currently

Eg Kudumbashree employs thousands

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iii- Improvement in social indicators of the area
Eg NFHS has recognised role of mother in health of children

iv- Ending cycle of poverty with productive engagement

v- Diversification away from agriculture

vi- RBI states only 12% credit in institutions is by women. This can change with rising SHG businesses

vii- Culture of repaying loans increases health of banks.
Eg 97% repayment rate of SHG is better than corporates.

Thus SHGs multiplier effects on the development process is key to bridging India's 'Missing Middle' in economy in its journey to $5 trillion economy

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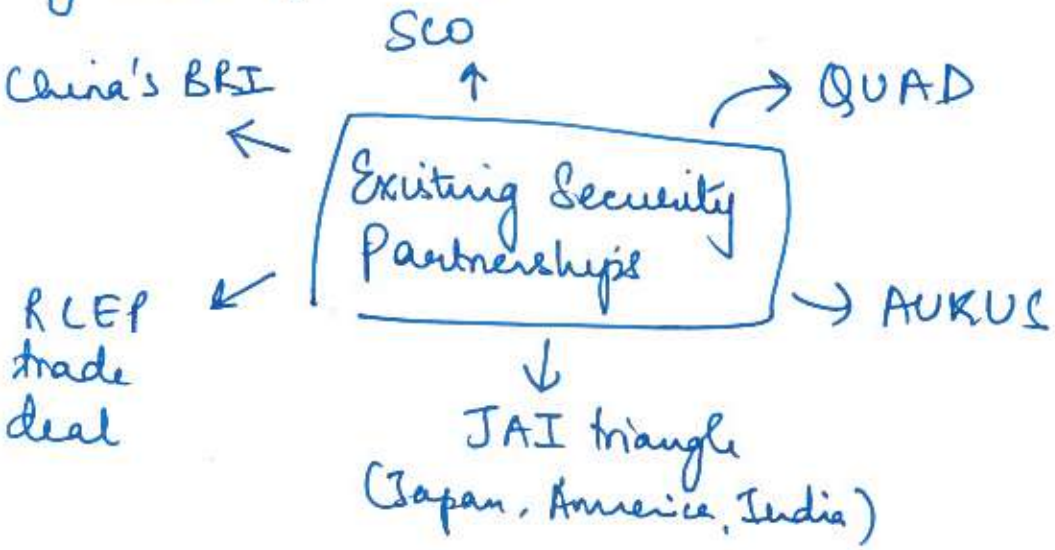
Q.19) USA-led Indo-Pacific Economic Framework for prosperity (IPEF) is an economic initiative to complement its existing security partnerships in the Indo-Pacific region. Analyze the significance of and challenges to IPEF in the present scenario. (15 marks, 250 words)

समृद्धि के लिए संयुक्त राज्य अमेरिका के नेतृत्व वाला इंडो–पैसिफिक इकोनॉमिक फ्रेमवर्क (IPEF) इंडो–पैसिफिक क्षेत्र में अपनी मौजूदा सुरक्षा साझेदारी को पूरा करने के लिए एक आर्थिक पहल है। वर्तमान परिदृश्य में IPEF के महत्व और चुनौतियों का विश्लेषण करें। (15 अंक, 250 शब्द)

Indo Pacific is the new theatre of geopolitical manouvering by the global powers.



Thus the US led Indo Pacific Economic Framework for prosperity complements its other initiatives.

Importance

(1) Rise of China as the second largest economy threatens the US hegemony

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(2) Breakdown of WTO world order of neoliberalism as China misuses its 'developing country' status

(3) Russia's resurgance with an attack on Ukraine has destabilized global supply chains

(4) China's Belt & Road Initiative is a unique form of debt diplomacy.

(5) Disregard to the democratic ethos in global order with ~~totalitarian~~ undemocratic countries like Russia, China

(6) World Peace at stake in Indo Pacific

- Iran nuclear adventure
- South China Sea
- Ukraine devastation

Thus IPEF remains a significant initiative which combined with B3W and Blue Dot Network can

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streamline the economic profile of the region.

Challenges to IPEF

-i- India at the centre of Indo Pacific is a swing state & favours Russia, China in many issues (Eg) Principle distance, on condemning Russia's acts in Ukraine

-ii- Economic dependency of countries on China makes them averse to stand against it (Eg) Asean

-iii- Historical brutalities by USA creates perception against it (Eg) Afghanistan misadventure

-iv- Revenge of geography as China's neighbours cannot disregard it (Eg) Galwan Valley

Thus while IPEF is a necessary balancer in the region, deft policy making is required (by USA) for economic gains for all.

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UMAHARATHI N
(AIR 3, 2022)

ForumIAS

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Q.4) The changed nature of civil society due to its professionalization has helped in deepening of democracy but at the cost of participation and accountability. Discuss.

(10 marks, 150 words)

अपने व्यावसायीकरण के कारण नागरिक समाज की परिवर्तित प्रकृति ने लोकतंत्र को गहरा करने में मदद की है लेकिन भागीदारी और जवाबदेही की कीमत पर। चर्चा करें। (10 अंक, 150 शब्द)

With one NGO per 1000 people, civil society has emerged as a major force in developmental process in the last few decades.

Adhoc.

Civil society in past → fragmented

small & micro ←

↓

poor skills & capacity

professionalization of civil society

⇓

deepening democracy

→ policy input through research
eg: ASER → surveys → Education policy input

→ Continuous → sustained role
eg: NAT foundation for LGBTQ right

→ Great impact at grassroots
eg: Tribal millet mission

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- In odisha, transforming livelihoods + health
- Assist in policy implementation
  eg: Akshaypatra in midday meal
- Strong pressure group for social justice
  eg: safai karmachari Andolan

Issues in participation + accountability

- Non-local volunteers
- Non filing of account (CCBI says less than 10%)
- vested interests (IB chargesheet on Amnesty)
- Illegal activities
  eg: HRDS, kerala in land grabbing scam
- No social audit by people

In this regard better use of DARPAN portal, implementation of S. Vijay kumar committee recommendation is key to evolve a transparent self regulation

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Q.6) Policy of reservation, started to provide equality of opportunities, has fallen victim to political opportunism. Critically examine the success of affirmative actions in the country.

(10 marks, 150 words)

अवसर की समानता प्रदान करने के लिए शुरू की गई आरक्षण की नीति राजनीतिक अवसरवाद का शिकार हो गई है। देश में सकारात्मक कार्रवाइयों की सफलता का समालोचनात्मक परीक्षण करें।

(10 अंक, 150 शब्द)

Article 15, 16 allow state to provide reservation in favour of socially and educationally backward sections in education → employment. It is in spirit of Equality of opportunity under Article 14.

success of Affirmative actions

- human capital development of OBC/SC/ST through education
- increasing representation in government jobs
- political consolidation of oppressed castes
- women empowerment – 46% women at PRI level

However it fell victim to political opportunism

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(1) Appeasement politics – eg: Reservation for upper caste Marathas in Maharashtra

(2) Deepened caste politics – by ingraining caste identity

(3) Continuous + competitive demands
eg: Jats in Haryana.

(4) Failure of true social upliftment
eg: only 4 of 62 secretaries to government are Dalits
33% of SC/ST are under BPL

(5) Cornering of benefits by few sections
eg: Minas in ST v/s PVTGs

Caste census for data

Measures for course correction
- ← Creamy layer removal
- → MCC to curb identity politics
- ↓ Bottom up development

Adhering to Indira Sawhney judgement guidelines is absolutely necessary if we want to utilise affirmative actions for inclusive + just development as captured in Art 46.

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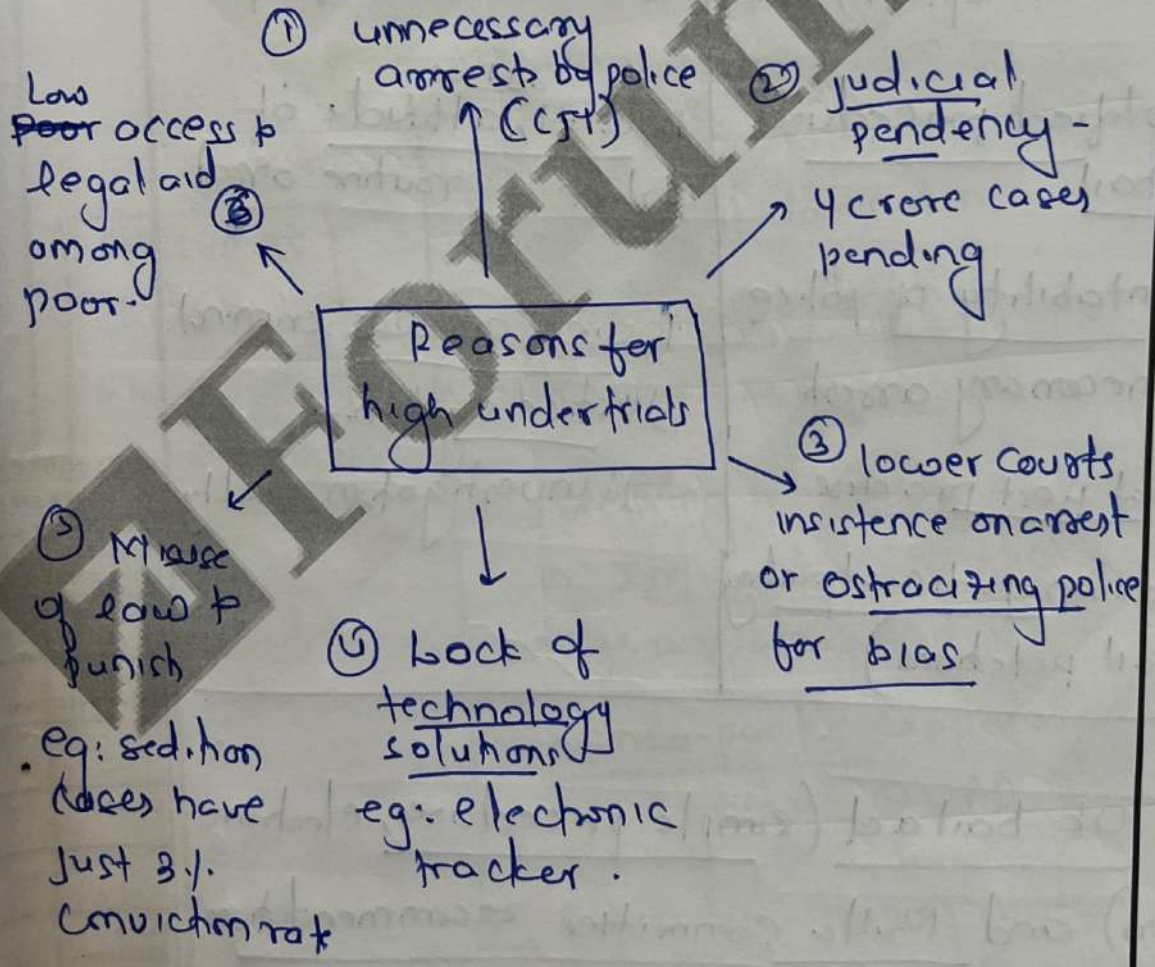
Q.8) The criminal justice system has made the process itself a punishment leading to the prolonged incarceration of undertrials. Highlighting the reasons for the large number of undertrial prisoners, examine the desirability of a dedicated bail law.

(10 marks, 150 words)

आपराधिक न्याय प्रणाली ने प्रक्रिया को ही अपने आप में एक सजा बना दिया है जिसके कारण विचाराधीन कैदियों को लंबे समय तक जेल में रहना पड़ता है। विचाराधीन कैदियों की बड़ी संख्या के कारणों पर प्रकाश डालते हुए एक समर्पित जमानत कानून की वांछनीयता का परीक्षण करें।

(10 अंक, 150 शब्द)

Undertrial is a prisoner awaiting trial → conviction/acquittal. Undertrials constitute 6a/. of all prisoners in India.



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Recently supreme court suggested evolution of a bail law

Usefulness	Issues.
(1) improved access to bail ("bail as the norm + jail as exception)	crpc has provisions for bail already (436, 437 of crpc)
(2) simplified procedures on bail	Doesn't address attitude of police - routine arrest
(3) Accountability of police for unnecessary arrest	issues across criminal justice system.- eg: investigation quality
(4) Global Best practise	
(5) Curb down judicial pendency (eg: Bail petitions)	

The UK bail act (simple procedures, electronic trackers) and Mulla committee recommendations (open prisons) are certainly a right step ahead.

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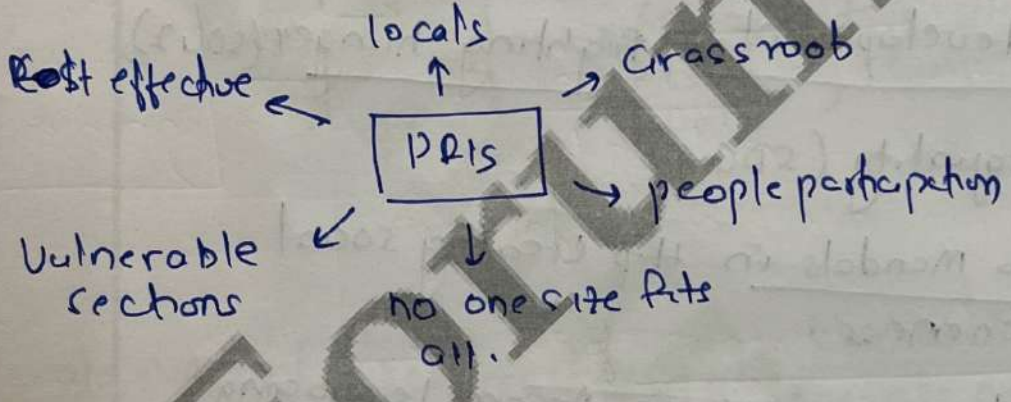
Q.15) The achievement of Sustainable Development Goals by 2030 can happen only if we consider local context and situations. In light of this statement, examine the critical role as well as capabilities of PRIs in meeting the SDGs.
(15 marks, 250 words)

2030 तक सतत विकास लक्ष्यों की प्राप्ति तभी हो सकती है जब हम स्थानीय संदर्भ और स्थितियों पर विचार करें। इस कथन के आलोक में, एसडीजी को पूरा करने में पीआरआई अर्थात पंचायत प्रणाली की महत्वपूर्ण भूमिका के साथ-साथ उसकी क्षमताओं का परीक्षण करें।
(15 अंक, 250 शब्द)

'Principle of subsidiarity' says that decentralisation of power is key to sustainable, bottom up and cost effective development. It is in the context PRIs become critical in achieving SDGs.



Role and capabilities of PRIs in meeting SDGs

1. Inclusive growth - by involving women, SC/ST in decision making (eg.. 24% - reservation)
2. local solutions for better result.

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eg: Role of PRIs in Hiware Bazar transformation (SDG 6, SDG, 13)

(3) Rural development to remove inequalities (SDG 10)

eg: Dediapada, Gujarat - Gram sabha role in Bamboo based livelihood

(4) social development - fighting hunger (SDG 2), Gender equality (SDG 5)

eg: Mahila Mandals in HP creating social awareness.

eg: Project sampoorna, in Assam leveraging PRI to fight malnutrition.

(5) curbing distress migration to cities to ensure sustainable ~~migr.~~ urbanisation (SDG 11)

eg: implementation of MNREGA

(6) Health + education promotion

eg: Kerala local community based palliative care.

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Challenges that have to be overcome

- Non devolution of functions + powers (243G)
- low financial powers (243I not implemented)
- Inadequate functionaries
- Lack of fiscal discipline + accountability. eg: low audit
- social elite capture of PRIs – eg: buying votes of Dalit

Best practices to leverage

- Kerala – 40% of state budget given to PRI
- Karnataka, seperate cadre of officials of PRI
- Telangena – 100% online audit of PRIs.

The Gandhian vision of 'Village republics' captured in 'Article 40' must reflect in working of PRIs if we want to achieve SDGs sooner

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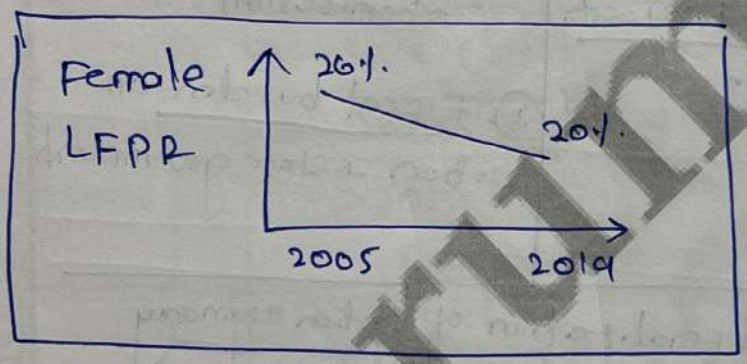
Q.18) Poverty is driving women into the workforce, while education seems to drive them out of it. What explains this anomaly? How can Self Help Groups (SHGs) correct this aberration?
(15 marks, 250 words)

गरीबी महिलाओं को कार्यबल की ओर प्रेरित कर रही है, जबकि शिक्षा उन्हें इससे बाहर करती दिख रही है। इस विसंगति की व्याख्या क्या है? स्वयं सहायता समूह (एसएचजी) इस विचलन को कैसे दूर कर सकते हैं?
(15 अंक, 250 शब्द)

Labour force participation (LFPR) in India for females has been declining consistently. The trend reveals several insight on role of poverty + education on female LFPR



poverty as push factor → female workforce ← education a pull factor out of workforce

Reasons for this anomaly

→ poverty forces women to enter work force → support family income.

eg: outmigration of males led to feminisation of agriculture

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→ education acts against taking up menial jobs/informal jobs → delays entry into work force

→ poverty can also hinder completion of education forcing women to take up menial jobs.
eg: informalization of women's labour

→ patriarchal society - women enter workforce only when absolutely necessary.

Role of SHGs in correcting the aberration

(1) Women entrepreneurship by leveraging SHGs by educated women.
eg: Lijjat papad → 600 cr revenue company

(2) Financial inclusion - savings; micro loans to cushion against poverty
eg: Microfinance during COVID-19 pandemic.

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(5) Leveraging SHGs for skill development programs.

(6) creation of employment opportunities through SHGs
eg: kudumbashree cafes of kerala

(5) SHGs for social awareness + social change
eg: Anti Dowry campaigns by Telangana SHGs.

Cheap credit
↑
Market ← access (eg: SARAS)
We need to build capacity of SHGs for this
Business + leadership skill
↓
Voice in PRIs

Recently SERP and flipkart signed MOU to given direct market access to SHGs in Telangana.
Such PPP models are needed to leverage SHG power for women empowerment

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Q.8) Comment on the utility and effectiveness of soft power for furthering national interest. Can soft power replace hard power in international politics? (10 marks, 150 words)

राष्ट्रीय हित को आगे बढ़ाने के लिए सॉफ्ट पावर की उपयोगिता और प्रभावशीलता पर टिप्पणी करें। क्या अंतरराष्ट्रीय राजनीति में सॉफ्ट पावर हार्ड पावर की जगह ले सकती है? (अंक 10, शब्द 150)

According to Joseph Nye, soft power is the ability of a country to influence other countries based on its culture, foreign policy, institutions, etc.

Utility and effectiveness of soft power in furthering national interest :

1. Influence through culture rather than coercion is long lasting :
   eg: Bushido code of Japan is respected worldwide, India's "vaccine maitri"

2. Hard power has numerous limitations :
   - brings about destruction and instability
     eg: American invasions in Afghanistan, Syria etc have led to instability
   - ineffective in modern techniques of warfare (eg: cyber warfare has turned Ukraine-Russia war into a "frozen war").

3. Soft power creates avenues of economic

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integration and influence (eg: McDonaldisation)

Can soft power replace hard power?

- Hard power, despite limitations is very effective in creating deterrence.
  eg: experts believe Russian invasion of Ukraine would not be as swift had Ukraine not destroyed its nuclear arsenal.

- Hard power is reflective of country's ~~economic~~ economic might and place at global high table

While soft power cannot totally ~~clin~~ replace hard power, it does enable a country to raise its stature. India's vaccine diplomacy when the world was in crisis ~~have~~ perpetually has lifted India's place at the Global Health High Table.

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Q.9) India and Japan may have long enjoyed very cordial relations with substantial shared interests, but it also tends to be one that has been low on ambition, limited in outcomes and high in rhetoric. Critically examine. (10 marks, 150 words)

भारत और जापान के बीच भले ही पर्याप्त साझा हितों के साथ बहुत सौहार्दपूर्ण संबंध रहे हों, लेकिन इसमें ऐसा भी है जो महत्वाकांक्षा में निम्न, परिणामों में सीमित और बयानबाजी में उच्च रहा है। समालोचनात्मक परीक्षण करें। (10 अंक, 150 शब्द)

India and Japan are celebrating 70th year of diplomatic ties in 2022.

Map - India - Japan

India and Japan share substantial shared interests

1. Both are a part of diamond democracies
2. Cultural ties
   - spirituality and Buddhism
   - ancient civilisations
3. Seek reforms in global governance (G4 group for UNSC expansion)
4. Vision for free and open Indo Pacific.

However, there are challenges

1. Partnership is low on ambition :
   - Despite a trade agreement (CEPA) in place, trade

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is limited to $3.85 billion
- Japanese policy of Seikei Bunri prevents taking a strong stand against China.

2. Partnership is limited in outcomes
- Delayed projects eg: Bullet train
- No major defence deal
- Stalled projects

3. High on rhetoric eg: no progress on global initiatives like Supply Chain Risilience Initiative (SCRI), Asia Africa Growth Corridor.

However, India benefits greatly from Japan -
- recipient of largest overseas development assistance (ODA)
- Para diplomacy (eg: ~~Kasi~~ Varanasi & Kobe)
- Partnership in space ~~and~~ research (eg LUPEX project)
- Cultural exchange

India and Japan are "natural partners" and there is a need to further cooperation keeping through Trust - Transparency - Timeline in mind.

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Q.1) The biggest critique of Basic Structure doctrine from its inception has been it being shrouded in confusion, vagueness and a formulation which is loose and not precise. Critically examine. (10 marks, 15 words)

मूल संरचना सिद्धांत की शुरुआत से ही इसकी सबसे बड़ी आलोचना यह रही है कि यह भ्रम, अस्पष्टता और एक सूत्रीकरण का निर्माण करती है और यह शिथिल है, सटीक नहीं। समालोचनात्मक परीक्षण कीजिए। (10 अंक, 150 शब्द)

The Basic structure doctrine was propounded by the Supreme Court in Kesavananda Bharati v. State of Kerala, where it held that certain features of the Constitution form the basic structure which cannot be amended by the Parliament in exercise of its constituent powers.

Examples — Secularism, federalism, judicial review, independence of judiciary, etc.

Positives
- limits scope of amending powers of Parliament
- upholds constitutional spirit as created by our forefathers
- ensures Parliament cannot abridge upon rights of citizens - many fundamental rights form part of basic structure.

Criticisms: Basic structure doctrine is shrouded in confusion, vagueness and is not precise

Basic structure doctrine is not mentioned anywhere in the Constitution. It thus depends on discretion of

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individual judge.

- The precedent regarding "Rights Test" and "Essence of Rights Test" is unclear — both tests have been randomly used.

- "Fundamental Rights balanced with Directive Principles" are a part of basic structure — ↳ unclear and difficult to comprehend formulations

- Struck down ~~NJA~~ National Judicial ~~Appoct~~ Appointments Commission using basic structure doctrine — it was to ensured transparency in judicial appointments.

- Invoke principles of constitutional morality to justify — vague and not defined.

The basic structure doctrine has, however been creatively used to limit the vast power of the executive, perpetually guaranteeing fundamental rights. However, in doing so judiciary took over a pedestal too high — and needs a separate accountability mechanism.

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Q.7) Do you think the Competition Commission of India (CCI) has been as successful in protecting consumer rights, promoting fair competition and restricting monopolistic tendencies, vis a vis its western counter part?
(10 marks, 15 words)

क्या आपको लगता है कि भारतीय प्रतिस्पर्धा आयोग (CCI) उपभोक्ता अधिकारों की रक्षा करने, निष्पक्ष प्रतिस्पर्धा को बढ़ावा देने और एकाधिकारवादी प्रवृत्तियों को प्रतिबंधित करने में उतना ही सफल रहा है, जितना कि पश्चिमी देशों में इसके समक्ष संस्थान? परीक्षण कीजिए।
(10 अंक, 150 शब्द)

Competition Commission of India (CCI) is a statutory body created by the Competition Act 2002. Its objective is to promote competition rather than suppress it, as was done by the previous Monopolis and Restrictive Trade Practices (MRTP) Act.

CCI has been successful in protecting consumer rights, promoting fair competition and restricting monopolistic tendencies:

→ Has in built mechanisms of investigation on information by an informant
→ Gives a chance of fair hearing to the accused companies
→ Stringest provisions against exploitation of dominant position

Examples: – CCI recently put a hold on Futures-Group-Walmart deal Amazon

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Ans: However, it has not been as successful as its western counterpart:

- Did not take action on Bharati Airtel's complaint against Jio policies
  - ↳ now ~~out~~ telecom sector ~~has~~ is an oligopoly
- Western Commissions have strong anti-trust provisions which invoke by default
  - ↳ it is taking on Big Tech
    - eg: Google & Apple fighting anti-trust cases
  - not the case in India even after similar practices of Big Tech.

CCI needs to be proactive in its role and prevent direct and indirect manipulation of the market. There is a need to give it more ~~teeth~~ powers and ensure its independence.

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Q.8) Though RTI was meant to strengthen participatory democracy in India, various factors have hindered its utilization to full potential. In this context, examine the issues pertaining to the implementation of the RTI Act. (10 marks, 15 words)

यद्यपि RTI का उद्देश्य भारत में सहभागीमूलक लोकतंत्र को मजबूत करना था, लेकिन विभिन्न कारकों ने इसके पूर्ण क्षमता के उपयोग में बाधा उत्पन्न की है। इस संदर्भ में, RTI अधिनियम के कार्यान्वयन से संबंधित मुद्दों का परीक्षण कीजिए। (10 अंक, 150 शब्द)

Right to Information Act (RTI Act) was enacted in 2005 to bring about accountability in governance with people. It is practically the only tool to keep executive under check.

Features of RTI
- → Mandatory and pro active disclosures
- → Information within 30 days of query
- → Penalty per day of non-answering within life
- ↓ Public information officers (PIOs at various levels).

Issues pertaining to implementation of RTI

1. Non-appointment of Public Information officers
2. ↳ No mechanism of grievance redressal as most states do not appoint State Information Commissioners.
3. Frivolous RTIs filed — overburdening of govt office

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4. Lack of whistle blower protection law
   - death of RTI activists — over 100 deaths since implementation.

5. Official Secrets Act ~~gave~~ cited for refusal of information

6. Mechanical replies by various offices — "Data not available", "No sheets to print data" etc

~~Non-disclosure~~

While the RTI Act mandates pro-active disclosures, it has often been observed that the replies are slow, mechanical, or run upto ~~to~~ so many pages ~~to~~ that an ordinary person cannot do much. There is a need for ~~work~~ infrastructure upgradation and digitisation to ensure quicker & faster disposal of applications.

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Q.14) There has been an increasing demand for doing away with the concurrent list. Examine the utility of concurrent list in the light of recent events. (15 marks, 250 words)

समवर्ती सूची को समाप्त करने की मांग बढ़ती जा रही है। हाल की घटनाओं के आलोक में समवर्ती सूची की उपयोगिता का परीक्षण कीजिए। (15 अंक, 250 शब्द)

Article 245 of the Constitution demarcates legislative competence as follows:

- Center - can legislate on ~~Center~~ union & concurrent list (Schedule 7, List I & III)
- States - can legislate on state & concurrent list. (Schedule 7, List II & III)

In cases of overlap between central and state laws on subjects in concurrent list, the Parliament's law prevails.

Demand for doing away with concurrent list

In recent times, there have been allegations by the state governments that the center is encroaching upon their jurisdiction in the garb of concurrent list legislation.

Examples:

- Agriculture :: state subject
  - Center enacted farm acts using "agriculture marketing" in concurrent list.

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- Enactment of 4 labour codes – dilution by several states
- Legislation on Forests – Forest Rights Act, framed by the Parliament; Forest Conservation Rules
  - states have implementation role but one-size fits all approach.

Utility of concurrent list (it must be retained)

- Ensures uniformity in legislation about certain matters like weights and measures.
- Legislative space to the states to tweak requisite changes into the laws (local amendments allowed).
- Centralising tendency of concurrent list is sanctioned by legislative wisdom of constitution-makers for political and administrative unification of country.

Merits in doing away with concurrent list:

- Autonomy to states in legislative process.
- Residuary powers already lie with Center – no need for concurrent list too.
- States are sovereign entities and derive

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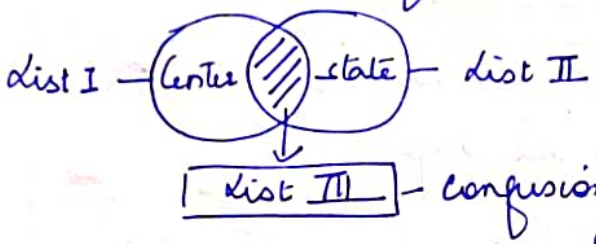
legislative powers from the Constitution.

- Concurrent list promotes conflicts and scope for overreach and confusion.



- confusion, conflict, confrontation

There is a need to have a re-look into powers ~~distn~~ delineation structure as well as precedent set by the Supreme Court. ~~which~~ Accidental and incidental ~~approach~~ encroachment has been deemed acceptable ~~to~~ by the Supreme Court, a culture of accomodating issues need to be worked upon.

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WASEEM AHMAD BHATT
(AIR 7, 2022)

Q.20) Compare the aims and objectives of I2U2 and Quad. What importance does I2U2 hold for India? (15 marks, 250 words)

I2U2 और क्वाड के लक्ष्यों और उद्देश्यों की तुलना करें। I2U2 भारत के लिए क्या महत्व रखता है? (15 अंक, 250 शब्द)

I2U2, also known as the 'New Quad' is an alliance of India, USA, Israel and UAE while QUAD depicts the India, US, Japan and Australia alliance.

Comparison of aims and objectives

I2U2	QUAD
⊙ To foster a new paradigm in the Middle east with more beyond traditional rivalries of Israel vs. Gulf to Israel with Gulf	⊙ Aim is to ensure a rules based and open Indo-Pacific with free-navigation
⊙ Ensure a new front that can confront the rising terrorism & non-state actors	⊙ To counter China's rise and 'wolf-warrior diplomacy'
	⊙ To ensure an alliance of

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Challenges in the west Asia

- To work together to ensure energy security, water security and development of knowledge economies

free nations & democracies that acts as bulwark against chinese imperialism

The importance that I2U2 holds for India is as follows:

- Allows India to move from a 'defy fragmented' policy for Middle East to a new 'integrated policy' that cuts across the traditional fault-lines.
- Allows India the energy security from the UAE which is oil rich.
- New collaboration in technological sphere for India with Israel (eg: micro-irrigation)

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- Allow India to act as a 'mediator' in the West Asia by easing the 'maximum pressure' strategy of USA on Iran, which can result in long-lasting peace.

- New security alliances in west Asia that can act as buffer against China's 'Salami slicing strategy' of divide and rule.

⇒ Way forward

- Further members should be added who can lead to a new Middle eastern era of 'unity of arabs'.

- Closer cooperation in all spheres beyond 'trade lens' to ensure a 'rules-based order'

In this content, what Thiruvalluvar said is relevant 'wisdom is to move with changing mode of the world'

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ABHINAV SIWACH
(AIR 12, 2022)

Q.1) The role of CAG as the highest auditing authority is intrinsically linked to augmenting the efficacy of government policies and undertakings. In this context, examine how independent and efficient working of the CAG can ensure good governance? (10 marks, 150 words)

उच्चतम लेखा परीक्षा प्राधिकरण के रूप में CAG की भूमिका आंतरिक रूप से सरकारी नीतियों और उपक्रमों की प्रभावकारिता को बढ़ाने से जुड़ी हुई है। इस संदर्भ में, जांच करें कि CAG का स्वतंत्र और दक्ष कार्य किस प्रकार सुशासन सुनिश्चित कर सकता है। (अंक 10, शब्द 150)

CAG (Comptroller and Auditor General) is entrusted with audit of expenditure of government departments, undertakings to ensure fiscal prudency as per Article 148 - 150 of Constitution.

Role is linked with augmenting efficacy of government policies :-

---

(1) Ensures that fiscal prudence is maintained
(2) Acts as friend, philosopher, guide to the Public Accounts Committee (PAC).
(3) Ensures that government expenditure is technically, legally made for desired purpose.
(4) Ensures that public purse is directed towards policies that can yield results.

Eg CAG highlighted Commonwealth Games to be a complete management failure

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ABHINAV SIWACH
(AIR 12, 2022)

Independent and efficient working can ensure good governance :-

1. **Autonomy** :- can ensure **free, fair** reporting and **auditing** of government expenditure.
2. **Corruption** or **leakages** can be found, improving use of **money** and good **governance**.
   Eg **CAG** highlighted discrepancies in **coal block** allocation leading to indictment of **HC Gupta** (former coal secretary).
3. **Public money** :- can be allocated prudently, across departments, maintaining **fiscal control**.
   Eg **CAG** reports laid in Parliament by President highlight **inefficient** money use.
4. **Public policy** :- can be improved leading to good governance. Eg **CAG** finding on **4G** allocation improved spectrum allocation policy.

CAG needs to be strengthened by making its recommendations **binding** as suggested by **2nd ARC** to ensure **good and inclusive governance**.

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ABHINAV SIWACH
(AIR 12, 2022)

Q.12) Examine the significance of Representation of People's Act, 1951 in maintaining the sanctity of electoral politics in India. In light of recent events, evaluate he demands of Election Commission of India for reforms in RPA 1951 and Model Code of Conduct. (15 marks, 250 words)

भारत में चुनावी राजनीति की पवित्रता को बनाए रखने में जनप्रतिनिधित्व अधिनियम, 1951 के महत्व का परीक्षण करें। हाल की घटनाओं के आलोक में, RPA 1951 और आदर्श आचार संहिता में सुधार के लिए भारत के चुनाव आयोग की मांगों का मूल्यांकन करें। (अंक 15, शब्द 250)

Representation of People's Act (1951) was enacted to uphold free and fair elections which is part of basic structure as said by SC in Indira Gandhi Case (1975)

RPA 1951 Provisions → disqualification of voters.
→ qualification for contesting elections.

Sec 123 :- filing of affidavits, declaration

Sec 8 :- disqualification on enmity, hatred, etc.

Significance in maintaining sanctity —

1. Ensures fair play :- between all candidates and political parties (ii) - restricts influence of incumbent party in power.

2. Money power :- is checked by putting

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ABHINAV SIWACH
(AIR 12, 2022)

limits on election expenditure by candidate.

1. Muscle power - is checked by enabling Returning Officer to countermand elections if there is use of force, violence, etc.

4. Ensures that criminalisation does not take place :- by filing of asset declaration, criminal antecedents under the Act.

5. Ensures harmony :- among citizens by provision of disqualification under Section 8 on grounds of enmity, hatred, etc.

Demand of Election Commission for reforms in RPA 1951 and MCC

1. Statutory status to be given to MCC (Model Code of Conduct) to make sure there is strict enforcement of rules.

2. Trial of candidates facing charges to be completed in 1 year.

3. Hate speech should also be included

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ABHINAV SIWACH
(AIR 12, 2022)

as ground of disqualification in Section 8 of RPA (1951)

4. Filing of false affidavit be treated as criteria of disqualification under Section 125

5. Provision of enforcement power through investigation agency to Election Commission

These demands will lead to :-

1. Reduction in criminalisation - As per ADR there are 43% politicians with criminal records

2. Use of money, muscle power will reduce. As per PRS, only 33% of election limit is spent by candidates

criminal records

3. Reduce nexus of criminals, politicians and bureaucracy as highlighted by Vohra Commission

Additional Reforms :-

① Election Commissioners apart from CEC feel they are on probation (S.Y. Quraishi)

② Declaration of why ticket was given to tainted candidate (suggested by SC)

This will impact democratic politics.

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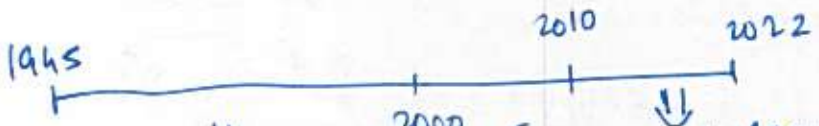
ABHINAV SIWACH
(AIR 12, 2022)

Q.17) The second decade of 21st century marks a collective failure of UN and its agencies. Examine this statement citing suitable examples. (15 marks, 250 words)

21वीं सदी का दूसरा दशक संयुक्त राष्ट्र और उसकी एजेंसियों की सामूहिक विफलता का प्रतीक है। उपयुक्त उदाहरण देते हुए इस कथन का परीक्षण कीजिए। (अंक 15, शब्द 250)

As per Indian Prime Minister, United Nations is facing a crisis of confidence. This is getting reflected in the skewed representation as well as frequent conflicts like Ukraine – Russia.



- UN Peacekeeping
- UNSC on NPT, Nuclear Supplier Group, etc.

① USA withdrawal from Afghanistan
② Ukraine – Russia

2010 – 2022 marks collective failure of UN

① Arms race :- As per Nuclear Weapon Ban Monitor there are 12,705 nuclear warheads. Around 70% belong to USA, Russia.

② Lack of pro-active role to stop

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conflicts. Eg - Russia - Ukraine conflict.

3. lack of consensus on terrorism and ways to prevent terrorism.
Eg - no consensus on definition of terrorism.
Eg - steps by UNSC member China to prevent inclusion of terrorists (earlier, Masood Azhar) in list.

4. Lack of efforts by UNHRC, UN ECOSOC to help migrants or war torn citizens.
Eg - limited support on Rohingya migrants.

5. Representation - UNSC represents the Global North but does not represent Global South such as India, Brazil etc.

6. lack of rules-based order :- Eg - violation of UNCLOS verdict by China in South China Sea.

However, UN bodies have played key role

1. Settlement of various international

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ABHINAV SIWACH
(AIR 12, 2022)

arbitrations by ICT (International Court of Justice)

2. UN is undertaking peacekeeping as well as peacemaking efforts in Syria, Yemen, etc.

3. UNHRC voted on a motion against Russian military action against Ukraine but it could not be passed.

4. UNSC have moved various resolutions like 2514 (aimed at Taliban led Afghanistan and terrorist organisations there).

5. There is rotation of membership on temporary basis of UNSC (e.g. India member for 8th term).

Ways to improve - ① Reassessment of UNSC membership to make it more inclusive ② Reduction in the veto power of P5 members ③ Creation of rules based order and ensuring enforcement through sanctions. This will lead to representative institutions which can ~~strive~~ bring peace and stability as per UN charter.

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ANOUSHKA SHARMA (AIR 20, 2022)

Q.3) Present a comparative analysis of political system of India and Sri-Lanka. How far do you agree that the reason for the economic crisis in Sri-Lanka lies in its political structure?

(10 marks, 150 words)

भारत और श्रीलंका की राजनीतिक व्यवस्था का तुलनात्मक विश्लेषण प्रस्तुत कीजिए। आप इस बात से कहाँ तक सहमत हैं कि श्रीलंका में आर्थिक संकट का कारण उसकी राजनीतिक संरचना है? (10 अंक, 150 शब्द)

In April 2022, Sri Lanka saw protests on its streets, due to economic crisis which translated into a political crisis.

* Comparative Analysis

India	Sri Lanka
→ Based on federalism & division of power	→ centralisation of power in union government
→ checks on the executive through legislatures, independent bodies like CAG, EC, etc.	→ Absence of checks on executive power and actions.
→ multiparty system	→ few parties dominate politics.
→ constitution safeguards the religions and linguistic minorities	→ Constitution adopts single language, single religion as its state policy.

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ANOUSHKA SHARMA
(AIR 20, 2022)

rights.
→ various political leaders are present

→ dominance by few like Rajapaksas, etc.

* Economic crisis due to political structure

1. The freebies distribution was unchecked while tax rates were reduced.
2. High fiscal deficit was left unchecked unlike FRBM in India.
3. Corruption by political leaders went unchecked
   ↳ Rajapaksas Airport at Hambantota through not much traffic.
4. Refugee crisis - which was due to marginalisation

Other Reasons
① → ban on pesticides
② → misutilisation of IMF loan
③ → reduced tourism which contribs 11% of the GDP

Therefore, political economy is crucial in deciding the outcomes of a country, as stated by Ivor Jennings.

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ANOUSHKA SHARMA
(AIR 20, 2022)

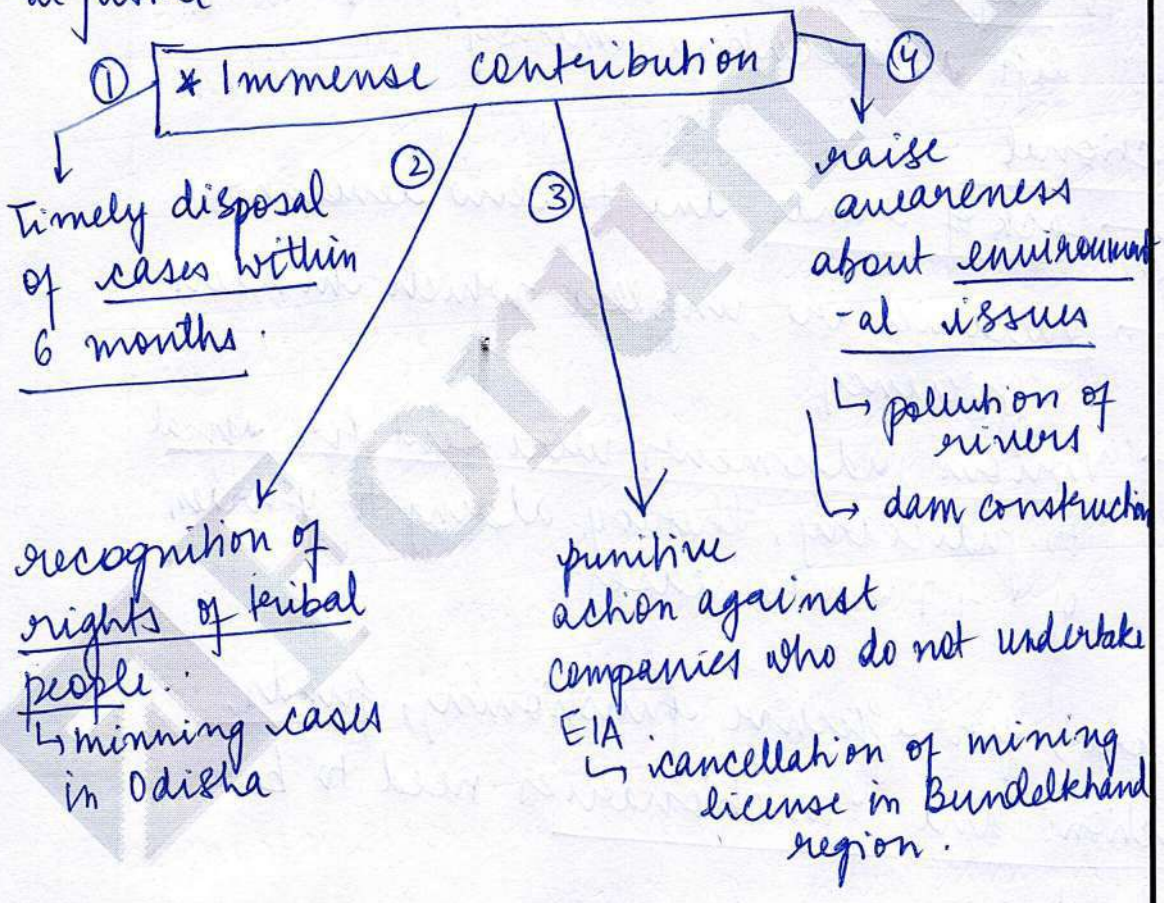
Q.5) While National Green Tribunal (NGT) has made immense contribution to protection of environment, various structural and functional issues have limited its effectiveness. Comment.

(10 marks, 150 words)

जबकि राष्ट्रीय हरित अधिकरण (एनजीटी) ने पर्यावरण की सुरक्षा में बहुत योगदान दिया है, फिर भी इसके विभिन्न संरचनात्मक और कार्यात्मक मुद्दों ने इसकी प्रभावशीलता को सीमित कर दिया है। टिप्पणी करें।

(10 अंक, 150 शब्द)

NGT was established in 2010 as a statutory body. It works on the basis of natural justice and is focused on helping achieve environment -al justice.



Therefore, it has helped immensely, but still it is plagued with certain issues.

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ANOUSHKA SHARMA
(AIR 20, 2022)

* Limited Effectiveness

- **Structural**
  1. Half the members are from administrative background with vague environmental experience
  2. limitations of appointment - as Chairperson has to be retired chief Justice of SC.
  3. Cases to be finished in 6 months have led to vague orders, with majority being left at executive mercy.

- **Functional**
  4. Lack of funds due to low devolution
  5. Vaccanies are unfilled which hinders efficiency
  6. Various judgements were sent for appeal to judiciary, thereby adding to burden of 4.7 crore cases.

Therefore, for effective functioning, funds, functions and functionaries need to be devolved.

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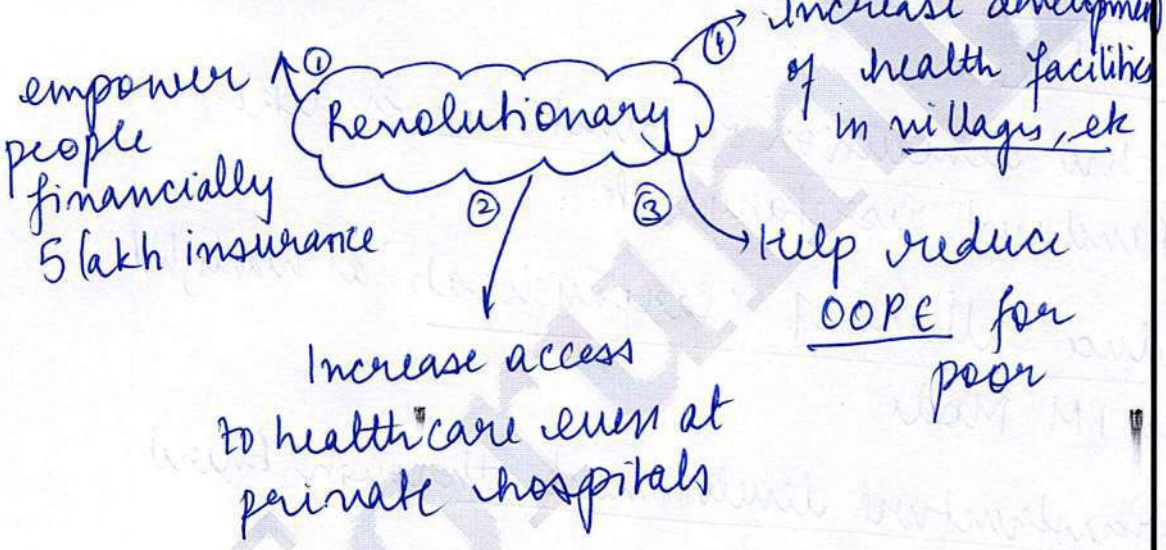
ANOUSHKA SHARMA
(AIR 20, 2022)

Q.16) Ayushman Bharat is a revolutionary intervention but falls short of recognizing the right to health as a universal basic right. In this perspective, discuss the need for and impediments in ensuring the right to health for all in the country. (15 marks, 250 words)

आयुष्मान भारत एक क्रांतिकारी हस्तक्षेप है, लेकिन स्वास्थ्य के अधिकार को एक सार्वभौमिक बुनियादी अधिकार के रूप में मान्यता देने में विफल है। इस परिप्रेक्ष्य में, देश में सभी के लिए स्वास्थ्य का अधिकार सुनिश्चित करने की आवश्यकता और उसमें निहित बाधाओं पर चर्चा करें। (15 अंक, 250 शब्द)

Ayushman Bharat scheme consists of insurance scheme as well as health and wellness centres in India.



Still several people are not able to access health care in India

* Impediments in right to health for all

1. High out of pocket expenditure - 48%. according to NFHS-5

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ANOUSHKA SHARMA
(AIR 20, 2022)

2. Low number of doctors in India - 1:1400 vs WHO stipulated 1:1000.

3. Urbanization of hospitals - where 80% of the hospitals are in cities versus 70% of the population lives in villages.

4. Low government spending - 1.5% versus 2.5% - National Health Policy.

5. Low infrastructure of testing, treatment and advanced healthcare.

*** Need for Right to Health for all**

1. Help in reducing mortality - IMR stands at 35.2.

2. Reduce burden on people for spending on secondary and tertiary care.

3. Help develop human capabilities - as highlighted by Amartya Sen.

4. Help increase equity - by reducing divide based on money, living space, etc.

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ANOUSHKA SHARMA
(AIR 20, 2022)

5. Help in better mental health - as diseases cause psychological drain.

*** Way Forward**

1. Increase healthcare spending to 3% as recommended by Srinath Reddy committee
2. Incorporation of technology to help increase access to people, such as through National Digital Health Mission.
3. Increase affordability to setting up AIIMS like institutions (Swasthya Nidhi fund) and affordable medicines through Asudhi Kendras.

Therefore, healthcare is necessary is help achieve productive citizens, who can help us achieve the goal of SDG - Good Health and wellbeing.

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PREKSHA AGRAWAL
(AIR 30, 2022)

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Q.17) Assess the performance of MGNREGA in generation of sustainable employment and creation of durable assets in rural India. Can this model be replicated in urban areas as well?
(15 marks, 250 words)

ग्रामीण भारत में स्थायी रोजगार के सृजन और टिकाऊ परिसंपत्तियों के निर्माण में मनरेगा के प्रदर्शन का आकलन करें। क्या इस मॉडल को शहरी क्षेत्रों में भी दोहराया जा सकता है?
(15 अंक, 250 शब्द)

MGNREGA was launched in 2005 as a 100 day guaranteed rural employment scheme which was aimed to prevent distress migration in lean season.

Peformance of MGNREGA in :-

① Generation of sustainable employment

- Provide employment to almost 40% rural population.
- 55% rural women got MGNREGA wages as Ist wage employment.
- 30% reported increase in family owned assets.
- During COVID-19, MGNREGA absorbed excess

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village returning migrant population thus taking figure from 44 cr. ⟶ 48 crore.

Issues →
- corruption in muster rolls.
- Almost 30% didn't get wages on time.
- Farm income replaced by MANREGA income
- Unemployment allowance not given by states

② Creation of durable assets

- 60:40 wage-material ratio at district level.
- Geotagging of assets allowed for check of quality in real-time.
- Asset quality check by III party., social audits.
- Inclusion of farm ponds, cowsheds.

Issues →
- Asset quality still poor in some places
- local demands not taken care of.

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To replicate the model in uban areas — states like Rajasthan, MP, Tamil Nadu, have brought out some schemes.

Positives	Issues
· Tackle issue of uban poverty, slum proliferation · Low and unskilled population can find work · Reduce income inequality (Gini coefficient 0.7)	· Huge expenditure involved. · Different skill sets in uban areas to be mapped separately

However, assured wage ~~un~~employment scheme for uban areas is a good step and results need to be monitored on pilot basis.

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PRIYANSHA GARG
(AIR 31, 2022)
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Q.8) India's need for energy security and connectivity to Eurasia, requires India's engagement in the Central Asia region not only at the bilateral level but also at a collective level. Analyse. (10 Marks, 150 Words)

India recently conducted its first dialogue at Samarkhand with Central Asian Countries. This highlights growing importance of central Asia.

To meet energy security

1) Central Asian countries have rich deposits of Uranium, ~~(Kazakistan)~~ ~~and~~ oil and gas (Uzbekistan, Kazakistan, Turkmenistan). It will help diversify ~~its~~ import basket and decrease dependence on OPEC.

2) TAPI pipeline is an upcoming project to connect India and Central Asia.

3) Caspian Sea littoral Countries open new arenas for energy resources.

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PRIYANSHA GARG
(AIR 31, 2022)

To ensure Connectivity to Eurasia

① INSTC will require collaboration with Central Asia.

② Ashgabad Agreement, recently signed will increase connectivity b/w between gulf of persia and Central Asia & Eurasia.

③ Important for success of Chabahar Port also.

Greater Engagement Required

→ Regional level talks at SCO will help in collecting devising a policy

→ At bilateral levels separate engagement will help counter increasing chinese presence.

The need is to create a dedicated policy. Further regular dialogue at ministerial level on sidelines of other summits.

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PRIYANSHA GARG
(AIR 31, 2022)

Q.10) India's role as 'Net Security Provider' in the Indian Ocean region to be effective requires a productive multilateral forum. Evaluate. (10 Marks, 150 Words)

Net security Provider means a country that ensures security of region and other countries in it. It aims to ensure better law implementation and inclusive growth for all.

Why India should be Net security Provider

→ India is a aspiring power which great presence in Indian ocean

→ To counter Chinese actions in South China Sea.

→ Ensure growth for all in the region

SAGAR :- security and growth for All in the region.

Multilateral forums in IOR

→ QUAD : US, Australia, Japan and India.

- to ensure development of all and

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counter chinese Maritime Silk Route.

(2) IONS : Indian Ocean Naval Symposium
Naval Exercise of IOR countries for better coordination.

(3) IORA : Indian Ocean Region Association for better dialogue mechanism.

(4) US changed name of Pacific Command to Indo-Pacific Command highlighting importance of IOR and India.

(5) Malabar Exercise of IOR countries.

PM recently gave the 5S for IOR.

S- Samadhan (Resolution)
S- Samridhi (Prosperity)
S- Samvad (Dialogue)
S- Suraksha (Security)
S- Sampark (Connectivity)

and highlighted India's aspiration as Net Security Provider.

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NITTIN SINGH
(AIR 32, 2022)

Q.8) The criminal justice system has made the process itself a punishment leading to the prolonged incarceration of undertrials. Highlighting the reasons for the large number of undertrial prisoners, examine the desirability of a dedicated bail law.

(10 marks, 150 words)

आपराधिक न्याय प्रणाली ने प्रक्रिया को ही अपने आप में एक सजा बना दिया है जिसके कारण विचाराधीन कैदियों को लंबे समय तक जेल में रहना पड़ता है। विचाराधीन कैदियों की बड़ी संख्या के कारणों पर प्रकाश डालते हुए एक समर्पित जमानत कानून की वांछनीयता का परीक्षण करें।

(10 अंक, 150 शब्द)

As the saying goes, going through criminal justice system in India is itself the punishment. This is due to extremely slow part of Indian judicial system.

Main reasons for large number of undertrials prisoners.

1) Large no. of arrests and lack of bail applications.
2) Inability of arrested individuals to furnish bail-bond amounts.
3) delay in judicial processes and denial of bails.
4) huge backlog of pending cases.
5) Limited incarceration facilities.
   - with growth in population, jails have not increased proportionally.

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NITTIN SINGH
(AIR 32, 2022)

Recently, S.C. has remarked that bail shall be the norm and not jail.
Asking for a bail law on lines of UK Bail law.

Desirability of bail law

1→ It is desirable for seamless bail application disposals.
2→ It will promote rules based and not as per whims of judicial magistrate
3→ It will also promote situation of over crowded jails.
4→ It will help in protecting human rights of individuals.

However, various provisions regarding bail are already available under CrPC and other related legislations.
What is required is proper implementation and following law in letter as well as spirit

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NITTIN SINGH
(AIR 32, 2022)

Q.15) The achievement of Sustainable Development Goals by 2030 can happen only if we consider local context and situations. In light of this statement, examine the critical role as well as capabilities of PRIs in meeting the SDGs. (15 marks, 250 words)

2030 तक सतत विकास लक्ष्यों की प्राप्ति तभी हो सकती है जब हम स्थानीय संदर्भ और स्थितियों पर विचार करें। इस कथन के आलोक में, एसडीजी को पूरा करने में पीआरआई अर्थात पंचायत प्रणाली की महत्वपूर्ण भूमिका के साथ-साथ उसकी क्षमताओं का परीक्षण करें। (15 अंक, 250 शब्द)

UN Paris agreement formulated the SDGs to be achieved by 2030 for all nations. They crucial for sustainable growth and achieving targets of UNFCC by 2100. Their achievement however requires strong grass roots level implementation and positive role of local governments.

Critical role played by PRIs

» PRIs form third tier of government in India. Their empowerment will

→ bring people as equal stakeholders into governance.

→ they are in alignment with the principle of subsidiarity.

→ It leads to participative democracy.

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2) This bring empowerment of each section
- reservation of 33% for women will lead to political empowerment thus achieving SDG-3 (gender equity).

3) Bring people participation into important socio-economic projects.
- improving education and health facilities. (SDG-4)
- improving local nutrition & poverty levels. (SDG-1,2)

4) Involving PRIs into environmental resource management.
- especially under PESA Act in Schedule-5 areas.
- role of Gram sabhas for approving local socio-economic development projects.

However PRIs have also been suffering from numerous challenges

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1) Paucity of funds → not being allocated to PRIs.
- moreover tied-nature of funds, results in low discretionary spending.
- It robs PRI of their decision making powers.

2) Parallel bodies at district & tehsil levels → further reduce the role of PRIs.

3) Lack of adequate functionaries also
- reduces implementation capacity
- reduces ability to effective governance.

4) Lack of awareness and education
- disempowers provisions of PRIs.
eg. women not taking oath rather their male relatives taking oaths in M.P.

Thus PRIs are crucial for achieving SDG-30, but must be implemented adequately & empowered to make a substantial impact.

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Q.3) Subsidies have morphed into a populist tool to achieve electoral objectives rather than developmental goals. Examine. (10 marks, 150 words)

विकास के लक्ष्यों के बजाय चुनावी उद्देश्यों को प्राप्त करने के लिए सब्सिडी एक लोकलुभावन उपकरण में बदल गई है। परीक्षण करें। (अंक 10, शब्द 150)

Subsidy may be defined as a grant given in order to support economically, a deserving cause. It can be of the form of
- direct fund transfer
- reduced interest rates
- viability gap grants,
- differential price gaps etc.

However, their use as an important developmental tool has been exploited to achieve electoral & political agendas:

1→ Recently given farm loan waivers in M. Pradesh, Punjab, Maharashtra.
- a populist measure
- discourages honest famer who has serviced his loans timely.
- burden of exchequer
- no actual capital or capacity enhancement takes place

2→ Free electricity to consumer eg. in Delhi.
- this can lead to cross subsidisation as burden falls on exchequer
- even those who can pay bills prefer utilising subsidy.

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3) → creates a bad culture of freebies.
- this reduces levels of election campaigning
- makes economic health of country poor and
- generates a wrong message to public.

Although subsidies do attain a very crucial aspect of upliftment of the needy and catalyse socio-economic development.

1 → Improving access to education & better skill development. by schemes like scholarships, etc.

2 → women empowerment, eg. DBT to Jan Dhan accountholders.

3 → promoting greater income security among famers eg. PM KISAN etc.

Yet their use must be rationalised and not misused to achieve political agendas. This is an offence of criminal nature.
- Public must be sensitised
- made aware of actual consequences & the impact of cross-subsidisation.

This misuse must stop immediately & only public can act.

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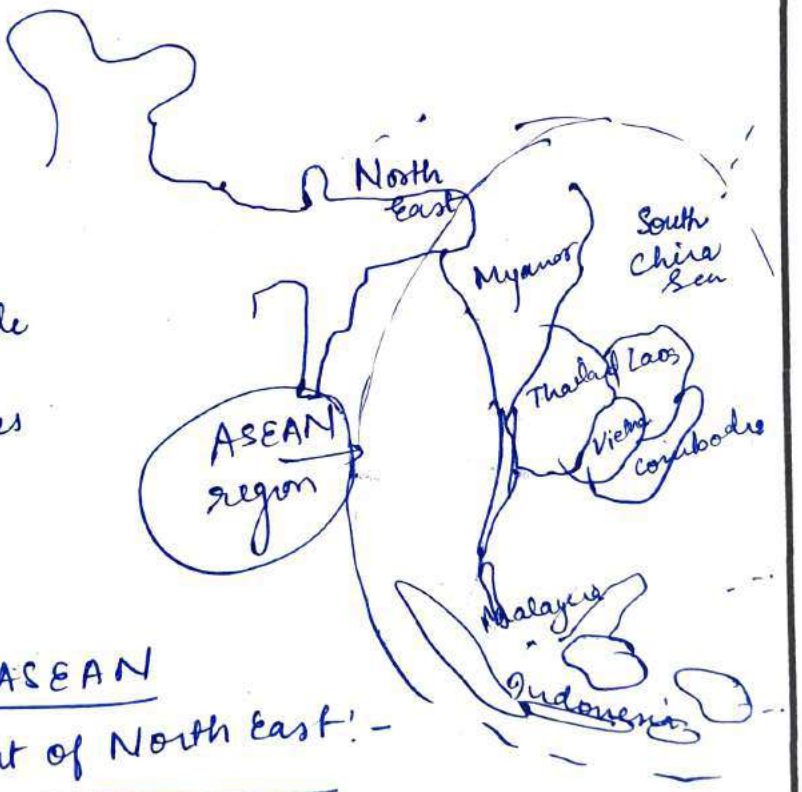
Q.18) ASEAN is not only important for development of North-East but also it remains India's gate-way to East Asia and beyond. Discuss. (15 marks, 250 words)

आसियान न केवल उत्तर–पूर्व के विकास के लिए महत्वपूर्ण है बल्कि यह पूर्वी एशिया और उससे आगे के लिए भारत का प्रवेश द्वार भी बना हुआ है। चर्चा कीजिए। (अंक 15, शब्द 250)

ASEAN was a grouping emerged after the Bangkok declaration of 1967 which included the South-east Asian Countries.



ASEAN countries are bordered with the fragile North-east states of India.

Importance of ASEAN for development of North East:-

1) **Trade** : Through trade, Investments, ASEAN can actually help in the prosperity of the North-east India.

2) **Counter-Insurgency** : Myanmar has in the

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past helped India to combat insurgency.

- **Connectivity** can be strengthened.

- **Infrastructure development** like recent India Myanmar Thailand highway project, there can be other infrastructure buildings, and assets in North eastern states through ASEAN.

- **Cultural ties** can also be strengthened in North-east as ASEAN countries have had similar histories -

ASEAN: gateway to East Asia And Beyond

ASEAN is a gateway for the east Asia as well.

- **Look East Policy** can be achieved through ASEAN countries because of India's proximity to ASEAN.

- **Connectivity with Japan** can also be ensured as there is no direct border sharing. And hence strengthening Japan-India relations.

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- **Russia Connectivity**: one of the major important gateway for Russia's far eastern cities and trade which is abysmally low with Russia can be enhanced through bypassing ASEAN.

- **Connectivity with Pacific Countries** and hence India's gateway for beyond East Asia through connectivity Indian and Pacific Ocean.

- **IMTH** India Myanmar Thailand highway can actually overcome India's connectivity and trade developments with countries to the east of ASEAN and also French Polynesia Micronesia.

Hence ASEAN as a grouping holds an important gateway for India's vision fulfilment of Look East, Act East, Look Far East Policies if India strengthens relations with ASEAN.

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Q.9) Instead of performing a transformative role, traditional bureaucracy has contributed to perpetuation of old order. Comment.
(10 marks, 15 words)

एक परिवर्तनकारी भूमिका निभाने के बजाय, पारंपरिक नौकरशाही ने पुरानी व्यवस्था को कायम रखने में योगदान दिया है। टिप्पणी करें।
(10 अंक, 150 शब्द)

'Bureaucracy' is the collective term used for the public officers who are skilled, experts and are paid and work for the administrative functions in the society.

'Bureaucracy' like civil servants is an outcome of the colonial history where emerged the concept of ICS (Indian civil services). At present we have central civil servants, All India servants, state civil servants, etc. They are considered as an important channel in the policy making and implementation.

Bureaucrats are considered to be performing a transforming role in the society by :—

-) involving citizens in decision or policy making.
-) following bottom-up approach.
-) strengthening grassroot level of democracy.
-) enhancing political and socio-economic democracy.

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However, it is witnessed that traditional bureaucracy, instead of performing transformative role, is actually leading to the perpetuation of the old order.

- There are strict rules and regulations which is going back to the Red-tapism concept.
- They are becoming the tools at the hands of politicians like in Colonial times, they were the puppets of British officers.
- They are indulging in corruption, laziness and lethargic which was again seen in the colonial times.
- Lacking the will to bring changes in the society and enhance transformation. Even in the older times, they there against such struggles.
- Lack of values of integrity, accountability and emotional intelligence

Although, there have been 'role-model' bureaucrats in the present times like IAS, Ashok Khemka and many others. So, to bring the bureaucracy the 'transformative role', we have to go for civil services reform and Purposed training.

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Q.11) Why did constitution makers prefer 'union of states' over 'federation of states' to describe India? To what extent this preference is responsible for tensions in centre-state relations?

(15 marks, 250 words)

संविधान निर्माताओं ने भारत का वर्णन करने के लिए 'यूनियन ऑफ़ स्टेट्स' के बजाय 'फेडरेशन ऑफ़ स्टेट्स' को प्राथमिकता क्यों दी? केंद्र–राज्य संबंधों में तनाव के लिए यह वरीयता किस हद तक जिम्मेदार है? (15 अंक, 250 शब्द)

Article 1 mentions India i.e. Bharat shall be a 'union of states'. 'Union of states' is a phrase used to highlight and preserve the unity and integrity of India.

Preference of 'union of states' over 'federation of states'

Our constitution-makers chose the concept of 'union of states' over 'federation of states' despite of India being a federal polity.

Unlike USA, where the federation was formulated by 'coming of states' altogether this was not the case for India.

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The draft members favoured the term of 'union of states' because of two main reasons.

- there is no 'mention' of federation anywhere in the constitution.
- to prevent the secessionist tendencies of the states

During the partition, keeping the country intact and united was a difficult task and hence, they used the term 'union of states'. The other reasons were :-

1) There was growing feeling of disharmony amid partition. So, to combat.
2) So that no state in future think itself as a 'separate entity' from the country.
3) To keep the country united despite geographical barriers.
4) To ensure the unity in diversity due to differences in culture, religion as communalism was growing during that era.

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This preference has affected Centre-State relations:-

1) There have been growing mistrusts in the states.

2) There are tensions on linguistic basis which has earlier led to the formation of state of Andhra Pradesh.

3) Issue of funds trasfer and fiscal tensions due to growing dependence of state over centre.

4) There is no autonomy to states.

5) The Parliament exercises its control over states trough governor, all-India civil services, etc.

However, this preference has also strengthened centre-state relations through judiciary ensuring federalism. Means of federal polity is ensured using cooperative federalism and fiscal federalism (14th Finance Commission Recommendations). And that's why Indian usage of the term 'union of states' brings the concept of "sui-generis" model of federalism.

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Q.15) Against the intentions of the constitution makers, the use of discretionary powers by governors has become a major source of tension in Centre-state relations. What are the discretionary powers of the Governor? Also, discuss the issues associated with them. (15 marks, 250 words)

संविधान निर्माताओं की मंशा के विपरीत राज्यपालों द्वारा विवेकाधीन शक्तियों का प्रयोग केंद्र–राज्य संबंधों में तनाव का एक प्रमुख स्रोत बन गया है। राज्यपाल की विवेकाधीन शक्तियाँ क्या हैं? साथ ही उनसे जुड़े मुद्दों पर चर्चा करें।
(15 अंक, 250 शब्द)

Governor is the head of the state and is the ~~first citizen~~ important person for the functioning of the state. He/she also acts as the agent of the centre as is appointed by the President with warrant under the seal

The constitution has given certain discretionary powers to the Governor in order to ensure impartiality and neutrality. However, with time, the Governor is seen as a major source of tension in Centre-State relations.

Every other day, there are headlines in the newspaper regarding the disputes between Governor and chief Minister (CM) It generally happens because Governor and CM are from different political parties and Governor

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uses his discretionary powers.

Discretionary Powers of the Governor :-

The constitution mentions that there will be Council of Ministers under the leadership of chief Minister to aid and advice governor except where he functions at his discretion. Some of his discretionary powers are :-

1) When there is divergence in the views of chief Minister / State executive and Governor, the decision of the latter will prevail.

2) Governor ~~after~~ can reserve any bill - ordinary, financial or money bill for the consideration of President.

3) Governor can ask the President to install President's rule whenever he feels that the situation has arisen that the state Govt cannot exercise their function.

4) Whenever there is no leader available in hung assembly, he can appoint the Chief Minister at his own will.

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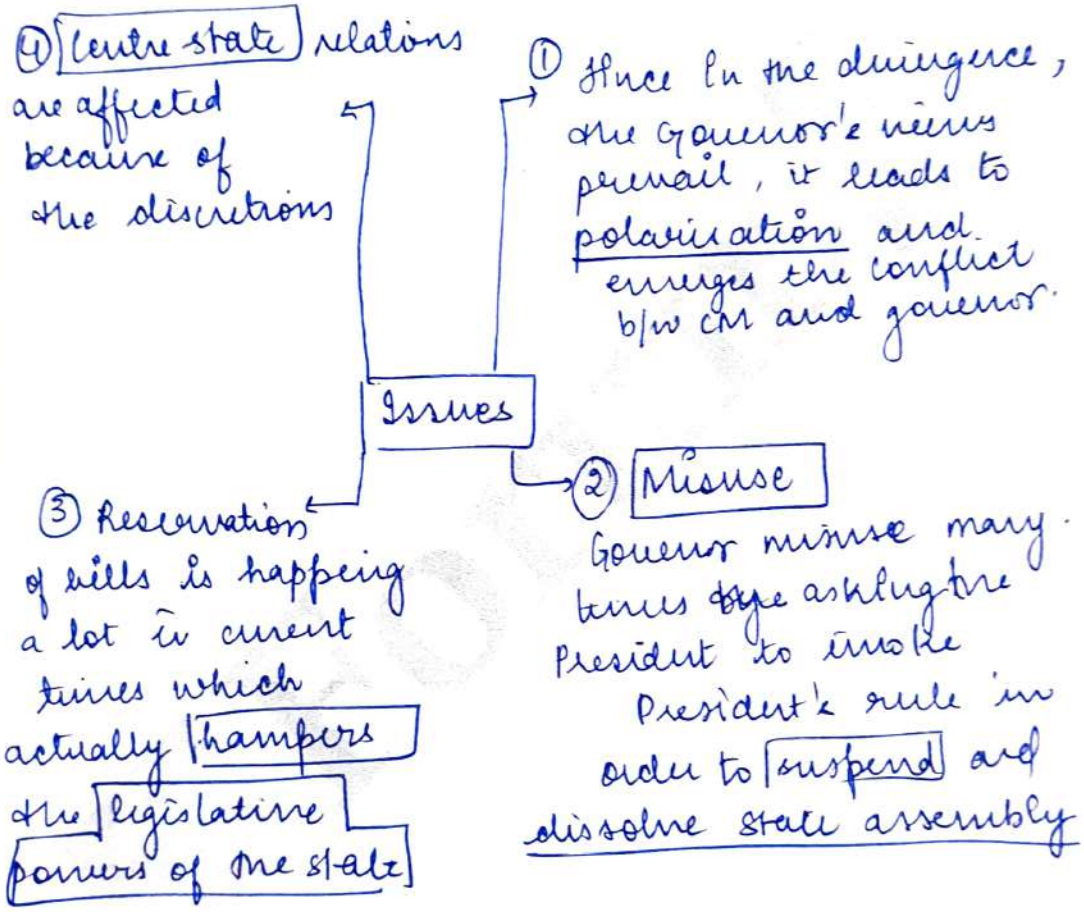
5) Governor creates autonomous district council and appoints 4 members at his own discretion.

Issues associated with the discretionary powers of the Governor :-



In order to prevent such issues, three recommendations of Sarkaria Commission need to follow for appointment of Governor in order to strengthen the state-centre link.

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PRANITA DASH (AIR 42, 2022)

Q.1) Fundamental rights chapter of the constitution is the "north star" of the universe of constitutionalism. Examine. (10 marks, 150 words)

संविधान का मौलिक अधिकार अध्याय संविधानवाद के ब्रह्मांड का 'ध्रुव तारा' है। परीक्षण कीजिए।

(10 अंक, 150 शब्द)

Ans. Articles 12-35 in Part-III of the Indian Constitution outline the fundamental rights guaranteed to the citizens as well as residents of India. The rationale behind their inclusion is to extend political democracy in India.

FUNDAMENTAL RIGHTS: NORTH STAR

1. Right to equality in A-14-18 → Every person is guaranteed 'equality before law' & 'equal protection of laws'
   - Also outlines safeguards and special policies for the vulnerable like women, children, EWS, SCs and STs.

2. Goes beyond just freedom of speech and expression in A-19 to include 'right to dissent', 'to stay silent'.
   In Shreya Singhal case, SC struck down Section 66A of IT Act, 2008 to guarantee 'freedom of speech'

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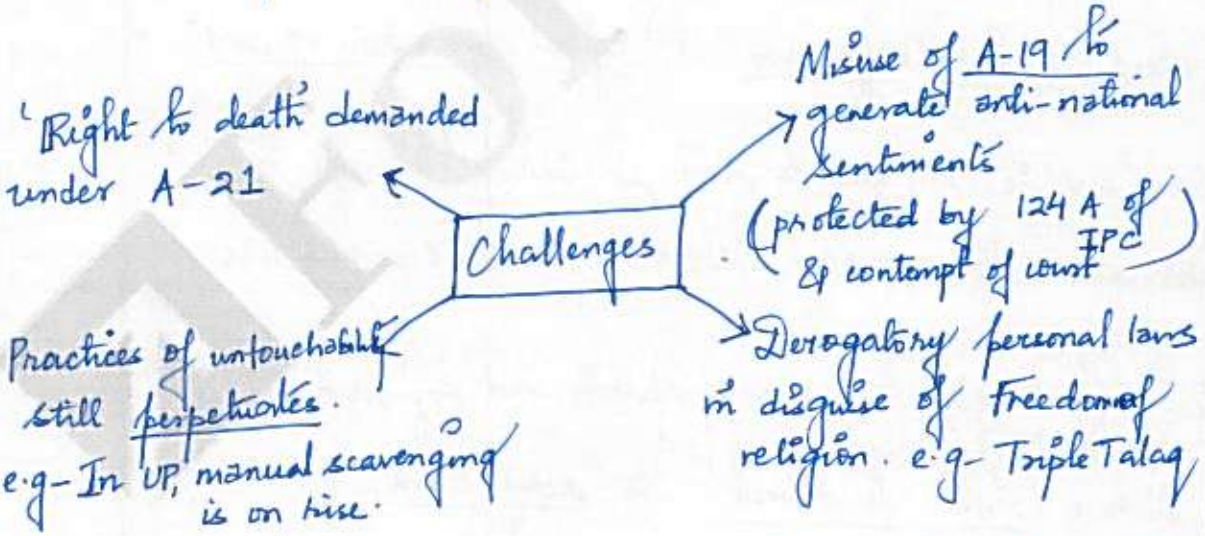
3. Abolition of untouchability and prejudices of titles - Under this, Protection of Civil Rights Act of 1955 was enacted.

4. Freedom of religion to citizens along with rights to minorities to administer their institutions, thereby upholding SECULARISM.

5. Safeguards for the arrested under Article - 20 and 22 to arrest anti-national elements. (Preventive detention).

6. Guarantees Right to life & Personal Liberty under A-21.
e.g- Puttaswamy case led to right to privacy, right to bodily autonomy, etc.



Fundamental Rights can therefore be rightly termed as the 'NORTH STAR' of the Constitution.

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PRANITA DASH
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Q.2) Just because a person is offended by someone's speech or word; it does not mean that an offence has been committed. In this context, discuss the issues surrounding the use of the section 295A and 153A of IPC. (10 marks, 150 words)

सिर्फ इसलिए कि कोई व्यक्ति किसी के भाषण या शब्द से आहत होता है; इसका मतलब यह नहीं है कि कोई अपराध किया गया है। इस संदर्भ में, IPC की धारा 295A और 153A के उपयोग से संबंधित मुद्दों पर चर्चा करें। (10 अंक, 150 शब्द)

Ans. Sections 295A and 153A of Indian Penal Code deal with 'hate speeches' that are increasingly gaining traction in background of growing polarisation on the basis of religion, ethnicity, caste, etc.

Why use of Section 295A and 153A debated?

1. Against A-19 of the Indian Constitution that guarantees right to freedom of speech and expression.
   SC in P Alavi Case outlined that mere sloganeering against a government doesnot pertain to 'hate speech'

2. Misuse by ruling parties to stiffle voices of the opposition - e.g. - Increase usages against journalists who are reportedly into 'yellow journalism'.

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3. Such provisions donot find mention in other democratic nations of US and UK.

4. ~~Few cases of misu~~ Here, Kedarnath Principle can be accounted for. As long as speech donot translate into violence, it can't be considered 'sedition'.

5. 'Promotion of enmity' → also offence under RPA, 1951.

However, 295A and 153A : Necessity

→ To curb usages of religious sentiments and promotion of enmity among religious groups.
e.g - 'Hate speeches' on religion during 'Delhi Assembly election'

→ These are reasonable restrictions under A-19 like national security and integrity of India.

→ Few cases of misuse cannot justify their total abrogation.

→ Needed to maintain peace and order situation.

SC in D. Commacem v/s Abhiram Case outlined that religious sentiments cannot be evoked during election campaigning.

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Q.7) Unless the factors that prevent effective and full participation of persons with disability in political and public life are addressed, the goal of inclusiveness and empowerment will remain elusive. Analyze. (10 marks, 150 words)

जब तक राजनीतिक और सार्वजनिक जीवन में दिव्यांग व्यक्तियों की प्रभावी और पूर्ण भागीदारी को रोकने वाले कारकों को संबोधित नहीं किया जाता है, तब तक समावेशिता और सशक्तिकरण का लक्ष्य मायावी बना रहेगा। विश्लेषण करें। (10 अंक, 150 शब्द)

Ans. According to Census 2011, disabled population in India constitute about 2.4% of the total population, thereby making their voices heard and ensuring their full participation in public life and governance is absolute must.

ISSUES PREVENTING FULL PARTICIPATION

→ Social Exclusion → Negative attitude of families towards their children in social life → Parents don't take them to social gatherings

→ Inspiration Porn - Disabled people are shown to be inspirational only because of their disabilities

→ super-crip - stress on disabilities rather than their achievements.

e.g - More emphasis on disabilities of Paralympics medallists

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→ Access to education - Only 19% of disabled have attended schools, out of which 78% are male children.

→ Lack of employment facilities due to stigma attached around their capabilities and productivity.

→ Accessibility to public infrastructures like sanitations, malls, parks etc.

→ Political representation of disabled is almost nil in India and even no reservation is guaranteed.

It is therefore important to enhance their inclusion in public and political life through:

→ Accessible India campaign - building disabled - friendly public infrastructure.

→ Institution of representation in PRIs and Parliament.

→ Rights of PwD Act, 2016 to be implemented in letter and spirit.

→ Collaboration with NGOs to spread awareness on education and social inclusion of disabled. e.g - NGO Evergreen.

→ Provision of mandatory education and employment.

Biwako Millenium framework and Incheon Strategy can be adhered to ensure equitable and inclusive development of disabled.

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Q.1) The biggest critique of Basic Structure doctrine from its inception has been it being shrouded in confusion, vagueness and a formulation which is loose and not precise. Critically examine.
(10 marks, 15 words)

मूल संरचना सिद्धांत की शुरुआत से ही इसकी सबसे बड़ी आलोचना यह रही है कि यह भ्रम, अस्पष्टता और एक सूत्रीकरण का निर्माण करती है और यह शिथिल है, सटीक नहीं। समालोचनात्मक परीक्षण कीजिए। (10 अंक, 150 शब्द)

Ans. 'Basic Structure' doctrine, a judicial innovation, was profounded by the Supreme Court of India in the Kesavananda Bharati vs State of Kerala case (1973).

BASIC STRUCTURE
- → Parliament can amend any part of the constitution
- → The amending power of Parliament does not allow it to alter and destroy the 'basic structure' of the Constitution.

* **CRITIQUES OF 'BASIC STRUCTURE' doctrine:**

1. **No 'proper' definition** - The doctrine has not been 'defined' by the Supreme Court and it keeps changing with various SC judgements.

2. **No constitutional basis** - Being a judicial innovation, there is no basis for it in the Indian constitution.

3. Experts have also criticised the above ~~qua~~ doctrine on the grounds that it poses as an unwarranted censure

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on a democratically formed government.

4. Interpretation of judiciary on what a certain policy or law might differ from that of legislature, leading to conflicts and deadlocks.

5. The 'doctrine' has sometimes been used to serve judiciary's own interests.

6. 'Basic structure' doctrine has not been very effective.
e.g- 'Federalism' was laid a 'basic feature' by SR Bommai Case, but it has not been able to deter unscrupulous and excessive usages of A-356 (President's rule).

However, 'Basic structure' theory embodies the basic tenets and ideals of the constitution.

Significance:
- 'Checks and balances'- act as limitations on constituent power of Parliament
- Being dynamic in nature, it is subject to changing conditions of Indian society and polity
- Ensures better formulation and implementation of policies
- Guarantees basic rights to citizens & upholds 'constitutionalism'.

'Basic structure' doctrine is an excellent barometer to uphold constitutionalism in the nation. However, specific definitions and codified versions of it become extremely necessary to remove vagueness.

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Q.3) The preamble is not a mere solemn resolution; but majestic expression of philosophy, principles and purpose of the constitution. Elaborate. (10 marks, 15 words)

प्रस्तावना महज एक पवित्र संकल्प नहीं है; बल्कि संविधान के दर्शन, सिद्धांतों और उद्देश्यों की प्रभावशाली अभिव्यक्ति है। विस्तृत विवेचना करें। (10 अंक, 150 शब्द)

Ans. The Preamble, according to NA Palkhivala, is called 'identity card' of the Indian Constitution. It embodies the core principles and fundamentals the Constitution is premised on and outlines the nature of the Indian state and the objectives it is trying to achieve.

* Preamble: Majestic expression of philosophy & principles →

1. Popular Sovereignty - 'People' are considered the source of constitution and thus, all offices to be opened to them without any bias.

2. Socialistic principles - India, being a mixed economy, has a capitalist ~~eco~~ class (free market) along with strong Government as facilitator of very essential goods and services.

3. Secularism - In backdrop of rising communal clashes (Delhi riots and Udaipur clash), 'secularism' becomes an important facet of constitution.

4. Sovereign - India is free from influence from outsiders and takes its all internal as well as external decisions.
e.g - Atma Bharat Abhiyan.

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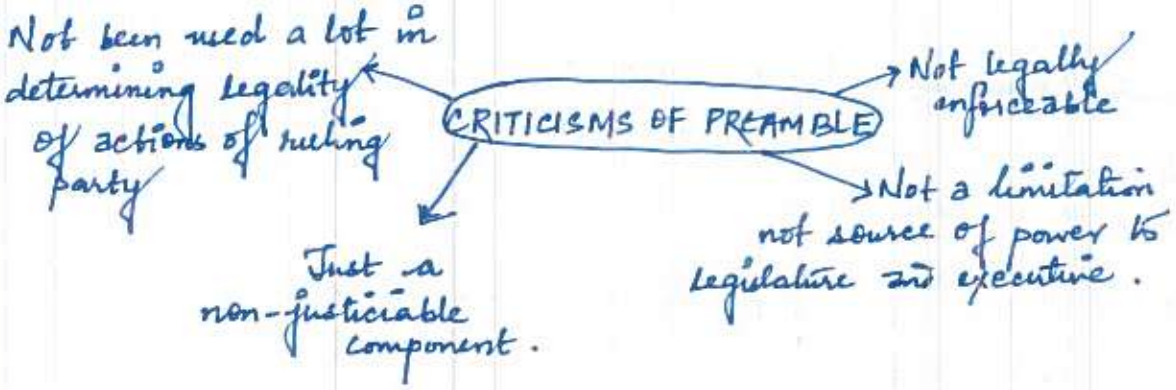
*Preamble: expression of purpose of the constitution :→

1. **Equality** - As guaranteed by Articles 14-18 and Articles 325 and 326 of the Indian constitution.

2. **Justice** - All 3 types of justice - socio, economic and political are enshrined in the Preamble.

3. **Liberty** - As guaranteed by A-19-21 of the Indian Constitution e.g- Right to Privacy, Freedom of speech and expression.

4. **Fraternity** - Preamble upholds 'fraternity' that guarantees unity of the nation and integrity of the individual.



Despite its criticisms, Preamble remains the most beautifully worded prologue in the Constitution. It has therefore been hailed as 'conscience of the Constitution' and 'mirror of the Constitution'

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Q.12) While fundamental rights have strengthened our democracy, fundamental duties are essential to strengthen our society. In this context examine the importance of fundamental duties for Indian society.

(15 marks, 250 words)

जहां मौलिक अधिकारों ने हमारे लोकतंत्र को मजबूत किया है, वहीं मौलिक कर्त्तव्य हमारे समाज को मजबूत करने के लिए आवश्यक हैं। इस संदर्भ में भारतीय समाज के लिए मौलिक कर्तव्यों के महत्व का परीक्षण कीजिए।

(15 अंक, 250 शब्द)

Ans. Fundamental Rights, enshrined in Articles 12-36 of in Part-III of the Indian Constitution aims at promoting political democracy in the country by guaranteeing equality, liberty, religion as well as constitutional remedies.

Fundamental duties, on the other hand, were added to the Indian Constitution by 42nd Amendment Act, 1976 on recommendations of Swaran Singh Committee. They enumerate duties to be followed while enjoying Fundamental Rights.

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ROLE OF FUNDAMENTAL DUTIES IN STRENGTHENING SOCIETY:

1. Strengthening fraternity - The fundamental duty of brotherhood is essential to propagate mutual tolerance and compassion in the backdrop of excessive communal clashes of today.

2. Socio-economic development - To educate children and ensure their holistic development by parents is also a fundamental duty.

3. Protection of environment - There is a duty to protect the natural environment, forests, lakes which is extremely importance in today's world which is grappling issues of global warming, climate change etc.

4. Upholding principles of founding fathers of Constitution & freedom struggle so that a sense of belongness to India as a nation is fraternity can be strengthened.

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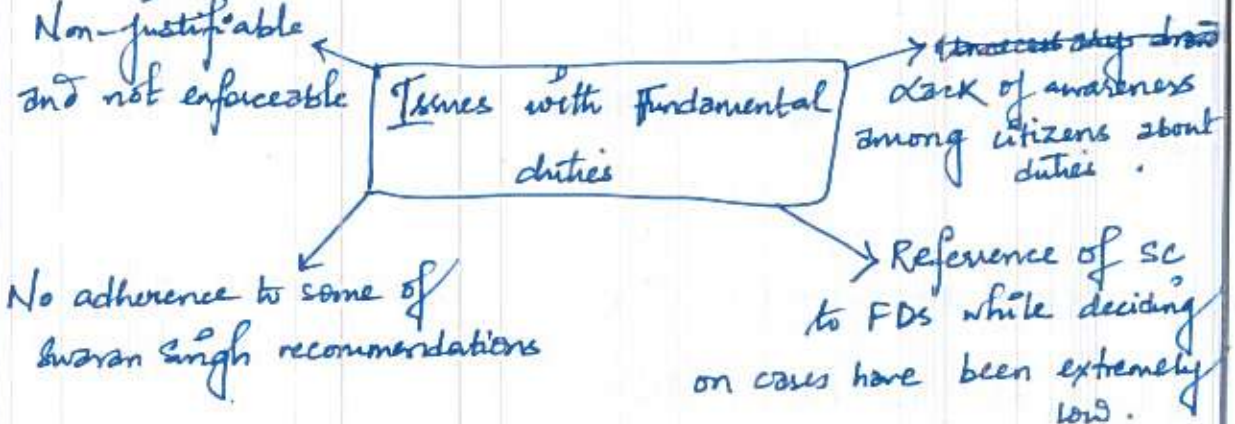
5. Scientific temper to be developed among citizens can go a long way in adapting to current technological developments

6. Beacon lights for judiciary while deciding on legality of cases.



Way Forward :→

⇒ Implementing Swaran Singh committee recommendations of duty to pay taxes, penalty on not following FDs etc.

→ Make some important fundamental duties justiciable.

→ Run awareness programs and campaigns on the importance of adhering to Fundamental duties.

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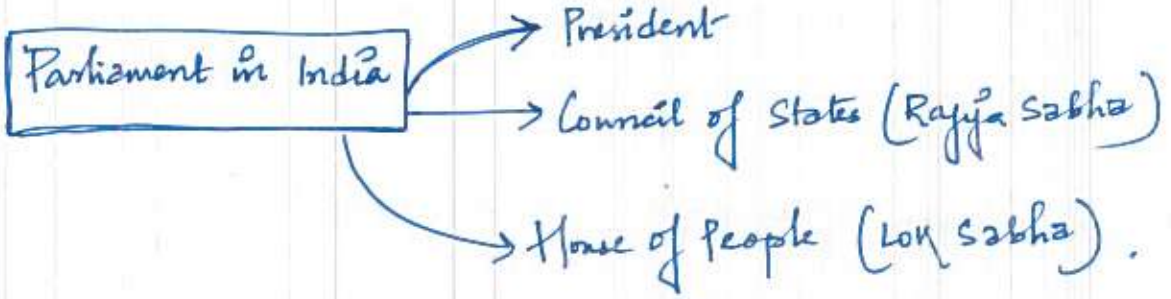
Q.16) Concerns regarding Parliamentary performance most often relate to the drastic reduction in the level and extent of deliberation, representation and scrutiny. In this context, highlight the recent instances which have led decline in effective functioning of the parliament.

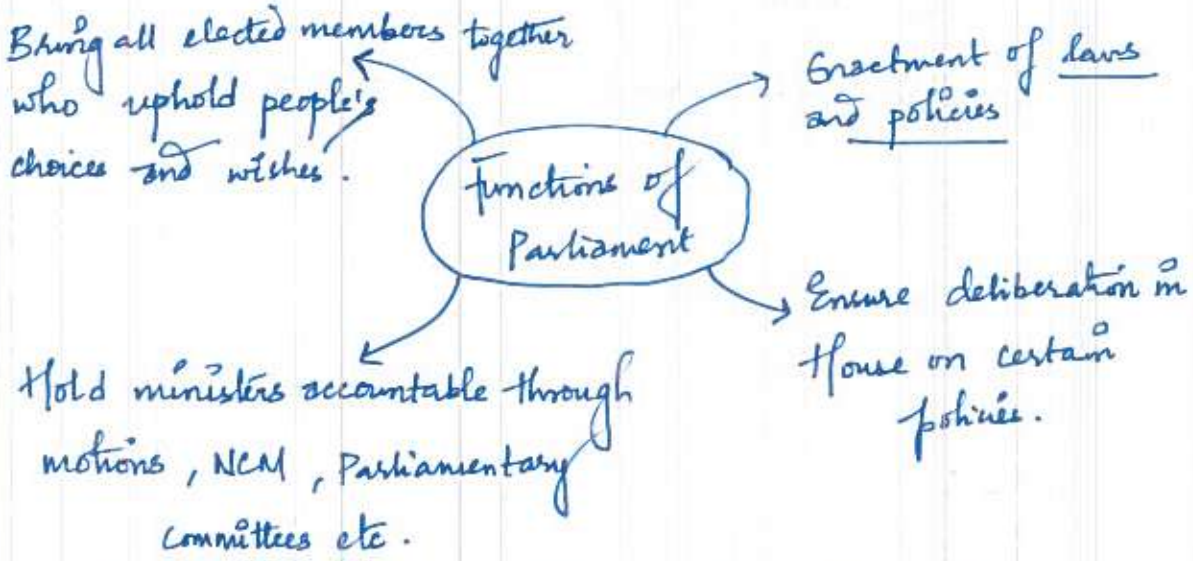
(15 marks, 250 words)

संसदीय कार्य-निष्पादन के संबंध में चिंताएं प्रायः विचार-विमर्श, प्रतिनिधित्व और संवीक्षा के स्तर और सीमा में भारी कमी से संबंधित होती हैं। इस संदर्भ में, हाल के उदाहरणों पर प्रकाश डालिए जिनके कारण संसद के प्रभावी कामकाज में गिरावट आई है।

(15 अंक, 250 शब्द)

Ans. Article 74 and 75 of the Indian Constitution establish parliamentary form of government in the centre and A-163-164 in the states.





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However, Parliament seems to have lost its charm due to its minimal reliance on deliberation, representation and scrutiny :→

1. Parliamentary committees have been rendered useless - In 2018-21, only 11 out of 22 bills passed have referred to committees. Even if they are referred, their reports are hardly discussed in Parliamentary tables.

2. In 16th Lok Sabha as well as 17th Lok Sabha, about 35% bills were discussed in detail in Houses as well as committees.

3. Question hour was suspended in LS session in 2021, thereby making it impossible for opposition to hold ministers accountable.

4. Speaker, being member of political party applies his own discretion in certifying money bills, defection cases etc.

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5. Lok Sabha has brute majority of the ruling party and thus, in passing of all motions including No-Confidence + majority wish is upheld.

Way Forward :→

1. Mandatory table of Parliamentary committee reports ~~and~~ in the LS and RS
2. Experts to be recruited in committees to produce better quality reports
3. Question Hour cannot be suspended, it has to be used excessively to uphold accountability
4. Codify powers and privileges of MPs in details as well as their functions.
5. Speaker to be made neutral (3rd party)

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Q.9) China's interest in Russia is not only that of a strategic partner, but also for it being a strategic diversion for the west. Analyze.
(10 marks, 150 words)

रूस में चीन की दिलचस्पी न केवल एक रणनीतिक साझेदार की है, बल्कि इसके लिए भी है कि यह पश्चिम के लिए रणनीतिक रूप से विचलनकारी हो। विश्लेषण करें।
(10 अंक, 150 शब्द)

Growing Russia - China convergence was highlighted in their recent joint statement mentioning their outstanding relationship.

China's Interest in Russia : As Strategic Partner

1. Secure reliable arms and defence supply from Russia (e.g. S-400 air defence)

2. **Geoeconomics** → Russia as market for Chinese goods
   ↳ China as market for Russian oil & gas
   ↳ Reduces China's Malacca dilemma

3. **Geopolitical**
   ↳ To balance the West at UNSC
   ↳ China's support to Ukraine war will ensure Russian political support to future Taiwan invasion

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Russia as Strategic Diversion for West

1. Growing US-China rivalry had concentrated West efforts against China
   Ex: Quad (Indo-Pacific)

2. By promoting Russia as conflict zones for West, the latter's attention has been diverted to Russia
   Ex: ↳ rejuvenation of NATO to Eastern Europe
   ↳ ensuring more funds and weapons for Ukraine

3. It is expected to reduce Western influence in Indo-Pacific due to fragmentation of resources

4. War-induced inflation in West further expected to divert attention to domestic issues.

5. Vulnerability of West exposed due to sanctions on oil & gas from Russia
   Important for India to maintain strategic autonomy and not become a pawn in West v/s Russia - China war.

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Q.14) Multiplicity of central investigative agencies leads to not only problems of overlapping jurisdiction and duplication of functions but also dilution of federal principles. Highlighting various issues related to the functioning of central investigating agencies, argue the case for an independent umbrella body for their regulation. (15 marks, 250 words)

केंद्रीय जांच एजेंसियों की बहुलता न केवल अतिव्यापी अधिकार क्षेत्र और कार्यों के दोहराव की समस्याओं की ओर ले जाती है बल्कि संघीय सिद्धांतों को भी कमजोर करती है। केंद्रीय जांच एजेंसियों के कामकाज से संबंधित विभिन्न मुद्दों पर प्रकाश डालते हुए, उनके नियमन के लिए एक स्वतंत्र रूप से संगठित अर्थात अम्ब्रेला निकाय के पक्ष में तर्क दीजिए। (15 अंक, 250 शब्द)

(CCIA)

The central investigating agencies, refers to bodies like CBI, ED, NIA that are tasked with investigation and come under control of Union government.

Issues Related to Functioning of CIAs

1. Misused for political ends in states ruled by Opposition parties
2. Article 246 and Seventh Schedule mention "police" as State List subject
   Ex: Chhattisgarh against NIA Act 2008
3. Often overlap of jurisdiction between CBI and ED e.g. recent Delhi excise raid leading to fragmentation of resources and

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shifting of accountability

4. Duplication of function between CBI and state police leads to lower specialisation of state police and overburdened CBI.

5. Withdrawal of "general consent" by states to CBI leads to greater red-tapism

6. Lack of independence and professional autonomy of CIAs (e.g. CBI: "caged parrot")

Independent Umbrella Body for Regulation

BENEFITS

1. Better oversight over CIAs as it can take broader perspective
2. Enhanced co-ordination among CIAs
3. Prevent duplication of resources
4. Apolitical functioning can be ensured

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5. Ensure accountability of CIAs to Parliament

CHALLENGES

1. All agencies have own specific role
   NIA → terror cases, CBI → law & order,
   ED → financial crimes,
   so difficult for common regulation
2. May lead to greater diversion of resources
3. Stifle functioning due to over-regulation
4. May not solve federal tensions

WAY FORWARD

1. Need to overhaul legislative framework to prevent overlap & duplication
2. Parliamentary oversight panel be set up

There is need to ensure greater transparency ~~so~~ in functioning of CIAs to maintain their effectiveness.

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Q.3) Discuss the status of death penalty in the country. Can a governor pardon a death penalty? What are various limitations of pardoning power of governor? (10 marks, 150 words)

देश में मृत्युदंड की स्थिति की विवेचना कीजिए। क्या राज्यपाल मौत की सजा माफ कर सकता है? राज्यपाल की क्षमादान शक्ति की विभिन्न सीमाएँ क्या हैं? (10 अंक, 150 शब्द)

Death penalty refers to the extreme form of punishment to a criminal by taking away their life. It is a form of retributive ~~for~~ justice which has been banned by over 100 countries (Amnesty International).

Status of Death Penalty in India

1. It is legal for courts to award death penalty
2. Guidelines laid down in Bachan Singh (1980)
   - 2.1 Must restrict to "rarest of rare" cases
   - 2.2 Only when "collective conscience of society" was shaken due to crime
   - 2.3 The court must also evaluate possibility of reform of accused
   - 2.4 Take into account background — age, mental health, econo etc, not just crime

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Role of Governor in Death Penalty

1. He/she cannot pardon a death penalty
2. He/she can only commute a death penalty to life imprisonment

Limitations on Pardoning Power of Governor

1. Cannot pardon death penalty
2. Cannot pardon awards of armed forces tribunal
3. To be exercised in consultation with state Council of Ministers
4. Does not acts as a judicial court; cannot go into facts of case or say that court judgement was wrong
5. Cannot be sought as a right of accused.

There is a need to review death penalty as it prevents an opportunity to save a human life.

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Q.16) Why do Indian universities find it difficult to break into the ranks of top global universities? How can Indian institutions of higher education be transformed into global centres of learning?
(15 marks, 250 words)

भारतीय विश्वविद्यालयों के लिए शीर्ष वैश्विक विश्वविद्यालयों की श्रेणी में आना मुश्किल क्यों है? भारतीय उच्च शिक्षा संस्थानों को वैश्विक शिक्षा केंद्रों में कैसे बदला जा सकता है?
(15 अंक, 250 शब्द)

Even as India does not have any institute in top 100, US has 25 and China has 8 in top 100 (QS rankings.)

Reasons for Indian universities lagging behind

1. Low number of foreign students in India
   - nature of admission process
   - already High demand from Indian students
   - lack of infra-structure, faculty
2. Almost negligible foreign faculty at Indian institutes
3. Rankings have component on "Students Perception Across World" on which Indian

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universities perform badly due to poor branding, marketing, etc done abroad

4. Low R&D expenditure in India (0.7% of GDP)
   China : 2.2% of GDP
   ↓
   Low quality research work
   ↓
   Low number of publications in journal of repute

5. Outdated curriculum and teaching methods

6. Lack of employability of graduates
   (Only 3% employable : AICTE)
   ↓
   Poor employer perception

7. Poor infrastructure on campus
   - accommodation
   - laboratories
   - sports
   - food

Transformations to Global Centres of Learning

1. Improve fundamentals on priority

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1.1 Teachers / Faculty
1.2 Quality of infrastructure

2. Industry - academia linkage → Rise in R&D spend

3. Links with Alumni network → Positive perception
→ Donations
(Ex: Satya Nadella & Manipal)

4. Open up foreign campuses → Better visibility and perception

5. Leverage Indian missions abroad to promote "Study In India", VAJRA, GIAN

⇓

Increase presence of foreigners on campus

6. Reform curriculum in lines with industry needs
6.1 Promote industrial internships, job fairs

Through co-ordinated actions, Indian universities can become Vishwa Guru as in the past like Nalanda University.

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Q.11) Electoral reform is a continuous effort to make election funding transparent, election process inclusive, and political parties accountable. Discuss issues related to election funding, proposal for remote voting and regulation of Registered Unrecognized Political Parties (RUPPs).

(15 marks, 250 words)

चुनावी फंडिंग को पारदर्शी, चुनाव प्रक्रिया को समावेशी और राजनीतिक दलों को जवाबदेह बनाने के लिए चुनावी सुधार एक सतत प्रयास है। चुनावी फंडिंग, दूरस्थ वोटिंग के प्रस्ताव और पंजीकृत गैर–मान्यता प्राप्त राजनीतिक दलों (आरयूपीपी) के विनियमन से संबंधित मुद्दों पर चर्चा करें।

(15 अंक, 250 शब्द)

Electoral reforms lie at the core of changes needed to truly realise the constitutional objective of free & fair elections & substantive democracy

Issues

Election funding: Electoral bonds scheme since 2018 (> ₹10,200 crore worth of bonds).

→ Anonymity & opacity

→ Against free & fair elections

↳ >96% funds to 1 party (ADR)

↳ disadvantage to smaller parties (restriction - 1% vote + registered)

→ Enables crony capitalism, regulatory capture

↳ 91% funds of >1 crore bonds

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→ issue of opaque foreign funding
→ passed without scrutiny (money bill)
↳ matter pending in court
→ removal of 7.5% limit on profit of companies

Remote voting → to enable NRIs to vote
↳ already registered as electors (RPA Amendment)

→ logistical challenges
→ maintaining integrity of electoral process
↳ how to ensure if voter remote
→ questionable legitimacy of remotely polled votes
Eg Trump's allegations in US President election

RUPPs: under Sec 29-RPA, 1951, Election Commission registers political parties. However, recognition based on poll performance
→ mushrooming of small RUPPs

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→ used as fronts for → crony capitalism
→ money laundering

→ unregulated by EC → opaque intra party finances
→ compromise on electoral integrity

Way forward

Electoral Reforms are needed to deal with each of these issues :-

→ Electoral bonds
- remove opacity/anonymity
- public disclosure of donation
- re-instate % limit on profits
- speedy judicial scrutiny

→ Remote voting — assess feasibility, cost-benefit ratio

→ RUPPs — give EC power to deregister
- intra party regulation powers to EC especially with respect to finances

Only with these reforms can we realise goal of transparency, accountability & inclusivity of electoral process

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Q.17) Assess the performance of MGNREGA in generation of sustainable employment and creation of durable assets in rural India. Can this model be replicated in urban areas as well?
(15 marks, 250 words)

ग्रामीण भारत में स्थायी रोजगार के सृजन और टिकाऊ परिसंपत्तियों के निर्माण में मनरेगा के प्रदर्शन का आकलन करें। क्या इस मॉडल को शहरी क्षेत्रों में भी दोहराया जा सकता है?
(15 अंक, 250 शब्द)

MGNREGA was passed in 2005 as an act to provide right to employment (demand-based framework) – atleast 100 days to an adult of every household that volunteers to do unskilled manual work. Human Development Report 2015 hailed it as a "milestone" in provision of employment in the country.

Positives of MGNREGA :-

① Creating employment opportunities
↳ ~ 363 crore person workdays generated (2021-22)
↳ provides employment to 1/3rd of rural population at 0.35% of GDP cost

② Enhanced wage disbursal
↳ 70% of MGNREGA funds on wages (labour intensive)
↳ contestability in rural markets with bargaining power ↑ for workers

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(3) Reduced distress rural-urban migration

(4) Enhanced rural income ⇒ poverty alleviation
↳ MoRD Report: 14 million people prevented from falling into poverty

(5) Social inclusion (Self targetting nature) → ~19% SC, ~18% ST, ~55% women (of Total person workdays generated)

(6) Creation of durable assets → sustainable development
(eg) watershed development, aforestation, land development etc

Issues in performance:

(1) Inadequate fund allocation → delayed wage disbursal, non provision of employment
↳ ₹73000 crore in 2022-23 same as 2021-22
vs. Actual expenditure ~ ₹1,11,000 crore in 2020-21

(2) Nature of scheme changing demand driven → to → supply driven for funds

(3) Low wages ~ ₹208 per person per day < ₹375 min wage

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④ Low & stagnating no. of workdays created
↳ ~ 50 days average per household (vs 100 days target)

⑤ Poor monitoring & accountability of assets
↳ lack of social audit

⑥ State-wise skewed implementation
↳ UP - largest no. of poor with little MGNREGA use, agri Bhagwati & Panagariya

Replication in urban areas :-

Desirable :-
↳ large urban unemployment (6.7% - PLFS 20-21)
↳ rural-urban migration ⇒ distress in cities
↳ huge informal, low paying jobs sector in urban areas

Possible :-
↳ database of urban unemployed - can link with e-SHRAM Portal of unorganised workers
↳ fusion of urban infrastructure creation & MGNREGA (durable assets)
↳ use of ICT (eg GeoMNREGA, NREGASoft apps for geotagging, monitoring of assets.

Having MGNREGA in urban areas can help reduce unemployment rate (4.2% - PLFS)

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Q.20) Compare the aims and objectives of I2U2 and Quad. What importance does I2U2 hold for India? (15 marks, 250 words)

I2U2 और क्वाड के लक्ष्यों और उद्देश्यों की तुलना करें। I2U2 भारत के लिए क्या महत्व रखता है? (15 अंक, 250 शब्द)

I2U2, also called as West Asia Quad, is a grouping of 4 countries - India, Israel, USA & UAE, & represents a confluence of India's "Look West" & USA's "Pivot to Asia" Policies. Quad, on the other hand, is a grouping of 4 maritime democracies surrounding the Indo-Pacific - Australia, Japan, USA & India.

Comparison :-

① Both seek to counter Chinese dominance

Quad → In Indo Pacific (South China Sea - 9 dash line)

I2U2 → In West Asia (BRI projects)

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② both have developmental goals based on cooperation

Eg Quad-Supply Chain Resilience Initiative, I2U2 - Global food Park in Gujarat, Hybrid Energy Power Plant

③ While Quad also engages in military cooperation (Exercise Malabar, 2+2 dialogue of India with all Quad members), I2U2 is not a military alliance - focuses on renewable energy, water, climate change etc.

Importance of I2U2 for India:-

① Another alliance to counter Chinese aggression - can supplement efforts of Quad

② Enhanced food security, climate resilience
- Global food Parks investment by UAE
- technology & practices sharing by USA, Israel (Micro irrigation etc)

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(3) Builds on bilateral cooperation
↳ Recent CEPA with UAE, defense partnership with Israel

(4) Continuation of dehyphenation policy - supported by Abraham accords between Israel & Arab states

(5) Support for peaceful West Asia as part of Look West Policy

Thus, I2U2 holds great potential as another arena of multilateral cooperation & can prove to be a stepping stone in enhancing India's influence in its extended neighbourhood

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Q.7) Subsidies have morphed into a populist tool to achieve electoral objectives rather than developmental goals. Examine. (10 marks, 150 words)

विकास के लक्ष्यों के बजाय चुनावी उद्देश्यों को प्राप्त करने के लिए सब्सिडी एक लोकलुभावन उपकरण में बदल गई है। परीक्षण करें। (10 अंक, 150 शब्द)

The recent debate on giving freebies has brought into focus the role of subsidies given by the welfare state.

Developmental goals [Merit subsidies]
- Food subsidy (PDS & NFSA) → food security
- Fertilizer, irrigation, seed subsidy → agricultural self sufficiency
- LPG subsidy → clean cooking fuel

Morphing into populist tool

1. Linking with electoral cycle
   - eg free electricity, public transport announcement before elections.
2. Political gain
   - eg farm loan waivers.

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Issues with using subsidies for populism:-

1. Fiscal costs & unsustainability
   - highlighted by NK Singh
   - fiscal deficit at 6.4% in Budget 2022-23
   - eg food subsidy bill ₹2,60,000 crore
2. Wasteful use
   - eg overuse of fertilizer urea → poor soil health, groundwater depletion
3. Health of economy
   - eg debt-ridden DISCOMs – need to bail them out by more public expenditure

Way forward

1. Use of DBT eg PM KISAN, LPG Pahal scheme
   - minimise leakage, corruption
2. Get rid of freebie culture ('revadi' culture)
   - SC established committee to look at issue

Ultimate test of subsidy → if it is adding to public welfare – not be guided by political gains.

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Q.16) Why do Indian universities find it difficult to break into the ranks of top global universities? How can Indian institutions of higher education be transformed into global centres of learning?

(15 marks, 250 words)

भारतीय विश्वविद्यालयों के लिए शीर्ष वैश्विक विश्वविद्यालयों की श्रेणी में आना मुश्किल क्यों है? भारतीय उच्च शिक्षा संस्थानों को वैश्विक शिक्षा केंद्रों में कैसे बदला जा सकता है?

(15 अंक, 250 शब्द)

In the recent QS world Rankings, only 41 universities managed to make it to the list – a reminder of the poor performance of Indian universities in global rankings.

Reasons for poor global performance

1. Lack of funding for higher education
   - ↳ ~ 3% GDP on education sector
     [vs 4.7% – world average (World Bank)]
2. Quality assurance & accreditation frameworks lacking – especially given private sector dominance

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↳ 71% colleges
78% standalone institutes] in private sector (Niti Aayog 2016)

③ Poor quality research
↳ lack of peer-reviewed, good quality publications, research infrastructure
↳ only 0.7% of GDP on R&D

④ Low learning outcomes - making youth not employable
↳ India Skills Report 2018 : only ~47% of graduates of higher edu inst are employable

⑤ Issue of faculty — vacancies
— poorly trained
— no on-the-job training, research orientation

⑥ Low Gross Enrollment ratio : & increasing drop outs in higher education
↳ 26.3% GER in 2018

⑦ Outdated & multiple regulatory structures
↳ stifling creativity

⑧ Old curriculum — rigid, not catering to market demand

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To transform into global institutes:—

① Governance Reforms - support of state needed
(eg) Higher Education Commission of India, merger/structure multiple bodies - UGC, AICTE etc

② Curriculum upgrade - built by domain experts on current trends

③ Outcome-based compulsory accreditation

④ Focus on skilling & employability
(eg) Delhi Skills & Entrepreneurship University

⑤ Enhanced funding
NEP 2020 : target 6% of GDP by 2025

⑥ Flexibility in courses, interdisciplinary nature
(eg) Academic Bank of Credit (NEP) - transfer of credits between universities

⑦ E-education — reduce faculty crunch
(eg) SWAYAM portal, e-PG Pathshala

⑧ Monitory of Institutions of Eminence Scheme

India has been famous for its universities since ancient times - Nalanda, Vikramshila - need to re-gain global glory & recognition.

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Q.6) Sustainable alliance between Non-Governmental Organizations (NGOs) and the State is critical for social change and development. Highlighting hurdles in this developmental alliance, suggest remedial measures for a more productive partnership. (10 marks, 150 words)

गैर–सरकारी संगठनों (NGOs) और राज्य के बीच टिकाऊ गठबंधन सामाजिक परिवर्तन और विकास के लिए महत्वपूर्ण है। इस विकासात्मक गठबंधन में बाधाओं को उजागर करते हुए, अधिक उत्पादक साझेदारी के लिए उपचारात्मक उपायों का सुझाव दें। (10 अंक, 150 शब्द)

Non-Governmental Organisations (NGO) are private associations formed on voluntary basis to realise social goals like education, health for all etc. to achieve ideals of welfare.

Sustainable alliance between NGO and state is critical for social change and development due to –

(1.) Encourage fulfillment of Social Indicators ← Education, Health, Gender

(2.) Better identification of Beneficiary ← prevents leakage, Eliminate Corruption, raises level of standard.

(3.) Supplementary to implement schemes where gaps are implicit ← Effective and economic change

(4.) Citizenry Empowerment ← Effect opinions participation

(5.) As agent of social change.

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Examples

(1.) Prarthna ≡ encourages education for tribals
(2.) Naz Foundation ≡ Rights for LGBTQIA+
(3.) Shakti Shalini ≡ Rights for women of abuse
(4.) Sabla ≡ Rehab.

In recent times, certain laws and actions from NGO has put a dent on this alliance

(1.) Draconian measures of FCRA, 2020
(2.) Less Registration of NGO - (2-3)%
(3.) NGOs acting as agent of Extremism and foreign players.
(4.) Lack of financial prudence

Thus, measures for more productive NGO-state partnership

State side
(1.) Allow easier registration
(2.) Prevent Red tapism
(3.) Liberal use of finances
(4.)

NGO side
(1.) Proactive compliance of laws
(2.) Prevent being house of extremism
(3.) Social audit

Thus, NGO as agent of social change can transform society and effect more production

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Q.15) Harnessing public sector data is vital for informed decision making, accelerating socio-economic transformation and democratizing innovation in the country. In this context, highlight the various bottlenecks in public data sharing and suggest strategies for unlocking true value of data. (15 marks, 250 words)

सार्वजनिक क्षेत्र के डेटा का उपयोग सूचित निर्णय लेने, सामाजिक–आर्थिक परिवर्तन में तेजी लाने और देश में नवाचार को लोकतांत्रिक बनाने के लिए महत्वपूर्ण है। इस संदर्भ में, सार्वजनिक डेटा साझाकरण में विभिन्न बाधाओं को उजागर करें और डेटा के वास्तविक मूल्य को अनलॉक करने के लिए रणनीति सुझाएं। (15 अंक, 250 शब्द)

India, a country of 1.40 billion people generates data in amount unimaginable to a human mind. Public data is this data of citizen relating their demography, choices, opinions, interests, and thought in form of -

(a.) Sex, age, name, religion, caste
(b.) verbal opinion, texts, social media, conversations over phone, internet

Such data is vital for informed decision making due to following reasons -

(1.) Better Analytics of need, interests
(2.) Informed Policies and welfare measures
(3.) Prevent social corruption
(4.) Better provisions of schemes and identification of Beneficiaries.
(5.) Safeguards vulnerables and minorities.

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(6.) Realisation of goals enshrined in DPSP (Directive principles of state policy).

(7.) Enhance Public Trust and social cohesion.

(8.) Improve social Condition and Standards.

Despite of large benefits various bottlenecks in Public data sharing

(1) Administrative challenges.

1. Data management challenges
2. Lack of requisite skills and efficiency
3. Lack of Data Analytics.
4. Misuse of Data by administrators.

(2) Challenges for citizens

1. Privacy issues
2. Intrusion into private spheres (invoilable rights)
3. Influence opinions
4. Create artificial demands
5. Shaming

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③ Other challenges

① Data selling leading to publication → aadhar data was leaked

② can lead to racial profiling based on ← sex, caste, minority, Religion

③ Access to data of Public.

④ Quantum & Quality of use ← who to decide? who to manage?

⑤ Insufficient Data management Bill → Still pending

Thus, it needs clear and succint use of data and measures as-

① localisation of data storage
② Data management Authority
③ Prevent private and personal data storage
④ Timelines for destruction of stored data
⑤ Effective curbs to fight leakage
⑥ use of Non-Personal data without exposing identity.

Data in 21st Century is key to realisation of great success thus a balanced and proper data management bill is the must need.

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SANSKRITI SOMANI
(AIR 49, 2022)

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Q.12) Why did constitution makers prefer 'union of states' over 'federation of states' to describe India? To what extent this preference is responsible for tensions in centre-state relations?

(15 marks, 250 words)

संविधान निर्माताओं ने भारत का वर्णन करने के लिए 'यूनियन ऑफ़ स्टेट्स' के बजाय 'फेडरेशन ऑफ़ स्टेट्स' को प्राथमिकता क्यों दी? केंद्र–राज्य संबंधों में तनाव के लिए यह वरीयता किस हद तक जिम्मेदार है? (15 अंक, 250 शब्द)

Article 1 of the Indian constitution refers to - "India that is Bharat is the union of states." This has been the foundational principle of Indian federalism

Reasons for preference to 'union of states' over 'federation of states' by constitution makers

(1) Partition: the after affects of partition and the large scale communal riots necessitated a unifying force.

(2) Unity in Diversity: has been India's value. As mentioned by Ambedkar- India is indestructible union (Unity) of indestructible states (represents diversity)

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③ National security concerns in North-East, western sector, Hyderabad.

④ Strong centre: with power to create new states, modify boundaries (art 3) can fulfill regional aspirations

Is this responsible for centre-state tensions?

Yes

① Top-down approach has resulted in lack of effective implementation. as seen during Planning Commission era

② Rise to secessionist sections due to lack of autonomy.
Ex: Bodoland - Gorkhaland demands.

③ One size fits all approach ignores local conditions
Ex: during COVID-nation wide lockdown rather than in hotspots

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④ Political Vendetta : through ordinance route, art 356 misuse, misuse of central agencies.

It has led to Bargaining Federalism

No : ① National security is ensured due to strong centre and its security infrastructure.

② Coherence in foreign policy for overall development.

③ Inter-state migration helps in cosmopolitan culture - possible due to single citizenship

④ Asymetrical Federalism has helped in checking secessionism
Ex: art 244 = 5th & 6th schedule areas.

Thus, a 'Team India' approach will help India achieve the dream of Amrit Kaal with Sabka Saath Sabka Vikas, Sabka Vishwas. There should be efforts to bridge trust deficit between centre and states

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Q.19) USA-led Indo-Pacific Economic Framework for prosperity (IPEF) is an economic initiative to complement its existing security partnerships in the Indo-Pacific region. Analyze the significance of and challenges to IPEF in the present scenario.
(15 marks, 250 words)

समृद्धि के लिए संयुक्त राज्य अमेरिका के नेतृत्व वाला इंडो–पैसिफिक इकोनॉमिक फ्रेमवर्क (IPEF) इंडो–पैसिफिक क्षेत्र में अपनी मौजूदा सुरक्षा साझेदारी को पूरा करने के लिए एक आर्थिक पहल है। वर्तमान परिदृश्य में IPEF के महत्व और चुनौतियों का विश्लेषण करें।
(15 अंक, 250 शब्द)

Indo-pacific is an important region for geopolitical, geo strategic, geo economic reasons. With partnerships like QUAD, AUKUS, and now programme like IPEF – USA is trying to increase its influence in the region

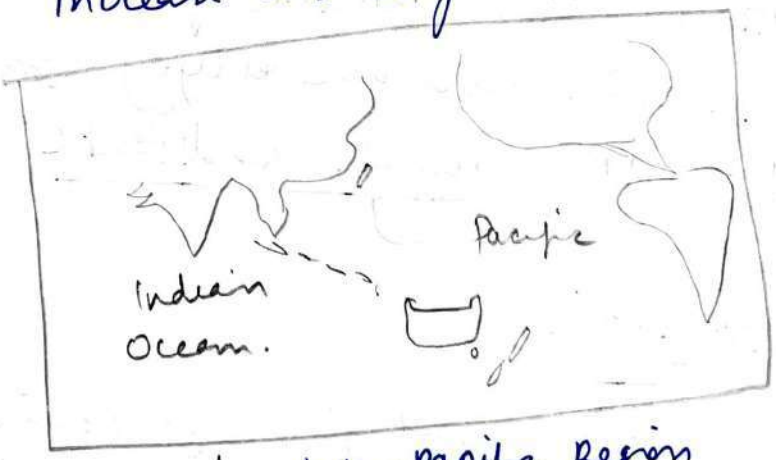

fig: Indo-Pacific Region

Significance of IPEF

① Capacity building of like minded countries to leverage China plus one sentiment.

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(2) Building secure lines of communication and trade routes across south china sea.

(3) securing the global supply chains.
Ex: Taiwan - hub for semiconductor chip.
Japan, South korea = electronics.
India = Services

(4) Aiding the countries for a GREEN growth with renewable energy) transition and building climate resilient.

CHALLENGES:

(1) Increasing footprint of china due to its massive economic power.

(2) Spill over effects of Ukraine crisis

(3) Global recessionary trends.
Ex: Srilanka crisis

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④ Increasing belligerance of China
Ex: drills across the south china sea.

⑤ Overlapping interests of co members with China, Russia

⑥ Inability of USA to mobilise large amount of funding

IPEF can help in building a better post covid world with more humane and democratic globalisation. There is need of clear and precise policy guidelines and firm commitment of all countries.

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VAISHNAVI PAUL
(AIR 62, 2022)

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Q.1) Though necessary, timely, free and fair elections are not sufficient to ensure a vibrant democracy. In your opinion, what are the essential requirements for a vibrant democracy? (10 marks, 150 words)

हालांकि एक जीवंत लोकतंत्र को सुनिश्चित करने के लिए अनिवार्य रूप से, समय पर, स्वतंत्र और निष्पक्ष चुनाव पर्याप्त नहीं हैं। आपकी राय में, एक जीवंत लोकतंत्र के लिए आवश्यक आवश्यकताएं क्या हैं? (10 अंक, 150 शब्द)

Ar: 324 of the Constitution of India provide for an ECI to ensure free & fair elections.

Necessity for Democracy

(1) ↑ Awareness of citizenry.
Eg: through manifestos

(2) ↑ Accountability.
Eg: Every 5 years representative face electorate

(3) Ensure Political justice.
Eg: Fair elections.
Eg: UAF - Ar. 326.

Essential requirements for Vibrant Democracy	How elections are not sufficient
(1) Actual choice to the electorate.	Eg: 1 party rule in China - free elections but no real choice.
(2) SC observed that Right to Information is true	Cases of false affidavit filing are rising.

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basic necessity for electorate to express voting right.	Eg: Use of fake news Eg.
(3) Representation of vulnerable and marginalized.	Lack of intra Party democracy. Eg: 50% Political Parties would give tickets to male candidates. [Lokniti]
(4) Citizens should have right to dissent and voice their opinions	Misuse of powers for curbing dissent. Eg: Sedition case on Journalist Vinod Dua.
(5) No polarization for myopic goals.	• Communal Hatred • Breach of MCC

Way forward

1) Strengthening ECI: 2nd ARC Recommendations
2) ↑ Citizen awareness: Eg: SVEEP.
3) Minimum common Programme for coalition. [2nd ARC].

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Q.6) Populism has pushed politics towards socialism while economy continues to be dominated by global capitalism. Examine with examples. (10 marks, 150 words)

लोकलुभावनवाद ने राजनीति को समाजवाद की ओर धकेल दिया है जबकि अर्थव्यवस्था पर विश्वव्यापी पूंजीवाद का वर्चस्व बना हुआ है। उदाहरण सहित परीक्षण कीजिए। (10 अंक, 150 शब्द)

Populism refers to the use of policies or government machinery to gain popular support. Eg: Loan waivers, Reservation.

It pushes politics towards socialism [Increased role of state to ensure welfare of all] -

(1) Need for majority support and support of dominant classes.
Eg: Reservation

(2) Push for higher fertilizer subsidy, food subsidy.

However, the economy continues to be dominated by capitalism. [where markets decide allocation of resources.] -

(1) Higher usage of Capital intensive technology.

(2) Rising comporition of profit making service sector

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③ Higher FDI inflow into larger projects.

Global capitalism driven economy has created problems like:

① Higher inequalities. Ex: Gini coefficient rise

② High unemployment.
Ex: Capital intensive technology
Ex: IR-4.0.

③ Environmental degradation. Ex: Excessive mining.

Populist policies have created problems like:

① ↑ subsidies → ↓ capital investment in agriculture. [ES]

② No substantial ground reforms in trade and value chains.

③ Rising Protectionism and de-globalization world wide. Ex: Tariff wars.

Way Forward

- Balancing capitalism with socialism.
- The former will drive growth and generate income.
- The latter will ensure redistribution and welfare.

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Q.14) Obsession with ethnic identity and lack of economic development is the root cause of various interstate land border and river water disputes in the country. Discuss with relevant examples.

(15 marks, 250 words)

जातीय पहचान के साथ जुनून और आर्थिक विकास का अभाव देश में विभिन्न अंतर्राज्यीय भू-सीमा और नदी जल विवादों का मूल कारण है। प्रासंगिक उदाहरणों के साथ चर्चा करें। (अंक 15, शब्द 250)

India's federal polity that provides sufficient regional autonomy to states is rifed with various interstate land border and river water disputes.

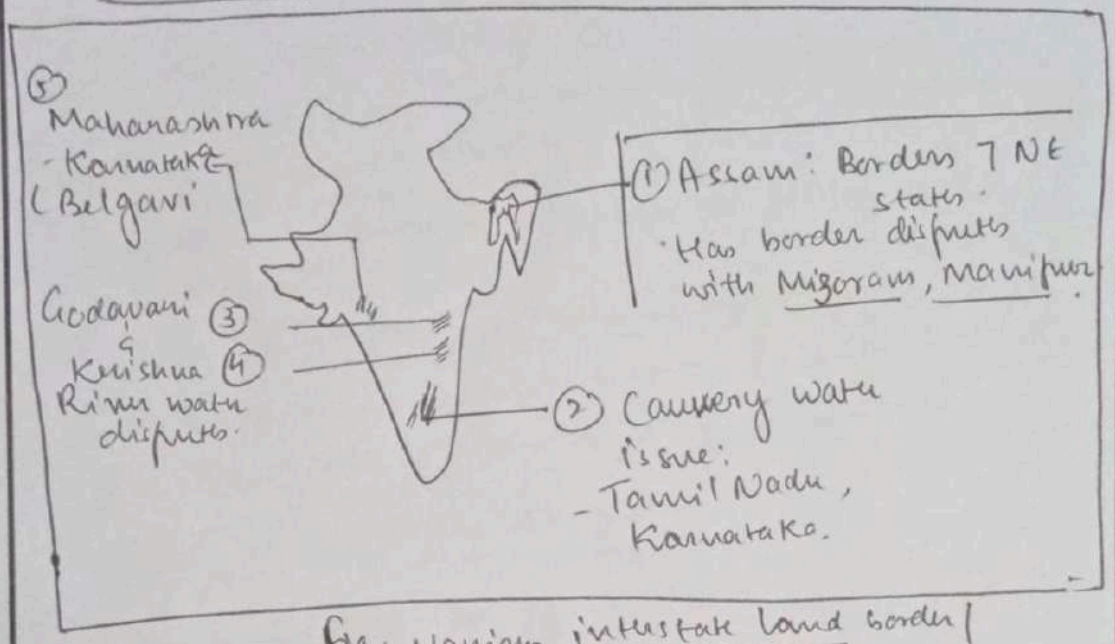

Fig: Various interstate land border / River water disputes

Explanations:

Obsession with ethnic identity: It refers to placing one's ethnicity over one's national identity.

Eg: Seeing oneself as a Maharashtrian before Indian.

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- Major cause of conflict in NE states.
  Eg: Assam - Mizoram
- Fear of homogenization and influx.
  - Eg: Fear that NRC in Assam may cause refugee influx in neighbouring states
- Historical reasons: Majority of state reorganisation was on linguistic - ethnic lines.
- Changes in ethnic composition post reorganization. Eg: Belgavi: Maharashtra-Karnataka border.

Lack of economic development

1) Water and land are seen as primary resources.
   Eg: Cauvery, Godavari, Mahadayi
2) ↓ Economic development → Primitive agricultural practices → Higher need of irrigation → water disputes.
3) As a political tool of diversion from lower economic development.

Way forward:

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(1) Putting water under Concurrent list and also allowing CWA to manage it. [Mihir Shah Committee]

(2) ↑ investment in climate smart agriculture that needs lesser water.
Eg: sprinkler irrigation.

(3) Involving pride in national identities as 'Indian' over any other ethnic identity.
Eg: through activities in school.

(4) Solving root causes of economic underdevelopment.
Eg: ↑ employment, participation in Global Value chains [Economic survey].

(5) Popularizing the idea of fraternities as a fundamental duty and Preambular value.

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Q.12) Reservations have morphed into a populist exercise to deal with an employment crisis, making it a political response to resolve an economic issue through the prism of identity. Analyze in the backdrop of rising demand for caste census and reservation for locals in private job.

(15 marks, 250 words)

आरक्षण रोजगार संकट से निपटने के लिए एक लोकलुभावन अभ्यास में रूपांतरित हो गया है, जिससे यह पहचान के चश्मे के जरिए आर्थिक मुद्दे को हल करने के लिए एक राजनीतिक प्रतिक्रिया बन गया है। जाति जनगणना और निजी नौकरियों में स्थानीय लोगों के लिए आरक्षण की बढ़ती मांग की पृष्ठभूमि में विश्लेषण करें। (15 अंक, 250 शब्द)

Reservations have been provided as a tool for affirmative action to overcome historical injustices through Article 15(4), 16(4), 15(5); 16(5); 15(6) & 16(6) of the Constitution.

Riding demand of caste census:

- to determine the extent of backwardness
- to increase caste based reservations.

Demand for locals in private job:

- As Public sector employment is falling. Reduced by ~ 5L jobs in 5 years.
- less job security in unorganized sector.
- COVID-19 has exacerbated job loss.
- Migrations are seen as snatching of jobs by outsiders.

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However, these are populist short term political responses. Solving them as political response through prism of caste identity can create problems like:

(i) Opening Pandora's box of demands. Eg: Jats in Punjab, Patels in Gujarat.

(ii) ~~(iv)~~ Against Constitution.

Only Central Government can provide discrimination on the basis of residence and that too in public sector.

(iii) Against freedom of trade and business - Article 301.

(iv) Reservation seen as anti merit. Reservation in Private jobs and caste census will enhance this idea.

(v) Government intervention in free market.

(vi) Polarization, Regionalism, communalism - Against unity and integrity of India.

Above, all, reservations are not a sustainable solution as the problem is

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an economic issue.

Solving economic crisis through economic means.

1) Expanding public sector employment through vacancy filling (NITI)

2) Manufacturing sector job expansion.
• MII • GVC and Regional value chain participation.

3) Skilling. Eg: Through international collaborations with Japan & UAE.

3.1 Ageing population in these areas.
Eg. India can take over.

(4) Making agricultural remunerative.
Eg: Identifying entrepreneurial possibilities (Economic survey).

The only sustainable solution to ~~an~~ an economic problem is sustainable structural reforms.

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Q.18) Invisibilizing destitute through criminalizing of begging amounts to complete denial of a socio-economic problem and abject failure of the state. In light of this statement, discuss the reasons behind the problem of begging and suggest suitable welfare measures to address various problems faced by them.
(15 marks, 250 words)

भिक्षावृत्ति के अपराधीकरण के जरिए निराश्रितों को देखना एक सामाजिक–आर्थिक समस्या को पूरी तरह से नकारना और राज्य की घोर विफलता है। इस कथन के आलोक में भिक्षावृत्ति की समस्या के कारणों की विवेचना कीजिए तथा उनके सामने आने वाली विभिन्न समस्याओं के समाधान के लिए उपयुक्त कल्याणकारी उपाय सुझाइए। (15 अंक, 250 शब्द)

Bombay Prevention of Begging Act criminalizes begging and provides for stay in distribution centre. Around 20 states have adopted this law.

J&K HC and Delhi HC observed that ~~criminalization of~~ begging represents failure of society and state. Criminalizing begging is invisibalizing these failures.

Reasons of Begging:

1) Poverty: ~ 20% population Multidimensionally Poor [UNDP].

2) Unemployment and non remunerative unorganized sector.

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③ Health shocks:
~ 600 mn people are pushed below Poverty line due to out of Pocket expenses [ES]

④ Child begging is a subpart of large organized human trafficking racket.

⑤ Lack of rehabilitation of victims of sex crimes, began, bonded labour.
i) Lack of family and social support for such victims.

Welfare measures

1) Implementation of ~~child~~ integrated child welfare project that addresses Child begging.
2) Decriminalization and addressing problem through a humanistic attitude.

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(3) Strengthening rehabilitation Centres.
Ex: Ujjawala Grehs.

(4) Increasing employment, skilling and state funded ~~reha~~ sustainable rehabilitation programmes.
Ex: Operation Sahaya of Odisha.

(5) Enhancing public empathy and sensitization.

(6) Proper data, monitoring and evaluation.

(7) Busting child trafficking rackets.
Ex: through NIA.

(8) Efforts like 'Blessing ~~Hut~~' in Assam. 'Take what you want. Leave ~~what~~ you can.'
Welfare and not criminalization is the solution to begging that reduces dignity of a human being.

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Q.4) The divergence between intent and impact of the tenth schedule necessitates calling into question its relevance in the present times. Analyze. (10 marks, 150 words)

दसवीं अनुसूची के आशय और प्रभाव के बीच का अंतर वर्तमान समय में इसकी प्रासंगिकता पर सवाल खड़ा करता है। विश्लेषण करें। (10 अंक, 150 शब्द)

Tenth schedule was enacted by 52nd amendment act 1985 to curb menace of defection.

intent
- Prevent Aaya ram Gaya Ram politics.
- stop horse trading.
- bring ethics into politics.

Impact

(1) loss of autonomy

1.1 MP / MLA must vote as per party line

1.2 Broken chain of accountability as MP accountable to party not voters.

(2) Reduced role of legislature.

2.1 MP takes no interest in laws, amendments as he must follow party line.

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(3) circumvention of law :-

3.1 MP's resign rather than getting disqualified (e.g. Manipur, MP.

3.2 Partisan role of speaker (e.g. Minister in MP not disqualified for defecting for 3 years.

3.3 Promotes mass defections due to "merger" exception in Anti-defection law (e.g. MH recently.

Way forward

① ECI + Independent tribunal should decide defection.

② NCRWC 2002 → Remove merger exception

③ SC in Kihoto Hollohan case (1992) → speaker should decide defection in 3 months.

Moreover, law commission suggests ineligibility of disqualified legislators to contest election for 6 years.

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ANIRUDHA PANDEY
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Q.8) National Commission for Scheduled Tribes (NCST) can be most effective when its tasks are adequately supported by other mechanisms that improve the voice of the tribals. Discuss.

(10 marks, 150 words)

राष्ट्रीय अनुसूचित जनजाति आयोग (NCST) सबसे प्रभावी हो सकता है जब इसके कार्यों को अन्य तंत्रों द्वारा पर्याप्त रूप से समर्थित किया जाता है जो आदिवासियों की आवाज को उठाते हैं। चर्चा करें। (10 अंक, 150 शब्द)

NCST was created under Article '338' by 89th amendment act 2003.

Status of NCST
- No head appointed for last 3 years.
- Poor awareness of NCST among tribals.
- No suo motto powers.
- No binding directions to centre.
- Shortage of Funds, Functionaries

Support of other mechanisms

① Augment Funding (e.g. Tribal sub plan.

② Provide multiple platforms to tribals (e.g. Autonomous District Council

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under 6th schedule.

(3) Political empowerment of Tribals :-

3.1 special provisions under Article 371

3.2 PESA Act for local self govt.

3.3 Forest Rights Act 2006 for community rights.

(4) economic empowerment :-

4.1 MSP for minor forest Produce.

4.2 TRIFED and TRIBES India to market tribal art.

4.3 Van Dhan Yojna for utilisation of forest resources

(5) Social Dempowerment :- Eklavya Model residential schools.

Tribal Panchsheel along with these measures will help NCST take action if such safeguards are violated

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Q.6) Policy of reservation, started to provide equality of opportunities, has fallen victim to political opportunism. Critically examine the success of affirmative actions in the country. (10 marks, 150 words)

अवसर की समानता प्रदान करने के लिए शुरू की गई आरक्षण की नीति राजनीतिक अवसरवाद का शिकार हो गई है। देश में सकारात्मक कार्रवाइयों की सफलता का समालोचनात्मक परीक्षण करें।

(10 अंक, 150 शब्द)

Affirmative action is positive intervention by state to correct historical injustices through concessions in admissions (Article 15(4)), jobs (Article 16(4)).

Success

(1) 23% representation of SC/ST in government services, Higher education.

(2) 44% PRI functionaries are women

(3) Justice Rohini committee for sub categorisation of OBC for better targeting.

(4) 2% Transgender reservation by SC in NALSA case to recognise 3rd gender.

(5) PwBD reservation for specially abled

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shortcomings

① Politicisation of caste (e.g.)
Mandal 1.0, 2.0, 3.0 → caste cross reservation in promotion

② SC ruling in M Nagaraj case 2006 imposed restrictions on reservation on promotion.

③ 108th amendment Bill for reservation of women in Parliament not passed.

④ Panchayat Pati → syndrome in PRI's

⑤ Even today UNDP MPI report says 5 out of 6 poor in India are SC/ST/OBC.

⑥ Gross enrollment ratio of Dalit is 21. against national average of 26%. (SECC 2011).

To overcome these shortcomings, depoliticisation of caste, Attitude change of society & enabling affirmative action with skill building, Health security is way Ahead.

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Q.6) Policy of reservation, started to provide equality of opportunities, has fallen victim to political opportunism. Critically examine the success of affirmative actions in the country.
(10 marks, 150 words)

अवसर की समानता प्रदान करने के लिए शुरू की गई आरक्षण की नीति राजनीतिक अवसरवाद का शिकार हो गई है। देश में सकारात्मक कार्रवाइयों की सफलता का समालोचनात्मक परीक्षण करें।
(10 अंक, 150 शब्द)

Reservation (Art 15, 16 etc) were aimed to reduce historical injustice to people through fixed Quota seats. Indira Sawhney case (1992) capped it to <50%.

It is a form of affirmative action and provides equal protection of laws (A·14)

Success!

(1) Social

(1.1) Increased social mobility → better jobs → focus on merit

(1.2) Health, education parameters enhanced.

(1.3) Women empowerment → 33% women reservation in PRIs (today ~45% women)

(2) Economic

(2.1) better access to economic opportunities → led to intergenerational empowerment.

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(2.2) has helped SC/ST, divyangs (RPD Act '16) to live a life of dignity.

FAILURES - victim of political opportunism

(1) Fuels reservation: Demands for ST status in private jobs (Haryana)

(2) used to appease vote bank - Vaniyas community case (2021)

(3) Reservation without any scientific criteria discourages merit and leads to societal stagnation

(4) Populism has led to increase in CASTE CONSCIOUSNESS and demands for reservation

(5) has led to RACE to the BOTTOM and violates our fundamental duty 10th (strive towards excellence)

While reservation has proved to be a potent tool to address GRADED INEQUALITY in society, it must not be a tool in hands of political masters.

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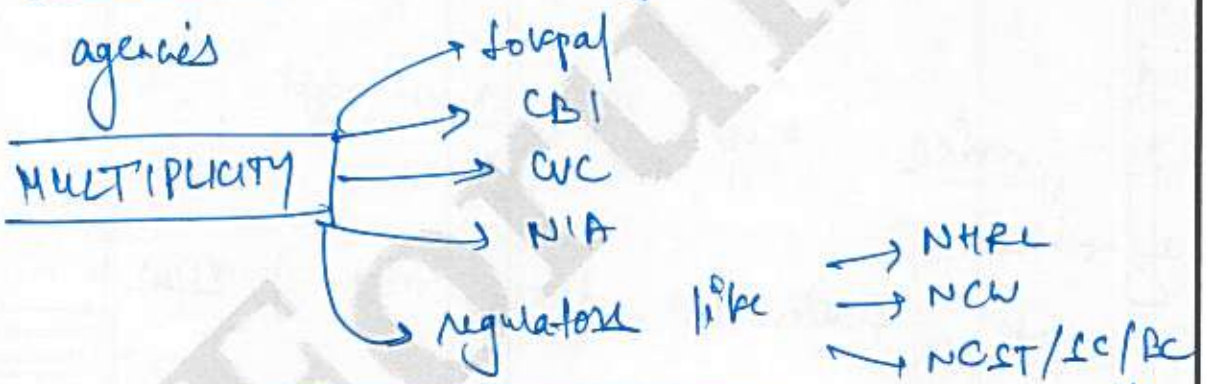
Q.14) Multiplicity of central investigative agencies leads to not only problems of overlapping jurisdiction and duplication of functions but also dilution of federal principles. Highlighting various issues related to the functioning of central investigating agencies, argue the case for an independent umbrella body for their regulation. (15 marks, 250 words)

केंद्रीय जांच एजेंसियों की बहुलता न केवल अतिव्यापी अधिकार क्षेत्र और कार्यों के दोहराव की समस्याओं की ओर ले जाती है बल्कि संघीय सिद्धांतों को भी कमजोर करती है। केंद्रीय जांच एजेंसियों के कामकाज से संबंधित विभिन्न मुद्दों पर प्रकाश डालते हुए, उनके नियमन के लिए एक स्वतंत्र रूप से संगठित अर्थात अम्ब्रेला निकाय के पक्ष में तर्क दीजिए।
(15 अंक, 250 शब्द)

Recent instances surrounding denying general consent to CBI by West Bengal and Chattisgarh moving the court against NIA (amendment) Bill (2019) show the GREY AREAS surrounding investigative agencies



ISSUES

① GENERAL

1.1 overlap of jurisdictions leads to frequent clashes over domain

1.2 lack of clarity over duties and responsibilities

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1.3 leads to [Duplication of efforts] + [high fiscal burden] ⇒ loss to exchequer

1.4 poor inter agency coordination and sharing of intelligence data.

2. SPECIFIC

2.1 CBI → lack of suo-moto power to enquire in states
poor allocation

2.2 NIA → weakened post amendment (high centralisation)

2.3 FORPAL → lack of enquiry wing
leaves offices of many top officers
can't investigate issues older than 6 months

2.4 NHRC, NCW etc → (1) Donor dependency – grant by center
(2) Conflict of interest as center

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Is the largest litigant (45%)

In this context, demands of an [UMBRELLA] body is raised

[SIGNIFICANCE]

① ensure clarity of expertise and domain
② Standardised working
③ Reduces duplicacy in investigation
④ will allow cross sharing of information leading to faster investigation
⑤ may [allow] personnel from 1 agency to be used by other — overcomes manpower shortage

[CHALLENGES] ④ [Centralisation] : law and order = state subject

① Dilution of Specialisation : Every agency has specific responsibility
② may lead to "hurried justice"
③ does not address structural issues of technological inadequacy and centralisation

Need is to strengthen existing institutions

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Q.11) Harnessing public sector data is vital for informed decision making, accelerating socio-economic transformation and democratizing innovation in the country. In this context, highlight the various bottlenecks in public data sharing and suggest strategies for unlocking true value of data. (15 marks, 250 words)

सार्वजनिक क्षेत्र के डेटा का उपयोग सूचित निर्णय लेने, सामाजिक–आर्थिक परिवर्तन में तेजी लाने और देश में नवाचार को लोकतांत्रिक बनाने के लिए महत्वपूर्ण है। इस संदर्भ में, सार्वजनिक डेटा साझाकरण में विभिन्न बाधाओं को उजागर करें और डेटा के वास्तविक मूल्य को अनलॉक करने के लिए रणनीति सुझाएं। (अंक 15, शब्द 250)

Recent demands to set up an 'open Government data platform' is an attempt to envision (section 3) of RTI act which notes that every citizen has a right to know about the government (4(1) = SUO moto disclosure)

(5) current indicators e.g: Inflation ← PUBLIC SECTOR DATA → (1) expenditures in different schemes

(2) actual v/s estimated spendy

(3) current status of implementation

(4) Resources & efficiency

It helps in

(1) informed decision making

1.1 INFLATION data : helps people take decision about their savings, investment

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1.2 helps CIVIL SOCIETY to hold govt accountable

1.3 Critical evaluation by public shapes their ELECTORAL CHOICES

Eg Scams → rejection by people in next election

(2) Socio-economic transformation

2.1 Data on women labour force participation (DECLINING) helps to take immediate steps

2.2 to alleviate conditions of poor, vulnerable etc

Eg Data on child marriages, deaths of manual scavengers etc

2.3 Data on health, education helps evaluate our policies continuously via ITERATIVE APPROACH.

Eg Rising TFR in rural areas led to Mission Parivar Vikas, women empowerment schemes etc

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(5) Democratising information → by sharing information with all

↳ accessible data archiving leads to equal opportunities for even the poor

BOTTLENECKS

(I) lack of political will as it might reveal inefficiencies, scams etc and increase accountability

(II) VAGUENESS in the data which can be shared

(III) TECHNOLOGICAL inefficiencies → poor internet operability of softwares

→ digital gaps (~18% internet penetration in rural areas - CMIE)

(IV) WEAPONISATION of data to harass officials

→ by Non State actors etc

Strategies

Data = [NEW Currency] in world of 5G, 4th industrial revolution etc

- consensus on data sharing
- build awareness among people
- data in vernacular language
- empower gram sabhas

[Data] belongs to the people and must be shared proactively

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Q.11) Why did constitution makers prefer 'union of states' over 'federation of states' to describe India? To what extent this preference is responsible for tensions in centre-state relations?

(15 marks, 250 words)

संविधान निर्माताओं ने भारत का वर्णन करने के लिए 'यूनियन ऑफ़ स्टेट्स' के बजाय 'फेडरेशन ऑफ़ स्टेट्स' को प्राथमिकता क्यों दी? केंद्र–राज्य संबंधों में तनाव के लिए यह वरीयता किस हद तक जिम्मेदार है? (15 अंक, 250 शब्द)

Art 1 of the constitution calls India a 'UNION of States'. It implies that

(a) States are not a result of an agreement like in U.S.A

(b) States cannot secede from the union

WHY PREFERRED

(i) In practice, India is quasi federal having a [UNITARY TILT]. This is to

→ (1) ensure a centralising oversight over a nascent India

(ii) to prevent [BALKANISATION] of States (eg Hyd, Junagarh, Kashmir and other princely states had SHIFTING LOYALTIES

(iii) to address regional variations in resources, level of development etc.

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eg States of Bihar and Bengal faced famines while Punjab had religious tensions.

↓

A central oversight was essential to ensure INCLUSIVE DEVELOPMENT.

(iv) to allow handholding of poor States

eg Sch 6, A.244, Special category States.

This is often called as the reason behind

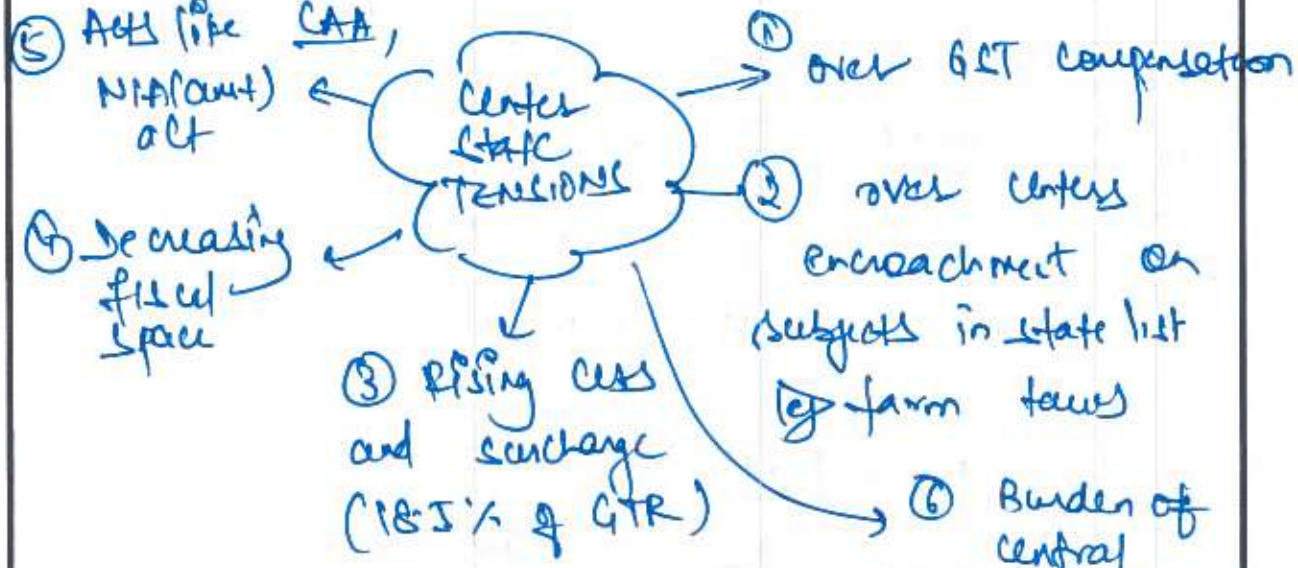

FIG: RECENT TENSIONS

UNION of States is responsible because

(1) It forbids States from taking loans

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without centres approval (A 293)

(ii) # allows centre to control trade, commerce and intercourse among states (A 301)

(iii) It tasks to compromise in rivers water sharing, border disputes (mediated by centre)

eg: Kaveri tribunal, Assam Mizoram dispute

HOWEVER this preference of UNION has decreased sections as well:

(i) GRANTS to poorer states: during disasters, finance commission grants etc

(ii) Preservation of local cultures - A. 371, 5th and 6th schedule

→ Institutions like tribal welfare committees etc

(iii) Centre acts as a NEUTRAL ARBITER under A. 131 and prevents escalation

eg: North east peace accords.

There is a need for collaborative and cooperative federalism with an overarching supervision by centre.

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Q.17) Political decentralization without devolution of funds and functions to panchayats has resulted in representation but not empowerment. Examine whether devolution of funds and functions alone can transform panchayats into effective institutions of self-governance.

(15 marks, 250 words)

पंचायतों को धन और कार्यों के हस्तांतरण के बिना राजनीतिक विकेंद्रीकरण के परिणामस्वरूप प्रतिनिधित्व तो हुआ है लेकिन सशक्तिकरण नहीं। जांच करें कि क्या केवल निधियों और कार्यों का हस्तांतरण पंचायतों को स्वशासन के प्रभावी संस्थानों में बदल सकता है।

(15 अंक, 250 शब्द)

2nd ARC highlighted the triple burden faced by PRIs, of funds, functions and functionaries. They have impeded their roles as 'INSTITUTIONS of DEMOCRATIC DECENTRALISATION" (73rd CAA 1992, part IX)

Panchayati Raj system has provided

1. Political Decentralisation → 3 tier structure (3.2 lakh PRIs)

Zila Parishad
Panchayat
Gram Sabha

3
2
1

→ Reservation of seats in accordance with population of SC/ST/women. (50% women in Bihar)

However, there are ISSUES in devolution of

1. FUNDS — (i) lack of financial autonomy
(ii) Rise of tied grants.

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→ (III) Inability to raise own funds

(IV) Squeeze of fiscal space and delays in grants

(II) **FUNCTIONS**

→ (I) States have set up PARALLEL bodies like electricity boards to take away functions

→ (II) several non compulsory functions are still not devolved

eg control of minor minerals, social audit

This has led to SUPERFICIAL REPRESENTATION while actual 'EMPOWERMENT' is missing

Devolution of funds + functions : will help in

(I) Increased autonomy to PRIs

(II) Larger control over their mandate

(III) better SUBSIDIARITY and pro-people initiatives

(IV) better control over SOCIAL EVILS.

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However, it will not solve structural issues like

(i) lack of infrastructure and human capital

(ii) rising bureaucratization and political interference

(iii) poor enforceability of IPR decisions

MEASURES NEEDED

1) SOCIAL — (i) Awareness of the policies via outreach campaigns

(ii) curbing proxy researches, research pati etc

2) INFRASTRUCTURAL — (i) own buildings and support staff to PRIs

(ii) timely devolution of funds + mechanism to ensure their speedy

PRIs embolden the Gandhian vision of GRAM SWARAJ (A.40) and must be strengthened to ensure bottom up governance.

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DWIJ GOEL
(AIR 71, 2022)

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Q.14) "Improving governance is key to ensuring equitable growth in developing countries". How far do you think that inequality in India is due to lopsided developmental policies since Independence? (15 Marks, 250 Words)

Governance is the process of decision making and the manner of exercising authority in implementation (or not implementation). as defined by UNDP.

Governance as Key

UN mentions the good governance as the development along with the human development which is based on

- Inclusion
- Social justice
- Rule of law
- Equity

State of inequality in India

- According to report by Oxfam international Top 10 percent people

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in India control 77% of the wealth and in 2017-18 73% of wealth generation is gone to top 1% people only.

- **Why inequality**

Historical reason such as evil practice of untouchability.

Gender biasness - women not allowed to work, less education literacy among women. For example female labour force participation rate is only 26%. as per NSO.

Lopsided development

(1) Land reforms - certain sections got the land while other remained landless

(2) Forest Right Act, → tribals were given rights but encroachment and dvlopmt in name of National Parks.

(3) Dams and infrastructure creation led to displacement of thousands of

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villages and found to deprivation. for eg: Dwij Sardar Sarovar dam.

(4) Given devolution advantage is gained by high income farmers, marginalised farmers remain poor.

Ill-sighted implementation has led to inequity in governance.

As UNDP mentions 'Equity & Inclusiveness' are the important pillar of good governance. fruits of development must be shared equitably.

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(AIR 71, 2022)

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Q.18) The vision of 'Healthy India' can be realized through comprehensive primary healthcare, universal health coverage and Public-Private-Partnership. Elaborate.

(15 Marks, 250 Words)

Mahatma Gandhi has said "health is the real wealth and not Gold and Silver."

India with the population of 1.36 billion struggle for serving healthcare service to its citizens.

State of Indian healthcare

- India has 1 doctor over 1456 patients while WHO recommend minimum 1:1000 ratio
- There are 8.5 beds per 10,000 people
- No. of nurses are 1.8 per 1000 person

Focus on primary healthcare

① To reach to the citizens through schemes such as Pradhan Mantri Jan Arogya Yojana.

② Out-of pocket expenditure in India

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is more than 50%. which creates depri-vation to people and burdens them.

③ Availability of institutions and focusing on more buildings and sustaining persons once.

④ Pradhan Mantri Bhartiya Jan Aushodhi Pariyojana has provided for generic medicines at cheaper price.

Universal Health coverage

- National health policy aimed to increase public expenditure on health to 2.5% of GDP from current 1.6% till 2025
- Spending on research needs to be increased.
- Equitable distribution and inclusiveness
  - immunization through Mission Indradhanush
  - POSHAN Abhiyan
  - ICDS – (early child hood care
    . lactating mother care
    Nutrition supplement
    Awareness & education)

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Public - Private Partnership

- Government is overburdened, it needs cooperation of private sector.
- Private sector investment in Research, vaccinations, institutional infrastructure can be leveraged when government subsidised treatment such as done through BOT model.

The ethos of 'Sarve Bhavantu Sukhina, Sarve Santu Niramaya' can be fulfilled through 'Healthy India'

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PALLAVI
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Q.18) The offence of rape cannot be condoned by marital relationship between victim and culprit. In light of this statement, discuss the issues involved in criminalization of marital rape.
(15 marks, 250 words)

बलात्कार के अपराध को पीड़िता और अपराधी के बीच वैवाहिक संबंधों द्वारा माफ नहीं किया जा सकता है। इस कथन के प्रकाश में वैवाहिक बलात्कार के अपराधीकरण में शामिल मुद्दों की चर्चा कीजिए।
(15 अंक, 250 शब्द)

Rape is an offence which violates the most basic rights of the victim. It violates the bodily autonomy of an individual & affects the protection available under Articles 14, 19 and 21 of the Constitution.

The offence of ~~marital~~ marital rape has been defined as the act of rape committed by the husband on the wife during the course of their marriage.

In the IPC, this kind of rape has been excluded & under S. 376B only rape committed during separation is criminalized.

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In light of this, it is important to discuss the issue with criminalization has been raised recently in the Delhi High court.

It is problematic as:

1) It has been argued to be against the sanctity of family and the right of conjugal relations.
2) Laws like the Hindu Marriage Act create an enforceable right to seek conjugal relations.
3) It has been argued to violate the sanctity of the bedroom under Art 21.
4) There is a wide scope of misuse of the laws as it is difficult to establish.

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Moreover, it is important to criminalize marital rape as:

1) Violates the most fundamental rights of equality and freedom of life.
2) Violates the bodily autonomy of the victim under Art 21.
3) Creates an arbitrary distinction between married & unmarried women.
4) Leaves the victims of such abuse with absolutely no recourse in law.
5) It allows for the perpetration of domestic violence and harassment in the bedroom.

Due to the above concerns, the legislature must create laws to explicitly criminalize marital rape.

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Q.19) Since the paradigm shift from government to governance and further to good governance, pressure groups have emerged as a strong mechanism for making the democracy participatory, transparent, accountable and responsive. Elucidate. (15 marks, 250 words)

जब से सरकार से शासन और आगे सुशासन के प्रतिमान में बदलाव आया है, तब से दबाव समूह लोकतंत्र को सहभागी, पारदर्शी, जवाबदेह और उत्तरदायी बनाने के लिए एक मजबूत तंत्र के रूप में उभरे हैं। स्पष्ट करें। (15 अंक, 250 शब्द)

Pressure groups are those groups of people that come together for a like minded purpose by the means of creating political pressure on structures of governance.

As the mode of governance moves towards good governance, the values of citizen centric governance have become important.

Pressure groups have enabled this by creating a strong mechanism for making the democracy →

1. Participatory:

1) Social audit mechanisms are being promoted by pressure groups in

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Villages and at grassroot level.

2) Improve participation in grassroots democracy at the Panchayat level by providing support to candidates of SC/ST Category & women.

II) Transparent:

1) Passage of acts like the RTI Act & the Legal Acts was due to mobilization by pressure Groups.

2) Pressure groups like 'Common Cause' 'Internet Governance Forum' file many RTIs and PILs to create transparency in governance.

III) Accountability:

1) Accountability is sought through public mobilization e.g. Narmada Bachao Andolan etc.

2) Accountability through judicial law

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enforcement → Eg Bandhua Mukti Morcha Case (& absent bonded labour) & Safai Karamchari Andolan.

IV) Responsive:

1) Pressure groups form a link between government and the vulnerable sections to provide social service delivery to all.

Eg SHGs like SEWA enable financial mobilization of rural women.

The above points highlight how pressure groups make governance better. ~~They must be supported by~~ → They must be supported by →

1) Infrastructure support in the form of financial mobilization.
2) Greater protection to workers in the rural areas Eg for Saathins who work in social service delivery in rural Rajasthan.

Pressure groups are very important for a functional democracy.

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Q.20) "The rapid expansion of mobile network, proliferation of smart phones and data revolution have made m-governance an integral part of government welfare programmes." Discuss.
(15 marks, 250 words)

"मोबाइल नेटवर्क के तेजी से विस्तार, स्मार्ट फोन के प्रसार और डेटा क्रांति ने m–गवर्नेंस को सरकारी कल्याण कार्यक्रमों का एक अभिन्न अंग बना दिया है।" चर्चा कीजिए।
(15 अंक, 250 शब्द)

The expansion of mobile phones and electronic devices has created the Digital Revolution that has allowed for a smooth transition from governance to good governance which is characterized by:

I. citizen centric governance;

II. accessible and responsive;

III. transparent and secure.

The digital revolution has made 'm-governance' an integral part of welfare programs as:

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I. Accessible and Responsive:

1) Welfare programs have become more accessible through mobile apps ~~Leg~~ COWIN app which heralded the largest immunization program.

2) Quick responsive programs have been enabled by m-governance ~~Leg~~ Registrations on MNREGA, its transition to DBT has been enabled.

II. Citizen Centric Governance:

1) Jan Dhan Accounts have enabled the proliferation of formal banking ~~Leg~~ highest number of Indian women have accounts now.

2) The JAM Trinity of Jan Dhan, Aadhar & Mobile Phone has enabled the success of many programs like PM Awas Yojana, SAUBHAGYA yojana, ~~Pol~~ PM SWANIDI scheme etc.

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III. Transparency:

1) Filing audit reports on the Website of the Ministry.
2) Online RTI application facility.

However, this has created the following issues:

1) The digital divide creates disparities in access
   - only 60% of women have access to smartphones
   - rural-urban digital divide → penetration is low in rural areas.

2) Level of ICT involvement at the grassroot level → Panchayati Raj, AASHA workers, Anganwadi etc.

WAY FORWARD:

1) Increasing digital penetration,
2) e-Governance at the grassroots,
3) ICT infrastructure to be made available.

These above steps will enable good governance.

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(AIR 75, 2022)
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Q.6) Sustainable alliance between Non-Governmental Organizations (NGOs) and the State is critical for social change and development. Highlighting hurdles in this developmental alliance, suggest remedial measures for a more productive partnership. (10 marks, 150 words)

गैर–सरकारी संगठनों (NGOs) और राज्य के बीच टिकाऊ गठबंधन सामाजिक परिवर्तन और विकास के लिए महत्वपूर्ण है। इस विकासात्मक गठबंधन में बाधाओं को उजागर करते हुए, अधिक उत्पादक साझेदारी के लिए उपचारात्मक उपायों का सुझाव दें। (10 अंक, 150 शब्द)

NGOs are part of civil society organisation and also termed as not for profit org.

Alliance b/w NGO and State

a) Akshayapatra foundation helped in mid day meal scheme.

b):- During covid "Suraksit dada-didi, Naya-Nani Abhiyan through NGO and goverment.

c):- In Pune Urban forest developed through Maharashtra govt work Collaboration with Tata Trust & other NGOs.

d):- Jeevika didis in Bihar for women empowerment.

e):- Bill and melinda Gates foundation in Aspirational District prog.

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Unsustainable relationship/Hurdles

- IB Report → protest by NGO hampering 2-3% of Indian GDP
- Greenpeace protest against Russian powerplant
- China funded NGOs protesting against construction project in Northeast.
- Many Khalistani NGOs instrumental in drug trafficking.
- Hurdles in terms of finances ⇒ FCRA (amendment) blocked funding to more than 10,000 NGOs
- Only 2-3% NGO filing IT returns out of 3.2 million.

Remedial measures

- NGO should work on part par with trusteeship principle of Gandhiji.
- Excessive propaganda should be refrained
- NGO should comply with Aadhar based KYC, legal funding norms

A sustainable relationship b/w state & NGO is required for inclusive growth.

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Q.11) Discuss the role of the judiciary in electoral reforms citing suitable cases. How far do you agree that judiciary induced reforms violate the principle of separation of power?

(15 marks, 250 words)

उपयुक्त मामलों का हवाला देते हुए चुनाव सुधारों में न्यायपालिका की भूमिका पर चर्चा करें। आप कहाँ तक सहमत हैं कि न्यायपालिका से प्रेरित सुधार सत्ता के पृथक्करण के सिद्धांत का उल्लंघन करते हैं? (15 अंक, 250 शब्द)

In India the criminalisation of politics has been on constant rise. Judiciary has intervened through various judgement to reform electoral procss.

Role of judiciary

a):- On ADR case (2003) - Supreme court mandated necessary disclosure of criminal antecedents of candidates

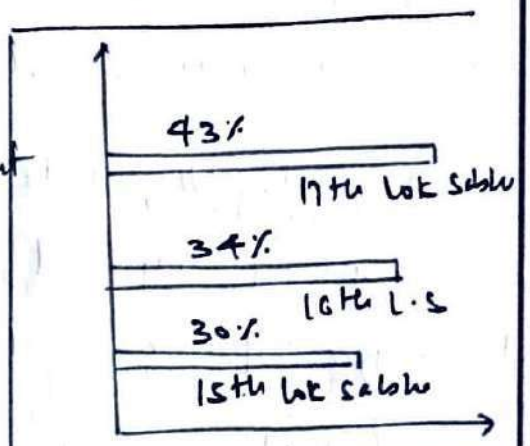

Fig:- % of Lok Sabha members with serious criminal cases against them (ADR Report)

b) Lily Thomas judgement (2013) - Criminal punishment for more than 2 years, leads to automatic disqualification.

c): Supreme court in People's Union for

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Civil liberties case (2014) - allowed the use of NOTA (None of the Above) option in election.

d). In Lok prahari case (2018) - Candidates to mandatory disclose their assets and other liabilities., failure to do so will cause disqualification

c):- In Rajbala V/s State of Haryana case Supreme court upheld education as a criteria for Panchayati raj election.

Judiciary induced Reform & Violation of Separation of power

a):

Yes	No
• It is for the legislature to make laws, judiciary is not well versed in law making.	• Judiciary has asked for amending the Representation of people Act, Hence not direct intervention

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Not violation

- Supreme court is the guardian of constitution and it must uphold democratic values, where state fails to do so.
- Trust of people over judiciary.
- Use of PIL ensures better avenue for grievance redressal

Violation of Sep

- It is similar to dictating the executive or legislature this reduces the trust of people on the government.
- Judges are not well versed with intricacies of administration

Sometimes, government may not be able to take decisions on sensitive matters, due to coalition politics or vote bank politics, in such cases an independent and transparent judiciary fills the gap.

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Q.18) Success of welfare schemes depends on whether they are built on principles of participation and work within structures of accountability. Discuss. (15 marks, 250 words)

कल्याणकारी योजनाओं की सफलता इस बात पर निर्भर करती है कि क्या वे भागीदारी के सिद्धांतों पर बनी हैं और जवाबदेही के ढांचे के भीतर काम करती हैं। चर्चा करें। (15 अंक, 250 शब्द)

In India, there are innumerable welfare schemes, but their utility is checked, due to lack of public participation and accountability

Success of welfare scheme

participation	Accountability
• MGNREGA has been termed as steller example of rural development by world bank ⇒ provision of mandatory social audit, has made is participatory • RTI → people in UP through "Mere Gaon Ke Sawal" are making PDS more transparent	• Accountability mechanism like PRAGATI platform • Both horizontal and vertical accountability Horizontal → Departmental mechanism, Judiciary vertical → By People e.g. RTI, Citizen charter • Accountability also ensures transparency

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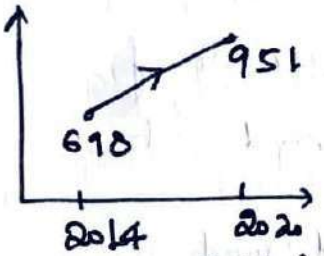
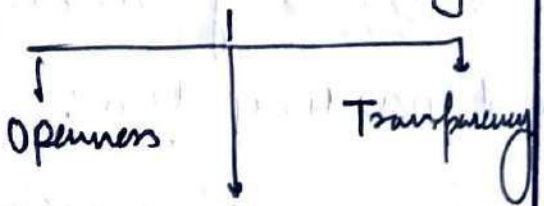
- NFSA and other scheme helped to alleviate 271 million people out of poverty
  - E.g. → mandatory social auditing clause
- Jan Dhan yojana, Swachh Bharat example of participatory governance
- 

Fig → Child Sex Ratio in Maw (UP) improved (Success of Beti-Bachao Beti Padhao)
- Around 1 crore people gave up on LPG Subsidy

Accountability



- Accountability through digitisation helps in improving performance of schemes
  - → Planning phase
    - ↳ Better citizen centric evidence based planning
  - → Targeting
    - ↳ Poor or weakest sector benefit most
  - → Distribution without leakages
  - → Usage → people should use in effective manner

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In absence of accountability and participation :-

a). misappropriation of fund occurs.

b). Corruption and chalta hai attitude remains.

c). Red tapism or bureaucratic inertia sustains.

d). Ease of doing business is reduced.

e). It is poor who pay the price of corruption = Pope Francis.

We must uphold government of the day accountability and set the framework of Ethical and Good governance and tools like Citizen charter (Eg. Hyderabad Municipal Corporation for water) will be effective in ensuring participatory governance.

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Q.11) Electoral reform is a continuous effort to make election funding transparent, election process inclusive and political parties accountable. Discuss issues related to election funding, proposal for remote voting and regulation of Registered Unrecognized Political Parties (RUPPs).

(15 marks, 250 words)

चुनावी फंडिंग को पारदर्शी, चुनाव प्रक्रिया को समावेशी और राजनीतिक दलों को जवाबदेह बनाने के लिए चुनावी सुधार एक सतत प्रयास है। चुनावी फंडिंग, दूरस्थ वोटिंग के प्रस्ताव और पंजीकृत गैर-मान्यता प्राप्त राजनीतिक दलों (आरयूपीपी) के विनियमन से संबंधित मुद्दों पर चर्चा करें।

(15 अंक, 250 शब्द)

Free & fair election are basic structure of constitution & electoral reform taken place for democratic sanctity of elections.

Continuous effort of electoral reform.

election funding transparent → Electoral Bond scheme

political parties accountable → C. Jose vs Pillai Judgment

election process inclusive → NOTA, PUCL vs UOI

→ electoral reform

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(I) Issues related with Election funding

(A) Electoral Bond scheme-

(1) Nexus - Polititian ⇄ business man ⇄ bureaucrat for future Contracts & Appraisal.

(2) Undisclosed names under RTI
↳ No transparency on funding

(3) Threat to free & fair election can lead to Alcohol Politics purchase of votes.

(II) Proposal of remote voting

(i) Dummy voting threat

(ii) Expensive & time consuming.

(iii) Data theft → Cyber attack if based digital technology

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(III) Regulation of RUPP | Unrecognised parties

(i) Increase in ECI work.

(ii) Till date → no amendment for deregistration of parties.

(iii) Plethora of political parties & conflict of symbol association

Measures Needed -

(i) Andhra → Blockchain based e-Voting → Can be on panchayat level

(ii) E-vigil app → more accountability

(iii) Bring Political parties under RTI
↳ more accountability & transparency

(iv) Declaration & Criminalisation on social media → (SC) direction to parties

Thus, as in [Mohinder Gill v/s UOI], ethos of election needs to be kept Ethical for saving [democracy].

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Q.18) Poverty is driving women into the workforce, while education seems to drive them out of it. What explains this anomaly? How can Self Help Groups (SHGs) correct this aberration?
(15 marks, 250 words)

गरीबी महिलाओं को कार्यबल की ओर प्रेरित कर रही है, जबकि शिक्षा उन्हें इससे बाहर करती दिख रही है। इस विसंगति की व्याख्या क्या है? स्वयं सहायता समूह (एसएचजी) इस विचलन को कैसे दूर कर सकते हैं?
(15 अंक, 250 शब्द)

Currently Women – LPFR is 22%.

declined after 26% – 1999 level,

with 96% of women labour working in informal sector (Min Labour – PLFS)

Poverty driving women to workforce
education seem to drive out of it –

(i) Feminisation of Poverty –
Poverty force to participate in economic activity

(ii) Glass ceiling for educated women
Throwing out of system

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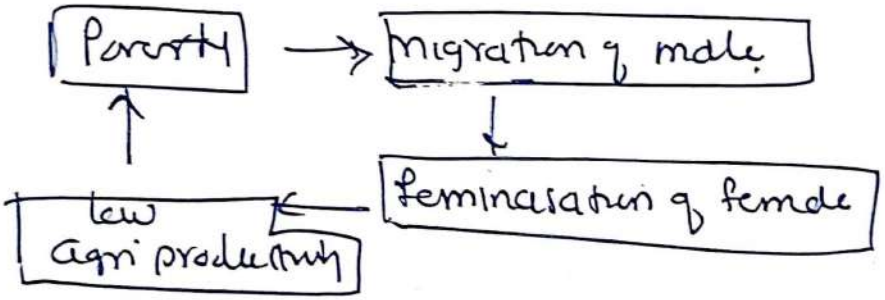
(III) Informal Sector -

Uneducated women work for economic livelihood

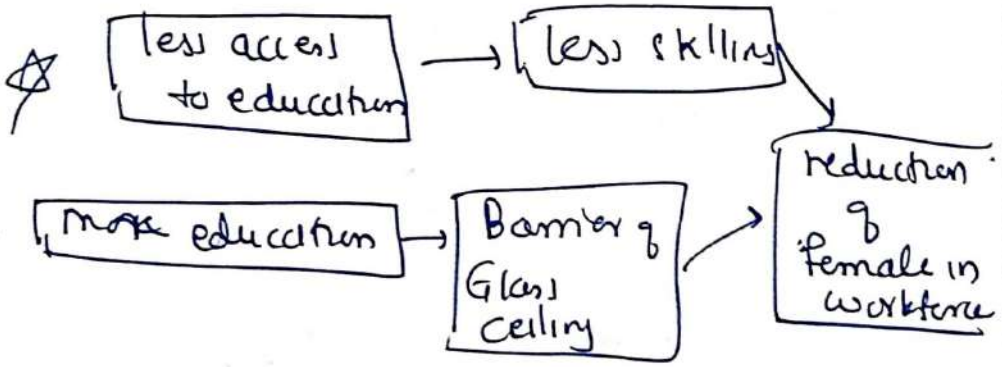
but for formal sector

↳ male preference due to patriarchy

(IV) Feminisation of agriculture.



(V) Education as barrier -



Thus, societal notions of misogyny prevalent here in feminisation of informal sector issue

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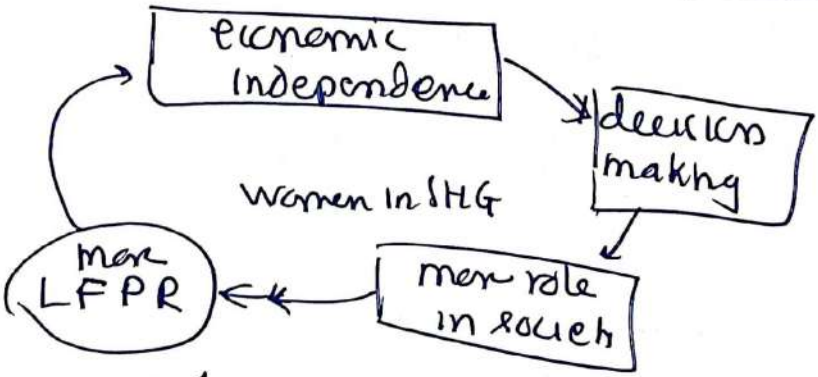
Role of SHG in Correcting anomaly

① NABARD → 90% member of SHG
Women → ₹ 7000 Cr corpus

② 42% households with BPL status reduced to 22% after SHG joining

③ with 90% women in SHG, members 9% likely to get bank loans than normal members → Women economic empowerment

④



Thus - on models of SEWA, Swamini, Sparsh, SHG must take proactive steps for women empowerment

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Q.1) Discuss the role of the 'Fourth Estate' in upholding democratic values and analyse the issues affecting press freedom in India. (10 marks, 150 words)

लोकतांत्रिक मूल्यों को बनाए रखने में 'चौथे स्तंभ' की भूमिका पर चर्चा कीजिए और भारत में प्रेस की स्वतंत्रता को प्रभावित करने वाले मुद्दों का विश्लेषण कीजिए। (10 अंक, 150 शब्द)

'Fourth Estate' i.e. Media is the 4th pillar of democracy, which keeps checks and balances along with the Accountability of the executives - (Aranab Goswami Case)

Ex: Media debates, discussions, Newspaper etc

Role of 4th estate in upholding democratic values

1) Constructive Criticism - of government policies.
   Ex: RTIs by Indian Express → PDS Scam

2) Voice to Voiceless - representation of Vulnerables like Women Tribals
   Ex: Khabar Lahariya (Dalit Newspaper)

3) Responsibility and Accountability of Government
   Ex: Different viewpoints through editorials

4) Exposing Corruption and ensuring justice
   Ex: Madhya Pradesh Vyapam Scam expose

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Issues affecting Press freedom ⇒ India ranks among the bottom 25 in Press Index 2022

1) Chilling Effect and Gagging of Media in Name of National Security (Ex: UAPA Act)

2) Sensationalism and Propaganda Journalism
   Ex: Sushant Singh Rajput Case Coverage

3) Biased and Non Secular Media
   Ex: UPSC Jihad by Sudarshan TV (Banned by SC)

4) Shaping Public Opinion → Kangaroo Courts (CJI Chandrachud)

Way forward → ① Ethical journalism (Code of Conduct)
② Independent Press Council of India (Reduce Control of Govt)
③ Transparency and unbiased ownership (Reduce Control of Govt)

Media Ethics and effective Media are the tools to ensure the Vibrancy of Democracy and thus need to strengthen Fourth Estate

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Q.8) What do you understand by Non-Aligned-Movement (NAM)? Is India's foreign policy still guided by the principles of non-Alignment? Justify. (10 marks, 150 words)

गुटनिरपेक्ष आंदोलन (NAM) से आप क्या समझते हैं? क्या भारत की विदेश नीति अभी भी गुटनिरपेक्षता के सिद्धांतों द्वारा निर्देशित है? औचित्य सिद्ध कीजिए। (10 अंक, 150 शब्द)

During the Cold War era (US Vs USSR) NAM was the strategy adopted by India, Egypt, Yugoslavia etc of not tilting towards any power bloc (individual autonomy)

NAM Features (Principles)
- Non-alignment with power centr
- Non Compulsive decision
- Upholding Sovereign foreign policy

India's foreign Policy – guided by NAM (NO)

① Till 1970s-1980s, NAM was guiding India's foreign Policy Ex 1962 - Indo China War
1971 - Indo Pak War

② Then India shifted towards Pragmatism and Realism based on balancing of Power
Ex Civil Nuclear Deal (USA); Defence (Russia)

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③ Strategic Autonomy → Self interest based diplomatic balancing Eg Stand on Russia-Ukraine

④ Energetic Engagement and Shaping the narrative Eg Chair of SCO, G20 (Terrorism, Environment Conservation)

⑤ India's goal of Vishwaguru and Emerging pan

Bipolar → Unipolar → Multipolar → Heteropolar

NAM

NAM tool ⟹ STRATEGIC BALANCE

NAM principles still guiding

① Supporting Territorial Integrity & Non-interference in internal matter

② Non-Violence and Dialogue based

③ Humanitarian Assistance (Vasudhaiva Kutumbakam)

NAM is a tool and core of India's foreign policy and transformed into Strategic Alliance and needed in changing geo political

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Q.20) Bureaucracy is not only important for delivery of public services but it also has a very significant role in preserving India's constitutional order. Comment. (15 marks, 250 words)

नौकरशाही न केवल सार्वजनिक सेवाओं के वितरण के लिए महत्वपूर्ण है, बल्कि भारत की संवैधानिक व्यवस्था को बनाए रखने में भी इसकी बहुत महत्वपूर्ण भूमिका है। टिप्पणी कीजिए। (15 अंक, 250 शब्द)

Bureaucracy as advocated by Weber is hierarchical structure which acts as a link between people and state to fulfill the goals of social justice

Bureaucracy - Public Service Delivery

1) Policy Formulation of the government for service delivery -
   Ex NFSA Act 2013 for PDS

2) Policy implementation and law & order
   Ex: during pandemic lockdown

3) Crisis Management as prime responsibility

4) Grievance Redressal which is key element of service delivery (Servotom Model)
   Ex: Jan Sunwai

5)

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5) Welfare of the vulnerable sections for delivering social justice on lines of Nagpur declaration of service delivery -

Bureaucracy Role in Constitutional order

1) Conducting free and fair election which is basic feature. (Art 324)

2) Following Constitutionalism and constitutional morality

Ex: upholing secularism

3) Unity and integrity of the nation by inclusive governance

4) Committed Bureaucracy for constitutional principles of liberty equality & fraternity

5) Ensuring social justice based on Gandhian Talism & Antodya principle

Ex:

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6) Enhancing Accountability, Responsibility & Transparency by curbing corruption.
Ex: Lokpal, CIC, CVC etc

Challenges of Bureaucracy

1) Rule Ritualism and Mai-Baap attitude
2) Lack of Empathy & Compassion
3) Political interference
4) Erosion of Values and Ethics.

Way Forward (Hota Committee)

1) Mission Karmayogi
2) Lateral Entry & Lateral Exit (Niti Aayog)
3) Code of Ethics & Code of Conduct
4) Rule based to ROLE based

Bureaucracy must follow the Mantra, to Reform to Perform to Transform as given by our Prime Minister to convert Steel frame to plaster frame.

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SANCHIT SHARMA
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Q.16) Ayushman Bharat is a revolutionary intervention but falls short of recognizing the right to health as a universal basic right. In this perspective, discuss the need for and impediments in ensuring the right to health for all in the country. (15 marks, 250 words)

आयुष्मान भारत एक क्रांतिकारी हस्तक्षेप है, लेकिन स्वास्थ्य के अधिकार को एक सार्वभौमिक बुनियादी अधिकार के रूप में मान्यता देने में विफल है। इस परिप्रेक्ष्य में, देश में सभी के लिए स्वास्थ्य का अधिकार सुनिश्चित करने की आवश्यकता और उसमें निहित बाधाओं पर चर्चा करें। (15 अंक, 250 शब्द)

WHO's Alma Ata declaration recognise, right to health as a global goal.

- (a) Right to effective primary health care
- (b) Availability of medicine & vaccines
- (c) Availability of high quality treatment and surgeries
- (d) universal Basic Right [SDG 3]

⇒ Right to health is fundamental right under Article 21 (Supreme court)

Ayushman Bharat :- Revolutionary intervention

- (a) 10 crore poor families covered
- (b) 5 lakh / family / year ⇒ insurance
- (c) Private hospitals and improved health care

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(d) Ayushmam Bharat Digital health mission
→ accessibility of records

(e) PM-JAY (Sehat) :- Specially for Jammu & Kashmir.

However, falls short in recognising Right to health for all
→ Need in ensuring Right to health

1. Missing middle problem
   - (a) Around 33 crore people in India do not have insurance (health)
   - (b) Middle income group has been left behind by all policies

2. High out of pocket expenditure
   Stats - 62% in India

3. Lack of drugs availability (eg) recent protest for HIV drugs

4. Lack of IPR and research & development in India
   → issue of evergreening and compulsory licensing.

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5. low quality health care :-

Stats - 80% of doctors in rural area = Quacks

(i) Safdarjung hospital ⇒ lack of beds

⇒ hence women gave birth outside hospitals

Impediments in Right to health

1. High burden on government ⇒ fiscal deficit

Stats already - 6.9%

2. Difficulty in implementation

↳ private hospitals < high charges & corruption
lack of health literacy in masses

3. Misuse of Schemes like Ayushman Bharat

Hence ↳ 1. Increasing Coverage of Ayushman Bharat

2. Investment in human capital is needed

SDG 3 "Health & well being" can be achieved by universal right to health. Proposal of "Samagra Swasthya Abhiyan" is in right direction.

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PRATEEK SINGH
(AIR 93, 2022)
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145200_51054_1910071026_(2022-08-29 21:06:38)

Q14) Self Help Groups (SHGs) are an effective model of social entrepreneurship for women empowerment and have multiplier effects on developmental processes in rural areas. Elaborate with suitable examples. (15 marks, 250 words)

स्वयं सहायता समूह (SHGs) महिला सशक्तिकरण के लिए सामाजिक उद्यमिता का एक प्रभावी मॉडल हैं और ग्रामीण क्षेत्रों में विकास प्रक्रियाओं पर कई गुना प्रभाव डालते हैं। उपयुक्त उदाहरणों के साथ विस्तृत व्याख्या करें। (अंक 15, शब्द 250)

Self Help Groups (SHGs) are citizen owned-led run initiatives where people sharing a common goal come together for realisation of their common goals.

SHGs for Women Empowerment

1. Economic empowerment
   - Access to credit facilities
   - Opening of bank accounts
   - Digital financial inclusion

   Eg. Kudumbashree

2. Inclusion in various governmental schemes
   - Increase awareness regarding schemes
   - Ensure coverage & inclusion — Eg. Vaegdhara in Rajasthan
   - Realisation of benefit & grievance redressal

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3. Provide political voice
- Ensure effective participation in political processes
- Provide platform to collectively raise concerns.
Eg. Mahila Kisan Sabhas

4. Social empowerment
- Driving social change by elimination of patriarchical structures
- Enhance standing of women
Eg. Gulabi Gang to prevent atrocities.

Multiplier Effect on Rural Development

1. Improve health & educational outcomes:
- economic empowerment of women leads to better realisation of educational & health outcomes. (World Bank study)

2. Recognition to women contribution towards economy
Eg. Despite [illegible] ~70% of agricultural labour

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made up of women, hold only ~14% of land holdings (Agri. Census 2015-16)

- SHGs improve overall economic situation of woman.

3. Clean water & Sanitation

leveraging WASH initiatives of WB & WHO, SHGs ensure health & wealth.

4. Addressing malnutrition

- SHGs involved in POSHAN 2.0, mid-day-meal scheme etc. ensure holistic coverage of nutritional goals.

5. Durable infrastructure

Eg. Pucca toilets, houses under PM AWAS etc. are realised with help of SHGs

6. Fiscal inclusion : Jan Dhan etc.

SHGs like Kudumbashree whose works has been highlighted nationally hold tremendous potential to transform the face of rural India. Only empowered women can lead to an empowered nation.

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PRATEEK SINGH
(AIR 93, 2022)

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Q.17) The second decade of 21st century marks a collective failure of UN and its agencies. Examine this statement citing suitable examples. (15 marks, 250 words)

21वीं सदी का दूसरा दशक संयुक्त राष्ट्र और उसकी एजेंसियों की सामूहिक विफलता का प्रतीक है। उपयुक्त उदाहरण देते हुए इस कथन का परीक्षण कीजिए। (अंक 15, शब्द 250)

The second decade of the 21st century has brought a plethora of challenges for the global order just like the second decade of 20th century through world was I

Collective Failure of UN & its Agencies

1. Global Financial Crisis

continued into the second decade of 21st century, institutions of Bretton woods Conference – World Bank, IMF failed to offer effective solutions.

2. Climate Change

Despite multiple agreements like Paris Climate Agreement, IPCC reports have highlighted the lack of global action.

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3. Refugee crisis

Born out of climate change, conflicts etc., an effective discussion has not been made possible. Despite conventions like ~~Hague~~ New York convention, no effective measures have been taken.

4. Conflicts

4.1. ~~Afghanistan~~ Afghanistan takeover by Taliban

4.2. Nagorno-Karabakh : Armenia-Azerbaijan conflict

4.3. Russia-Ukraine conflict - Crimea annexation

mark a failure of UN & UNSC to deal with issues of global peace.

5. COVID Crisis

Delayed action by WHO and confused messaging prevented any collective actions towards fighting the pandemic

6. Trade Disputes

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Absence of appointments at WTO and a western dominated forum has affected priorities & economies need of developing nations.

Eg. Issue of Agricultural Subsidies, Fisheries etc.

7. UNSC Reforms : Despite widespread calls for updation of UNSC as a forum to reflect present realities, power still held by P-5, proceedings in a secretive manner etc

8. Maritime Freedom :

Chinese dominance in South China Sea & violation of international agreements has seen no counter.

With the looming threats of Climate induced destruction, Chinese belligerence, Russia-Ukraine conflict, Economic & trade warfare etc it is imperative for UN & its agencies to urgently restructure & reform to the new global realities

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BHAAVIKA THANVI
(AIR 100, 2022)

151585_51235_1910098238_(2022-09-06 23:19:24)

Q.17) Assess the performance of MGNREGA in generation of sustainable employment and creation of durable assets in rural India. Can this model be replicated in urban areas as well?
(15 marks, 250 words)

ग्रामीण भारत मे स्थायी रोजगार के सृजन और टिकाऊ परिसंपत्तियों के निर्माण मे मनरेगा के प्रदर्शन का आकलन करें। क्या इस मॉडल को शहरी क्षेत्रो मे भी दोहराया जा सकता है?
(15 अंक, 250 शब्द)

MNREGA is an employment guarantee programme which has proven to be extremely useful, especially during the COVID Pandemic

BENEFITS OF MNREGA

- creation of assets like roads, tanks, reservoirs, schools, etc
- employment in times of distress
- social audit
- fulfill duty of state and ensures right to livelihood.

ISSUES

→ However, the employment is mainly unskilled - and the country currently needs skilled labour.
So, it might not be unsustainable.

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→ lack of proper disposal of funds
→ many do not get wages on time
→ before DBT - high level of corruption
→ many still lack access to banks and bank accounts
→ inadequate wages

Replication in Urban Areas

⇒ Benefits
- employment generation
- social security
- infrastructure creation and maintainance
- right to livelihood

⇒ Issues
- can lead to migration and crowding
- need for infrastructure is not as high in urban areas
- higher need for skilled workforce

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BHAAVIKA THANVI
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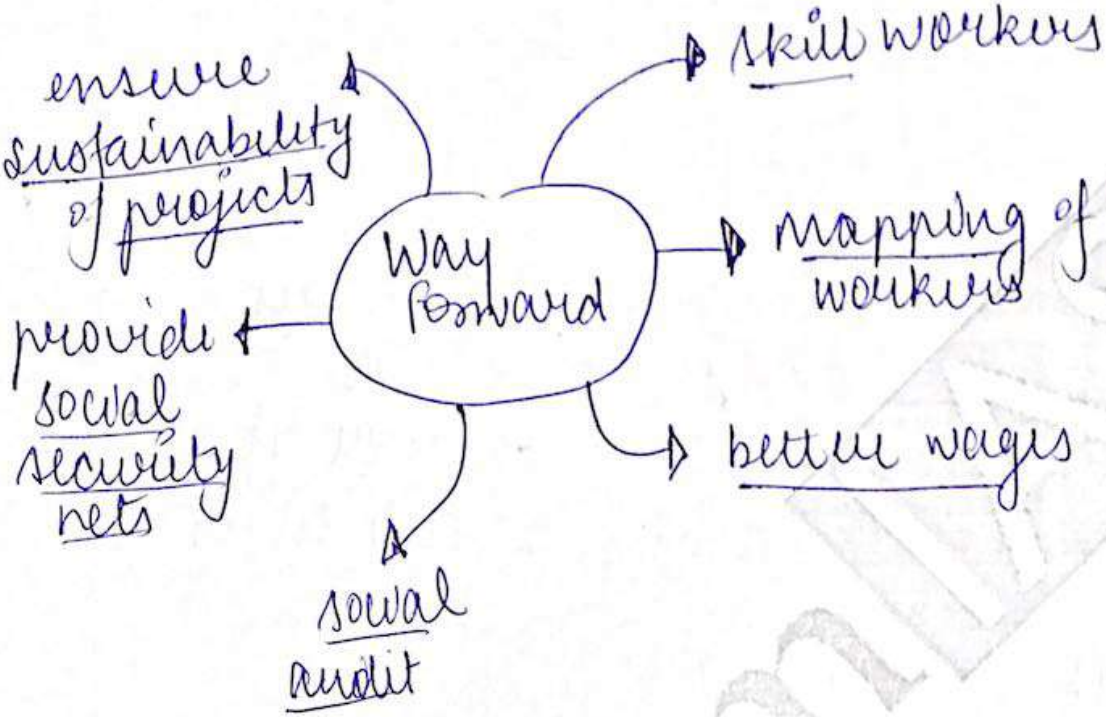

A scheme like MGNREGA is essential, however - it is not a panacea ~~of~~ to all issues. Thus, in urban areas MGNREGA like scheme can work with certain changes.

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BHAAVIKA THANVI
(AIR 100, 2022)

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Q.19) Rather than seeing it as a replacement for SAARC, BIMSTEC must be appreciated for its critical role as a bridge between South Asia and ASEAN. Analyze. (15 marks, 250 words)

सार्क के प्रतिस्थापन के रूप मे देखने के बजाय, बिम्सटेक को दक्षिण एशिया और आसियान के बीच एक सेतु के रूप मे महत्वपूर्ण भूमिका के लिए सराहा जाना चाहिए। विश्लेषण करे। (15 अंक, 250 शब्द)

As the SAARC lies non functional, BIMSTEC which was conceived in 1997 via the Bangkok Declaration, is often seen as an alternative to it. However, it is much more.

HOW BIMSTEC IS AN ALTERNATIVE,

- South Asian Association for Regional Cooperation (SAARC) is marred by issues like:-
  - India-Pakistan relations and differences
  - decisions only based on consensus
  - stagnation of most projects and non functionality.
- Bay of Bengal Initiative for Multi Sectoral Technical Cooperation acts as an alternative as:-

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- it does not include Pakistan.
- All countries aim at connectivity and share cordial relations.

HOW BIMSTEC IS MUCH MORE

- India, Nepal, Bhutan, Bangladesh, Sri Lanka, Myanmar and Thailand are its members
- Myanmar & Thailand are also members of ASEAN (Association of South East Asian Nations)

→ Act East Policy of India aims to connect it, especially North East, to South East Asia.

→ Connectivity Projects
- Kaladan Multimodal Highway involves connecting to Myanmar

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↳ The Trilateral Highway - involves both Myanmar and Thailand.
- moreover, countries like Vietnam have expressed interest in it

↳ Mekong Ganga Corporation (MGC) can also be leveraged.

→ soft power and cultural similarities of Buddhism can be leveraged.

→ complementarities in trade can be leveraged.

→ Sea Lanes of communication (SLOCs) especially with Indonesia - A&N cooperation.

India aims to develop the North east, for it regional integration and connectivity is very important. But, also needs steps beyond just ~~XXXXXX~~. BIMSTEC.

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BHAAVIKA THANVI
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Q.6) While manual scavenging is legally banned, socio-economic realities perpetuate this practice in the society. Comment. Suggest measured to deal with the menace of this social evil.

(10 marks, 150 words)

जबकि हाथ से मैला ढोना पर कानूनी रूप से प्रतिबंधित है, फिर भी सामाजिक–आर्थिक वास्तविकताएं समाज में इस प्रथा को कायम रखे हुए हैं। टिप्पणी करें। इस सामाजिक बुराई के खतरे से निपटने के उपाय सुझाएं।

(अंक 10, शब्द 150)

Manual scavenging refers to the act of cleaning dry latrines without any protective gear.

LEGAL- CONSTITUTIONAL PROVISIONS

- Against Art. 17 - Abolish untouchability
- Manual Scavenging Prohibition Act
- Establishment of National Commission for Safai Karamcharis (NCSK)

But, it is still prevalent.

CAUSES | FACTORS

1. concept of it being a caste based profession.
2. Practice of discrimination - can't get other jobs.

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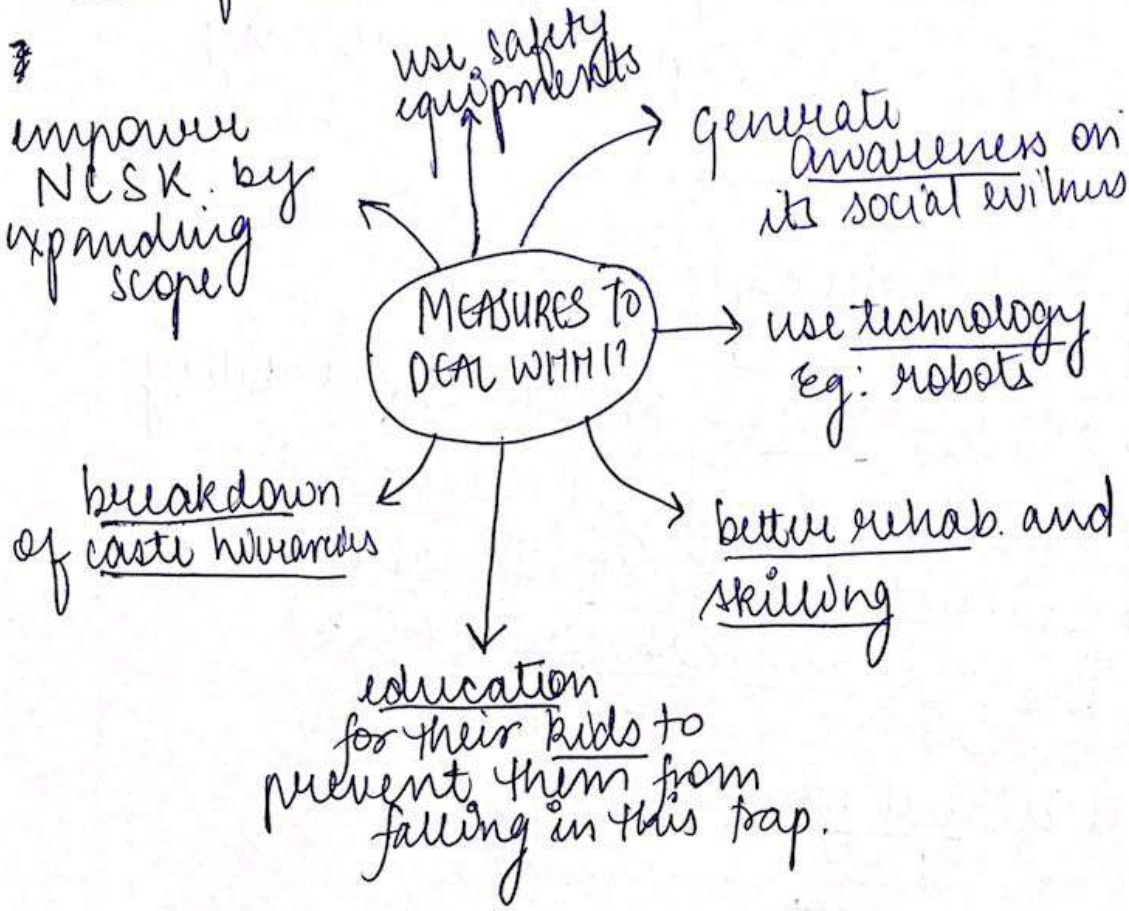
③ Lack of skills - other jobs not available
④ Poor implementation of scheme
⑤ Lack of proper rehabilitation and skilling
⑥ Lack of awareness, etc.



A social evil like Manual Scavenging needs to be eliminated in mission mode to ensure basic human dignity.

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BHAAVIKA THANVI
(AIR 100, 2022)

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Q.13) "Addressing the problem of chronic malnutrition in the country requires nutrition-specific as well as nutrition-sensitive interventions." Analyze. (15 marks, 250 words)

"देश में दीर्घकालिक व गंभीर कुपोषण की समस्या का समाधान करने के लिए पोषण–विशिष्ट के साथ–साथ पोषण–संवेदनशील हस्तक्षेप की आवश्यकता है।" विश्लेषण करें। (अंक 15, शब्द 250)

The recent NFHS-5 data revealed an increase in incidence of anaemia, malnutrition and overweight children. Moreover the Global Hunger Index also showcased India's dismal performance.

CAUSES OF MALNUTRITION

- Poverty and Unemployment reduce access to healty food
- Reduced diverse diet
- Only wheat, rice and few pulses fall under PDS system
- lack of awareness on need of nutritional security
- patriarchial attitude so children especially girls and women go undernourished.
- increased prevalence of packaged foods

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IMPACT OF MALNUTRITION

On Individual

- impaired health
- issues in physical & cognitive growth
- reduced immunity
- decreased performance in school, at work, etc.

On society

- it hampers socio-economic growth
- can't reap benefits of demographic dividend.
- lack of healthy human resource
- poor immunity leads to severe impact of epidemics & pandemics
- cycle of poverty due to underperformance.

ACTIONS NEEDED

⇒ Nutrition Specific

- address issue of anaemia - more prevalent in girls and women via folic acid and iron supplements
- fortification of grains with

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nutrients like Zinc, B-12, etc.
↳ make use of local dietary patterns of coarse grains, vegetables, fruits, etc.
↳ mid day meals can include milk & eggs.

⇒ Nutrition Sensitive
↳ educate masses on its importance
↳ fortification with iron can be detrimental for certain tribes with high prevalence of thalassemia
↳ Make choices sensitive to one's culture
Eg- vegetarian - non vegetarian
↳ involve ASHA workers for keeping track

A multipronged strategy is necessary to address the issue of hidden hunger and malnutrition to achieve SDG 2 of Zero Hunger.

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SHRUTI SHARMA
(AIR 1, 2021)

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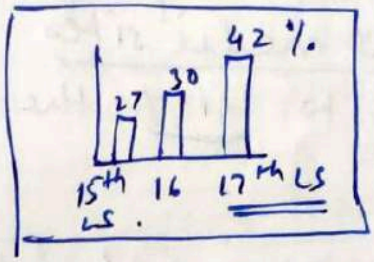
Q.11) Examine various existing mechanisms for controlling money and muscle power in elections. Discuss why criminal elements find it easy to succeed in politics and how the trend of increasing criminalization of politics can be reversed.
(15 marks, 250 words)

चुनावों में धन और बाहुबल को नियंत्रित करने के लिए मौजूद विभिन्न तंत्रों का परीक्षण करें। चर्चा करें कि आपराधिक तत्वों को राजनीति में सफल होना क्यों आसान लगता है और राजनीति के बढ़ते अपराधीकरण की प्रवृत्ति को कैसे उलटा जा सकता है।
(15 अंक, 250 शब्द)

The Padmanabhaiah committee highlighted the menace of using money muscle power as 'cheque book democracy' which is a blot on the Indian democratic model.

The rising trend:

Politicians with criminal background in Lokshabh



Mechanisms to control them:

(1) Election commission
- (1) Model code of Conduct:- involving not bribing voters.
- (1) Declaration of election expenses and assets by candidates
- (1) Overall upper limit on election expenses.

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(2) Supreme Court judgements.

① PUCL case - Beginning of greater transparency - declaration of criminal background

② Lily Thomas case : Disqualification for 2yrs on conviction immediately (No appeal)

Recent SC judgement - stressed on multiple publishing of criminal information on social media sites alongwith reasons as to WHY the candidate was chosen.

Reasons for criminal 'winnability' in elections :

① Presence of 'money power' - used for massive campaigning and bribing of voters.

② Use of violence, threatening measure → Presence of large criminal networks to support them.

③ Non implementation of Electron

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SHRUTI SHARMA
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Commission and Court guidelines due to lack of enforceability and effective cadre.

(4) Lack of political will - support by institutions

(5) Citizens find patronage ties with such leaders.

Necessary measures required:

(1) Election Commission → to be given greater independence and powers
- (*) 2nd ARC: Collegium for appointment
- (*) Powers to enforce order and separate independent cadre (for independence)

(2) Political parties - Election expenses should also be capped
- ↳ To be brought under RTI (CIC recommen)
- ↳ Electoral bonds to be stopped (Election Commission) ↳ high opacity.

(3) State funding of elections (In kind) ↳ Indrajit Hazra Committee.

Free and fair elections can be the first guarantee of a healthy democracy.

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SHRUTI SHARMA
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Q.13) The project of grass root democracy remains incomplete as administrative decentralization has not accompanied political decentralization. Highlight the critical administrative challenges faced by local institutions and give your views to improve the situation. (15 marks, 250 words)

जमीनी लोकतंत्र की परियोजना अधूरी है क्योंकि प्रशासनिक विकेंद्रीकरण के साथ राजनीतिक विकेंद्रीकरण नहीं हुआ है। स्थानीय संस्थानों के सामने आने वाली महत्वपूर्ण प्रशासनिक चुनौतियों पर प्रकाश डालें और स्थिति को सुधारने के लिए अपने विचार दें। (15 अंक, 250 शब्द)

The GVK Rao Committee on India's local bodies commented it to be 'grass without roots' instead of a grassroots democracy.

(*) Political decentralisation began with 73rd and 74th Amendments and corresponding Art 243 G and 243 W listing subjects to be under the local bodies and political positions of mayors, sarpanches and municipal councillors.

HOWEVER Critical administrative challenges persist:

(1) Absence of enough funds devolution:
(*) Most funds are tied to specific schemes - leading to 'top-down'

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approach - lack of innovation

(*) Absence of own sources of funding
↳ 14th Finance Commiss - only 0.25% of GDP (Property Tax) less than most major countries.

(2) Functions : Not effectively devolved
2nd ARC : Local institutions are 'local' only in 'form' not in 'character'
↳ Marked by 'delegation' and not devolution of authority.

(3) Lack of infrastructure
↳ more than 25% of Panchayat secretaries do not have an office.

(4) Prevalence of corruption
↳ Mani Shanka Aiyar Committee - 'decentralisation of corruption'

(5) Multiplicity of bodies → overlapping of functions.

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SHRUTI SHARMA
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Measures to improve situations :

(1) Outcome oriented fund devolution
- Eg 15th Finance Commission – devolution of funds based on crucial reforms in municipalities and gram panchayat

(2) Own generation of funds :
- Eg – Municipal bond in Indore
- Imposition of 'user charges'

(3) Encouraging 'competition'
- Eg Swachh Survekshan at municipal level
- Municipal Performance Index (NITI Aayog)

(4) Devolution of functions based on 'principle of subsidiarity'

The Padma Shri awardee Popatrao Pawar as sarpanch of Hivre Bazar which has been a transformative governance model is an idea of the power of true devolution of powers.

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SHRUTI SHARMA
(AIR 1, 2021)

Q.14) How far do you agree that collegium system of judicial appointment and transfer falls short in striking a balance between judicial independence and other democratic principles? In this context, suggest some practical solutions for making the collegium system more transparent.

(15 marks, 250 words)

आप कहाँ तक सहमत हैं कि न्यायिक नियुक्ति और स्थानांतरण की कॉलेजियम प्रणाली न्यायिक स्वतंत्रता और अन्य लोकतांत्रिक सिद्धांतों के बीच संतुलन बनाने में विफल है? इस संदर्भ में, कॉलेजियम प्रणाली को और अधिक पारदर्शी बनाने के लिए कुछ व्यावहारिक उपाय सुझाएं।

(15 अंक, 250 शब्द)

The collegium system of judicial appointment as an diversion of the Indian judiciary was formulated in the Four Judges Cases - is highlighted as an expression of judicial independence.

Judicial independence
- Consultation with Chief Justice means concurrence (2nd Judges case)
- Judges not based on executive preference
- can lead to highly critical judgements of government
  - 2G scam case

However, other principles may face a challenge :

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(1) System of checks and balances - due to no parliamentary or executive oversight
(2) Separation of powers between three organs of government.
(3) Transparency and judicial accountability.

There are various problems with the collegium that pose above challenges.

(1) Problem of opacity: Discussion of collegium not made public.
(2) Leads to perpetuation of certain elite families
↳ BR Ambedkar referred to it as 'Imperium within Imperio'.
(3) Lack of representation
Only 2/34 SC judges and 80/1200 (SC and HC judges) are women - leading to regressive judgements
Eg Dowry - Provision family committees

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Possible solutions:

(1) Balance to be sought between NJAC (proposed by Parliament) and MoA (prepared by judiciary) to introduce transparency and evidence based promotions.

(2) Possible promulgation of draft Judicial Accountability Bill - with 3 tier grievance redressal and transparency mechanism for judiciary - and greater judicial accountability.

(3) Making discussions of collegium public - for greater public scrutiny.

(4) Restatement of Ethics in Judicial Life, 1999 - should be implemented in spirit by all judges to ensure accountability and transparency

The judiciary should thus hold itself to same standards that it wishes to impose upon others.

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